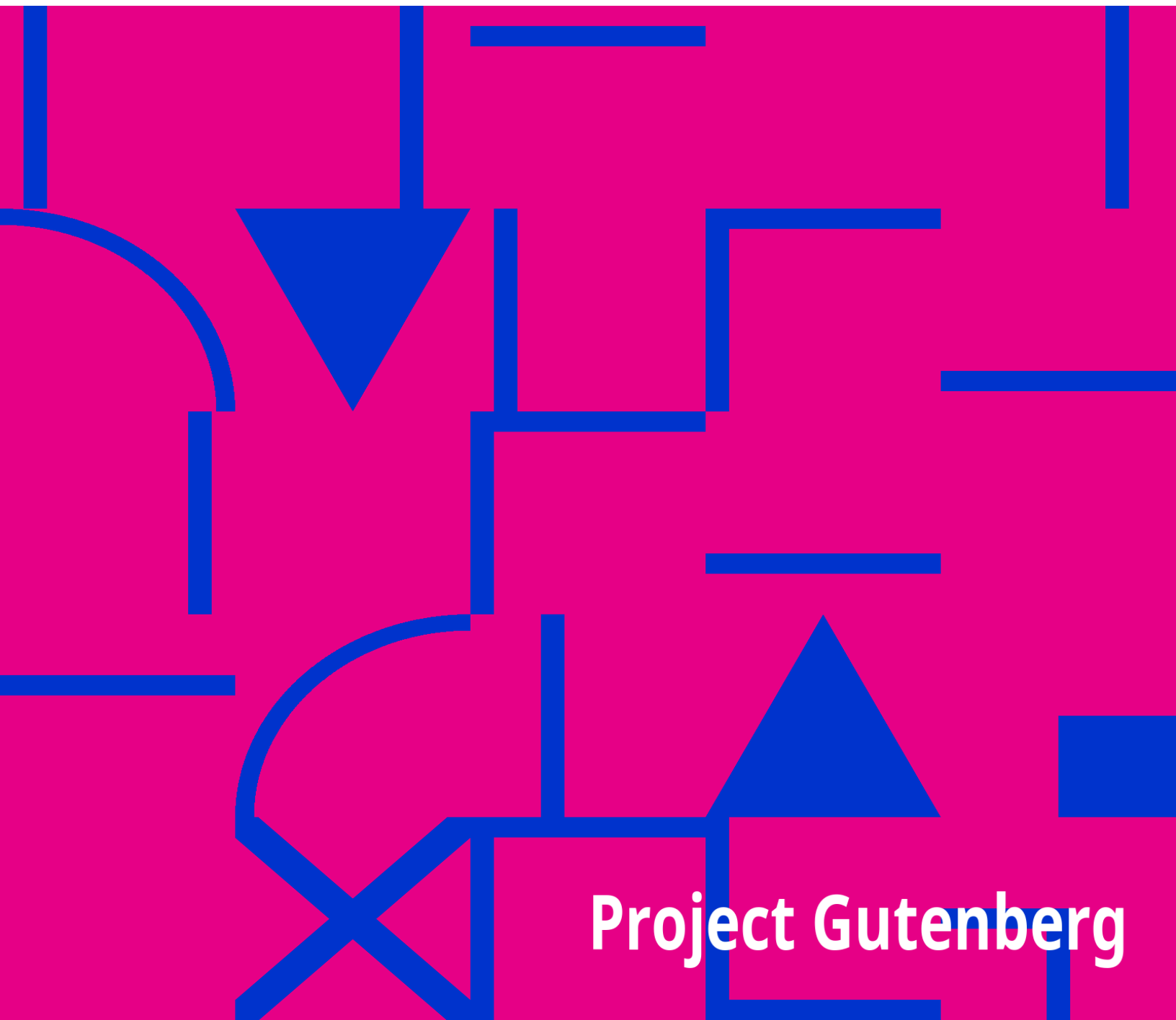


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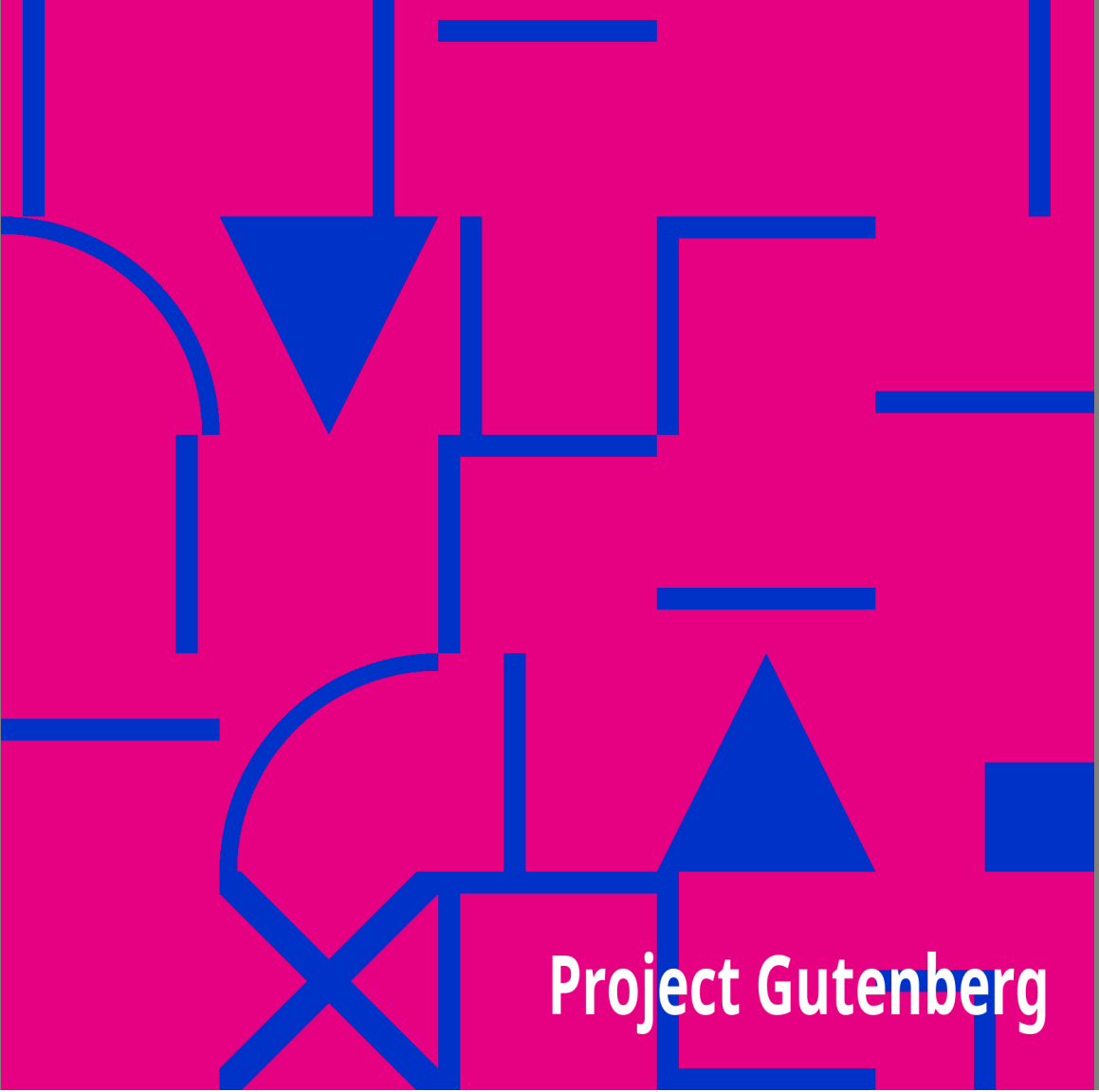
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An abstract geometric pattern on a magenta background. It consists of various blue shapes: a large downward-pointing triangle on the left, a large upward-pointing triangle on the right, several horizontal and vertical lines of varying lengths, and a large 'X' shape at the bottom left. The pattern is composed of thick blue lines and shapes.

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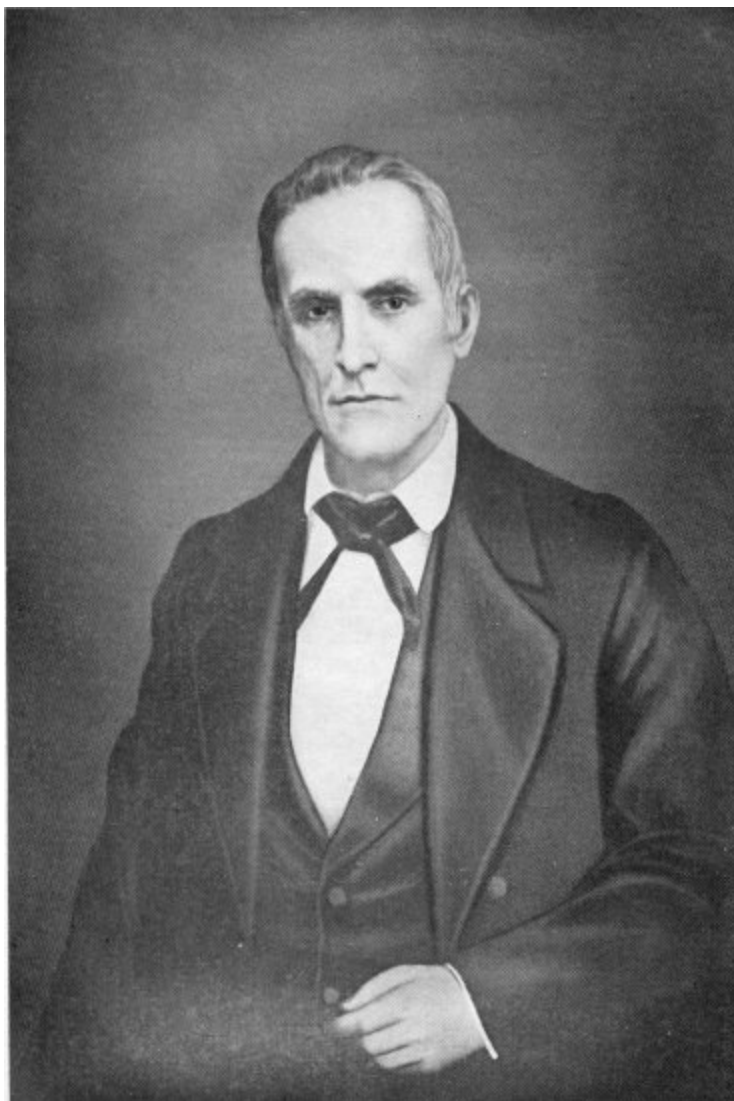


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Many of the images may be seen at an enlarged size by clicking on them.

Obvious typographical errors have been corrected; the original orthography, including variation in the spelling of names, has been retained.

The Index included at the end of this etext (which includes volumes 1 thru 4) appears at the end of volume four of *The History of Cuba*. It is provided here for the convenience of the reader.



JOSÉ CIPRIANO DE LA LUZ

"The Socrates of Cuban youth," as he has often been called, José Cipriano de la Luz y Caballero was born in Havana on July 11, 1799, and was educated at the Convent of San Francisco, the University of Havana, and the San Carlos Seminary where he was a pupil of his uncle, José Agustín Caballero, and of Félix Varela. Later he travelled and studied in the United States and Europe. In Germany he became intimately associated with Baron Humboldt. Returning to Cuba in 1831, he gave himself to the task of improving and promoting the educational interests of his country. In 1843 he revisited Europe, but was recalled the following year to answer an absurdly false charge of being implicated in the Negro Conspiracy. He then founded and until his death conducted his famous school of El Salvador, in which for a generation many of the foremost Cubans were educated, and in which manhood and patriotism

were ever the foremost items of the curriculum. He was the author of a number of standard educational works. He died on June 22, 1862.

THE HISTORY OF CUBA

BY
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the Panama Canal," "America's Foreign Relations"

Honorary Professor of the History of American Foreign
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WITH ILLUSTRATIONS

VOLUME THREE



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THE HISTORY OF CUBA

CHAPTER I

THE revolutionary era in Cuban history had its rise amid circumstances of both political and commercial dissatisfaction and protest, and it is by no means impossible nor even improbable that the latter form of discontent was the more potent of the two. The commercial and industrial development of the island, despite its almost incredibly opulent resources, had been very slow, because handicapped by selfish and sordid misgovernment. The typical attitude of the Peninsular government and its agents in Cuba had been to use and to exploit the island for the sole benefit of Spain, and not to permit other nations to enter in competition. Other countries, in fact, so great was the secrecy maintained with regard to Cuba, knew but little of the vast wealth contained in this small space of land. Consequently the island was developed in accordance with the wishes, needs, and potentialities of Spain and with one other point of view. Cuba was never exploited by Spain for all its worth, and indeed there seems to be doubt as to whether Spain ever grasped in full the future possibilities of the island. Certain it is that she never actually realized them. And the loss was in consequence as great to Spain as it was to Cuba. For had Spain allowed herself to lose sight of the richness of present extortions and aided Cuba to develop her resources for the future, the whole story would have been far different. But the people of the United States were beginning to recognize Cuba's possibilities. American merchants began to flock thither. American money and American resourcefulness opened new doors for Cuba's rich products. American trade and enterprise contributed a great deal which made for Cuban expansion and industrial development. In proof of this there is the fact that the island towns on the north side, which is nearest the United States, increased both in population and commercially, in striking contrast to the slow growth of the towns on the south side of the island. In 1850 these latter towns, with Santiago de Cuba as the chief city, did not maintain more than twenty-five per cent. of the trade of the island.

In further proof of America's hand in the development of Cuba, we may cite the following tables, in every one of which it is easy to see that Cuba's trade was largely with the United States. Taking the records of Cuban trade

in 1828 as typical of the commerce of the early part of the century, we get the following contrasts with the figures of the years immediately preceding 1850:

Cuban imports in 1828, \$19,534,922; exports, \$13,414,362; revenue, \$9,086,406.

Cuban imports in 1847, \$32,389,117; exports, \$27,998,770; revenues, \$12,808,713.

Cuban imports in 1848, \$20,346,516; exports, \$20,461,934; revenue, \$11,635,052.

These statistics of the imports and exports of Cuba are divided according to the chief countries concerned:

	1847	Imports	Exports
United States	\$10,892,335	\$8,880,040	
Spain	7,088,750	6,780,058	
England	6,389,936	7,240,880	
France	1,349,683	1,940,535	
1848			
United States	\$6,933,538	\$8,285,928	
Spain	7,088,750	3,927,007	
England	4,974,545	1,184,201	

Entries and clearings of vessels from Cuba were as follows:

	1847		1848	
	Entries	Clearances	Entries	Clearances
United States	2,012	1722	1733	1611
Spain	819	751	875	747
England	563	489	670	348
France	99	81	85	63

Copper was at this time greatly exported from Cuba. Since its discovery in 1530 comparatively little had been done until three centuries later. In 1830 an English company commenced operating the copper mines and from that time to 1870 had extracted this ore to the value of \$50,000,000.

Sugar had long been the greatest source of Cuban wealth. It was always the sugar planter who had social as well as financial prestige on the island. Up to the middle of the nineteenth century even the poorest and smallest of

sugar plantations had yielded a profit of \$100,000 a year while the larger and more prosperous ones had cleared even as high as \$200,000 annually. And all this had been accomplished with a minimum of effort. Vast areas of Cuba at this period were given over to these plantations. Some estates devoted themselves exclusively to raising the cane, while others ran mills which ground the cane and prepared the product for sale as sugar. Particularly with the soil as it was then, unravished by revolution, with its original fertility unimpaired, it was rarely necessary to replant the sugar cane. The old sprouts came up year after year, yielding at least two crops a year without any necessity for disturbing or enriching the soil. In 1800 Cuba exported 41,000 tons of sugar; and in 1850 no less than 223,000 tons.

From 1836 Cuba had no representation in the Cortes. Although Spain had promised Cuba "special laws," these were not enacted, and such laws as were put on the books were inimical to Cuban interests. Without representation, Cubans were also denied free speech. To speak one's mind against Spain meant to be thrown into a dungeon. If two or more persons signed a petition to secure some slight betterment in conditions, it was termed treason, and they were promptly apprehended. Business was under control of the Captain-General. It had to pay him large sums to be allowed to live, and it was compelled to conduct its affairs in accordance with his ideas. The "Junta de Fomento" established by Arango was no longer a factor in the improvement of Cuban affairs, but was packed with creatures of the Captain-General, with favorites of the court, and was used as a means of obtaining information and extorting money from Cubans who were suspected of disloyalty to Spain. The public offices were used to support additional taxation, and to strengthen the despotic rule of the Captain-General.

Under the decree of 1825 the Captains-General had taken unto themselves the most autocratic power. Creoles were not allowed to serve in the army, or in the treasury, customs or judicial departments. From these last three they were excluded because such positions were lucrative, and were desired by court favorites. The Captains-General financed and fostered all kinds of nefarious schemes for extracting wealth from the Cubans to pour it into their own pockets. The poor people were obliged to police the rural districts, and to give up their own occupations to work on the roads making repairs. The control of education in Cuba was given—it hardly seems credible—into the hands of the military functionaries to administer. The

Spanish military authorities had a well-organized system of blackmailing well to do citizens by threatening to denounce them for sedition unless they paid hush money, which was put at as large a sum as possible. Of course it did not matter whether the victim was guilty or innocent. If the latter he would have no opportunity of clearing himself. The only thing which the robbers took into consideration was how much he could pay. Money was the open sesame for prison doors, and the barrier which prevented their closing on the unfortunate Cuban.

Yet one would think he would have little left for bribery when he had paid his taxes, for the subject of taxation was after all the most grievous one, and was a direct cause of the various filibustering expeditions which attempted to gain freedom for Cuba, and finally led to the war of independence.

The revenues from all sources, including export and import duties, license fees, and the government lottery, for the year 1851 were \$12,248,712.06, which amounted to a tax of \$20 for each free citizen. The excess duties had a very deleterious effect on the commerce of Cuba. The duty on goods shipped direct from Spain to Cuba was so much less than the duty on goods shipped from other countries that it became the custom to ship materials from the United States to Spain and from Spain back to Cuba, since this cost less than a direct shipment. The direct shipments of flour from the United States to Cuba decreased from 113,245 barrels in 1826 to 100 barrels in 1852, while the imports of flour from Spain, who could hardly produce enough for her own needs, increased from 31,749 barrels to 257,451 barrels in the same time. Of course, this was the golden opportunity for the smuggler, who could slip across from Florida and run his boat into one of the hundreds of little coves with which the coast of Cuba is lined.

Cubans might have more cheerfully rendered their tribute in taxes, but unfortunately the huge sums were not expended for the good of their country. An extravagant government had to be supported. In 1850 the cost of maintaining the army and all expenses in connection with it were over \$5,000,000 and the navy cost more than \$2,000,000, while the Spanish legation in the United States was maintained from Cuban coffers. Writing of such a state of affairs, José Antonio Saco said in 1835:

"Enormous is the load of taxation which weighs upon us—perhaps there is no people in the world which in proportion to its resources and population

pays as much as the island of Cuba, nor a country, perhaps, where less care is taken to use on its own soil some part of its great sacrifices."

In 1851 the duty on sugar was raised from 50 cents a box to 87½ cents. Flour and hogs were more heavily taxed than any other imports. Hogs carried a duty of six dollars each, while the tax on flour was so enormous as to prevent its use by any but the very wealthiest inhabitants. Foreign flour was discriminated against in favor of Spanish flour; on the former the duty was \$10 a barrel while on the latter it was increased from \$2.50 to \$6 a barrel. The records show there importations of flour to Cuba:

	1847	1848
From Spain	175,870 bbls.	212,944 bbls.
From America	59,373 bbls.	18,175 bbls.
Total	235,243 bbls.	231,119 bbls.

Spain was favored in other ways in these taxes. Spanish vessels were taxed only one-seventh of one per cent. on imports, while foreign vessels were taxed 1.1 per cent, on the same goods. Nor were these taxes the only ones which the people had to undergo. One of the most pernicious of all taxes was the 1/10 of all farm produce which was given to the church. The result of this tax was indirectly bad as well as unjust, for it fostered a kind of priest in Cuba who could do little for the moral and spiritual welfare of the people.

The following table shows the revenue of the island in 1849-51:

	Import Duties	Export Duties	Other Revenues	Total
1849	\$5,844,783	\$584,477	\$4,782,226	\$11,211,526
1850	5,639,225	757,071	3,655,149	10,051,443
1851	6,364,825	1,793,992	4,821,195	12,180,012

The currency of Cuba was gold and silver; and in 1842 she had a total amount in her treasury of \$12,000,000 in coin.

An official statement compiled in 1844 lists a few of the taxes, and gives some interesting figures as to the amounts collected. The Cubans were taxed six per cent. of the selling price, on all sales of real estate, or slaves, and on sales at auction and in shop. They were also taxed on Papal Bulls, and there were brokers' taxes, cattle taxes, shopkeepers' taxes, tax on

mortgages, tax on donations, tax on cockfighting, taxes on grants of crosses, insignia or use of uniforms; taxes on promissory notes or bills of exchange, taxes on municipal taxes, taxes on the death of all non-insolvent persons, taxes on investments in favor of the clergy; the church did not escape, for there were taxes on the property of the Jesuits. There were also taxes on sales of public lands, taxes on the establishments of auctioneers, and taxes on everything sold, water canal taxes, and customhouse duties on imports and exports and the tonnage of vessels. Cubans were not only taxed on the sale of lands, but of course on the land itself, and there were state and municipal taxes, and they were taxed on their cattle and all animals whether they kept them or sold them. Passports were taxed, and as Cuba had a large transient population this tax brought in a goodly sum. Public offices were privately sold to the highest bidder. There were taxes on the sale of archives to notaries for the recording of deeds. Small fines were being constantly imposed by grafting officials, and the Captain-General's tribunal exacted a special fee, which brought in large sums. Fees were demanded for marriages, both by the church and the state. There was an inheritance tax; there were tolls imposed on bridges; and large amounts were extorted for the nomination to office of captains of districts, city ward commissaries, and watchmen; gambling was licensed; and there were the taxes on sugar, on pastures, on coffee and tobacco, and on minerals exported. The tax on all crops, except sugar, when gathered was ten per cent. There was a tax of \$1.25 on every hundred weight of salt. Government documents were required to be written on special paper, furnished by the government at a high price.

Worse than all this were the restrictions placed on personal liberty. No private individual of a hospitable nature was allowed to give an entertainment to his friends, even a small evening gathering, without obtaining a license, for which he paid. If he neglected to do this he was fined, and sometimes the license was declared invalid on some pretext and he was fined anyway.

No Cuban could move from place to place, or go on even a short journey, without obtaining a license. If a man wanted to make an evening call on a friend, he could not do so unless he carried a lantern, and obtained from each watchman whom he passed permission to proceed. If he failed to comply, he was arrested and fined \$8. He could not entertain a guest in his house over night, not even a neighbor, without informing the authorities,

under penalty of a heavy fine. The household goods of a Cuban could not be moved from one house to another in the same town without the consent of the authorities, and the penalty for failure in this case was a fine.

The cost of a passport, which was necessary before a foreigner could enter any port in Cuba, and the proceeds of which went into the treasury, was \$2. The traveller was also obliged to give security for good conduct, and his baggage was thoroughly searched. Particular care was taken to see that he did not have any incendiary literature, and if he had a Bible, which must have been considered a dangerous book, and which, at any rate, came under the ban of both the church and the government, it was promptly separated from his other effects and seized. Unless he desired to remain in the seaport where he entered, he was required to pay twenty-five cents more for a passport permitting him to visit the interior. It seems to have been difficult enough to get into Cuba, but like the proverbial church fair, it was even more expensive to get out, for the privilege cost \$7.50.

Some authorities estimate that the taxes of Cuba averaged in 1850 \$38 a head, while in the United States, a republic and the nearest neighbor, they amounted to only about \$2. But then the people of the United States were free, and were not paying tribute for the privilege of being governed by royalty. The greater part of these taxes were exacted from the Creoles, for the Spaniards made up only about 35,000 of the population and there were estimated to be 520,000 Creoles at this period.

A large number of families came to Cuba from the Spanish colonies of South America and Mexico, which had gained their independence from Spain, and from Florida and Louisiana when they came into the possession of the United States. These families were, of course, all intensely loyal to Spain, and of the arrogant disposition which naturally prevailed among men of such tendencies as led them to prefer the autocracy of Spain to American democracy. In spite of this increase in their number, the native white or Creole population of Cuba outnumbered the Spanish by more than 10 to 1.

In 1850 among the Cubans themselves there were 50 marquises and 30 counts. These men were in the main wealthy planters who had bought their titles from Spain for sums varying between twenty and fifty thousand dollars. The fundamental reason for this expenditure on their part was not wholly for social prestige but rather to enjoy the greater personal freedom

accorded to nobles. These latter could never be tried by ordinary courts but only by tribunals, and they could not be arrested for debt.

Those Cubans who were hoping for better days for Cuba were eager that their children should have opportunities not accorded them. They desired to send them to the United States for education, in the hope perhaps that they might imbibe some of the principles of liberty. But this did not find favor with the Spanish authorities, and it was only by swearing that the children were ill, that the climate did not agree with them, and that they were being sent away for their health, that passports could be obtained to get them out of the country.

Many Cubans were persecuted by officials, high and low, falsely accused, condemned without a hearing; shut up in fortresses without adequate food, without the ordinary comforts of life, in solitary confinement, often in dungeons; and frequently their own people were denied knowledge of their whereabouts. They simply dropped out of sight and were gone. No man knew when he opened his eyes in the morning whether that day might be his last as a free human being—free so far as he might be with the thousand and one restrictions imposed upon him. He was not sure that some enemy, unwittingly made, might not inform upon him for some imaginary action of disloyalty, or that he might not be falsely denounced by hired spies. It was then no wonder that those who loved their country, who had self-respect and affection for their families, longed for freedom from Spain, and lived in the hope of emancipation from what was virtual slavery.

Under the Spanish rule the chief officer of government in Cuba was the Captain-General, who after the promulgation of the decree of May 25, 1825, had absolute authority. Even prior to that time, because of the long distance between Cuba and the mother country, the time consumed for information and instructions to travel back and forth, and the fact that Spain was more or less concerned with her own none too quiet domestic affairs, the Captain-General was very powerful.

There was another office under the crown which was much sought after, that of Intendant. He controlled the financial affairs of the island, and received his orders not from the Captain-General but direct from the crown. In his own realm his power was equal to that of the Captain-General, but he had no authority outside his own particular domain. The title of Intendant was changed to Superintendent, in 1812, at which time the financial

business of Cuba had become so important that it was impossible for it to be handled from one place, and subordinate officers were placed in command at Santiago and Puerto Principe, subject of course to the direction of the Superintendent.

It is needless to say that the arrogant Spanish Captains-General did not relish having anyone on the island who equalled them in rank, and after much controversy at home and abroad the Captain-General in 1844 was declared to be the superior officer, and later on, in 1853, the two offices were united, under the title of Captain-General. The Superintendent was head or chief of a "Tribunal de Cuentas" which had judicial control over the treasury and its officers, was auditor in chief of all accounts, and voted on all expenditures. Its rulings were reviewed only by the Minister of Finance in Madrid, to whose direction it was subject.

The Captain-General was the presiding officer of the City Council which had charge of the civic administration of Havana, but he had only one vote, exactly as had every other member, and officially he had no power except to carry out the resolutions of the juntas. Unofficially, he controlled the city affairs absolutely. If occasion demanded he could act as the presiding officer of any city council. This power was exercised whenever he felt that the councils were growing too liberal in their ideas and actions, and enabled him to exercise a despotic power and coerce public opinion.

Cuban leaders had no conception of the democratic form of government which in the United States gave separate powers to the national, state or province and city administrations. The national government was closely linked with the provincial and with the city, and the functions were so intertwined that it was hard to say where one left off and the other began. The Captain-General always encouraged this close amalgamation of governmental functions because it enabled him to keep in close touch with all the branches of the government and to discover and put down any movements which would tend to diminish the power of the supreme officer. The Captain-General's power was civic, provincial, national and indeed international. This enabled him very easily to line his coffers, for he spent a great deal of time in signing papers of no especial significance, except that to obtain his signature it was necessary that he be paid a big fee. It was said that any Captain-General who remained four years in Cuba, and did not take away from the island with him when he departed at least a million dollars, was a poor manager.

The Captain-General had all prisons under his control; and the fate of all prisoners, either those imprisoned for petty or state offenses, lay in his hands. This did not mean that he personally supervised the prisons, but that his creatures and officers were subject to his orders, and the offices were within his gift. Thus he was able to extort fees for various functions, as well as to demand largess for leniency extended to state prisoners. Under Tacon's administration this power was exercised to such an extent that it became a public scandal.

The postal service also fell under the supervision of the Captain-General, and there were many ways in which he could make this office line his pockets. He acted as a police magistrate in the city of Havana, another fruitful source of revenue, particularly as the office was connected with that of president of the city council.

Cuba was divided into three districts, the western, central and eastern. Havana was the capital of the western district, Santiago de Cuba of the eastern and Puerto Principe of the central district. Each district had its governor who was directly under the Captain-General, and under the governor, in charge of the affairs of the larger towns and their out-lying districts, was a lieutenant-governor, who was president of the local council and had control of military affairs for his district. Under the lieutenant-governors were captains, who were located in regions which were not very thickly settled, and who had absolute military power—subject of course to commands emanating higher up—over the affairs, lives and property of the people under their jurisdiction. Each of these officers received his appointment from the Spanish crown, but he was obliged to receive his nomination from the Captain-General, so that these offices too were a source of revenue to that gentleman, and his nominees, when appointed, were subject to his control. The functions of the governors and lieutenant-governors were supposed to be primarily military, and they received the salary which would naturally attach to their rank, but since they also presided in civil and criminal cases in their jurisdictions, as did the Captain-General in Havana, the fees from these proceedings made very fat picking. Now the captains had no salary at all, and the style in which they were able to live depended on the number of fines they were able to impose, and therefore it is not difficult to imagine that they were not easy on any Cubans who came under suspicion of any offense. They received one-third of all fines imposed by them.

Each city in Cuba had its Ayuntamiento or council. In Puerto Principe there seem to have been elections for membership to this body, but in most cases seats were bought at enormous prices, and the receipts from such sale went into the Spanish treasury, although the Captain-General received his perquisite for allowing the transfer to be made. He also seems to have had some power of appointment, which was seldom made without pecuniary consideration, and there were some cases where members had hereditary rights to their seats. Not every town had its Ayuntamiento, but in most of the older towns they existed. The Ayuntamiento elected its own mayor from among its members, but they were all subject to the control of the Governor or Lieutenant Governor, who was in line of course subject to the Captain-General.



THE OLD PRESIDENTIAL PALACE

The official residence of a long line of Spanish Governors and Captains-General is a large and handsome building of stone, tinted white and yellow, facing the Plaza de Armas from the east, and standing on the site of the original parish church of Havana. Within its walls occurred the memorable scene of the final abdication of Spanish sovereignty in Cuba. It has now been replaced by the new Presidential Palace.

Early in the reign of the Spaniards in Cuba, courts called Audiencias with both judicial and administrative functions had been established. They were not at all pleasing to the more arbitrary of the Captains-General for while

they were subordinate to him, and their only restriction on his power was in a kind of advisory capacity, yet they often reflected public opinion, and too, if their conclusions differed from that of the Captain-General, they were a moral curb upon his actions which he resented. The most ancient and honorable of these Audiencias was the one at Puerto Principe. It was the oldest in the island, and it strove to uphold its dignity by conducting its proceedings in the most formal and impressive manner, by adhering to the most ancient customs. It was greatly revered by the people of the district, and the Captain-General felt that somehow it detracted from his glory, and from the respect which he felt should be accorded the commands of his inferior officers. Various Captains-General strove to abolish this court, and to turn its revenues into their own pockets.

The judicial functions in criminal and civil suits were divided among many bodies, and there must have been great confusion, overlapping of authority, and consequent wrangling. Judicial powers were accorded to the Alcaldes Mayors, to the Captains, Lieutenant Governors, Governors, Captains-General, Audiencias, in some cases to juntas, and even to naval officers. Judges could condemn, but they could not themselves be condemned. There was no way of curbing a wrongful exercise of their power, and even when their offenses were heinous they could not be disciplined through any democratic measures. Civil prisoners were often taken from the jurisdiction of the civil courts and tried by military tribunals. In the last resort, the Captain-General could always interfere, when he chose.

The courts in Cuba at the middle of the nineteenth century were notoriously corrupt, and while the people feared them, in their gatherings in their homes they did not hesitate to condemn them. Justice was almost a dead letter. When a well known offender against the laws had influence with the Captain-General, or with some subordinate official, the prosecuting attorneys would refuse to try him. The very source of the pay of the captains made it impossible for them to make a living without corruption, and an honest one would have been hard to find, while the governors and lieutenant-governors were of opinion that the only way to keep the people in subjection was to oppress and terrify them, and the only way for governors and lieutenant-governors to return to Spain with the proper amount of spoil was to exact it from the unfortunate Cubans.

While the Captain-General was the supreme military authority, he was not the supreme commander of the naval forces, the latter being a separate office. This was due principally at least to the fact that all the naval forces of Spain in America were commanded from Havana, and all naval expeditions for the defense of Spain in South America were commanded and directed from that port. Therefore, it was necessary not only that the naval officer should be a person of importance and ability, but also that he should not be subordinate to the chief officer of any one of the Spanish colonies. When Spain lost her large possessions in America, and only Cuba remained to her, then the office of naval commander was greatly curtailed in scope, and it was a matter of much irritation to the Captain-General that there should be stationed in Cuba, or in Cuban waters, an official of equal rank with himself.

Over the army the Captain-General held undisputed sway. There were quartered in Cuba in 1825 three regular army battalions, a brigade of artillery and one cavalry regiment. This army was supposed to be augmented by the local militia. In 1850 there were in the regular army sixteen battalions, two picked companies of veterans, twelve squadrons of cavalry, two brigades of artillery, and two light batteries.

Cuba had reason to fear the success of an attack made from the southern coast of Florida, from Hayti or from Yucatan. The island lies in the midst of the gulf waters, long and narrow in outline, and with miles of sea coast all out of proportion to its area. It was almost impossible adequately to patrol the coast and it would have been easy for an enemy to make a landing, provided the leader of an expedition was familiar with the coasts. Means of communication were slow in those days, and particularly slow in Cuba because of her geographical formation. If the attackers once entrenched themselves in the mountains, they were in a position to carry on an interminable guerrilla warfare. For these reasons, Spain would have felt that Cuba should be heavily garrisoned, even were it not also for the fact that the Cubans were growing so restless and crying so vociferously for liberty that Spain had reason to fear dangers both from within and without.

People did not lightly express their opinions publicly in Cuba, particularly if those opinions were unfavorable to the government. Expressions unfavorable to the government were never allowed to leak into print, for except for a short period in 1812, and another from 1820 to 1823, the press was securely censored. The Captains-General who reigned during the

nineteenth century were particularly careful that this censorship should be rigid and unbending. An American editor, Mr. Thrasher, was more daring than the native Cubans and his paper, *El Faro Industrial*, frequently contained matter which provoked the displeasure of the Captain-General. He had powerful connections and he was therefore unmolested until it was deemed that his comment on the death of General Ena, during the Lopez uprising, was too offensive, and the paper was suppressed. The Spanish interests conducted the largest newspaper in Havana, *El Diario de la Marina*, which had a list of 6,000 subscribers. Although this paper was avowedly Spanish in its sympathies and was conducted with Spanish money, it too was carefully watched by the censor. One day, it unguardedly, or through a misjudgment, accepted for publication an article implying that the interests of Cuba and the interests of Spain were not one and identical, and the entire edition was promptly suppressed by the censor.

Not only was the local press carefully muzzled, but a watch was kept lest anything creep in from the United States, or from any other source, which might put notions in the heads of the Cubans that would divert their allegiance from Spain. The work of the censor was not an acceptable one for the United States, and the American residents in Cuba did not take pleasantly to the suppression of the American papers, and friction on this score was constant.

A paper called *La Verdad*, published in New York by Cuban sympathizers, came under the especial displeasure of the Captain-General and of the Spanish government in Madrid. Regarding it, the Spanish Secretary of Foreign Affairs wrote as follows to Calderon de la Barca, the Spanish minister at Washington, on January 2, 1848:

"Your excellency knows that the paper called *La Verdad*, published in New York, is printed with the specific object of awakening among the inhabitants of Cuba and Porto Rico the sentiment of rebellion, and to propagate the idea of annexation to the United States. The Captain-General of the island, in fulfilment of his duty, prohibited the entrance and circulation of this newspaper in the island, and tried to investigate the ramifications in the island of this conspiracy against the rights of Spain, and against the peace of the country. As a result of the efforts made with this object, it was discovered that although not numerous, there were in Havana some wicked Spaniards charged with the task of collecting money to sustain

the subversive publication, and to distribute its copies to those who should care to read them."

The Spanish government in Cuba did not look with favor upon foreigners. It thought that other countries, especially those adjacent to Cuba, were too tainted with liberal notions to render their inhabitants safe associates for the already restless Cubans. It therefore preferred that persons wishing to visit Cuba either remain quietly at home, or become Spanish citizens, subject to Spanish rule, if they insisted on remaining on the island. On October 21, 1817, a Royal Order was issued dividing foreigners into three classes. First, transients, composed of those who were merely enjoying the unwilling hospitality of Spain in Cuba. A person could be regarded as a transient for a period of only five years. After that he must either declare his intention of remaining in Cuba permanently or depart. Second, domiciled foreigners, who must declare their intention of remaining permanently in Cuba, must embrace the church by becoming Roman Catholics, must forswear allegiance to their native country in favor of allegiance to Spain, and must agree to be subject to Spanish law exactly as native Cubans and Spaniards were subject to it. Third, citizens by naturalization, who were regarded as Spanish citizens in every sense of the word, and could be sure of the same unjust treatment which Spain accorded all subjects in her possessions.

Now this subject of foreigners in Cuba was a complex one, because, beside the tendency among Americans to settle on the island, now that its rich resources were becoming recognized, there were, in the middle of the nineteenth century, many Americans rushing to California to seek their fortunes in the gold fields. The favorite route was via Havana and Panama, and they naturally left their mark on the thought of the people with whom they came in contact. Beside this each year during the sugar harvest skilled mechanics came to work on the plantations. This did not meet with the approval of those in command of the finances of the island, because each of these visitors carried home with him every year from \$1,000 to \$1,500 on which he had paid no taxes. Such conduct was reprehensible, and it was entirely foreign to the policy or intent of any Captain-General that anyone should get away with any money without being either taxed or fined for it. Besides, these adventurers, as they were contemptuously termed, were regular mouthpieces of treason, and were said to talk of nothing else but freedom from Spain by annexation. Naturally their coming was unpleasant to the high powers in Cuba. Now under the treaty of 1795, between Spain

and the United States, provision was made that "in all cases of seizure, detention or arrest, for debts contracted, or offenses committed by any citizen or subject of the one party, within the jurisdiction of the other, the same shall be made and prosecuted by order of the law only, and according to the regular course of proceedings in such cases. The citizens and subjects of both parties shall be allowed to employ such advocates, solicitors, notaries, agents and factors as they may judge proper in all their affairs and in all their trials at law in which they may be concerned before the tribunals of the other party, and such agents shall have free access to be present at the proceedings in such cases and at the taking of all examinations and evidence which may be exhibited in the said trials."

Americans charged with offenses against the Spanish government should have had the benefits of the rights given them under this treaty, but the government took refuge behind the fact that the Captain-General had no diplomatic functions, and Americans were frequently thrust into prison and allowed to remain there subject to much discomfort and to financial loss until Washington and Madrid got the facts, and took the time to arrange the matter. The Spanish Secretary for Foreign Affairs wrote to Calderon de la Barca, on this matter, as follows:

"Your Excellency knows that the government of Her Majesty has always maintained the position with all foreign powers that its colonies are outside of all the promises and obligations undertaken by Spain in international agreements. With regard to Cuba, the discussions with England to this effect are well known, in which the Spanish Government has declared that the treaties which form the positive law of Spain had been adjusted in times when the Spanish colonies were closed to all foreign trade and commerce, and that when in 1824, these colonies were opened to commerce of all other nations, they were not placed on equal footing with the home country, but were kept in the exceptional position of colonies. Of this exceptional position of that part of the Spanish dominions, no one has more proof than the foreign consuls, since it is evident to them that the Spanish government has only endured their presence on the condition that they should not exercise other functions than those of mere commercial agents. Thus in 1845 the English government accepted formally the agreement that its consul should not demand the fulfillment of treaties, not even of those which refer to the slave trade."

The natural inference to be drawn from this was that Spain considered that foreigners who desired to live in Cuba must do so at their own peril, and that the Captain-General was above the trammeling bonds of international agreements in his dealing with interlopers who came to the island. But it must be borne in mind that the government of Cuba was administered not for the development of the island or the best good of its inhabitants, but according to the short sighted and stupid policies which seemed to Spain best calculated to prevent Cuba from slipping from her grasp as had her other colonies. Therefore, the main solicitude of each of the Captains-General was the subduing of the inhabitants by force, if necessary, the defense of the island from an enemy who might come by sea, and the lining of his own pockets while opportunity offered.

CHAPTER II

VENEZUELA gave the struggling Spanish American colonies Bolivar, who was their liberator and their savior. In the same country was born, at the end of the eighteenth century, in 1798 or 1799, a child who fifty years later was to lay down his life on the altar of freedom for Cuba. This boy, like Bolivar, was of a wealthy and respected family. His father was the proprietor of a large estate which was stocked with cattle and horses and live stock of every kind. His mother had gentle and even aristocratic blood in her veins and she endeavored to bring up her children with high ideals of truth and honor. Narciso Lopez, who was to fight so valiantly for enslaved Cuba, is reported to have been a boy who was born to command. He roamed the plains with the men from his father's ranch and they recognised him as a leader. He was a fine shot, a fearless rider, brave, energetic, resolute and tireless.

When he was a boy of fourteen or fifteen his family moved to Caracas. His father had been stripped of his property by the wars by which Venezuela was torn at that time, and consequently entered into commercial life, and soon established a business with many nourishing branches. Narciso must have been a lad of exceptional perspicuity and judgment, for his father placed him in charge of a branch establishment at Valencia. But a quiet commercial life, as quiet as the times would permit, did not please a boy who had the instincts and tastes of a soldier. Besides it probably would have been difficult for anyone with any spirit to keep out of the turmoil which was threatening to engulf Valencia at that time. For the place was armed and garrisoned against the Spaniards, who under General Boves were advancing to attempt to take it. The natural leader of the Venezuelans was Bolivar, and although he had been routed, and had retired to reorganize his forces, he succeeded in getting word through to Valencia to hold the town at any cost. The Valencians were only too eager to obey these instructions, because they well knew the devastation



NARCISO LOPEZ

that inevitably followed in the wake of the Spanish army. They could not view with equanimity the picture of their town destroyed, their women ravished, little children killed, and men massacred or led away into captivity, and so they laid plans for a brave resistance. All of the valuable property was collected from the houses into the public square. The town had no walls, so that the best that could be done was to barricade the approaches to this square and strive to defend it.

The house where Lopez lived was situated in one corner of the square, and he soon found himself not only in the centre of the preparations, but, because of his resourcefulness and initiative, a recognized leader in the defensive operations. The elder Lopez was in town at the time, but while he did his part in preparing for the siege, it was the son who took command and who issued the orders to the father. For three weeks the little band of patriots held off the Spanish forces, sending runners through, whenever this could be done, with messages asking Bolivar to hasten to their aid, and each day praying that help might reach them. But Bolivar was unable to do anything for them. Indeed his army was in such straits that it was a relief to him to have the Spanish leader turn his attention to the attack on Valencia and give an opportunity to rally his own forces. At the end of the third week the victorious Spaniards entered the town in triumph. The men were separated from the women, and were marked for a general slaughter that night while the decree went forth that the women were to be allowed to remain alive a little longer so that they might serve the pleasure of their conquerors. Narciso was not taken prisoner, because he was clever enough to hide himself with some negroes, who it was expected would be taken away into captivity by the Spaniards. Narciso was separated from his father, and was much concerned for the latter's safety, for the son readily pictured the horrible fate that might befall him; and finally his fears grew so unbearable that he felt that anything rather than uncertainty would be welcome. He therefore stole forth to reconnoiter and to see what he could discover. With him he took two old colored men who had been family servants. All night he searched, crawling from house to house, under cover of the darkness, taking advantage of every bit of cover, lying close to some friendly shelter to listen to the conversation of passing soldiers in the hope that he might gather some news. He was later to learn that his father had effected his escape, and that his own fruitless search through the dark watches of that interminable night was after all his own salvation. The next

morning, when, worn out with exhaustion and half dead with fatigue, he and his companions dragged themselves back to the place where the slaves had been huddled, a ghastly sight met their eyes. The Spaniards for once had been false to their traditions. Perhaps they knew that these slaves had imbibed from their masters too much of the spirit of liberty to make good Spanish servants. At any rate there they lay upon the ground, eighty-seven of them, each with his throat slit from ear to ear.

Now we come to a period of Lopez's career which it is difficult to harmonize with the whole story of his after life. The only plausible explanation seems to be that he was only a boy, and that Bolivar's army was suffering such reverses that the only way in which Lopez could save his own life was by joining forces with the Spaniards, which he did. One would have thought that after the valiant part he played in the defense of Valencia, he would cast his lot with the insurgents. No writer of the period gives us any real explanation of his course. But whatever the motive, Lopez became a Spanish soldier, a fact which later was to be of tremendous value to him, because it enabled him to visit Spain, to rise high in the service, to hold exalted positions in the Spanish court, and to obtain an insight into the cruelties and injustices perpetrated by the men who were the oppressors of the country which he was to adopt as his own, and the salvation of which he was to make his life work, which he could have gained in no other way. His action may have been precipitated by the fact that the people of Valencia did not understand the straits in which Bolivar found himself, but felt that he had deliberately deserted them.

Through the long struggle which ended in the evacuation of Caracas by Spain in 1823, Lopez fought with the Spaniards. So brilliant was his service that he was at the age of twenty-three given the rank of major. The story is told that early in the war, when he was a mere private, in an attack against a position which was defended by field works, the Spanish forces were divided, in an effort to take two bastions upon the capture of which victory depended. But there was not sufficient ammunition, and that of one of the divisions became exhausted, so that it was necessary to obtain a fresh supply from the other division. This information was signaled, and the leader of that portion of the attackers which must now supply the other, called for volunteers. In order to get the relief through it was necessary to lead three mules, which were tied together Spanish fashion, the head of the second mule to the tail of the first one, and the head of the third to the tail of

the second, past a position where they were exposed to the hot fire of the opposing army. Lopez volunteered. When he reached the most dangerous part of his course, the mule in the center was struck by the enemy's fire and fell dead. Lopez did not hesitate, but with the bullets singing about him—the insurgents in that party must have been singularly bad marksmen, or perhaps their guns were not of an efficient pattern—he cut out the dead animal and, tying the two remaining mules together, safely reached his destination and delivered the ammunition to the commander. He was not injured, but his gun had been broken by a chance shot, his clothes were riddled with bullets, one of which had passed through his hat within an inch of his head, and both of his mules were so severely wounded that they had to be shot. His action gave the victory to the Spanish. This exploit won for Lopez the offer of an officer's commission, but he was modest in his estimate of his own ability, and he felt that he was too young for the honor, and so he refused, with the request that he might be taken from the infantry and placed in the cavalry. So, in spite of his disposition to make light of his own achievements, and almost against his own will, he found himself at nineteen the commander of a squadron of horsemen. It was a force of picked men, most of them older than Lopez, and it had the reputation of never having shown its back to the enemy. From the command of this company, Lopez was elevated to the rank of major.

Now Lopez had made many friends in the Spanish army. All through his career he had the ability to make men believe in him, love him and be ready to follow wherever he led. The high honors which had fallen to his lot seemed not to have incited jealousy among his companions; indeed on the other hand he was urged by his friends to apply for the cross of San Fernando, to which they believed he was entitled. Again that curious quality in Lopez which did not make him shrink from deeds of bravery, but which did make him draw back from demanding their reward, asserted itself. The cross of San Fernando was a very great honor, and it was not bestowed as a free gift, but when a man performed some action of unusual courage he might publicly demand it, and anyone in the army who cared to do so was free to enter their opposition, by proving, or trying to prove, that the deed for which the cross was demanded was not of such a character as to merit such a reward. In the whole Spanish army in Cuba at that time, only one individual had succeeded in obtaining the cross of San Fernando. While Lopez hesitated, his commander in chief, General Morillo, had the

application drawn up and personally insisted that Lopez sign it. After a rigid inquiry into the merits of this petition, which was backed up by the endorsement of his comrades and of Morillo himself, the cross was granted.

But it was no more than common justice that Morillo should take this stand, for far better than anyone else had he cause to be grateful for the bravery of this twenty-three year old boy. The larger part of the Spanish army at this time was infantry, while the army of the insurgents was largely cavalry. The natives knew the country, and were able to carry on a successful guerrilla warfare, without allowing the Spaniards to engage them in open battle. This harassed the Spaniards, wore down their morale, and slowly but surely decimated their forces. Morillo, well knowing this, was pursuing the insurgents, in a vain attempt to join them in conflict. Lopez at this time was in charge of his cavalry company, which had been almost exterminated in a conflict that morning. Only a little band of thirty-eight men remained. Morillo was not aware of the catastrophe which had overtaken Lopez's command, and did not know how greatly it had been reduced in numbers. He therefore issued orders that it gallop forward to attack the enemy in the rear, with an idea of forcing them to face about and give battle. The engagement took place on the plains, and the handful of men could be plainly discerned by the enemy as they rode to obey their commanding officer. General Paez, who was in command of the Venezuelans, sent a corps of 300 men to repel the thirty-eight cavalymen. Neither Lopez nor his men faltered, for they must live up to their traditions. Lopez ordered them to dismount and engage the advancing enemy on foot, using lances and carbines in the attack. Morillo soon discovered what was in progress and sent reinforcements, and Lopez's men held their position until aid reached them.

When this war was over and freedom had been won an extraordinary thing happened. The patriot government invited this young man, who had fought against them, to enter their service with the same rank which he had held in the Spanish army. This he declined, and when evacuation took place he retired with the Spanish army to Cuba, in 1823.

Lopez married a very charming Cuban, adopted Cuba as his native land, and gave up his position in the army. Perhaps the cruelty of the Spanish government in Cuba may have awakened him to the nature of the organization which he was serving. He was at heart a man who loved freedom, who was impatient of unjust restraint, who loved his fellow men

and could not bear to see them suffer injustice. Spain was afraid that her officers might be led away by the spirit of democracy which was creating such havoc in her possessions in America. When absolutism was again restored in Spain, and the constitution of 1812 was for the second time overthrown, she required her officers in Cuba publicly to adjure liberalism, and to take an oath to stand by the Spanish rule in the colony. This Lopez could not bring himself to do, and so he remained in retirement.

Affairs in Spain underwent a change, for King Ferdinand died and immediately a contest for the control of the government was on between his widow, Maria Cristina, as regent for her infant daughter, Isabel, and Don Carlos, who was the brother of the deceased king, and who declared that under the Salic law the crown belonged to him. War between the two factions seemed imminent, and the Spanish people were war weary, when the Queen regent conceived a brilliant plan. She felt sure that the will of the people was with her, since she represented the liberal party as against Don Carlos who was at the head of the absolutists and whose accession of power would mean new oppressions. Maria Cristina therefore issued a proclamation calling on the people, if they loved their country and wished to save her from civil war, to join in disarming the absolutists. This movement was well organized and a day was set for the disarmament to take place all over the kingdom. It seems almost incredible, but it was successful, and from one end of Spain to the other there were over six hundred thousand stacks of arms taken from the Carlists by the people of the liberal party.

Now while this action was being planned and executed, Lopez happened to be in Spain. He had gone to the court at Madrid with his wife to endeavor to have restitution made to her of large sums of money which the government of Cuba had unjustly taken from her family. Unfortunately there are no records which disclose whether his diplomacy was great enough to persuade Spain to return any money which had once gotten into her coffers. However, Lopez had grown to understand Cuban affairs by this time well enough to know that if the liberals were successful it might mean the reestablishment of the constitution of 1812, and the dawn of better days for Cuba; but on the other hand, should the Carlists triumph, Cuba was bound to be more fiercely ground beneath the heel of tyranny and oppressions. Lopez loved his adopted country, and so he at once took command of a body of liberals who were being hard pressed by a company

of the national guard, part of which had sided with Don Carlos. He rallied the little band, filled them with new courage and enthusiasm, and all day he worked with them, sometimes in company with other men and often alone, driving before him companies of Carlists, forcing them to go to the guardhouse of the liberals and surrender their weapons. When news of this conduct reached royal ears, Lopez was made first aide-de-camp to General Valdez, who was commander in chief of the liberal forces, that same Valdez who was destined later to become Captain-General of Cuba. A strong friendship sprang up between the two men, a bond which was never broken, and which Lopez respected so much that he later deferred action against the Spanish government in Cuba until after Valdez had relinquished the office of Captain-General. Indeed, it was through the influence of Lopez at the court of Spain that Valdez became Captain-General.

Valdez had many reasons for being grateful to Lopez, for during the war which followed between the forces of the queen and those of Carlos, at one crisis—a surprise attack when the troops were about to flee—Lopez placed himself in command and led them to victory. On another occasion Valdez, who had his headquarters in the little village of Durango, had dispatched the main portion of his army against the forces of the enemy, retaining with him only a few picked men. Suddenly he found himself almost surrounded by the Carlists, who had seized the hills by which the village was enclosed. It was necessary that someone carry news of the situation to the main army and obtain relief. Lopez, who was then a colonel, signified his willingness to undertake the task, and indeed claimed that it was his right as first aide-de-camp to command the rescuing party which he intended to bring back with him. Valdez was loath to let him go, for he felt that success was problematic, and that the expedition meant almost certain death for his friend. But there was no alternative, and so at last he consented. Lopez set forth on horseback with one servant attending him. When they approached the enemy, they signalled that they were deserters, with valuable information to impart. They were allowed to approach without being fired on, and when they came abreast of the opposing forces, they set spurs to their horses, ran the gauntlet of a shower of bullets, and escaped unhurt, bearing the news of Valdez's perilous position to his main army.

So great was Lopez's valor and fearlessness, and so high a reputation had he for honor and fair dealing, that he was respected by the Carlists as well as by his own party. At the end of this struggle he was accorded the rank of

General in the Spanish army, and was loaded with honors, having the crosses of Isabella Catolica and St. Hermengilda bestowed upon him, and being appointed commander in chief of the National Guard of Spain. He stood high in the regard of the Queen Regent, but he grew to know her as she was, a cold, selfish plotter, and when she was finally expelled from the regency Lopez regarded it as a cause for rejoicing, even though his own career might be expected to suffer. But the regard in which he was held was too great for this to come to pass, and after the insurrection which deposed Maria Cristina he was offered and accepted the post of Governor of Madrid.

Lopez also served Spain as a senator from the city of Seville. He was present in the Cortes when the Cuban delegates who were elected during the conflict of wills between General Lorenzo and Captain-General Tacon, and who escaped to Spain and attempted to claim their seats in the Cortes, were rejected. Perhaps more than anything else in his career, Lopez's service as senator opened his eyes to the vile condition of Spanish politics, and the methods which were used in ruling the colonies. He was always on the side of the oppressed, he hated injustice, and so, then and there, the love of liberty which had always been a part of his character took concrete form in a resolve to be the liberator of Cuba.

When Valdez set forth to take over the command in Cuba, he had earnestly requested that Lopez be allowed to accompany him, but on the plea that there was important work for him to do in Spain, Lopez was not allowed to depart. It may be that in spite of the fight which he had made to maintain the unity of the Spanish kingdom, the astute and crafty Spanish statesmen suspected his loyalty, for it was reported that during Tacon's administration in Cuba, Lopez had entered into a conspiracy to obtain freedom for the island, and had publicly toasted "free Cuba" at a banquet. This seems more like a story which might have been born of Tacon's mean jealousy and fear for his own power, and nurtured by his vivid imagination when he sought to harm an enemy. It does not seem credible that Lopez, who had not yet openly thrown in his fortunes with the liberals in Cuba, would have been so foolish as to expose himself to the vengeance of a Captain-General who he had good reason to know would let nothing stand in his way when he sought to tear a rival in court favor from a high place. Be this as it may, the story was current in Spain, and while it seems not to have harmed Lopez's popularity with the people or with the court, it did prevent his accompanying Valdez to Cuba at this time. Lopez's ability to make friends,

however, a little later stood him in good stead. He had won the liking and indeed the warm affection of Espartero, the leader at this time of the liberal party in Spain, and the influence of Espartero finally made it possible for Lopez to return to Havana, in 1839.

The friendship between Valdez and Lopez remained warm, and Valdez appointed Lopez President of the Military Commission, Governor of Trinidad, and Commander-in-chief of the Central Department of the Island. Now rumors that a revolution was imminent began to be generally circulated. No one could tell the source from which they sprang, but they seemed to be in the atmosphere, and were the constant subject of whispered conversations in the cafés and restaurants and in the houses of the liberals.

When Valdez relinquished the Captain-Generalship, and O'Donnell began his infamous rule, Lopez felt himself released from all obligations to the government. Every particle of Spanish sympathy had long since been purged from his heart, and his honors from such a source had become irksome. He had refrained from actively plotting against Spain while Valdez was ruling over Cuba, his friendship for Valdez making him unwilling to embarrass him. This curb removed, Lopez gladly relinquished his offices and retired to his own estates. He was not nearly so successful as a business man as he was as a soldier, and the business enterprises which he undertook proved to be failures. But he took over the management of some copper mines and these were used as bases for the organization of the attempt to free Cuba which was now beginning to take form and shape in his mind. He mingled with the people quietly and endeavored, successfully, to win their esteem and liking. The district in which the mines were located was settled mainly by men who were always in the saddle. Now Lopez was a fine horseman. There were no deeds of horsemanship which they might perform which he could not duplicate or improve upon. He thus soon won a popular following, and this curiously enough without attracting the particular attention of the Captain-General or his spies, and became a hero to the men among whom he dwelt. They were all indebted to him for deeds of kindness, for no man in difficulties ever appealed to Lopez's purse in vain. Thus he acquired an influence which made him confident that should he speak the word the countryside would rally with him under the banner of revolt against Spain.

Now Lopez was not particularly interested in the emancipation of the slaves. He thought that they were necessary for the successful cultivation of

the island, and he could not successfully visualize a free black population. He felt that a Cuba unbound by any ties to any other nation meant free blacks. He therefore favored annexation to the United States. He took the American Consul at Havana, Robert Campbell, into his confidence, and asked his advice. Campbell was in favor of annexation by the United States and expressed his opinion that the majority of the American people, especially those in the southern states, were heartily in favor of the United States taking over Cuba; but he also called Lopez's attention to the numerous treaty obligations binding the United States and Spain together, and assured him that whatever secret support he might hope to gain from that country, he (Campbell) certainly would not officially come out and sanction any movement to free Cuba from Spain. He felt that if Lopez by revolution could perform the operation and sever the bonds which bound Cuba to Spain, the United States might reasonably be expected not to refuse the gift of the island were it offered to her.

Lopez at once began actively to outline his plans for a revolution, and secret headquarters were established at Cienfuegos, while the organization was extended to other parts of the island.

CHAPTER III

LOPEZ planned to begin the uprising for the freedom of Cuba on June 24, 1848. He had enlisted the sympathy and secret cooperation of many men in the United States, chiefly in the southern part of that country, and looked to them to provide him with the needed arms and ammunition. There was no lack of readiness on their part to respond to his needs in this respect, but there was much difficulty in transporting such supplies from the United States to Cuba. Whatever the personal sentiments of the officers of the American government, they were required publicly to do all in their power to prevent illicit traffic; while of course the Spanish officials in Cuba were vigilant to prevent the landing of any such cargoes. The result was that sufficient supplies did not reach Cuba in time for an uprising on the appointed date.

The delay was fatal. It afforded opportunity for betrayal. Among the followers of Lopez in Cuba was one José Sanchez Yznaga, a mere lad of tender years. He could not resist the temptation to boast to his mother of the great enterprise in which he was to take part, and she, drawing from him all the details of the conspiracy, repeated the story to her husband. Forthwith he gave information of it to the authorities; reputedly in order to prevent his son from getting into mischief. Lopez, unconscious of what had happened, was "invited" by the Governor of Cienfuegos to call upon him, on a matter of important business, and was actually on his way to keep the engagement when he learned of the betrayal. Instantly he changed his course, and instead of going to Cienfuegos he took train for Cardenas and thence a coasting vessel for Matanzas. At the latter port he was so fortunate as to find the steamer *Neptune* just starting for New York. She had room for another passenger and he got aboard without detection by the Spanish officers who were in quest of him. The boy Yznaga also escaped arrest. Apparently the names of the other conspirators were not disclosed, or else there was no convincing evidence against them. At any rate, none of them were imprisoned or punished in any way. But Lopez himself was tried *in absentia* and was condemned to death, on March 2, 1849; and Yznaga, also absent, was condemned to six years' imprisonment.

It was in July, 1848, that Narciso Lopez reached New York, a fugitive from Spanish wrath. There he found that various Cuban Juntas had been formed in the United States, and that a well-organized campaign for the annexation of Cuba was being pushed. This movement was not, of course, approved officially by the United States government; but neither were any extraordinary efforts made to suppress or to discourage it. Several Senators of the United States did not hesitate to make speeches in the Senate in favor of annexation; some of them advocating its forcible achievement if Spain declined to make the cession peacefully. Several of the foremost newspapers also openly espoused the cause. Improving the opportunity presented to him by these circumstances, Lopez sought some prominent American, politician or soldier, who would identify himself with the Cuban revolution and would place himself at its head. Some of his first and strongest efforts were directed toward getting Jefferson Davis, then a Senator and afterward President of the Confederate States, to take command of the expedition which he purposed to fit out; and he offered to place the sum of \$100,000 in a New York bank to the credit of Mrs. Davis as an inducement. Davis considered the offer and then declined it; sending Lopez, however, to Major Robert Edward Lee, of the United States army, afterward of the Confederate army, as a more likely candidate. Lee, however, also refused the invitation, for reasons which Jefferson Davis afterward set forth as follows:

"He came from Mexico crowned with honors, covered by brevets and recognized, young as he was, as one of the ablest of his country's soldiers, and to prove that he was estimated then as such, I may mention that when he was a Captain of engineers, stationed at Baltimore, the Cuban Junta in New York selected him to be their leader in the revolutionary effort on that island. They were anxious to secure his services, and offered him every temptation that ambition could desire, and pecuniary emoluments far beyond any which he could hope otherwise to acquire. He thought the matter over, and, I remember, came to Washington to consult me as to what he should do. After a brief discussion of the complex character of the military problem which was presented he turned from the consideration of that view of the question by stating that the point on which he wished particularly to consult me, was as to the propriety of entertaining the proposition which had been made to him. He had been educated in the

service of the United States, and felt it wrong to accept place in the army of a foreign power while he held a commission."

Contributions to the amount of \$70,000 were made in the United States to help to finance the expedition, and \$30,000 more was sent from Cuba. Lopez had long interviews with many men who stood high in American affairs, and he was assured by them that if the semblance of a real revolution was created, the United States might be expected to intervene and to annex the island. Recruiting was quietly going on in several parts of the United States. There was little concealment about the methods or plans, and Spanish spies who were closely following the leaders in the movement were able to report very accurately to the Captain-General in Cuba and to the Spanish minister at Washington, Señor Calderon de la Barca, exactly what was going on. These two gentlemen organized a small counter movement and expended large sums of money extracted from the Cuban treasury to balk the plans of the revolutionists. Promises of generous pay, however, lured large numbers of adventurers into the ranks of Lopez's party. Those who enlisted were promised \$1,000, and five acres of land, if the expedition was triumphant, and pay equal to that of a private in the United States army in any event.

Headquarters for the recruits were established at Cat Island, but the little army was dispersed by the United States authorities, and then the gathering place was changed to Round Island, near the city of New Orleans, where Col. G. W. White, a veteran of the Mexican war, was in charge. The number of men who were assembled under Col. White, ready to sail for Cuba, was reported to be from 550 to 800.

While all these preparations were going on, there was an incident in Havana which threatened seriously to embroil Spain with the United States. The prison at Havana was holding two men, Villaverde, who was under arrest for sedition against Spain, and Fernandez, who had been condemned to imprisonment for fraudulent acts in connection with a bankruptcy proceeding. One of the jailors was Juan Francisco Garcia Rey, an American citizen, and he aided these prisoners to escape, Villaverde going to Savannah, while Fernandez went with Rey to New Orleans. Rey was soon trailed by Spanish spies and he was either tricked into going on board a Spanish sailing vessel or else he was forced to do so, and hurried off to Cuba with no property but the clothes which he wore. When the vessel reached Cuba, the United States consul went on board, but the men who

were guarding Rey forced him to state that he had arrived in Cuba voluntarily. The vessel was held in quarantine for some time, and immediately after it was released, Rey was placed in solitary confinement; from which however he managed to get a letter through to the American consul, which read as follows:

"My name is Juan Garcia Rey; I was forced by the Spanish consul to leave New Orleans. I demand the protection of the American flag and I desire to return to the United States.

"P.S. I came here by force, the Spanish consul having seized me under a supposed order of the Second Municipality and having had me carried by main force on board a ship at nine in the evening.

"P.S.—I did not speak frankly to you because the Captain of the port was present."

The request which the American consul promptly made for an interview with Rey was denied, and at this point the United States government interested itself in the case and made an official demand for the return of Rey. Relations between the United States and Spain were growing very much strained and it looked as if the United States were soon to have an excuse to fight Spain and to annex Cuba, when the Spanish government suddenly suffered a change of heart, and Rey was pardoned and released.

Meanwhile the plans for the invasion of Cuba were being carried out so openly that the Spanish minister protested, and Zachary Taylor, then President of the United States, being unwilling openly to affront Spain, through his Secretary of State, John M. Clayton, issued on August 11, 1849, a proclamation which ran as follows:

"There is reason to believe that an armed expedition is about to be fitted out in the United States with an intention to invade the Island of Cuba, or some of the provinces of Mexico. The best information which the executive has been able to obtain, points to the Island of Cuba as the object of this expedition. It is the duty of this government to observe the faith of treaties, and to prevent any aggression by our citizens upon the territories of friendly nations. I have, therefore, thought it necessary and proper to issue this proclamation, to warn all citizens of the United States who shall connect themselves with an enterprise so grossly in violation of our laws and treaty obligations, that they will thereby subject themselves to the heavy penalties denounced against them by our Acts of Congress, and will forfeit their

claim to the protection of their country. No such persons must expect the interference of this government in any form on their behalf, no matter to what extremities they may be reduced in consequence of their conduct. An enterprise to invade the territories of a friendly nation, set on foot and prosecuted within the limits of the United States, is in the highest degree criminal, as tending to endanger the peace and compromise the honor of this nation, and therefore I exhort all good citizens, as they regard our national reputation, as they respect their own laws and the laws of nations, as they value the blessings of peace and the welfare of their country, to discountenance and prevent, by all lawful means, any such enterprise; and I call upon every officer of this government, civil or military, to use all efforts in his power to arrest for trial and punishment every such offender against the laws providing for the performance of our sacred obligations to friendly powers."

This proclamation did not find favor in the Southern States, where sentiment was strongly in favor of the annexation of Cuba as a bar against the freeing of the slaves. All the while the United States government was officially discountenancing the expedition, private citizens were aiding it, and again Spain protested and the American government dispatched the steamer *Albany* with officers to investigate the state of matters at Round Island, to see that no supplies reached the island, and to prevent the expedition from starting. Two ships, the *Sea Gull* and the *New Orleans*, had been purchased in New York to take the expedition to Cuba, and these were promptly seized, but the fifty men on one of them were not prosecuted, and while warrants were issued for the five leaders they were never apprehended, and the ships were simply returned to their owners. Public opinion was too much in favor of aid for Cuba to make it feasible for the United States government to place itself in the position of being inimical to Cuban interests, while on the other hand that Government felt that it could not afford openly to antagonize Spain.

The Cuban organization in New York presently showed signs of discouragement and disintegration, and Lopez in consequence transferred his operations to the south, principally to New Orleans, where sentiment was warmly in favor of his plans. There the next year he renewed his efforts to organize an expedition to Cuba. Even more generous offers of bounty were made than in the previous case. Recruits were promised \$4,000, and when they had served a year they were to be rewarded by a grant of land in

Cuba; this in addition to their regular pay. Those who should attain the rank of officers were promised up to \$10,000, and also high rank in the new government which the revolutionists were to organize in Cuba. Lopez was always conscious of the advantage of having men of prominence connected with his enterprises, and he endeavored to persuade Governor Quitman of Mississippi to take command, but that gentleman expressed himself as believing that only an internal revolution could be effective in Cuba and that any invasion from without must fail, and, accordingly, he declined the invitation.

Numerous recruits were obtained in various parts of the United States. While interest in it was strongest in the South, many men in the North and West were ready, for one reason or another, to cast in their lot with Lopez. An important rallying point was Cincinnati, Ohio, and from that city a party of 120 men started southward on April 4, 1850, on the river steamer *Martha Washington*, which had been chartered for the purpose. A stop was made at a point on the Kentucky shore, and more men were there taken aboard. The trip down to New Orleans consumed a week, which time was spent by the men in card-playing, carousing and indeed almost everything save serious reflection upon the momentous undertaking before them. There were a few among them of earnest purpose; and when the expedition was completed at New Orleans it comprised a number of men of high character and standing, members of some of the foremost families of that part of the United States. But the majority of the recruits were adventurers of the type familiar in most such undertakings. To them the enterprise meant not so much the freeing of Cuba from Spanish oppression as it meant getting "easy money," the fun of seeing a new country, good food, and if the worst happened ... it was on the knees of the gods.

It was April 11 when the boat reached Freeport, a town a few miles up the river from New Orleans, where the men were hidden; or supposed to be hidden, for little secrecy was attained, Spanish spies and United States citizens being equally aware of their presence. There were two hundred and fifty men in the party, and on April 25 they set sail for Cuba on the Steamer *Georgiana*, with a supply of muskets and 10,000 rounds of ammunition, which however did not come on board until after the mouth of the Mississippi was passed. Lopez himself was not with this company, for his work of organization was not completed, and he remained behind to join them later.

A second company of about 160 men was organized in New Orleans, and set sail on May 2, on the *Susan Loud*, and a third company was to follow on the *Creole*. On May 6 the *Susan Loud* reached the place where she was to meet the *Creole*, and she raised the new flag of Cuba for the first time on the Gulf of Mexico. Here she was joined the next day by the *Creole* and another day was taken up in transferring the men from one vessel to the other, the *Creole* being much the faster of the two; the idea being that the slower boat could follow at leisure. On the *Creole* there were only 130, making 290 men in this portion of the expedition. The newcomers on the *Creole* were for the first time introduced to their commander, Lopez, and it is recorded that he promptly won all hearts by his pleasing personality.

A light-hearted spirit of adventure at first prevailed among the crews and the men, until a storm arose on May 12, and the company began to be less cheerful; many were sick, and the wind and clouds had a depressing effect on the others. To add to the general dismay and discomfort, a gun was accidentally discharged, and one of the company was killed. An unpleasant foreboding began to cast a blight over the gay company. Evil days had also attended the *Georgiana*. She met with foul weather, and had great difficulty in reaching the island of Contoy, about ten miles off the coast of Yucatan. This island was uninhabited and without vegetation, a blank waste of sand, with no water for drinking purposes. The men were discontented and mutiny seemed imminent. An unsuccessful attempt was made to reach Mujeres, and then mutiny in earnest broke out, led by Captain Benson, one of the leaders of the company. He instigated the circulation of a petition for a return to New Orleans, and between fifty and sixty signatures were obtained. Fortunately Lopez had one faithful follower in the company, an eloquent and brave man. This was Colonel Theodore O'Hara, a veteran of the Mexican War and author of the classic poem, "The Bivouac of the Dead." He assembled the men and asked them to agree to wait eight days longer, and spoke so feelingly that finally the promise was given with cheers for Lopez, for Cuba, and for the annexation of the island. Before further trouble could come to pass, the *Creole* was sighted. When she reached the island it was thought best that she should proceed to Mujeres, obtain water, and return the next day. This was done, and when he returned, Lopez issued the following proclamation to his men:

"Soldiers of the liberating expedition of Cuba! Our first act on arriving shall be the establishment of a provisional constitution, founded on

American principles, and adopted to the emergencies of the occasion. This constitution you will unite with your brethren of Cuba in swearing to support in its principles as well as on the field of battle. You have been chosen by your officers as men individually worthy of so honorable an undertaking. I rely implicitly on your presenting Cuba to the world, a signal example of all the virtues, as well as the valor of the American citizen soldiers; and I cannot be deceived in my confidence that by our discipline, good order, moderation in victory, and sacred respect for all private rights, you will put to shame every insolent calumny of your enemies. And when the hour arrives for repose on the laurels which await your grasp, you will all, I trust, establish permanent and happy homes in the beautiful soil of the island you go to free, and there long enjoy the gratitude which Cuba will never fail generously to bestow on those to whom she will owe the sacred and immeasurable debt of her liberty."

Now the *Creole* was not a new vessel, and was sadly in need of repairs. When the nearly six hundred men from the three boats were all on board her—for the plan was that only one ship should be actively engaged in the invasion—she took water, and some of the men were afraid. There were desertions at Mujeres and Contoy which reduced the force to five hundred and twenty-one. The men were packed in all parts of the ship, on deck, in the cabin, in the hold, in every available corner. It was impossible to keep discipline, to say nothing of holding drill practice. The *Creole* was fortunate enough to be driven by adverse winds far north of the course which she had planned, because she thus escaped two Spanish war ships which had been sent out to apprehend and sink her. Thus from near the shore of Yucatan the adventurers sailed over practically the same course which in the days of Cortez had been traversed by the Spanish treasure ships from Mexico to Cuba and to Spain. The plan was to land at Cardenas, and march at once to Matanzas, thirty miles distant, which it was believed could be reached in 24 hours and where the railroad was to be seized. It was here that it was expected that the recruiting would be heaviest, for Lopez believed that the Cubans would recognize them as liberators, welcome them with rejoicing, and at once enlist under the new banner of freedom. One hundred picked men would promptly be despatched to blow up an important bridge, nine miles from Havana, and meanwhile Lopez expected his force of five hundred to be swelled to five thousand. Indeed he dreamed of attacking the city of Havana with an armed force of 30,000. He had plenty of ammunition

and guns and he anticipated no difficulty in enlisting an army from among the Cubans who desired freedom from Spain.

CHAPTER IV

CARDENAS was chosen as the place of landing probably for two reasons. First, because the Cubans of this district were supposed to be exceedingly dissatisfied with Spanish rule—more disgruntled than the inhabitants of the other parts of the island, because the people of Cardenas had been given their own particular grievances by the Spanish garrison; and in the second place, the garrison at this point was exceedingly small, and the town was situated on a bay the entrance to which, like the coast for many miles, was undefended by fortifications. Lopez therefore believed that he could penetrate the harbor with little difficulty and no opposition.

It was half past two in the morning when the *Creole* entered the bay of Cardenas, and her progress was not altogether free from difficulties. The captain of the *Creole* was unfamiliar with the waters of the bay, and found it difficult to steer a safe course. As a matter of fact, the vessel was grounded, and delayed for nearly an hour, during which time her presence was observed by Spanish patrols, and the alarm given. Dawn was breaking in the east when the landing was made. It bade fair to be a beautiful morning. The air was soft and clear, and the first rays of sunshine, brightening the roofs of the houses, sent a note of cheer into the hearts of the little army of those who were seeking to deliver Cuba, and seemed an omen of good fortune.

Reports differ as to their reception. One account tells of a large Spanish force drawn up on the shore, through which they had to fight their way, but which they quickly dispersed. It is more in accord with the events which followed to give credence to another story, which has it that the Spanish troops took refuge in the barracks, while a smaller number were quartered in the Governor's palace.

The Kentuckians, soldiers of fortune, descendants of pioneers, whose valor had been tested and not found wanting in the warfare which had taken place from time to time in their own state, were the first to land. There were sixty of them, under the command of Lieut. Col. Pickett, and their instructions were to proceed at once to the railroad station. Lopez knew that large bodies of Spanish troops were quartered at Matanzas, which was

connected by railroad with Cardenas, and his purpose was to destroy the station, and if possible the line of the railroad for some distance, to prevent the arrival of reinforcements to the Spaniards, should the news of the coming of the filibusters be sent to Matanzas. This action would also necessitate communications by courier, which, of course, would be productive of a delay which would be advantageous to Lopez's plan.

The station was captured without any difficulty, indeed without opposition, and the little body of Kentucky soldiers began their work of destruction. That because of lack of numbers, or lack of equipment, they did not accomplish this efficiently enough to prevent the arrival of Spanish troops at Cardenas, we shall see later. But at any rate, they proceeded with zeal and enthusiasm to the work which was allotted to them, and held the station against the few Spanish troops from the Cardenas garrison which later attempted to wrest it from them, and when they relinquished it they did so voluntarily, to join their comrades in retreating to the *Creole*. Indeed they manfully held their positions, long after many of the other regiments had been withdrawn, in order to cover the retreat.

The moment Lieutenant Colonel Pickett and his Kentuckians were clear of the vessel, General Lopez and his staff, and Colonel O'Hara, with the remainder of the Kentucky regiment, disembarked, and with great ceremony, for the first time, the flag of Cuba Libre was unfurled on Cuban soil. General Lopez remained with his ship, to oversee the landing of the remainder of his little army, while Colonel O'Hara, under orders, advanced to take the barracks where four hundred Spanish troops were garrisoned. The Kentuckians under Colonel O'Hara numbered one hundred and eighty, and in addition he was reinforced by the Louisiana regiment of one hundred and thirty, and the Mississippi regiment of one hundred and forty-five, so that he had in all, for the business in hand, four hundred and fifty-five men, thus outnumbering the Spanish force which they were to oppose, by about fifty-five men. They advanced rapidly and charged the garrison, which promptly opened fire, and Colonel O'Hara was wounded, not seriously, but sufficiently so that he was obliged to surrender his command to Major Hawkins. The engagement was resumed, but only for a short time, when General Lopez came up and at once directed the firing to cease. He then proceeded to do a thing which plainly showed the spirit of the man, his resourcefulness and his undaunted courage. He marched up to the barracks and demanded its unconditional surrender.

The Spanish soldiers evidently were not altogether whole hearted in their defence, but their leaders were crafty. A long parley ensued, during which the Spanish troops were hastily and quietly withdrawn through a side door, with the intention of making their escape to the Governor's palace. When the barracks had been in this manner all but abandoned, the Spanish commander agreed to surrender, and it can be imagined that he enjoyed the chagrin of Lopez when he discovered that his prize was an almost empty building.

But the Spanish troops were not destined to escape so easily. Colonel Wheat, with the Louisiana regiment, had been the last to leave the *Creole*. As he approached the barracks he heard the firing, but supposing that Lopez had only to put in an appearance to be greeted with loud acclaim as a deliverer, he decided that the Spanish troops had laid down their arms to join the revolutionists and that the sound of guns marked a salute to Lopez. He went around the barracks, toward the square, and was just in time to intercept the flying Spaniards. Instantly he grasped the situation, and a skirmish ensued. The Spaniards at length made good their retreat to the Governor's palace, but not without leaving some dead and wounded behind them.

Lopez and his men at once advanced on the palace, where the Governor had taken refuge with his forces, now reinforced by those who had made good their escape from the barracks. Soon Lopez distinguished a white flag of truce floating from one of the windows, and as he approached nearer received word that the Governor was ready to surrender. Overjoyed, the revolutionists rushed up to the palace only to be greeted in a manner quite in keeping with Spanish treachery, for they were promptly fired upon by the Spaniards, and before they could rally several of the attacking party were wounded, including General Gonzales. Lopez's anger at this violation of the rules of decent fighting was at white heat. While the main division of his troops were returning the fire from the palace, he took a small body of men to reconnoiter, and finding an unguarded portion of the building, he set fire to it; indeed, with his own hand he applied the torch. All this had taken much more time than does its relating, and the forces in the palace were enabled to hold out until between eight and nine o'clock in the morning, when they surrendered, driven out by the flames and smoke, and the Governor and the commander of the garrison were taken prisoners, while such troops as had not found refuge in the palace fled to the outlying

country, and couriers hurried to carry the news of the Spanish disaster to Matanzas.

Lopez was now in possession of the town. There was the work of caring for the dead and wounded to be done, and besides this he wished to make an appeal to Cuban residents who sympathized with the cause of freedom to aid him. This was not so easy as it seemed. Lopez to his chagrin found that reports which had reached him in the United States of the willingness of the Cubans to join a revolution had been grossly exaggerated. That there were a great many who sympathized with Lopez's purpose there can be no doubt. But they had to deter them the memory of other uprisings, in which the attempt to throw off the Spanish yoke had utterly failed. They had also before them the courage-shaking memories of the horrors which had befallen those who had participated in the rebellions. It is ever a fact that while oppression always creates leaders whose valor and daring will not stop at any obstacles, it also makes the masses of the people timid, afraid of the punishment which is bound to follow defeat. Spain had long held the Cubans in bondage. She had meted out to them the most cruel injustices, and had taken unspeakable revenge not only on those who had opposed her, but even on those who were under suspicion of such opposition. Besides this, on this May morning, things had been happening very fast. Lopez's little victories had been won in whirlwind succession. This should have inspired sympathizers with confidence, but there were in that town some private persons who were in sympathy and in league with the Spanish rulers. They now resorted to propaganda. They spread the report that Lopez's band had no real intention of trying to free Cuba, that their real object was plunder, that when they had subdued the garrison, they intended to put the patriotic Cubans to new sufferings for their own aggrandisement. Long years of injustice had made the Creoles wary of asserting themselves openly against their Spanish tyrants. While those who had been leaders in the town in the organization on Cuban soil of the revolution tried to reassure the frightened people, they were far from successful. A mob spirit of fear is not easily conquered.

Aside from this Lopez's force, worn out with their efforts, tired and hungry, and for the time idle, while the leaders were planning the next move, dispersed through the town. It seemed necessary and expedient in any event that they should be quartered on the citizens, and now they sought the homes of the Creoles in search of food. They were met by a

frightened hospitality. Food and wine were set before them, with the result that those of them who were merely adventurers lost sight of their purpose and seized the opportunity to court intoxication. This conduct did not increase the confidence of the Creoles, and so hopes of support from the native Cubans proved delusive.

To make matters worse, disquieting rumors were circulated that in spite of the efforts of Pickett's men to disable the railroad, a large body of Spanish troops was on its way from Matanzas. There seemed to be no doubt as to the truth of these reports; indeed a message reached Lopez late in the afternoon, containing unmistakable confirmation to the effect that couriers had carried the news to Matanzas and that three thousand Spanish troops were on their way to Cardenas. Lopez was now in a triple quandary. He could advance against this huge force, which would of course be joined by those of the Cardenas garrison who had escaped into the country, and give battle against frightful odds. His own forces had been depleted by losses and had failed to be swelled by the enlistment of sympathizing Creoles. He would leave behind him a frightened and almost hostile city, and a port unguarded against the landing of Spanish troops from ships cruising in nearby waters, in the event of which he would be subject to attack from both front and rear, and would be not only in great danger, but almost in certainty of being surrounded. He might remain where he was and entrench himself against the impending attack, but this offered no better possibilities than the former plan, for he had not enough men to defend both the town and the harbor and he was in constant danger of betrayal by Spanish sympathizers, who were of course cognizant of his every move. He had been told that at Mantua large bodies of Creoles stood ready to revolt and join him. Of course, he had no more accurate confirmation of the truth of this rumor than he had had of the verity of the assurances which, before he had set out on his expedition, he had received of the willingness of the inhabitants of Cardenas to join him; and yet this plan last outlined seemed to hold better possibilities than either of the others. He decided, therefore, to adopt it, and while making a show of resistance, he began quietly to assemble his baggage and equipment on board the *Creole*, and to make ready for the re-embarkation of his men.

Although the forces at the station, and indeed other small bodies of his troops who had not been demoralized by the delights of the table, sought to cover his retreat, and the former did render effective service against the

Spaniards, yet his movements did not escape observation, and were hailed with delight and with renewed aggressions by the Spanish troops. The retreat was not easy to effect, and when he had assembled his scattered forces, his movements were halted from time to time by the necessity of erecting temporary barricades, from which to cover the safe return to the *Creole*. This was finally effected, and at nine in the evening the vessel once more set out to sea. On board her, besides Lopez and his men, were the Spanish governor and the commander of the garrison, and they were retained as hostages until the ship cleared the harbor. This was not accomplished without mishap, for the captain, again hampered by navigating in what to him were uncharted waters, once more grounded the ship, which caused some delay. At length they were on the high seas, and just before they quit the shores of Cuba, they landed the discomfited governor and the garrison chief. What would have happened, had Lopez been in the governor's predicament, indeed what did happen, when Lopez and his men finally fell into the hands of the Spaniards, is another story. But Lopez was too high a type of gentleman to mete out to the Spanish high commanders the fate to which they would too gladly have consigned him.

Lopez has in many quarters been most severely censured for his quick abandonment of his plans and his hasty retreat from Cuba, but in the cold light of reason, we hardly see how he could have pursued any other course. Had his expectation of aid from the Creoles been realized, he might then, as he had planned, have left Cardenas in their hands, and with his little band strengthened by a large body of revolutionary sympathizers he might have advanced against the Spanish army at Matanzas with some hope of success. As it was, he could only make the best of a bad situation, and depart, with the faint hope of better fortune at Mantua, and at least with the nucleus of an organization which later might be more effective in another expedition of greater scope for the freeing of Cuba. Thus, when we review his action, after the passage of many years, he seems to have taken the only sane course that lay open to him. Any other would have meant even greater disaster. Lopez had lost, in this short time, of his Louisiana regiment, twenty killed and wounded, including those basely slaughtered through the Spanish treachery before the Governor's palace; of his Kentucky regiment, forty killed and wounded, including such men of high standing as Captain John A. Logan, Lieutenant James J. Garrett, the Rev. Louis McCann and Sergeant Harry Cruse, besides ten privates; while his Mississippi regiment

suffered five or six killed. The Spanish losses were greater than those of the revolutionists and numbered over one hundred.

But an even greater misfortune had overtaken Lopez. When the *Creole* had grounded, near the entrance to the harbor, while he was making his hasty departure from Cardenas, it had been impossible to float her free without lightening her, and to do this not only were provisions thrown overboard, but large quantities of precious arms and ammunitions, and so his men now found themselves insufficiently armed for any stubborn resistance to Spanish troops, particularly should the odds be heavy. Lopez was still bent on his purpose of making a landing at Mantua, but while his gallant officers in the main supported him, he found himself surrounded by a dissatisfied, angry, mutinous crew, who were for abandoning the whole matter, and steaming for the United States with all possible speed. Lopez addressed them, and tried to stir within them a realization of what such action meant, and how fatal it might be to the cause of Cuban liberty to abandon so easily an expedition so propitiously and even gaily undertaken, but they were deaf to his entreaties. At the suggestion of one of his officers the matter was put to vote, and to his dismay Lopez found that only fifteen stood with him on the Mantua project. He would not consent to abandon it, however, even against such odds, and declared that he would himself make the landing, taking with him the loyal few who were willing to stay with him. This, however, he was prevented from doing by the fact that the majority saw to it that the captain did not approach Mantua, but steered a course which had as its object the port of Key West, Florida.

Evidence soon was not lacking that theirs had been the part of wisdom if not of valor, and indeed that there were some odds against their reaching any port at all, for news of the expedition had not only been carried to Matanzas, but it had somehow reached the Spanish ship *Pizarro*, and she was soon in hot pursuit of the *Creole*. This soon became a most serious situation; again and again it seemed as if the *Creole* were about to be overhauled, with the probable result that her men would be taken prisoners and executed, and she would be sunk, or taken to port a prize of war. Fate, however, intervened in favor of Lopez, for the pilot on board the Spanish vessel was in sympathy with the filibusters, and when, on nearing Key West, the *Pizarro* seemed about to overtake the *Creole*, at the peril of his own life he steered such an eccentric course that the *Creole* escaped, and

made a landing at Key West, while the Spanish ship put out to sea once more.

Lopez and his men were welcomed at Key West with shouts of applause. Sympathizers with his expedition refused to consider it a failure. They declared that it had served to open the eyes of the Cubans to the fact that their deliverance was near, and that when Lopez once more set out with a larger force—as they assured him, with the assistance of the people of the south in the United States, he would—victory would be certain to spread her wings over his banner. So great was the popular clamor in favor of Lopez, that the United States authorities did not deem it prudent to arouse the ire of the mob, and therefore no attempts at arrest were then made. Indeed, little chance was given before debarkation, because in hardly more than ten minutes after the vessel had docked, the work of removing the wounded had been completed, and her decks were cleared of all men but seamen. The vessel was, however, seized by the authorities.

When news of Lopez's exploits reached Madrid, the government was thrown into a great state of indignation, and promptly urged upon the United States the punishment of the offenders, stating:

"If contrary to our expectations the authors of this last expedition should go unpunished, as did those who last year planned the Round Island expedition, the government of Her Majesty will find itself obliged to appeal to the sentiments of morality and good faith of the nations of Europe to oppose the entrance of a system of politics and of doctrines which would put an end to the foundations on which rests the peace of the civilized world. If Europe should sanction by her silence and acquiescence the scandalous state of affairs by which the citizens of the United States (or those of any power whatever) might freely make war from their territory against Spain, when the latter is at perfect peace officially with the Union; if it should be tolerated or looked on with indifference that the solemn stipulations which bind the two states should be with impunity made hollow by mobs and that the laws of nations and public morality should be violated without other motive than the selfishness of the aggressors, and with no other reliance than force, then civilized nations ought to renounce that peace which is based on the laws of nations and the terms of treaties and make ready for a new era in which might will be right, and in which popular passions of the worst kind will be substituted for the reason of states."

Even with the government in Washington practically controlled by the pro-slavery interests, and with feeling in that quarter running high in favor of the filibusters, the United States, for the sake of preservation of peaceable relations with Spain, could hardly afford to ignore this protest. Hence, Lopez was arrested at Savannah, whence he had gone immediately upon his arrival on American soil, and a number of the leaders of his expedition were apprehended.

Indictments were returned against Lopez, Theodore O'Hara, John F. Pickett, R. Hayden, Chatham R. Wheat, Thomas T. Hawkins, W. H. Bell, N. J. Bunce, Peter Smith, A. J. Gonzales, L. J. Sigur, Donahen Augusten, John Quitman, Cotesworth Pinckney Smith (a Judge of the Supreme Court of Mississippi), John Henderson (a former United States Senator), and J. L. O'Sullivan (a former editor of the *Democratic Review*, which had been loud in its support of the filibustering expeditions). But great difficulty was experienced in obtaining evidence against the prisoners. This might seem extraordinary, in the light of the fact that there could be no denial that the expedition had taken place, and that these men had been prominent in its organization. But at the trial all the witnesses by common agreement refused to answer any but the simplest and least important questions, on the ground that they might thus incriminate themselves. Three men were tried and three juries disagreed. The matter seemed so hopeless of solution that the indictments were allowed to languish without prosecution, and were finally dismissed and the prisoners released. Everywhere the filibusters were received with acclamations, and all the South joined in declaring Lopez a hero.

The New Orleans *Bee* at this time thus described Lopez:

"General Lopez has an exceedingly prepossessing appearance. He is apparently about fifty years of age. His figure is compact and well set. His face which is dark olive, and of the Spanish cast, is strikingly handsome, expressive of both intelligence and energy. His full dark eyes, firm, well-formed mouth, and erect head, crowned with iron grey hair, fix the attention and convince you that he is no ordinary man. Unless we are greatly mistaken in the impression we have formed of him, he will again be heard of in some new attempt to revolutionize Cuba. He certainly does not look like a man easily disheartened."

The *Bee* was a true prophet; it was far from being "greatly mistaken" about Lopez. The after events proved that it had judged him justly. No sooner was he released than he began to lay his plans for a new expedition, and since New Orleans had long been the stronghold of his sympathizers, he went to that place to complete his organization.

CHAPTER V



Spain was now thoroughly alive to the danger which threatened her future retention of Cuba, and in the face of an emergency she vacillated. Her high officials began to wonder if after all their policy of extreme oppression and suppression had not been in a measure the wrong one to pursue with the Cubans. Roncali, who had been so pleasing to the Peninsulars, or Spanish party in Cuba, and so unpopular with the patriots, was recalled and Don José Gutierrez de la Concha was dispatched to take his place as Captain-General. He took over the affairs of the island on November 10, 1850. Concha was as unwelcome to the

Peninsulars as his predecessor had been to their liking. He was a man who had at least some regard for justice, and who, if given a free hand, might have governed Cuba with a degree of wisdom and fairness. He was not a believer in liberty for the Cubans, but at least he had some conception of what constituted equity. He publicly stated his ideal of his office, as "a government of justice" and might have worked out something like a solution of Spain's problems in Cuba, unless, as we think it fair to believe, it was now much too late to quell the revolutionary spirit which had grown to such great proportions; with "a government of force," no matter what its purpose, the Cubans were all too familiar, and they had plainly shown how much they hated it and despised its administrators.

RAMON PINTO

An early martyr to the cause of Cuban freedom, Ramon Pinto, was born in Cataluna, Spain, in 1802, and engaged in the revolution of 1820-23 in that country. Then he fled to Cuba and became a brilliant writer in behalf of philanthropic works. In 1853 he became director of the Havana Lyceum, and later was a close friend and adviser of Captain-General Concha. In 1855 he was charged with being engaged in a revolutionary conspiracy, was convicted on dubious testimony, and died on the scaffold in March of that year.

One evil this new Captain-General did earnestly try to overcome. He endeavored to do away with the fee system which had caused so much unjust imprisonment and suffering. He made an effort to obtain fixed salaries for all government officials instead of fees, but at every turn he was balked by the Peninsulars. There is some reason to believe that he was not altogether sincere; that he was a fair spokesman, but an evil performer; that he did not allow his right hand to know the injustice he was planning to do with his left. At any rate, at the very time when he was offering such cheering words of hope to the Cubans, he was putting into operation a regular line of vessels from Cadiz, Spain, to Havana. He offered various excuses—of course, expansion, and many others—for this action, but thinking Cubans well knew that his real purpose was that communications might be more easy and frequent with the Spanish court, and that news of uprisings, and the dispatching of troops to suppress them, might be less delayed. He also—but, of course, this was done under orders of the Spanish government, induced, we are told, by his recommendations—increased and strengthened the fortifications of the island, and asked for and received a greater number of troops to man them.

However, there must have been some ground for the belief that Concha in some ways favored the Cubans for in no other manner could he have raised such a storm of dislike among the Peninsulars as constantly whistled about his head, and finally resulted in his recall.

While these events were taking place in Cuba, Lopez, in the United States, was far from idle, and he was not lacking in friends who sought to aid him. Singularly enough those in the South who were numbered among his supporters seemed not to be disheartened by the failure of the Cardenas expedition, and, of course, the juntas were active in stirring up popular opinion in favor of filibustering, and in obtaining both moral and financial support for another enterprise. But with it all money was woefully lacking.

General Henderson, who had been a member of the first expedition, and had been one of those indicted and tried, at this time wrote to a friend:

"I need not tell you how much I desire to see him (Lopez) move again, and it is more useless to tell you how wholly unable I am to assist him to make this move. With my limited means, I am under the extremest burdens from my endeavors on the former occasion. Indeed I find my cash advanced for the first experience were over half the cash advanced to the enterprise,

and all my present means and energies are exhausted in bringing up the arrearages. Yet I still believe in the importance, the morality and the probability of the enterprise; and I believe it is one the South should steadfastly cherish and promote. I feel it is more especially incumbent on us who have once failed to retrieve ourselves from so much of the opprobrium and reproach as the defeat has cast upon us. For we know that, could we succeed, we should win all those triumphs which success in such enterprises never fails to command. And would not such triumph be glorious! I believe you yield equal consideration to the importance of this subject as I do; and as a Southern question, I do not think, when properly viewed, its magnitude can be overestimated."

When a leader is able to enlist the sympathies, and drain the purse, of a man so intelligent and of such high standing as John Henderson, former Senator of the United States, and when he can bind such a man to him by even stronger ties in defeat than in victory, the personality of that leader must be one of extraordinary strength, courage and probity. It speaks well for Lopez that all through his career he gathered around him men of the finest families in the South, and indeed some of equally high standing from the North which was not particularly in favor of his venture, and those men fought for him and with him, and remained loyal until the greater portion of them paid the penalty of their lives for their devotion.

Now recruiting began in earnest. Everywhere in the South agents of Lopez were busy, but the headquarters of this new movement seem to have been at Savannah. Spain, of course, was not unaware of what was taking place and was on the alert. Spanish spies were everywhere watching the plotters against Spanish dominion in Cuba, and reporting their findings to the Spanish legation at Washington. The Spanish minister had in his employ a man who called himself at times Burtnett. (He had many aliases.) He was more clever than the rank and file of the Spanish agents, and by associating himself with the filibusters, he was able to learn their plans. Lopez's followers were not rash; they tried very hard to cover their activities; but in any undertaking in which a number of people are concerned, anything like complete secrecy is absolutely out of the question. Burtnett represented himself as a sympathizer; he joined the filibusters and wormed himself into the confidence of the leaders. He learned that the plan was to assemble on the coast of Florida, and from there to set sail for Cuba. The filibusters would themselves circulate rumors that the attack would be made on the

south coast of Cuba, but Burtnett discovered that in reality the forces would be divided, and while the Spanish troops were mustered to repel an attack in the south, several small bands would land, organize the friendly Cubans, and give battle if necessary to what depleted Spanish forces might be located on the north coast. This would preclude the chance of such a disaster as the Cardenas expedition, and the Cubans, uncowed by the presence of large bodies of governmental soldiery, would hasten to the aid of Lopez. Even the Spanish troops, some of whom were supposed to be in sympathy with the revolution, might be hoped to mutiny and join the Cubans. Thus this time there could be no thought of failure.

Meanwhile Southern gentlemen of wealth and family were eagerly supplying funds to the enterprise. It is even said that some planters mortgaged their estates to obtain funds to give to the expedition, in the expectation that when rich Cuba was once acquired for the United States, they would receive back a reward far greater than the amount which they were contributing. Bonds of the proposed revolutionary government were printed, and sold; arms and ammunition were purchased and stored in readiness for the expedition. It was planned that the first consignment of arms was to be conveyed to the steamer *Cleopatra*, which had been purchased to carry the filibusters, by means of two small vessels, the sloop *William Roe*, and the steamer *Nahantee*, which were to steal respectively from the ports of New York and South Amboy, New Jersey, and meet the *Cleopatra* just beyond quarantine. When the details were completed, Burtnett revealed the whole plan to the Spanish minister, who lost no time in laying it before the United States government at Washington. Now no matter what the sympathies of this government might be, it could not be placed under the odium of giving its official sanction to such an enterprise; indeed that would probably have resulted in war with Spain. Its action was slightly delayed, and the expedition might even yet have gotten off without interference had it not been that the *William Roe* was detained on account of a flaw in her papers, and the *Cleopatra*, on which provisions were already stored, was delayed in putting to sea to wait for the *William Roe* and the *Nahantee* because at the last moment some of her crew went on shore and became intoxicated. This slight postponement of her sailing gave an opportunity for her attachment—at whose instigation it is not clear—for a writ for \$3,000, to cover repairs made by a former owner, and for which the filibusters could hardly be held responsible. Nevertheless, they raised the

money, but before its transfer could be completed and the *Cleopatra* cleared on April 26, 1851, the leaders were arrested.

Things looked black for Lopez and his followers, but they still had the influence of the South behind them, and for this reason or some equally effective one, again the courts failed to convict them, and to add to their good fortune the government did not confiscate the *Cleopatra* and the provisions with which she was loaded, and she was afterward sold and the proceeds used as a nest-egg toward financing another expedition.

Spain was now thoroughly aroused to her danger, and determined to put down the threatened revolution at any cost. Through her mouthpiece, the Captain-General of Cuba, she issued a proclamation to the Governors and Lieutenant Governors on the island:

"It has come to the knowledge of the Government that a new incursion of pirates is preparing, similar to the one which took place at Cardenas during the past year. It is proposed, without doubt, as it was then, to sack defenseless towns and to disturb the order which reigns in this beautiful part of the Spanish monarchy. But the loyalty of its inhabitants, the valor and discipline of the troops, and the measures taken by the government, are the surest guaranty that its destruction will follow immediately the news of its disembarkation. You must, then, above all else see to it that the news of this invasion produces no alarm in the district which you command.

"To exterminate the pirates, whatever be their number, it is not necessary to have recourse to extraordinary means; the ordinary means on which the government can count are enough and even more than enough. Any act, on the other hand, which is unusual would produce anxiety and uneasiness among the peaceful inhabitants; it might cause, perhaps, an interruption of business, and would thus occasion a real and important loss for public and private interests. It is necessary, therefore, to avoid any measures which may remove from the towns of that district the confidence and sense of security which the government inspires. The actual situation, however, imposes on the authorities the double duty to cause order to reign, and not to appear to obtain it by unaccustomed means which are only expedient when circumstances are really dangerous. And this double object will be achieved if that vigilance, activity and prudence are in evidence on which I should be able to count from you. But you must not forget that in these circumstances, one of the most important duties of the authorities is to quiet

minds, and hush suspicions, to take care, finally, that in not a single instance there should be disturbed that harmony which now more than ever ought to reign among the inhabitants of the island. Working to this end, I have the most confidence that this event will end fortunately, making certain the peace which the island needs to continue on the path of prosperity which it has so far followed."

The foregoing gives a very adequate idea, cleverly cloaked under soft and reassuring words, of the panic under which the authorities were laboring. Only too well they knew the danger of "any unusual disturbance," and of the exciting of the populace, for in it dwelt the menace that that same excited mob might turn and rend their masters.

The Captain-General soon had another circumstance brought to his attention which was a tremendous shock to his sensibilities, seeming as it were a bomb placed at the very bulwarks of his authority. Puerto Principe had been more or less a danger point, and harsh measures had been used to put down the incipient rebellion there. The people had an inkling that it was the intention of the Captain-General to deprive them of their Audiencia. This would eliminate the cost of its maintenance, and also keep the legislative or advisory power more closely concentrated in Havana, where the Captain-General could keep a watchful eye on proceedings. A petition was received by Concha requesting that they be not deprived of their Audiencia, but when he examined it closely he was shocked to observe that it was dated a month previous, and that it had evidently been sent directly to the Spanish government at Madrid, without the official sanction and endorsement of the Captain-General, and this circumstance was aggravated by the fact that the Petition bore the signature of the Commanding General. Things were coming to a pretty pass if the Captain-General, the highest official in the land, was to be ignored by his subjects. Concha made a great to-do about the matter, and obtained the dismissal from office of the offending Commanding General, at the same time securing the appointment of a close friend, Don José Lemery, on whom he could depend to do his bidding. Lemery began his tenure of office by using the most harsh and unwarranted methods of suppressing what he termed an impending uprising, and by ordering the arrest of a large number of the members of old Creole families—persons who were known to have revolutionary sympathies—on suspicion of being about to incite a rebellion. Among these were many members of the city council under the old Commanding

General, and one of the number, Don Joaquin de Aguero, was later to figure as the leader of the most successful revolution which Cuba had yet known.

Meanwhile Lopez, not disheartened, was once more planning an invasion of Cuba, with belief unshaken, in spite of his discouraging experiences, in the real desire of the Cubans for liberty and in their purpose to join the revolutionary movement, if they could only be brought to emerge from the deadening stupor of acquiescence into which fear of Spanish vengeance seemed to have plunged them. This belief was strengthened by the correspondence, which by an underground method he was carrying on with Cuban patriots—men who he expected would be leaders in future revolutions. They all assured him that if he could only start a real movement for revolt, which promised actual deliverance, the Cubans would no longer hesitate but would rush to his support. The fact that a price had now been set on his head, should he set his foot on Cuban soil, and be so unfortunate as to fall into the hands of the Spaniards, had no deterring power on Lopez's purposes. He was above suspicion of a personal axe to grind, and there was never any question of his courage and perseverance.

Lopez was emboldened by the support which the Cuban juntas promised him, but he did not find all of the men who had accompanied him on the Cardenas expedition as confident as he was himself. Some of the less daring spirits prepared a statement to their leader, setting forth their viewpoint, in substantially the following language:

"The people of Cuba charge us with endeavoring to create a revolution for the sake of pillage; they state that the Cubans do not desire freedom; if they did they would strike for themselves. We will not waste any more time, nor take another step until we see something more on the part of the Creoles besides promises. We took the first step at Cardenas, and gave them an opportunity to show their hands, which they did not. They must take the next, and then we will go to their assistance; otherwise we shall not budge an inch."

Naturally enough, upon consideration, this impressed Lopez and his more loyal followers as embodying some pretty sound common sense. It seemed to be logical that the Cubans themselves should make the next move, and back up their assertions by action. This ultimatum was conveyed to them, by the same devious ways in which their promises had gotten by the Spanish spies, and the effect was miraculous. They rose to the situation, and

announced that they would bring about a revolution, and that the first steps would be taken sometime between July 1 and 4. That Lopez and his friends were astonished at this show of spirit in those who had so sadly demonstrated their lack of grit at Cardenas a short time before, is not beyond the realm of belief, nor is it necessary to relate how delighted they were that at last the Cubans were about to move in their own behalf. The time was then so near, and Lopez's own preparations had made so little practical progress, that there was not a sufficient period between the date on which he received this information and the day set for the revolutionary movement to enable him to send any aid, except cheering words.

On the morning of July 3, 1851, Don Joaquin de Aguero led a small band of patriots to the public square at Puerto Principe, all of them shouting in loud tones: "Liberty! Freedom for Cuba! Death to the Spaniards!" Now Aguero had been promised that at least four hundred patriots would join him on this occasion, at the place appointed, and give battle to the Spanish troops, which they well knew would be called upon to put down the demonstration. But the Cubans had not yet found themselves; it was still difficult for them to shake off the spell which the Spaniards seemed to have cast upon them, and to come out into the open and fight for their freedom. The promised four hundred were represented by a pitiful fifteen, and the little band naturally had small chance against the overwhelming forces which were sent against them immediately the alarm was given. They fought bravely, but there could be only one result, against such odds. They were routed and their leader was captured. Aguero succeeded, however, in escaping from the Spaniards, and went into hiding until the next day, when the patriots again made a demonstration for freedom at Najassa. Here, for the second time, the flag of Cuba Libre was flung to the breeze, and with shouts and cheers, the following Declaration of Independence for Cuba was read to a great multitude which had assembled in the square:

"To the inhabitants of the Island of Cuba, Manifesto and Proclamation of their independence by the Liberating Society of Puerto Principe.

"Human reason revolts against the idea that the social and political condition of a people can be indefinitely prolonged, in which man, stripped of all rights and guarantees, with no security of person or property, no enjoyment in the present, no hope in the future, lives only by the will, and under the conditions imposed by the pleasure of his tyrants; where a vile calumny, a prisoner's denunciation, a despot's suspicion, a word caught up

by surprise in the sanctuary of home, or from the violated privacy of a letter, furnishes ample grounds for tearing a man from his hearth, and casting him forth to die of destitution or despair in a foreign soil, if he escapes being subjected to the insulting forms of a barbarous and arbitrary tribunal, where his persecutors are themselves the judges who condemn him, and where, instead of their proving his offence, he is required to prove his innocence.

"A situation so violent as this, Cuba has been for many years enduring; and, far from any promise of remedy appearing, every day adds new proof that the policy of the mother-country and the ferocity of her rulers will grant neither truce nor rest till she is reduced to the condition of an immense prison, where every Cuban will be watched by a guard, and will have to pay that guard for watching him. In vain have this people exhibited a mildness, a prudence, and even a submission and loyalty, which have been proverbial.

"When the iniquity of the government has not been able to find any ostensible grounds for persecution, it has had recourse to cowardly arts and snares to tempt its victims into some offence. Thus were various individuals of Matanzas entrapped into an ambuscade of the soldiery, by the pretext of selling them some arms, under circumstances which made them believe those arms were necessary for self-defence, against threatened attacks from the Peninsulars. Thus have sergeants and even officers been seen to mingle among the country people, and pass themselves off as enemies of the government, for the purpose of betraying them into avowals of their sentiments to the ruin of many persons so informed against as well as to the disgrace of military honor on the part of those who have lent themselves to so villainous a service.

"If the sons of Cuba, moved by the dread of greater evils, have ever determined to employ legitimate means of imposing some law, or some restraint upon the unbridled excesses of their rulers, these latter have always found the way to distort such acts into attempts at rebellion.

"For having dared to give utterances to principles and opinions, which, to other nations, constitute the foundation of their moral progress and glory, the Cubans most distinguished for their virtues and talents have found themselves wanderers and exiles. For the offence of having exhibited their opposition to the unlawful and perilous slave trade, from which the avarice of General O'Donnell promised itself so rich a harvest of lucre, the latter

satiated his resentment with the monstrous vengeance of involving them in a charge of conspiracy with the free colored people and the slaves of the estates; endeavoring, as the last outrage that an immoral government could offer to law, to reason, or to nature, to prove the object of that conspiracy, in which they implicated whites of the most eminent virtue, knowledge, and patriotism, to have been no other than the destruction of their own race.

"All the laws of society and nature trampled under foot—all races and conditions confounded together—the island of Cuba then presented to the civilized world a spectacle worthy of the rejoicings of hell. The wretched slaves saw their flesh torn from them under the lash, and bespattered with blood the faces of their executioners, who did not cease exacting from their tortures denunciation against accomplices. Others were shot in platoons without form of trial, and without even coming to understand the pretext under which they were massacred. The free colored people, after having been first lacerated by the lash, were then hurried to the scaffold and those only escaped with life who had gold enough to appease the fury of their executioners. And nevertheless, when the government or its followers has come to fear some rising of the Cubans their first threat has been that of arming the colored people against them for their extermination. We abstain for very shame from repeating the senseless pretences to which they have had recourse to terrify the timid wretches! How have they been able to image that the victims of their fury, with whom the whites of Cuba had shared in common the horrors of misery and persecution, will turn against their own friends at the call of the very tyrant who has torn them in pieces? If the free colored people, who know their interests as well as the whites, take any part in the movement of Cuba, it certainly will not be to the injury of the mother who shelters them in her bosom, nor of those other sons of hers who have never made them feel the difference of their race and condition, and who, far from plundering them, have taken pride in being their defenders and in meriting the title of their benefactors.

"The world would refuse to believe the history of the horrid crimes which have been perpetrated in Cuba, and would reasonably consider that if there have been monsters to commit, it is inconceivable that there could so long have been men to endure them. But if there are few able to penetrate to the truth of particular facts, through all the means employed by the government to obscure and distort them, no one will resist the evidence of public and official facts.

"Publicly and with arms in his hands, did General Tacon despoil Cuba of the constitution of Spain, proclaimed by all the powers of the monarchy, and sent to be sworn to in Cuba, as the fundamental law of the whole kingdom.

"Publicly and by legislative act, was Cuba declared to be deprived of all the rights enjoyed by all Spaniards, and conceded by nature and the laws of nations the least advanced in civilization.

"Publicly have the sons of Cuba been cut off from all admission to the commands and lucrative employments of the State.

"Publicly are unlimited powers of every description granted to the Captains-General of Cuba who can refuse to those whom they condemn even the right of a trial and the privilege of being sentenced by a tribunal.

"Public and permanent in the island of Cuba, are those courts martial which the laws permit only in extraordinary cases of war, for offences against the State.

"Publicly has the Spanish press hurled against Cuba the threat converting the island into ruin and ashes by liberating the slaves and unchaining against her the hordes of barbarian Africans.

"Publicly are impediments and difficulties imposed upon every individual, to restrain him from moving from place to place, and from exercising any branch of industry—no one being safe from arrest and fine, for some deficiency of authority or license, at every step he may take.

"Public are the taxes which have wasted away the substance of the island and the project of other new ones, which threaten to abolish all the products of its riches—nothing being left for the opinions and interests of the country.

"Outrages so great and so frequent, reasons so many and so strong, suffice not merely to justify, but to sanctify, in the eyes of the whole world, the cause of the independence of Cuba, and any effort of her people, by their own exertions, or with friendly aid from abroad, to put an end to the evils they suffer, and secure the rights with which God and nature have invested man.

"Who will in Cuba oppose this indefeasible instinct, this imperative necessity of defending our property, and of seeking in the institutions of a just, free and regulated government conditions on which alone civilized society can exist?

"The Peninsulars (natives of Spain) perhaps, who have come to Cuba to marry our daughters, who have here their children, their affections and their property, will they disregard the laws of nature to range themselves on the side of a government which oppresses them as it oppresses us, and which will neither thank them for the service nor be able, with all their help, to prevent the triumph of the independence of Cuba?

"Are not they as intimately bound up with happiness and interest of Cuba as those blood-natives of her soil, who will never be able to deny the name of their fathers, and who, in rising up today against the despotism of the government would wish to count upon their co-operation as the best guaranty of their new social organization and the strongest proof of the justice of their cause?

"Have they not fought in the Peninsula itself, for their national independence, for the support of the same principles for which we, the sons of Cuba proclaim, and which, being the same for men in all countries, cannot be admitted in one and rejected in another without doing treason to nature and to the light of reason, from which they spring?

"No, no—it cannot be that they should carry submissiveness to the point of preferring their own ruin, and the spilling of the blood of their sons and brothers, to be triumph of the holiest cause ever embraced by man—a cause which aims to promote their own happiness and to protect their rights and properties. The Peninsulars who adorn and enrich our soil, and to whom the title of labor gives as high a right as our own to its preservation, know very well that the sons of Cuba regard them with personal affection—have never failed to recognize the interest and reciprocal wants which unite the two—nor have ever held them responsible for the perversenesses of the few, and for the iniquities of a government whose infernal policy alone has labored to separate them, on the tyrant's familiar maxim—to divide and conquer.

"We, who proceed in good faith and with the noble ambition of earning the applause of the world for the justice of our acts—we surely cannot aim at the destruction of our brothers, nor at the usurpation of their properties; and far from meriting that vile calumny which the government will endeavor to fasten upon us, we do not hesitate to swear in the sight of God and of man that nothing would better accord with the wishes of our hearts, or with the glory and happiness of our country, than the co-operation of the Peninsulars, in the sacred work of liberation. United with them, we could

realize that idea of entire independence which is a pleasing one to our minds; but if they present themselves in our way as enemies, we shall not be able to answer for the security of their persons and properties, nor when adventuring all for the main object of the liberty of Cuba, shall we be able to renounce any means of effecting it.

"But if we have all these reasons to expect that the Peninsulars, who are in nowise dependent on the government and who are so bound up with the fate of Cuba, will at least remain neutral, it will not be supposed that we can promise ourselves the same conduct on the part of the army, the individuals composing which, without ties or affections, know no other law nor consideration than the will of their commander. We pity the lot of those unfortunate men, subject to a tyranny as hard as our own, who, torn from their homes in the flower of their youth, have been brought to Cuba to oppress us on condition of themselves renouncing the dignity of men and all the enjoyments and hopes of life. If they shall appreciate the difference between a free and happy citizen and a dependent and hireling soldier, and choose to accept the benefits of liberty and prosperity, which we tender them, we will admit them into our ranks as brethren. But if they shall disregard the dictates of reason and of their own interests and allow themselves to be controlled by the insidious representations of their tyrants, so as to regard it as their duty to oppose themselves to us on the field of battle as enemies, we will then accept the combat, alike without hate and without fear and always willing, whenever they may lay down their arms, to welcome them to our embrace.

"To employ the language of moderation and justice—to seek for means of peace and conciliation—to invoke the sentiments of love and brotherhood—befits a cultivated and Christian people, which finds itself forced to appeal to the violent recourse of arms, not for the purpose of attacking the social order and the loves of fellow beings, but to recover the condition and the rights of man, usurped from them by an unjust and tyrannical power. But let not the expression of our progress and wishes encourage in our opponents the idea that we are ignorant of our resources, or distrustful of our strength. All the means united, at the disposal of the Peninsulars in Cuba against us, could only make the struggle more protracted and disastrous; but the issue in our favor could not be any the less sure and decisive.

"In the ranks of independence we have to count all the free sons of Cuba, whatever may be the color of their race—the brave nations of South America, who inhabit our soil and who have already made trial of the strength and conduct of our tyrants—the sturdy islanders of the Canaries, who love Cuba as their country, and who have already had an Hernandez and a Monies de Oca, to seal with the proof of martyrdom, the heroic decision of their compatriots for our cause.

"The ranks of the government would find themselves constantly thinned by desertion, by the climate, by death, which from all quarters would spring up among them in a thousand forms. Cut short of means to pay and maintain their army, dependent on recruits from Spain to fill up their vacancies without an inch of friendly ground on which to plant their feet, or an individual on whom to rely with security, war in the field would be for them one of extermination; while, if they shut themselves within the defences of their fortresses, hunger and want would soon compel them to abandon them, if they were not carried by force of arms. The example of the whole continent of Spanish America, under circumstances more favorable for them, when they had Cuba as their arsenal, the benefit of her coffers, and native aid in those countries themselves, ought to serve them as a lesson not to undertake an exterminating and fratricidal struggle, which could not fail to be attended with the same or worse results.

"We, on the other hand, besides our own resources, have in the neighboring States of the Union, and in all the republics of America, the encampments of our troops, the depots of our supplies, and the arsenals of our arms. All the sons of this vast New World, whose bosom shelters the island of Cuba, and who have had, like us, to shake off by force the yoke of tyranny, will enthusiastically applaud our resolve, will fly by hundreds to place themselves beneath the flag of liberty in our ranks, and there trained to experienced valor will aid us in annihilating, once and for always, the last badge of ignominy that still disgraces the free and independent soil of America.

"If we have hitherto hoped, with patience and resignation, that justice and their own interests would change the mind of our tyrants; if we have trusted to external efforts to bring the mother country to a negotiation which should avoid the disasters of war, we are resolved to prove by deeds that inaction and endurance have not been the results of impotence and cowardice. Let the government undeceive itself in regard to the power of its bayonets and

the efficiency of all the means it has invented to oppress and watch us. In the face of its very authorities—in the sight of the spies at our side—on the day when we have resolved to demand back our rights, the cry of liberty and independence will rise from the Cape of San Antonio to the Point of Maysi.

"We, then, as provisional representatives of the people of Cuba, and in exercise of the rights which God and Nature have bestowed upon every freeman, to secure his welfare and establish himself under the form of government that suits him do solemnly declare, taking God to witness the ends we propose, and invoking the favor of the people of America, who have preceded us with their example, that the Island of Cuba is, and, by the laws of nature ought to be, independent of Spain; and that henceforth the inhabitants of Cuba are free from all obedience or subjection to the Spanish government and the individuals composing it; owing submission only to the authority and direction of those who, while awaiting the action of the general suffrage of the people, are charged, or may provisionally charge themselves with the command and government of each locality, and of the military forces.

"By virtue of this declaration, the free sons of Cuba, and the inhabitants of the Island who adhere to her cause, are authorized to take up arms, to unite into corps, to name officers and juntas of government, for their organization and direction, for the purpose of putting themselves in communication with the juntas constituted for the proclamation of the independence of Cuba, and which have given the initiative to this movement. Placed in the imposing attitude of making themselves respected, our compatriots will prefer all the means of persuasion to those of force; they will protect the property of neutrals, whatever may be their origin; they will welcome the Peninsulars into their ranks as brothers and will respect all property.

"If, notwithstanding our purposes and fraternal intentions, the Spanish government should find partizan obstruction bent upon sustaining it, and we have to owe our liberty to the force of arms, sons of Cuba, let us prove to the republics of America, which are contemplating us, that we having been the last to follow their example does not make us unworthy of them, nor incapable of receiving our liberty and achieving our independence.

JOAQUIN DE AGUERO AGNEW,
FRANCISCO AGNERO ESTRADA,
WALDO ARETEACA PINA.

"July 4, 1851."

Immediately upon the reading of this the wildest excitement ensued. The Cubans began to believe that at last deliverance was near. They flung their hats into the air, while tears streamed down their faces, and they shouted "Cuba Libre! Down with the Spaniards!" until hoarseness compelled them to stop. Then an ominous noise, low at first, but growing nearer and nearer, broke in upon their rapturous demonstrations. Well they knew that sound, for they had heard it only too often. The Spanish soldiers were approaching, and turning, those on the outskirts of the crowd beheld column after column of infantry advancing from one direction, while a troop of cavalry was apparently about to charge the crowd from the opposite side of the square. Aguero knew that a crisis had been reached and that on the work done in the next few moments depended victory or defeat. He called upon those closest in his confidence to organize the crowd. Plans for this action had previously been completed, and the assembled people were quickly grouped into divisions each containing one hundred men. By this time the Spanish troops were only about a hundred yards distant, and they at once opened fire on the revolutionists. Aguero's company was armed, and they had brought with them extra equipment, which had been distributed among the people. The revolutionists were by no means poor marksmen; they had long been practicing in private for this very hour. They proved that they were more skilled than the picked troops of Spain, and for a time they showed astonishing efficiency in thinning the ranks of the Spanish infantry. But the cavalry now charged the crowd, and this was more serious than an infantry attack because the revolutionists were not prepared to return it in kind. They stood their ground bravely, firing at the horses, thus seeking to dismount and confuse the enemy, and strange as it may seem they were successful. The cavalry commander ordered a retreat, which was accomplished in great disorder, and under a withering fire from the revolutionists, while the infantry, amazed and alarmed to find themselves no longer able to rely on the support of the cavalry, broke and fled toward Puerto Principe, from which place they had come. The little army at Najassa well knew that no help could be expected from their comrades at Puerto Principe, and therefore it seemed the part of discretion to allow the Spanish army to

retreat unmolested, and for the revolutionists to take refuge in the interior of the island, where it would be more difficult to apprehend them, and where they hoped to find sympathy and support. They made their way to Guanamaquilla, where they decided to make a stand, and where, after effecting a better organization, they entrenched themselves.

On July 6 at this place they were attacked by six hundred Spaniards under General Lemery, and the Spanish troops were again routed, again retired in disorder, and once more the revolutionists celebrated a victory. Not only did the Spanish troops beat a hasty retreat, but they left behind them, on the field of battle, forty dead and dying.

It can be imagined with what elation the patriots celebrated this second victory. They could hardly believe in their good fortune. It was incredible that they should have prevailed against the trained forces of Spain. It was not for them, at such close contact with events, to realize that while they were fighting for their homes, for freedom, for their families, for their very lives,—for capture meant as sure death as any bullet of the enemy could bring,—after all the Spanish troops were only hirelings, fighting for pay and not for a principle, and that it has been the history of the world, since its beginning, that when the home is at stake sooner or later victory comes to its defenders.

Now the little bands of one hundred separated, and the mistake was made which proved fatal to the cause for which they had already sacrificed so much, and which seemed about to triumph. They should have waited until news of their triumph penetrated to other patriots, and until their forces had been greatly swelled in volume, before any division was made.

Meanwhile, immediately after their first victory, they had sent a courier to bear word to Lopez, through their mysterious channels of communication, of their success, urging him to communicate the good news to the junta in New York, and to hasten to their aid with a new expedition, and promising that meanwhile they would spread the revolution to all parts of the island, so that when he came again he would have no cause to complain of lack of support.

The companies of one hundred each went in a separate direction, each bent on conquest and propaganda among timid sympathizers. One party, which was led by Agüero himself, made its way to Las Tunas, and arrived there late in the evening. Agüero divided his little band into two parts and

approached the town from opposite directions, sounding the cry of the revolution, "Cuba Libre!" and calling upon all good patriots to join their forces. But Spanish spies, always active, had preceded them and the garrison of five hundred soldiers was already alert. Then a catastrophe happened. The two bands of patriots, in the midst of the great confusion which their arrival occasioned, met in a dark, unpaved street, and not recognizing one another, each believed the other to be the Spaniards, and each opened fire upon the other. Too late the error was rectified. Some of the patriots had been injured by their own comrades, and the organization was in confusion; before order could be deduced from this chaos, the Spanish troops were upon them, and this time it was the patriots who were put to rout.

Another of the bands of one hundred had proceeded, meanwhile, to the plains of Santa Isabel. Large numbers of patriots rallied to their assistance, but the attacking Spanish force, nearly a thousand strong, and consisting of both cavalry and infantry, cast far too great odds against them. The patriots again suffered defeat, and their losses were twenty killed and forty captured by the enemy, while the Spanish casualties were one hundred and thirty, fifty of whom were killed outright.

A third band of one hundred, which had as its commander Don Serapin Recio, made its way to Santa Cruz. They were more fortunate than had been their comrades, for when they were attacked by four companies of Spanish infantry, under Colonel Conti, they not only were victorious, but they took Colonel Conti prisoner. This triumph, however, was short lived, for Spanish reinforcements, consisting of four hundred cavalymen, were rushed to the scene of battle, and the tide turned against the patriots. Recio was captured, fifty six revolutionists soon lay dead or dying, and as the others sought to escape a large proportion of them were taken captive.

Still a fourth band, advancing on Punta de Grandao, met with disaster, as did the fifth division which had gone toward La Sigüanea in the hope of taking that place.

Only one little division of patriots, one hundred strong, remained unconquered. Agüero, who had made his escape after the defeat at Las Tunas, took command of this company. The city of Nuevitas was entered in triumph, amid shouts of welcome from the people, who in large numbers threw in their fortunes with the revolution. Don Carlos Comus led the

Spanish forces against the city, and a desperate battle which raged for over three hours was fought. The ammunition of the patriots was exhausted, and fighting against frightful odds, they were almost exterminated; fewer than the original one hundred remained alive. They fled, and were speedily captured by the pursuing Spaniards.

Complete defeat had now overtaken the revolutionists, who so boldly on July 3 had declared their independence of Spain, and thrown a defiant gauntlet before the Spanish power. By the end of July not a single one of the original army remained at large to tell the story; they had all been killed, captured, or frightened into cowed and silent obedience to Spanish rule. Of those who had fallen into the hands of the Spaniards, every one was tried by military tribunal, and sentence passed upon them. Two courts sat in judgment on the offenders, one at Puerto Principe and the other at Trinidad, at which latter the Captain-General, José de la Concha, presided. Under his dictation sentence of death was pronounced upon José Isidore Armenteros, Fernando Hernandez and Rafael Arcis, all recognized as prime movers in the revolution. Ignacio Belen Perez, Nestor Cadalso, Juan O'Bourke, Abeja Iznaga Miranda and Jose Maria Rodriguez were sentenced to ten years' imprisonment, which was to be suffered abroad, and they were forever banished from Cuba, while the same terms were imposed on Juan Hevia and Avelind Porada, whose sentences, however, were shortened to eight years each, and Pedro José Pomarcz, Foribio Garcia, Cruz Birba and Fernando Medinilla were also banished, and condemned to two years' imprisonment. All sentences went into effect on August 18. It is interesting to note in passing a fact which seems quite in keeping with the Spanish character as demonstrated by the administration of the island; the men who were condemned to death were led out into a field by the name of Del Negro, near the city of Trinidad, and *shot in the back*.

The court which sat in judgment at Puerto Principe tried the leader of the revolutionists, and brave Joaquin Aguero was condemned to die by the garrote. The same sentence was imposed on José Thomas Betancourt, Fernando de Zayas and Miguel Benavides; while Miguel Castellanos and Adolfo Pierre Aguero were sentenced to ten years' imprisonment, which sentences were all decreed to take effect on August 12.

It was impossible, even with the strict censorship which the Spanish Captain-General maintained over the island, to keep reports of the stirring events which were taking place from leaking forth into the outer world. Of

course, Lopez and the junta at New York learned of them through the channels known only to themselves, and the news, spreading to all parts of the United States, caused tremendous excitement. Great interest was manifested, particularly in the southern states, and in New York City, where the members of the Cuban junta had begun to stir up a considerable amount of interest in and sympathy for the Cubans. The New York papers dispatched correspondents to obtain the true story of the rebellion, but the reporters had difficulty in getting into the country, and encountered still greater obstacles in dispatching what news they could gather to their respective sheets. They were hampered in their efforts by Spanish officials and Spanish spies were always at their heels.

While the main uprising had been in the vicinity of Puerto Principe, incipient rebellions and sympathetic insurrections occurred in other parts of the island, which were quickly quelled by overwhelming forces of Spaniards, and the news of which was confined as much as possible to the immediate vicinity of the uprisings. At Trinidad a mob assembled on horseback, crying vengeance on the Spanish oppressors, but they were soon driven from the city and obliged to take to cover on a densely wooded hill, where their movements were so hampered by underbrush that they were perforce compelled to abandon their mounts, and soon surrendered to superior numbers. It was suspected that the inhabitants of Havana, or rather the revolutionary sympathizers in that place, were about to revolt, but the guard was redoubled, the crowd was overawed by numbers of well armed troops, and the movement, if it ever had been contemplated, never materialized. However, many of the wealthy inhabitants, fearing that they might be seized on suspicion of complicity with the revolutionists, hastily fled to their estates in the country.

The New York *Herald*, which for a long time had been sympathetically inclined toward the revolutionary party in Cuba, on July 16, 1851, printed the following report, which was based on facts gathered by its correspondent:

"I consider that, in a political point of view, this island was never in a more critical state than it is at this present moment. The Creoles of Cuba have at length thrown down the gauntlet of defiance to the authority of Spain."

This statement was followed by a long account of the engagements between the revolutionists and the forces of Spain. On July 22 the same paper, under the guise of reporting conditions, issued what was really a call of "The United States to the rescue," which in part read as follows:

"The revolution of Cuba has changed from chrysalis to full grown fly. The first blood has been spilled. Cuba, some seem to think, has had her Lexington.... The revolution having begun, it cannot go backward and it is more than probable that the days of Spain's rule are at least to be much embarrassed. The government counts 14,000 troops, and no more, in all the island, and may, perhaps, be able to raise as many more from the Spanish population; but their fleet is a good one, comprising some twenty vessels, of which six are steamers. *Whether the struggle be a long one or a short one, will depend on the 'aid and comfort' the Cubans receive from the United States, in the shape of guns, pistols, powder, ball and men that can teach them to organize and manoeuvre.*"

CHAPTER VI

IT will be recalled that the Cubans, in the first flush of victory, had dispatched the good tidings to the Cuban Junta in New York City. These reports were so sanguine of victory that even though later rumors of defeat at the hands of the Spaniards did reach that body, they were regarded as Spanish propaganda and suppressed. These adverse rumors were vague, and unsupported by confirming data, and Spanish spies had been for some time active in dispensing unreliable news favorable to their country, so it is not strange that little credence was given to such advices as came to the Junta from Spanish sources. Lopez himself was overjoyed at the tidings from the patriots and began eagerly to organize another expedition. The greatest enthusiasm prevailed among Cuban sympathizers in the United States. In some places, particularly in the south, public meetings were held, and proclamations of the liberty of Cuba were read to the assembled crowds. Men crowded to enlist and \$50,000 was quickly raised to finance the expedition. The new recruits to the ranks were of by far the best character yet enlisted. They seem to have been, for the most part, actuated by the highest motives, and aflame with zeal for the cause of Cuban liberty. Garibaldi, who was then in the United States, is reported to have been approached to be the leader of the new expedition, but because he had his own Italian matters to attend to, he declined with regret.

The United States Government, of course, gave no official sanction to the project, but it was deterred by the preponderance of favorable public opinion from putting more than nominal obstacles in its way; avoiding on the one hand the storm of protest which was bound to be raised by Cuban sympathizers at any marked interference with their plans, and on the other the anger of Spain and thus an international complication. Spanish spies were as heretofore dogging the steps of the conspirators and reporting their findings to the Spanish minister at Washington, so that the United States Government found itself in an exceedingly difficult position. However, preparations went on apace. A steamer, the *Pampero*, was purchased by the Junta, and well stocked with provisions. Arms and ammunitions were also

procured, but these were, as was usual, to be delivered to the steamer on the high seas.

At daybreak, on the morning of April 3, the *Pampero* slipped from its dock at the foot of Lafayette Street in New Orleans, and made its way down the river. At the mouth of the harbor the difficulties of the filibusters began. The vessel was overloaded, and Captain Lewis in the interests of safety declined to proceed further until some of the party had been sent ashore. A landing was made that night, and one hundred men were detailed to be left behind. They protested vigorously against this action. The plan was that the *Pampero* was to be only one of many vessels to be sent within the next month to the relief of the Cubans, and that she was to return, immediately her company had been landed in Cuba, for reinforcements which would be assembled and be in waiting to sail. However, none of the company on the *Pampero* desired to await another sailing, and when she once more put out to sea it was discovered that the number on board her had not been perceptibly lessened, since many of those put on shore had, in the confusion, and under the cover of darkness, stolen back on board and hidden themselves securely until she was once more on her way.

The expedition thus auspiciously started was made up of the following men and officers:

6	Companies of Infantry, including officers	—219 men
3	" " Artillery, "	" —114 men
1	Company „Cuban patriots (domiciled in the United States)	— 49 men
1	" " Hungarian recruits	— 9 men
1	" " German recruits	— 9 men

The command of this little army was distributed as follows:

General-in-Chief	Narciso Lopez
Second-in-Command and Chief-of-Staff	John Pragay

Officers of Staff

Captain Emmerich Radwitch.
" Ludwig Schlessinger.
Lieutenant Joseph Lewohl.
" Jigys Rodendorf.
" Ludwig.

" Miller.

Adjutant Colengen.

" Blumenthal.

Surgeon Hega Lemmgue.

Commissary G. A. Cook.

Staff of the Regiment of Infantry

Colonel R. L. Dorman.

Lieutenant Colonel W. Scott Harkness.

Adjutant George A. Graham.

Commissary Joseph Bell.

Adjutant of Regiment George Parr.

Company A.

Captain Robert Ellis.

Lieutenant E. McDonald.

Sub-Lieutenant J. L. LaHascan.

" R. H. Breckinridge.

Company B.

Captain John Johnson.

First Lieutenant James Dunn.

Second " J. F. Williams.

Third " James O'Reilly.

Company C.

Captain J. C. Bridgham.

First Lieutenant Richard Vowden.

Second " J. A. Gray.

Third " J. N. Baker.

Company D.

Captain Philip Golday.

First Lieutenant David Rasan.

Second " James H. Landingham.

Third " James H. Vowden.

Company E.

Captain Henry Jackson.

First Lieutenant William Hobbs.

Second " J. A. Simpson.

Third " James Crangh.

Company F.

Captain William Stewart.
First Lieutenant James L. Down.
Second " John L. Bass.
Third " Thomas Hudwall.

Regiment of Artillery—Officers of Staff.

Chief—William S. Crittenden.
Adjutant R. L. Stanford.
Second Master of Commissariat Felix Hustin.
Surgeon Ludovic Vinks.

Company A.

Captain W. A. Kelly.
First Lieutenant N. O. James.
Second " James A. Nowens.
Third " J. O. Bryce.

Company B.

Captain James Saunders.
First Lieutenant Philip VanVechten.
Second " Beverly A. Hunter.
Third " William H. Craft.

Company C.

Captain Victor Kerr.
First Lieutenant James Brandt.
Second " William T. Vienne.

Regiment of Cuban Patriots. Company A.

Captain Ilde Foussee Overto.
First Lieutenant De Jiga Hernandez.
Second " Miguel Lopez.
Third " José A. Plands.
Fourth " Henry Lopez.

Regiment of Hungarians.

Major George Botilla.
Captain Ladislaus Polank.
Lieutenant Semerby.
" Johan Petroce.
" Adambert Kerskes.
" Conrad Richner.

German Regiment.

Captain Pietra Muller.

" Hugo Schlyct.

Lieutenant Paul Michael.

" Biro Cambeas.

" Giovana Placasee.

This seems perhaps an elaborate organization for so small a force, but it must be borne in mind that Lopez and his followers firmly believed that this time there was to be no repetition of the former lack of enthusiasm on the part of the Cubans, but that they had only to land to be greeted with rejoicing, and to have flock to their assistance a great number of Cuban patriots. This impression was increased by forged letters—which Lopez, however, accepted as genuine—which were waiting for them at Key West and which are now believed to have been written by a follower of Lopez in Havana, under duress and intimidating threats of Captain-General Concha, for the latter having learned of the expedition resorted to treachery to thwart the plans of the filibusters. These letters intimated that Pinar del Rio and many cities in that vicinity were in open revolt against Spanish rule, and prayed that Lopez come quickly to the aid of the rebels, who were eager to join him.

Colonel Crittenden, in command of the artillery regiment, was a man of the highest connections in the United States. He was a seasoned soldier, being a veteran of the Mexican war, and having received his training at West Point. In Lopez's band were also several officers from the United States Custom House at New Orleans, and many men from the best families of the South.

On April 7 the smoke of a steamer was seen in the distance, and it soon seemed to indicate that the *Pampero* was being pursued. Her course was changed, and she either succeeded in outdistancing her pursuer, or the latter decided that a mistake had been made in the identity of the vessel, and abandoned the chase. The expedition neared Key West, and they expected to find there United States vessels of war, and a strong garrison. Therefore an attempt was made to disguise the character of the *Pampero* and her purpose, and the men were all ordered below. Lopez was delighted to find that his anticipations were wrong, for there were no men of war in the harbor and the barracks were empty. As the *Pampero* docked, and the men came on deck, they were greeted by a shouting mob of enthusiastic people. They were welcomed as heroes, and the inhabitants came on board bearing

food of the most tempting variety and cases of champagne. A feast followed, at which the health of the filibusters and the success of the expedition was drunk with shouts of approval.

Now the expectation had been to go up the St. John's River, where a quantity of artillery for Colonel Crittenden's regiment had been hidden, but the false reports in the forged letters made Lopez anxious to be on his way to Cuba, and it was argued that the artillery would be ineffective in the first engagements, for the roads were very bad, and Lopez hoped to take to the mountains and conduct a sort of guerrilla warfare. The St. John's River was some distance away, and there was always fear of interference from the United States Government; and besides, since this was merely a vanguard for a much greater invasion of Cuba, and was intended to pave the way for the coming forces, why not proceed to the rescue of the Cuban insurgents and let those who would follow bring the artillery? Consequently, after consultation with his officers, Lopez decided to sail for Cuba by the shortest route.

On nine o'clock of the morning of August 11, the filibusters found themselves about ten miles from the harbor of Havana. Off Bahia Honda they took on a pilot. Meanwhile, two vessels were sighted, and were believed to be Spanish ships lying in wait for the expedition. A contest of wits ensued, in which Lopez was victorious, and the *Pampero* successfully evaded her pursuers. At eight o'clock that night they neared Morillo, and Lopez decided there to make his landing. At eleven o'clock this was accomplished, and while the provisions, arms and ammunition were being brought ashore, the men were given permission to lie down on their arms and rest for two hours. It can be imagined that they were in the highest state of excitement and in no condition to sleep, even if the attacks of mosquitoes had not made this impossible.

Now the information which Captain-General Concha had received concerning the expedition had led him to believe that the landing would be made at Mantua, and he was delighted when information reached him, as it speedily did, that the filibusters had gone ashore at Morillo. He quickly dispatched Colonel Morales by rail to Guanajay, where he collected a Spanish force of about four hundred men, who were instructed to attack from the front; while General Ena from Bahia Honda and Colonel Elezalde from Pinar del Rio were to join forces to cut off retreat, if the filibusters

attempted to escape by sea, and thus Concha hoped to surround and destroy the army of invasion.

Meanwhile, the *Pampero* had been cleared, and under orders from Lopez set out on a return trip to Key West to bring reinforcements, and Lopez decided to march his forces to Las Pozas, ten miles away. Contrary to their expectations, the filibusters had found the town of Morillo practically deserted, and there were no enthusiastic patriots to welcome their would-be deliverers. Now difficulty arose as to transportation of the provisions, and the main portions of the military supplies. There was no practical means of conveying them to Las Pozas, and in consequence Lopez made a mistake which afterward proved his undoing. He concluded to divide his forces, leaving Crittenden, with a hundred and twenty men, to guard the supplies, and himself, with the remainder of his army, to push on to Las Pozas.

He reached this objective without mishap, but again found conditions very different from what he had been led to expect. This town, too, was almost deserted, and there was the same disheartening lack of support, and failure of the Cubans to join his expedition. Lopez determined that on this occasion there should be no occasion to bring against his army the accusations which the Spaniards had made at Matanzas. He therefore ordered his men to accept nothing in the way of food for which they did not pay, and he stationed guards at places where liquor was sold to prevent any drunkenness on the part of his men. In consequence the best of order prevailed.

An attack from the Spaniards was momentarily expected, and Lopez maintained a careful watch for the approach of the enemy. This was delayed until the next morning, when, in spite of his precautions, he was taken virtually by surprise. A portion of his forces were eating their breakfast, while others were bathing in a nearby stream, when word came that the Spanish had overpowered the outposts, were then within two hundred yards of the village, and that the attacking force was estimated to be twelve hundred strong. Lopez hastily issued the call to arms, and his men were arrayed to meet the on-coming Spaniards. A hot battle ensued, in which, in spite of the fact that they were so largely outnumbered, the filibusters were victorious and forced the Spaniards to retire. However, Lopez suffered a very great blow in the death of Colonel Dorman, who was the best disciplinarian and most efficient organizer and drill-master in the army, while Colonel Pragay, Lopez's chief adviser—who, however, had been responsible for persuading Lopez to make the mistake of leaving Crittenden

behind—was also killed, as was Captain Overto. The other casualties amounted to fifty killed and wounded. Even the fact that the Spanish losses were far heavier did not compensate for the loss to Lopez of his three brave commanders.

Lopez's army had been increased by only a few stray Cubans, whom they had encountered on their march to Las Pozas, and who had joined fortunes with them. He now had fifty-three less men than at first, and besides he was separated from his stores. Unless they were promptly brought forward, or unless he returned to Morillo and Crittenden, he would be in a serious situation, since help from the natives was not materializing. While he was contemplating this situation, a messenger arrived from Crittenden, asking permission to join Lopez, and the messenger was promptly ordered to return with orders to Crittenden to march his forces to Pinar del Rio to join Lopez there, and Lopez headed his men toward the mountains, with the intention of pushing on to Pinar del Rio.

Promptly on receipt of the desired permission from Lopez, Crittenden, with his one hundred and twenty men, set out to join him. They had proceeded only three miles when the little band was attacked by a body of five hundred Spaniards. Crittenden's men quickly took to cover, and fought so desperately that in spite of the fact that they were so greatly outnumbered, they killed a large number of the Spanish forces, and put the others to rout. But Crittenden, it would seem, had not learned the proper lesson from the earlier division of Lopez's forces, and his own plight in consequence, for he now decided to make the mistake a second time. The little band had made slow progress, because of the necessity for transporting the supplies in carts, and Crittenden made up his mind to leave Captain Kelly for the time with forty men to defend the supplies, and with the remaining eighty himself to lead an attack against the Spaniards who were now rallying. But the Spanish soldiers were better trained than were Crittenden's men, and the Spanish leader was cleverer in manoeuvres and had a greater knowledge of the country. He had no difficulty in effecting a separation between the two bodies of Crittenden's men, and he forced those under Crittenden to flee for their lives. They took refuge in a wooded ravine, where they remained for two days and nights without food and without water, in constant terror of a Spanish attack. Realizing that if they stayed where they were they faced no better fate than slow starvation, they finally, under cover of the night, emerged from their hiding-place and made

their way to the coast, where they took possession of four small boats and set out to sea, in the hope of reaching Key West, or of being picked up by some other expedition, since they had no doubt that several were already on their way from the United States. Two days later, starving, and almost mad for want of fresh water, driven by the tides back to the shore and aground on the rocks, they were captured and taken to Havana.

The Spanish General Bustillos, gives the following account of their apprehension:

"Your Excellency: I started yesterday from Bahia Honda, in the steamer *Habanera*, with a view to reconnoiter the coast of Playitas and Morillo, in order to remove all the means by which the pirates could possibly escape; or in case of more expeditions to these points, to remove the means of disembarkation. At seven o'clock in the morning, I communicated with the inhabitants of Morillo, and was informed by the inhabitants that, at 10 o'clock on the preceding night, one part of them embarked in four boats. Having calculated the hour of their sailing and distance probably made in 10 hours and supposing they had taken the direction of New Orleans—I proceeded in that direction 18 miles, with full steam, but after having accomplished that distance, I could not discover any of those I pursued. Believing the road they had followed was within the rocks, I directed my steamer to that point, and made the greatest exertions to encounter the fugitive pirates. At 10 o'clock I detected the 4 boats navigating along the coast and I could only seize one. Two others were upon the rocks of the island, the fourth upon the rocks of Cargo Levisa. When I seized the men of the first boat, I armed the boats of the ship in order to pursue the second and third, which were on the rocks, but the officers of the army who were in the boats, as well as the troops and sailors, the commander of the boat, Don Ignacio de Arrellano and the captain of the steamer *Cardenas*, Don Francisco Estolt threw themselves in the water to pursue the pirates of whom two only escaped. Having left their arms we did not pursue them in order to occupy ourselves with the boat in Cargo Levisa, for it was one of the largest and contained more men. These, twenty-four in number, were hidden within a small neck, having the boat drawn up among the rocks; and here the pirates were seized. The number of prisoners was fifty well armed men, headed by a chief and five officers."

When the captives reached Havana, they were brought up on deck, stripped except for their undershirts and trousers, and before the people who

had assembled at the dock they were made to undergo the greatest indignities. Not only were they grossly insulted by word of mouth; they were spit upon, and railed at, kicked and assaulted; nothing seemed too harsh or vile for their captors to do in venting their spleen.

Meanwhile, when the Captain-General was apprised of their arrival, he sent spies to them to take down their statements and farewell messages, promising to transmit these to their families, but in reality his agents were instructed to use every effort to influence each man to inform on the others. In this, however, they were entirely unsuccessful. Concha announced his intention of dealing summarily with the offenders, as a warning to others who might contemplate an invasion of Cuba. Therefore, without even the pretense of a trial, the following decree was issued against them:

"It having been decreed by the general order of April 20 last, and subsequently reproduced, what was to be the fate of the pirates who should dare to profane the soil of this island, and in view of the declarations of the fifty individuals who have been taken by his Excellency the Commander-General of this naval station, and placed at my disposal, which declarations establish the identity of their persons, as pertaining to the horde commanded by the traitor Lopez, I have resolved in accordance with the provisions of the Royal Ordinances, General Laws of the Kingdom, and particularly in the Royal Order of the 12th of June of the past year, issued for this particular case, that the said individuals, whose names and designations are set forth in the following statement, suffer this day the pain of death, by being shot, the execution being committed to the Señor Teniente de Rey, Brigadier of the Plaza.

"JOSE DE LA CONCHA."

Attached to this document was the following list of names. Since it is known that fifty-two men were shot, the list is accordingly incomplete:

"Colonel W. S. Crittenden; Captains F. S. Sewer, Victor Kerr, and T. B. Veacey; Lieutenants James Brandt, J. O. Bryce, Thomas C. James, and M. H. Homes; Doctors John Fisher and R. A. Tourniquet; Sergeants J. Whiterous and A. M. Cotchett; Adjutant B. C. Stanford; Privates Samuel Mills, Edward Bulman, George A. Arnold, B. J. Wregy, William Niseman, Anselmo Torres, Hernandez, Robert Cantley, John G. Sanka, James Stanton, Thomas Harnett, Alexander McIllger, Patrick Dillon, Thomas Hearsey, Samuel Reed, H. T. Vinne, M. Philips, James L. Manville, G. M.

Green, J. Salmon, Napoleon Collins, N. H. Fisher, William Chilling, G. A. Cook, S. O. Jones, M. H. Ball, James Buxet, Robert Caldwell, C. C. William Smith, A. Ross, P. Brouke, John Christides, William B. Little, John Stibbs, James Ellis, William Hogan, Charles A. Robinson."

On August 16, early in the morning, the prisoners were taken from the vessel and brought to the Castle of Atares for execution. An appeal was made to the American Consul at Havana, F. A. Owens, to use his influence with the Captain-General to obtain some clemency for the condemned men, but he not only declined on the ground that they had been declared outlaws by the American Government, but he seemed to be utterly lacking in kindness of heart or compassion, for he refused to see the men, or to make any attempt to transmit their last messages to their friends and families.

An eye witness thus describes the execution:

"Havana, August 16, 4½ P. M.

"I have this day been witness to one of the most brutal acts of wanton inhumanity ever perpetrated in the annals of history. Not content was this government in revenging themselves in the death of those unfortunate and perhaps misguided men, and which, it may even be said, was brought upon themselves; but these Spanish authorities deserve to be most severely chastised for their exceedingly reprehensible conduct in permitting the desecration, as they have done, of the senseless clay of our brave countrymen. This morning forty Americans, four Irish, one Scotch, one Italian, one Philippine Islander, two Habaneros and two Germans or Hungarians, were shot at 11 o'clock; after which the troops were ordered to retire and some hundreds of the violent rabble, hired for the purpose commenced mutilating the dead bodies. Oh! the very remembrance of the sight is frightful.

"I never saw men—and could scarcely have supposed it possible—conduct themselves at such an awful moment with the fortitude these men displayed under such trying circumstances. They were shot, six at a time, i.e., twelve men were brought to the place of execution, six made to kneel down and receive the fire of the soldiers, after which the remaining six were made to walk around their dead comrades and kneel opposite to them, when they were also shot. They died bravely, those gallant and unfortunate young gentlemen. When the moment of execution came, many, Colonel Crittenden and Captain Victor Kerr among them, refused to kneel with their backs to the executioners. 'No,' said the chivalrous Crittenden, 'an American kneels only to his God, and always faces his enemy!' They stood up, faced their executioners, were shot down and their brains then knocked out by clubbed muskets. After being stripped and their bodies mutilated, they were shoved, six or seven together, bound as they were, into hearses, which were used last year for cholera cases. No coffins were allowed them.

"A finer looking set of young men I never saw; they made not a single complaint, not a murmur, against their sentence, and decency should have been shown their dead bodies in admiration for the heroism they displayed when brought out for execution. Not a muscle was seen to move, and they proved to the miserable rabble congregated to witness the horrible spectacle that it being the fortunes of war that they fell into the power of this government, they were not afraid to die. It would have been a great consolation to these poor fellows, as they repeatedly asked, to see their consul, and through him to have sent their last adieus, and such little remembrances as they had, to their beloved relations in the States. But Mr. Owens, the

American Consul, did not even make application to the Captain-General to see these unfortunate countrymen in their distress, and their sacred wishes in their last moments have been unattended to. Lastly, at the very hour of triumph, when the people of the Spanish steamer *Habanero* knew that the execution of the American prisoners, whom they had taken to Havana, had taken place, two shots were fired across or at the steamer *Falcon* off Bahia Honda; and notwithstanding that this vessel was well known to them, having as she had the American flag hoisted, etc., she was detained and overhauled by these Spanish officers."

Another reliable source, the report of an American naval officer, furnished the information, that after the prisoners had been shot, their bodies were mutilated; they were dragged by the heels, and outraged in a manner which would make the most unenlightened savage shudder; their ears and fingers were cut off, and portions of these, together with pieces of skull, were distributed to the Spanish officers as souvenirs, while some of these grim relics were afterward nailed up in public places as a warning against attempts to revolt against the Spanish Government. Ten of the bodies were placed in coffins, and the rest were merely thrown into a pit.

When Captain Kelly and his forty followers had been separated from Crittenden, they managed in some manner—the details of which have not come down to us—to evade the Spaniards and to escape with such supplies as they could carry. They took to the cover of the woods, and being unfamiliar with the country wandered around, until they fell in with a loyal negro who undertook to act as guide for them. He led them to a dense wood, in sight of Las Pozas, and they sent him on ahead to report conditions. He returned, stating that Lopez was in possession of the town, and so they joined him, just as he was about to lead his men into the mountains. Captain Kelly's men had been so engrossed with their own predicament that they had remained in ignorance of the fate of Crittenden's force, and they were therefore unable to give Lopez any definite information concerning them, and he treasured the hope that they too had escaped the Spaniards, and would be able to join him at Pinar del Rio, in accordance with the original plan.

Lopez's forces were now reduced to about three hundred men, and they found themselves obliged to leave their wounded behind them. They pushed forward all night, and until about nine in the morning, covering a distance of twelve miles. They shot a cow, and roasting the meat on the points of their bayonets, ate it without bread or salt. They then continued their march until eight in the evening, when, utterly worn out, they lay down and slept on their arms until midnight.

The moon was now shining brightly, and Lopez awakened his tired army, and again they were on their way. Shortly after dawn, they reached a plantation, where they were received with kindness by the owner, who was in sympathy with the cause of Cuban freedom. Two cows were killed, and some corn roasted, and once more the little band was refreshed. But now Lopez discovered that in the absence of a guide or a compass they had been traveling almost in a circle, and instead of going southwest toward San Cristobal and Pinar del Rio, they were within only three miles of their original landing place, where there was a large Spanish force. He immediately assembled his footsore companions, who were now almost barefoot because the rough and stony passes had worn the shoes from their feet, and led them on a forced march. Many had already dropped out by fatigue, and the others were almost exhausted, but Lopez realized that safety could only be assured by putting many miles between his men and the Spanish garrison, and reaching, before they were overtaken, some place of strong vantage.

The Spaniards seem, however, to have been thoroughly puzzled by Lopez's circuitous course, and they sent word to the Captain-General that since they despaired of capturing him, they felt the best measure to take was an effort to induce his men to desert him. Concha, therefore, issued the following proclamation, which was posted in conspicuous places all over the vicinity where Lopez was supposed to be hiding:

"Proclamation!

"The Most Excellent Señor, the Captain-General, has seen proper to direct, under this date, to the chiefs of columns in the field and to the Lieutenant-Governors of Bahia Honda, Mariel, San Cristobal and Pinar del Rio, the following circular:

"The greater part of the pirates who dared to invade the island have been destroyed by the valiant troops of that army to whom the lot fell of being destined to pursue them, as well as by the not less decided and active cooperation of all the loyal inhabitants of the district they had sought to make their den. Considering, at once, the unanimous confession of all those who have been taken and executed, that they had been brought here into a foreign territory through a complete deception, having been made to believe that the country called them, that the army would make common cause with them, and that triumph would be as easy as it was certain, such being the

promise of the traitor who led them; and that the directors of such a foolish and disorderly enterprise could not in any other way have got together the multitude connected herewith, and also that public vengeance has already been satisfied by the severe chastisement inflicted on those individuals hitherto captured, as well as those that have perished by the balls or the bayonets of our gallant troops; and that finally, the time has arrived to make use of clemency, according to the dictates of humanity, I have determined:

"I. That quarter shall be given to every individual belonging to the band under command of the traitor Lopez who shall surrender or be taken by the troops of His Majesty within four days from the publication of this resolution in the respective districts; it being well understood that after the expiration of that period the general army order of April 20 last will remain in full force as it has up to now.

"II. The individual or individuals belonging to said band who shall surrender said leader, Lopez, shall be free from all punishment, and if he be a foreigner, shall be restored to his own country.

"This I communicate to you for your exact observance, ordering that it be immediately published in all the district under your command. God guard your Excellency many years!

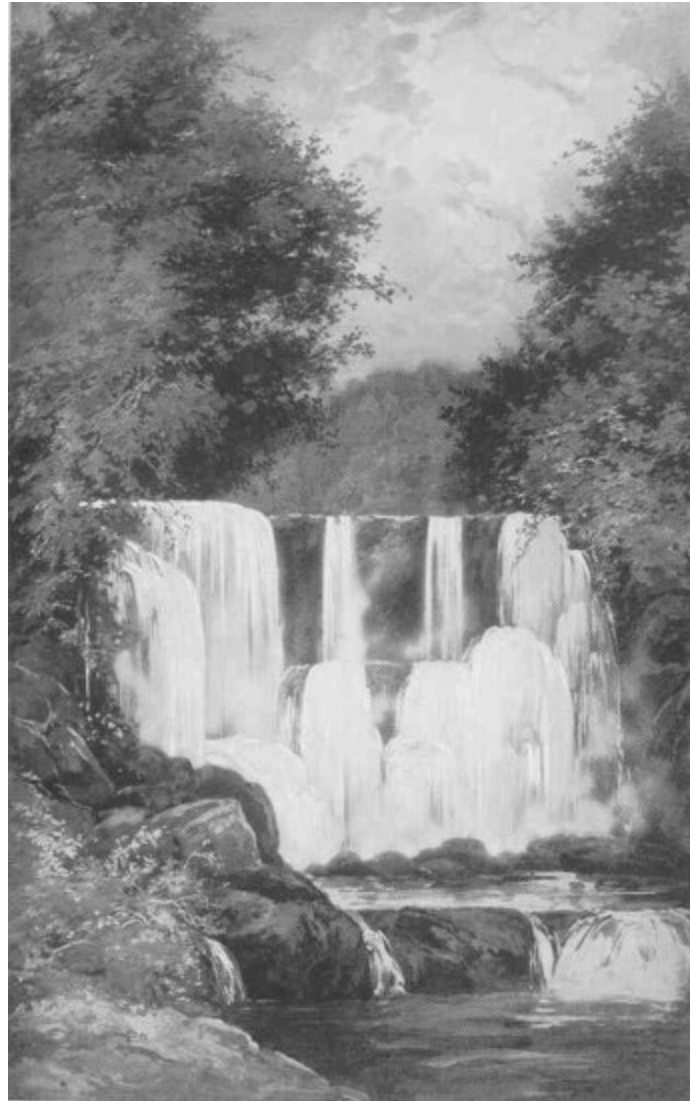
"JOSE DE LA CONCHA.

"Havana, Aug. 24, 1851."

Meanwhile stragglers who fell by the wayside, and afterward fell into the hands of the Spaniards, were brutally treated, and murdered in the most revolting manner, their bowels being ripped open by bayonets after they had been practically flogged to death.

A native guide who offered his services to Lopez, now led him to a coffee plantation near Las Frias. He represented to Lopez that the owner was a sympathizer, and that the wanderers would be given rest and shelter, and a place to hide until the arrival of reinforcements from the United States. This guide is believed to have been a Spanish spy, for while Lopez and his men were received with the greatest courtesy, and entertained for two days by the planter, their host secretly dispatched a courier to the Spanish leaders, and presently a Spanish army arrived to attack the filibusters. Lopez dispersed his men, who hid themselves behind the trunks of mango trees, and picked off the Spanish soldiers, with the result that the Spaniards were put to flight, and when word presently came that General Eno was

advancing to the rescue of his compatriots with a force of two thousand men Lopez retreated to a high hill, with the remainder of his army, now reduced to two hundred and twenty men, many of these disabled by wounds. Lopez was in a position of vantage, and small parties of his men fired on the advancing Spaniards, wounding their commander, and several of their number.



FALLS OF THE HANEBANILLA

Each of the Provinces of Cuba has its own characteristic charms of scenery; among which it would be rash to attempt to choose. Santa Clara boasts the great falls of the Hanebanilla River, a scene of majestic splendor. This is one of numerous cataracts on the rivers of Cuba, enriching the scenic attractions of the island, and at the same time suggesting immense value as sources of industrial power.

Lopez now endeavored to reach a plain near San Cristobal, but his men were worn out, their clothes torn, their flesh bruised and bleeding, and their feet lacerated so that they could hardly walk. Dissatisfaction and dismay was rife among them, and presently they sent a committee to Lopez, asking him to advise them just what he intended to do, and what he expected to accomplish, and stating that unless he had some good plan, they were unwilling to proceed further. Lopez listened to them attentively, and asked for suggestions. They were all for hiding in the mountains, until relief should be sent to them from the country which they all now sorely regretted leaving. While putting this project into execution, they were again attacked by the Spaniards, three or four of them were killed, and a number taken prisoners, and immediately executed. One hundred and forty men escaped with Lopez through the woods. Many of them had lost their arms; only sixty-nine guns remained, while on most of these the bayonets were broken. They had no food and they killed Lopez's horse and ate it. Open dissension broke out among them. Lopez was, as will be recalled, under sentence of death, having been condemned, after the betrayal of the first plans to free Cuba, to be killed should he ever again be apprehended on the island. A price had been set on his head, and now, with characteristic self-abnegation, he besought his men to deliver him up to the enemy, securing clemency for themselves in return for such action. To do them justice, they were heartily ashamed, and repudiated the suggestion. Finally after a long discussion it was decided to stake all on one attempt against the Spaniards, and consequently they made their way again to the plain near San Cristobal and there attacked a force of five hundred Spanish troops. They were charged by the Spanish cavalry, and all but six were taken prisoners. Lopez and his remaining six followers took refuge upon a plantation. They were received with cordiality and assured of the sympathy of their owner, Señor Castenada, who offered to hide them until their friends, whom they believed to be even then on the ocean, or perhaps making a landing on the island, should rescue them. He gave them good food and drugged wine, and took them to the upper part of the house, to his bedrooms, that they might sleep. They were utterly exhausted, and soon fell into deep slumber, whereupon Castenada notified the Spanish authorities, who at once sent troops to take the little company prisoners. So profound was their sleep that they were securely bound before they realized what had happened. They were at once taken to Havana, where the Captain-General was so delighted at the turn

events had taken that he issued a proclamation complimenting his brave officers on their capture "of this dangerous traitor."

Concha did not accord Lopez a trial, but at once issued a proclamation ordering his execution. It was dated October 31, 1851, and ran as follows:

"By a superior decree of the Most Excellent Señor, the Governor and Captain-General, Don Narciso Lopez, who commanded the band of pirates that disembarked at the place called Playitas, to the leeward of the capital on the morning of the 12th instant, has been condemned to the infamous punishment of the garrote. The execution is to take place at seven o'clock in the morning of September 1st. The troops of all arms composing the garrison of the town, and the forces from elsewhere, will assemble at sufficient time beforehand, at the camp of the Punta, where the scaffold is placed, around which they will form a square. The regiment of Galicia will take its station in front with a banner displayed. The other corps will be present with all their disposable force. The artillery will take the right, with the engineers next them; the other forces without distinction will occupy the places assigned to them. The cavalry will be stationed according to the direction of the Brigadier, the Royal Lieutenant commanding the town, who will command the troops, having under his orders the staff officers of the army, and an equal number of town adjutants. A true copy.

"ZURITA."

The Spanish archives contain the following names of members of the Lopez expedition who were taken prisoners about this time and who witnessed the execution of their leader. Most of these men after a long imprisonment were finally pardoned, through the intervention of powerful friends, and returned to their homes:

Elias Otis, Michael O'Keenan, John Danton, First Lieutenant P. S. VanVechten, M. L. Hefren, Captain Robert Ellis, W. Wilson, W. Miller, P. Lacoste, M. Lieger, P. Coleman, Henry Smith, Thomas Hilton, First Lieutenant E. H. McDonald, D. D. Waif, H. D. Thomason, Charles A. Conunea, Emanuel R. Wier, First Lieutenant J. G. Bush, Conrad Taylor, Thomas Denton, C. A. McMurray, J. Patan, Conrad Arghalir, Jose Chiceri, G. Richardson, John B. Brown, Thomas S. Lee, Captain James Aquelli, Franklin Boyd, Thomas Little, Commissary J. A. Simpson, George Wilson, First Lieutenant D. D. Rousseau, First Lieutenant Robert McGrier, J. D. Hughes, William H. Vaugale, Francis B. Holmes, Malbone H. Scott, First

Lieutenant W. H. Craft, J. D. Prenit, Julio Chasagne, John Cline, George Forster, C. Knoll, Nicholas Port, Patrick McGrath, Charles S. Daily, James Fiddes, S. H. Prenell, W. L. Wilkinson, C. Cook, James Chapman, James Brady, Henry B. Hart, Jacob Fonts, Preston Esces, William Cameron, Thomas Mourou, Isaac Fresborn, Cornelius Derby, Peter Falbos, Benjamin Harrer;

From England: William Caussans, John Nowes;

From Ireland: Henry B. Metcalfe, George Metcalfe, James Porter, Thomas McDellans;

From Cuba: Bernardo Allen, Francisco Curbiay Garcia, Ramon J. Arnau, José Dovren, Manuel Martinez, Antonio Hernandez, Martin Milesimo;

From Germany: Johannes Sucit, Edward Wisse, Wilhelm Losner, Robert Seelust, Ciriac Senelpi;

From Matanzas: Ramon Ignacio Amaso;

From Hungary: George Baptista;

From New Granada: Andres Gonzales;

From Alquizar: Francisco A. Leve;

From Bayamo: Manuel Diaz;

From Navarre: Antonio Romero;

From Spain: Francisco J. Zamaro;

Nationality not Stated: Antonio L. Alfonso, Manuel Aragon, Jose Bojanoti y Rubina, Joaquin Casanova, Miguel Guerra, William MacKinney, Dandrig Seay, Leonardo Sugliorti, J. D. Baker and Luis Bander.

In accordance with the Captain-General's proclamation, the execution of Lopez took place on the morning of September 1. The scaffold was erected on a platform ten feet high, in a flat space opposite Morro. The garrote consists of a post, and a stool on which sits the prisoner, while a metal collar is passed around his neck and fastens him securely to the post. A screw having long arms is attached to the post, by means of which, at one turn, metal points are thrust into the victim's neck, causing dislocation and death.

There were present on this occasion, three thousand infantry, two hundred cavalry and twenty thousand witnesses. Lopez presented a calm and dignified appearance. With his hands tightly bound he walked to the front of the platform and said in a strong, clear voice:

"I pray the persons who have compromised me to pardon me, as I pardon them. My death will not change the destinies of Cuba."

Then as the executioner bade him be quick, he exclaimed:

"Adieu, my comrades! Adieu, my beloved Cuba, adieu!"

Thus died a man, as brave in his last hours as he had been during all the strange fortunes and vicissitudes of his adventurous life, who had sacrificed everything for a principle which seemed to him dearer than all the material benefits which the world might have conferred upon him. The Spanish leaders destroyed his body, but they could never destroy that far more precious thing, the spirit of freedom which he had instilled in the minds and the hearts of the Cubans, and which was to live after him and at last lead Cuba to victory.

CHAPTER VII

LOPEZ had failed. Such was the obvious judgment of the world. Upon the face of the matter, his expedition had ended in disaster and utter tragedy. The first serious attempt to achieve the separation of Cuba from Spain had come to naught. It had been completely suppressed and its promoters had been destroyed.

In a broader, deeper and more significant sense, however, the enterprise and sacrifice of Lopez and his comrades had splendidly succeeded. That valiant pioneer of Cuban liberation had indeed "builded better than he knew." For his enterprise marked an epoch in Cuban history; the most important since Columbus's discovery of the island. The abortive attempts at emancipation, which had been sporadically but feebly active since the days of the emulators of Bolivar, had by Lopez's efforts been marvelously and effectively resuscitated. The movement which had been nurtured by the "Soles de Bolivar," but which its members had been unable, because of smallness of numbers and lack of funds and of leadership, to make much more than a cherished ideal—for the attempts at revolt had been still-born, choked almost on their conception—had under Lopez been imbued with lusty life, and was never again to languish. A force had been set in operation which could not and did not cease its action until, though many weary years afterward, the end which Lopez had foreseen was attained, and Cuba was securely placed among the independent nations of the world. We say that Lopez "builded better than he knew." That was literally true because his plans were merely for the transfer of Cuban sovereignty from oppressive and reactionary Spain to liberal and progressive America; building upon the foundation thus outlined by him, subsequent bolder spirits constructed the triumphant edifice of complete independence of which he had not so much as dreamed.

The immediate results of the Lopez expedition were prodigious. It is not easy, at this time and distance, to appreciate fully the tremendous sensation which was caused, not only in Cuba and in Spain, but, to a considerable extent, throughout the world, or at least, throughout that most important portion of the world which had its frontage upon the Atlantic Ocean, and

which possessed more or less direct interests in the countries of the Caribbean Sea. For a full appreciation of this, it is necessary to take into consideration certain circumstances which are now almost forgotten.

We must remember that down to this time the world at large had been profoundly ignorant of Cuba, save in the most general and external manner. Spain, as we have already indicated in these pages, had long pursued a persistent policy of secrecy and isolation. Cuba was not allowed to know much of the outside world, and the outside world was not allowed to know much of Cuba. A strict censorship was maintained over information both entering and leaving the island. Marked inhospitality was shown to travelers and visitors to discourage them from penetrating the island or acquainting themselves with the real condition of its affairs. Practically Cuba remained, so far as its social, economic and political conditions were concerned, a *terra incognita*. The world knew almost nothing of its natural wealth and its inestimable resources, its potentialities of greatness.

Now, in the baleful light of a great tragedy, the island was suddenly thrust forward into the world's most intense publicity. From being a minor colonial possession of a decadent power, it was transformed into one of the foremost international issues. The eyes of two continents were fixed upon it, while the hands of those continents involuntarily reached for sword hilts in preparation for a decisive conflict which might shake the foundations of the civilized world.

Let us consider first the interests and sentiments of Spain at this great crisis in her affairs. Hitherto she had regarded Cuba as a helpless province, politically negligible, although economically of immense value as the "milch cow of the Peninsula." The several insurrections which had occurred had indeed been annoying, and, at times, costly, but they had been suppressed with little difficulty, and there had never been a thought of their really menacing Spain's sovereignty over the island. Nor had there been any fear of losing the island through alien aggression or intervention. Spain's title to Cuba had been repeatedly underwritten by the United States of America, at the hands of John Quincy Adams, Henry Clay and John Forsyth; as we have hitherto seen. For a full generation Spain had confidently depended upon both the purpose and the power of the United States to protect her in her ownership of Cuba. But now came a revolt which in itself was immeasurably more formidable than all the slave insurrections put together, and which was, most ominous of all, operated

from the United States, with the obvious sympathy, if not with the actual aid, of the people of that country. This powerful protector of Spain in Cuba was assuming the character of a possible conqueror. The troubles of Cuba were, therefore, no longer merely local, nor even national; they had risen to international proportions. They menaced not only the domestic tranquillity of Spain, but also her international relations with that power from which, of all in the world, she had cause most to fear.

No less marked was the effect of these events upon the Cubans. They were made to feel that at last "the die was cast." An irrevocable step had been taken. The dreamer had awakened; plans and conspiracies had been transmuted into militant action. It is true that comparatively few of the Cubans had been directly concerned or, at least, could be proved to have been directly concerned in the undertakings of Lopez, but it was quite certain that thereafter they would all be regarded as having sympathized, and as being potential insurgents, with arms as well as with ideas. Nothing thereafter could ever be as it had been before. The Cuban people were vicariously committed to the policy of forcible separation from Spain. War was begun and it would be war to the knife, and the knife to the hilt.

In Cuba, the Spanish authorities realized this change in Cuban sentiment, and kept a sharp outlook for any signs of uprising. They also "made examples" of any and everyone who came under suspicion of having been in sympathy with Lopez, or of having any plans for starting a similar movement. Thus some boys, who were outspoken in their expressions of sympathy with the cause of freedom from Spain, were seized and summarily executed without trial. Feeling ran high; native born Cubans refused to associate with those of Spanish birth, and in many cases even to speak of them. A carnival was about to be celebrated in Santiago de Cuba, but it was abandoned, and the city went into mourning.

To retaliate some Spaniards sent out invitations for a ball at the Filarmonia, the famous theatre in Santiago where, years afterward, Adelina Patti made her *début*. This was resented as an insult by the native Cubans of the city. Some hot-blooded young men forced an entrance into the hall where the ball was being held, and rushing forward destroyed a picture of Queen Isabella which hung at one end of the room. Immediately everything was in an uproar, men were shouting and fighting, and women were fainting. In the *mêlée* the disturbers escaped, and the matter was hushed up, for the Spanish authorities feared that the trouble might be made the

occasion of another uprising, and so made no attempt to secure the names of the culprits.

But this was just the prelude for worse disaster. A wealthy Cuban woman, with more money than judgment, decided to act as mediator and bring the enraged parties together. She took a strange means for accomplishing her object, issuing invitations for a party to both prominent Spaniards and Cubans of the best families. When the ball took place it is difficult to say who were the more dismayed and astonished, the Cubans when they saw who had been invited to meet them, or the haughty Spanish grandees, who hated the Cubans. An even wilder scene than that at the Filarmonia took place. Women were thrown to the floor, their clothing torn, and their bodies trampled on. The chandeliers were torn from the ceiling, many windows were broken, men fought in hand to hand combat, and when it was all over the injured had been removed, the hall which had been intended for a scene of pleasure was wrecked and rent beyond description. Six people were killed on this occasion, including one Spanish woman of high rank, and over a hundred were more or less seriously injured. Arrests were promptly made, but it was the Cubans who suffered, for no Spaniards were apprehended. Several boys from the best Creole families were thrust without trial into the dungeons of Morro Castle, from whence they were transported to the Spanish penal institution at Ceuta, and never again heard of. Those who were quick enough made their escape to the United States, and the woman who was so foolish as to give the party hastily left the island, without heralding her going.

The Cubans were thoroughly aroused against Spain, and more and more there began to grow within them the desire not for annexation to the United States but for complete independence, and a government of their own making. At last the people were finding themselves, and higher aspirations and new longings were stirring in their souls.

The Captain General, fearing new uprisings, began to get the island in better shape for defense from aggression from within. He strengthened the fortifications, and established a more central control over the army and navy, so that from headquarters all army posts and the movement of all vessels might be more easily governed. To further this end he built new roads, and improved old ones, and he took into his own hands as Captain-General a closer control and supervision of matters military.

Perhaps nothing could be more indicative of the Cuban feeling and of the conditions on the Island at this time than are contained in the following letter written by a prominent Cuban—a man of the highest intelligence and from one of the best known families—to a friend:

"The cause of the liberty of nations has always perished in its cradle because its defenders have never sought to deviate from legal paths,—because they have followed the principles sanctioned by the laws of nations, while despots, always the first to exact obedience to them when it suited their convenience, have been the first to infringe them when they came into collision with their interests.

"Their alliances to suppress liberty are called *holy* and the crimes they commit by invading foreign territories and summoning foreign troops to their aid to oppress their own vessels, are sacred duties, compliances with secret compacts; and, if the congresses, parliaments and Cortes of other nations, raise the cry to Heaven, they answer, the government has protested—acts have been performed without their sanction—there is no remedy—they are acts accomplished.

"An act accomplished will shortly be the abolition of slavery in Cuba, and the tardy intervention of the United States will only have taken place when its brilliant constellation lights up the vast sepulchre which will cover the bodies of her sons, sacrificed to the black race as a regard for their sympathies with American institutions, and the vast carnage it will cost to punish the African victors. What can be done today, without great sacrifice, to help the Cubans, tomorrow cannot be achieved without the effusion of rivers of blood, and when the few surviving Cubans will curse an intervention which, deaf to their cries, will only be produced by the cold calculations of egotism. Then the struggle will not be with the Spaniards alone. The latter will now accede to all the claims of the cabinet at Washington, by the advice of the ambassadors of France and England, to advance, meanwhile, with surer step to the end—to give time for the solution of the Eastern question, and for France and England to send their squadrons into these waters. Well may they deny the existence of secret treaties; this is very easy for such beings, as it will be when the case of the present treaty comes up, asserting that the treaty was posterior to their negative, or refusing explanations as inconsistent with their dignity. But we witness the realization of our fears, we see the Spanish government imperturbably setting on foot plans which were thought to be the delirium

of excited imaginations doing at once what promised to be gradual work; and hear it declared, by distinguished persons who possessed the confidence of General Pezuela, that the existence of the treaty is certain, and that the United States will be told that they should have accepted the offer made to become a party to it, in which case the other two powers could not have adopted the abolition scheme. But supposing this treaty to have no existence, the fact of the abolition of slavery is no less certain. It is only necessary to read the proclamation of the Captain-General, if the last acts of the Government be not sufficiently convincing. The result to the Island of Cuba and the United States is the same, either way. If the latter do not hasten to avert the blow, they will soon find it impossible to remedy the evil. In the Island there is not a reflecting man—foreigner or native, Creole or European—who does not tremble for the future that awaits us, at a period certainly not far remote."

Thus did the Cubans look forward with hope to, and at the same time fear, the future. And meanwhile the tragedy of Lopez was having a wide-spread effect on the feeling of the people, and on political conditions in other countries.

In the United States a profound impression was produced of a triple character. There was, in the first place, the international point of view. It was realized that the United States was being brought uncomfortably near the possibility of a serious controversy, if not of actual war with Spain. The neutrality laws had been evaded, and there was every prospect that such evasions would thereafter be repeated. The whole question of American relations with Cuba was acutely reopened, and both those who favored and those who opposed the acquisition of that island by the United States were made to realize that a momentous decision might be called for at any moment.

There was, in the second place, the point of view of the pro-slavery states of the South, and their leaders, who were generally in control of the national government at Washington. The South strongly favored Cuban annexation, either voluntary or forcible. The island was wanted as Texas and other Mexican territories had been wanted, to provide for the extension of slave territory and for the addition of new slave states to the union to counter-balance the new free states which were about to seek admission at the north. There was also a passionate desire to avoid the calamity of having Cuba made, as the other Spanish-American countries had been made, free soil,

thus encircling the slave states with an unbroken ring of anti-slavery territory. Moreover, at this time the spirit of conquest and of expansion was very much abroad in the land. The lust for territory which had prevailed in the Mexican War was by no means satisfied. Men still regarded it as the manifest destiny of the United States to "lick all creation." In the geography of the popular mind, the United States was, or was destined to be, "bounded on the north by the aurora borealis, on the south by the precession of the equinoxes, on the east by primeval chaos, and on the west by the day of judgment." Under such circumstances, the attitude of the people of the United States south of Mason and Dixon's line was unmistakable.

There was also the point of view of the increasingly anti-slavery north. During the Mexican war a strong aversion to territorial expansion by conquest for the sake of slave soil had been manifested, and this feeling was steadily increasing in extent and in influence. It manifested itself by opposition to Cuban annexation. At the same time, the commercial instinct was strong in the great cities of the north, and there was an earnest desire to do nothing which might interfere with the profitable trade which already existed between this country and Cuba, and which it was hoped greatly to expand.

The interest of Great Britain in Cuban affairs was scarcely less than that of Spain or the United States. That country had once, for a time, possessed Cuba, and had never forgotten that fact nor ceased to entertain the desire to renew that possession as a permanent state of affairs. That country also had very important colonial holdings in the West Indies, and on the adjacent mainland; being, indeed, an American power second only to the United States itself. It owned the Bahamas, Jamaica and other islands, and colonies on the South and Central American coast, which latter it was at that very time seeking greatly to extend. It was keenly desirous of enlarging its possessions and forming a great colonial empire in tropical America, and it realized that nothing could conduce to that end more than the acquisition of Cuba. In the prosecution of this policy, a certain "jingo" faction actually went so far as to pretend that upon the acquisition of Cuba depended Great Britain's retention of Canada, if not, indeed, of her entire American holdings. It was represented that if Great Britain did not intervene to prevent it, the slave-holding South was certain to annex Cuba, and that this would provoke the abolitionist North into seizing Canada, in order to provide in that direction free soil to counter-balance the slave soil of Cuba.

Thus, with Canada gone, and Cuba in the hands of the United States, the remainder of the British holdings in the western hemisphere would be in deadly jeopardy. Such visions seem at this time fantastic, and it may be that they were then thus regarded by serious statesmen; yet they were cherished and were not without their influence.

Nor was France less deeply and directly interested in Cuba. She, too, had colonies in the West Indies and on the South American coast. She had never forgotten her former vast empire in North America, nor ceased to regret its loss. She was soon to enter upon a campaign of conquest in Mexico. She had at various times, both during and since the Napoleonic era, entertained designs upon peninsular Spain itself, and she had repeatedly made direct overtures for a protectorate over Cuba.

These circumstances caused international relations to be ominously strained in more than one direction, and as soon as news reached the United States of the execution of those companions of Lopez who were members of prominent families in the southern states, there arose a widespread and furious storm of wrath. The center of this was, naturally, at New Orleans, where the majority of Lopez's followers had been recruited and where their families resided, and in that city an infuriated mob stormed and destroyed the Spanish consulate, publicly defaced a portrait of the Spanish queen, and, in some respects worst of all, looted a number of shops owned by Spanish merchants. This was most unfortunate from more than one point of view. It was not only indefensible and inexcusable in itself, but it put the United States so much in the wrong as to deter it from taking any action, or indeed making any protest to Spain on account of the putting to death of the American prisoners.

The American Secretary of State, Daniel Webster, made, however, the best of an unfortunate situation. He took a straightforward course by immediately apologizing to the Spanish government for the New Orleans outrages, and recommended to Congress the voting of an adequate indemnity for the damage which had been done. Having done this, he was enabled to secure the release of some American members of Lopez's expedition who had not yet suffered the death penalty.

Despite this settlement, the Spanish government continued to cherish much resentment against the United States, partly for the participation of so many of that country's citizens in the expeditions of Lopez, and partly

because of the outrages in New Orleans, and its Cuban administration thereafter exhibited an increasing degree of animosity against Americans. Numerous harsh impositions were put upon American citizens, for which no redress could be had; and this caused resentment throughout the United States, in the commercial North as well as in the slaveholding and expansionist South, and relations between the two countries steadily drifted from bad to worse.

Candor compels the frank statement that there was much fault on both sides. Spain was tremendously at fault because of her misgovernment of Cuba, and indeed her whole policy in relation to that island, which was quite unworthy of a civilized power in an enlightened age. A generation before Spain had practically sacrificed her right to continued possession of Florida by her maladministration of that territory, which had made it an intolerable nuisance to the neighboring United States. She was now making of Cuba a scarcely less international nuisance and scandal.

On the other hand, the United States, or some of its people, undoubtedly gave Spain cause for grievance. The intentions and the conduct of the United States government were beyond reproach. At the same time, they were entirely insufficient for the prevention of serious wrongs to Spain. Webster himself confessed that the United States government had no power to protect Spanish subjects from such outrages as those which had just been committed in New Orleans. There was no doubt that the intentions and conduct of a large portion of the American people were not only hostile to Spain, but were quite lawless in the manifestation of that feeling. Among the offenders, moreover, were some men who stood high in official life and who exerted much political influence. Nor could these things be so well understood in Spain as in the United States. Spain could scarcely be expected to distinguish between the case of a man in his private capacity as a citizen and in his public capacity as a member of Congress or other official of the government. When she saw public officials participating in the organization and operations of the "Order of the Lone Star," the confessed purpose of which was to take Cuba from Spain by force, and without compensation, she very naturally assumed that such things were being done with the permission and sanction of the United States government, if not at its direct instigation.

At this point, moreover, a serious complication was injected into the problem of Spanish-American relations by the attempted intervention of

Great Britain and France. Both these powers sought to persuade Spain that they were better friends to her, especially in relation to Cuba, than the United States. They impressed upon her the idea that the United States intended to take Cuba away from her, while they were willing to respect her title to it, and to protect her in possession of it.

These suggestions were followed by the menace of overt acts which, if committed, would have had very serious results. In 1851, the British and French governments let it be known that instructions had been given to their naval commanders to increase their forces in the waters adjacent to Cuba, and to exercise guardianship over the shores of that island to prevent the landing of any more filibustering expeditions from the United States or elsewhere, such as those of Lopez. It does not appear that this was done at the request of Spain. It was probably an entirely gratuitous performance intended partly to ingratiate the Spanish government, and partly to prevent the possibility of the seizure by the United States of Cuba. But it was certainly a most unwarrantable meddling in affairs which concerned only the United States and Spain. No possible justification for it could be found in international law. In the absence of a state of war, it was intolerable that vessels under the United States flag should be subjected to search upon the high seas, while, when they reached Cuban territorial waters, no other power than Spain had any right to interfere with them.

Daniel Webster was at that time ill and unable to perform the duties of his office, but J. J. Crittenden, who was acting as Secretary of State, made a forcible protest against any such action by Great Britain and France, and gave warning in the plainest terms that it would not be tolerated by the United States, and that any interference with American shipping between the United States and Cuba would be resented in the most vigorous manner. The result was that the British and French navies refrained from the contemplated meddling.

Following this, however, Spain made a direct appeal to the British government for protection against American aggression. The request was not so much for immediate military intervention as for securing treaty guarantees. The British government was in a receptive mood, and, in consequence, in April, 1852, it proposed to the United States that that country should join it and France in a tripartite convention, guaranteeing to Spain continued and unmolested possession of Cuba, and explicitly renouncing any designs of their own for the acquisition of that island. It

may be recalled that a similar proposal had been made by Great Britain and France in 1825, and that its acceptance had been favored by no less an American statesman than Thomas Jefferson, although, under the wiser counsels of John Quincy Adams, it had been rejected.

At this renewal of the proposal, in 1852, rejection was prompt and emphatic. Edward Everett was then the Secretary of State, under the Presidency of Millard Fillmore, and he refused positively to enter into any such compact. His ground was that American interests in Cuba and American relations toward that island were radically different, in kind as well as in degree, from those of any other power. That was of course a perfectly logical and sincere application of the principles of the Monroe Doctrine, and of the traditional policy of the United States in refusing to permit European intervention in the affairs of the United States or in affairs exclusively concerning the United States and a single European power.

It may be assumed that Everett had in mind at the time, also, the exceedingly unsatisfactory results of an attempt to establish just such a tripartite protectorate guarantee over the Hawaiian Islands.

There was still another reason for the refusal of the United States to enter into such a compact. That country had already and repeatedly guaranteed the Spanish possession of Cuba as against the aggressions of any other power, but it had not guaranteed and would not guarantee her possession of Cuba against the self-assertion of the Cuban people. It recognized the right of revolution. It knew that the Cubans were dissatisfied, and that with good reason, with Spanish rule, and that sooner or later they would successfully revolt and establish their independence, and it had no thought of making itself the accomplice of Spain in repressing their aspirations for liberty.

CHAPTER VIII

THE United States government, both before and immediately after the expeditions of Lopez, exhibited an increasing desire to acquire possession of Cuba by purchase or otherwise. We have already referred to the historic expression of John Quincy Adams upon this subject. It is also to be recalled that in 1823, in commenting upon the prospective results of the Monroe Doctrine, Thomas Jefferson looked upon Cuba as the most interesting addition that could be made to the United States. The control which, with Florida, this island would give the United States over the Gulf of Mexico, and all the countries bordering thereon, as well as all those whose waters flowed into the Gulf, would well be, he thought, the measure of American well-being. Such an end could be attained, he added, by no other means than that of war, and that was something to which he was reluctant to resort. He was, therefore, willing to accept the next best thing, to wit, the independence of Cuba, and especially its independence of England. James Madison, at the same time, and discussing the same general subject, expressed much curiosity to know what England's attitude toward Cuba would be, and what the rights of the United States toward that island would be, under the Monroe Doctrine. John C. Calhoun was willing to pledge the United States not to take Cuba, although he had already expressed a desire for such acquisition, and Monroe himself would have adopted Calhoun's policy, had it not been for the resolute opposition of John Quincy Adams. That strenuous patriot was for reserving the plenary rights and powers of the United States, and for permitting Europe to have nothing whatever to do in the matter, and his counsel fortunately prevailed.

A little later, after the promulgation of the Monroe Doctrine and in the course of Congressional discussion of the Panama Congress, it was emphatically stated in the Senate that, because of the great interest in the United States in Cuba, there ought to be no discussion with other powers concerning the destiny of that island, particularly with Colombia and Mexico, which were then contemplating the invasion of Cuba in order to take her forcibly from Spain. The British government, in August, 1825, proposed to the United States government, through its minister in London,

that the United States, Great Britain and France should unite in a treaty engagement that none of them would take Cuba for itself or permit of the taking of it by either of the others. This proposal was promptly rejected by the United States. One of the grounds for her rejection of it was that such action guaranteeing Spain her possession of Cuba would encourage her to prolong indefinitely her struggle with her other American colonies. Another was that this country had already declared that it did not mean to seize Cuba for itself, and that it would not permit its seizure by any other power. The United States apparently did not fear that Great Britain would attempt to seize the island, since for her to do so would mean a rupture with the United States, which was at that time the last thing that the British government desired. There was much more cause to fear that France might attempt to take forcible possession of Cuba, and the suspicion that she might do so was strengthened by the fact that while, at first, she indicated a willingness to enter into the arrangement proposed by Great Britain, she suddenly changed her attitude, and refused to do so. As a result of this change of front on the part of France, the United States government, in September, 1825, instructed its minister at Paris to inform the French government that under no contingency, either with or without the consent of Spain, would the United States permit France to occupy Cuba.

Scarcely less marked was the opposition of the United States to any scheme for the acquirement of Cuba by any of the American republics. It was notorious that both Colombia and Mexico had designs upon Cuba. These were not so much that either of these countries should acquire the island for itself, but that Cuba and Porto Rico should, nilly willy, be taken away from Spain and made independent, and that thus Spain should be deprived of her last foothold in the Western hemisphere. This purpose was cherished, not only as a matter of sentiment, but as one of prudence. Spain was still trying to reconquer her revolted American provinces, and her possession of Cuba, of course, afforded her an admirable base for such operations. But the United States government took the ground that any such intervention in Cuba would make it much more difficult to secure Spanish recognition of the independence of the Central and South American States. In addition, there was undoubtedly—indeed it was very openly, emphatically and repeatedly expressed—the unwillingness of the slaveholding southern states of the United States to see Cuba made free soil, as the other Spanish colonies had been. It was because of the former

consideration, however, that the American Secretary of State, Henry Clay, immediately after the rejection of the British proposal for a tripartite guarantee, addressed a note to the governments of Colombia and Mexico, urging them to refrain from sending the expeditions which they were fitting out against the Spanish power in Cuba. To this request, the Colombian government promptly acceded, and so informed not only the United States, but also the government of Russia, which was, at that time, endeavoring to mediate between Spain and her late American colonies. The Mexican government did not receive the request so favorably, though it did withhold the threatened expedition.

With such antecedents set forth, we can more perfectly understand the attitude of the United States toward Cuba at the time of which we are now writing. In 1848 a change of policy occurred, and the United States entered upon a new attitude. At that time James K. Polk was President of the United States, and James Buchanan was his Secretary of State; both men of southern, proslavery and expansionist proclivities. The American minister to Spain was Romulus M. Saunders, of North Carolina, also a proslavery expansionist. He was instructed by Polk and Buchanan to sound the Spanish government as to the terms on which it would sell Cuba to the United States. The response to his overtures was immediate and left no room for doubt as to Spain's position. It was to the effect that Cuba was not for sale. Under no circumstances would the Spanish government so much as consider the sale of the island at any price whatever. No Spanish Minister of State would venture for a moment to entertain such a proposal. Such was the feeling of the Spanish government and of the Spanish nation, that they would rather see Cuba sunk in the depths of the sea, if it were possible, than transferred to the sovereignty of any other power. Cuba was the "Ever-Faithful Isle." She was the last remnant, the priceless memento of Spain's once vast empire in America, and as such she would be forever retained and treasured. Although not openly expressed, there was undoubtedly the additional feeling that Spain had already suffered too much spoliation at the hands of the United States. The United States, under Jefferson, had practically compelled Spain to sacrifice her vast Louisiana territory by nominally selling, but really giving it outright, to France. It had next taken West Florida from her without compensation. Following this, under the Monroe Doctrine, it had compelled her to sell it East Florida for a pitifully inadequate sum, not one dollar of which had ever found its way into the

Spanish treasury. It had aided, abetted, and protected the Central and South American provinces in their revolt. Certainly, after such a record, it would be unthinkable to permit the United States to proceed with the acquisition of the last remaining portion of the Spanish American empire. The overtures for the United States purchase of Cuba were, therefore, for the time being, abruptly abandoned, but it was significant that they were promptly followed by the expeditions of Lopez and the widespread and intense manifestations of American interest therein.

There next occurred one of the most noteworthy and it must be confessed least creditable episodes in the whole story of the relations between the United States, Cuba and Spain. Franklin Pierce became President of the United States, and the active and aggressive William L. Marcy was his Secretary of State. Because of the strained relations between Spain and the United States, growing out of the Lopez expeditions, there was a well defined expectation that Marcy would pursue a vigorous policy leading to the annexation of Cuba, even at the cost of war with Spain. Marcy was an expansionist, and would doubtless have been glad to have annexed Cuba, but he was something more than an expansionist. He was a statesman. He therefore considered the subject from its various aspects with a prudence and conservatism which were probably not at all pleasing to the impetuous proslavery propagandists of the south, but which were in the highest degree creditable to his good sense and to the honor of the United States. Unfortunately not even Marcy could remain entirely exempt from political and partizan considerations. He was practically compelled to acquiesce in the appointment as his minister to Spain of one of the more egregious misfits that ever disgraced American diplomacy. This man was Pierre Soule. He was of French origin, and had been a political conspirator and prisoner in that country. He had come to the United States as a refugee, but had continued there his political intrigues and revolutionary designs. Settling in New Orleans, he had been in active sympathy with the filibustering enterprises of Lopez and others against the Spanish rule in Cuba; he was suspected of having incited the anti-Spanish mob in that city; and he was known to be an ardent advocate of the annexation of Cuba by any means which might prove effective. The choice of such a man as American minister to Spain was certainly extraordinary. It must be assumed that Marcy agreed to it only with great reluctance and under protest; while it is

plausible, and indeed permissible, to suspect that some ulterior influence dictated it for the deliberate purpose of provoking trouble with Spain.

In these circumstances, Marcy did his best. He instructed Soule to repress his anti-Spanish zeal, to do nothing which would irritate Spanish susceptibilities, and especially to be particularly cautious in making any suggestions or overtures concerning a change of relations in Cuba. He instructed him, however, to seek reparation for the gross injuries which Americans had undoubtedly suffered in Cuba, and to suggest to the Spanish government that it would greatly facilitate the friendly conduct of affairs for it to invest the Captain-General or other governor of Cuba with a degree of diplomatic authority and functions so that complaint could be addressed to him, and indeed all such matters could be negotiated with him directly, instead of their being referred to the government at Madrid. He did not urge Soule to seek the purchase of Cuba, but he did authorize him to enter into negotiations to that end, if the Spanish government should manifest a favorable inclination.

Despite these wise instructions and admonitions, Soule promptly entered upon a career of the wildest indiscretion. He went to Spain by way of France, where he was under political proscription, and this gave offence to the government of that country. On arriving at Madrid, he immediately quarreled with the French party there, and fought a duel with the French ambassador in which the latter was crippled for life.

Then word came to him that the Spanish authorities at Havana had seized an American steamer, the *Black Warrior*. That steamer had, for a long time, been plying regularly between the United States and Cuba in a perfectly legitimate way. There was not the slightest proof or suggestion that she had ever engaged in filibustering or in any illegitimate commerce. Indeed she was not accused of it. But she was seized and her cargo was condemned simply for alleged disregard of some insignificant port regulation which, as a matter of fact, had not been enforced or observed by any vessel for many years. The master of the vessel resented and protested against the seizure and when the Spanish authorities arbitrarily persisted in it, he abandoned the vessel altogether, and reported the circumstances to the United States government. The President promptly laid the matter before Congress at Washington, stating that a demand for redress and indemnity was being made. Passions flamed high in Congress, and southern members made speeches demanding war and the conquest of Cuba. Marcy, however,

retained his sanity of judgment, and contented himself with instructing Soule at Madrid to demand an indemnity of \$300,000 and to express the hope that the Spanish government would disavow and rebuke the act which it was confidently assumed had not been authorized and could not be approved. This gave Soule a fine opportunity to show himself a capable diplomat and to do a good stroke of work, for Spain was manifestly wrong and a proper presentation of the case would doubtless have caused her to accede pretty promptly to Marcy's reasonable demands.

Soule began well. He followed Marcy's instructions closely at the outset, and had a friendly and temperate interview with the Spanish Minister for Foreign Affairs; but when three days thereafter had passed without a complete settlement, he seemed altogether to lose his head. He sent to the minister a peremptory note, demanding payment of the indemnity, and the immediate dismissal from the Spanish service of all persons in any way responsible for the seizure of the *Black Warrior*. If this was not done within forty-eight hours, he added, he would immediately demand his passports and sever diplomatic relations between the two countries. With customary arrogance, he instructed the messenger by whom he transmitted the note to call the attention of the Spanish minister to the exact hour and minute at which the messenger should deliver the note into his hands, and to remind him that an answer would be expected, under penalty, within forty-eight hours after that precise moment of time. Worst of all, perhaps, this occurred during Holy Week, when it was not customary for the Spanish government to transact any business which could possibly be deferred.

The Spanish Minister for Foreign Affairs was Calderon de la Barca, who had formerly been Spanish minister to the United States, and with whom Soule had personally very violently quarrelled at Washington. With characteristic Spanish courtesy, he very promptly, within twenty-four hours, replied to Soule that the matter would be most carefully considered at the earliest possible moment, but that it manifestly would not be practicable, and indeed would not be just, to dispose of so important a matter so hastily, and upon the hearing of only one side of it. He also added, quite properly, that the Spanish government was not accustomed to being addressed in so harsh and imperious a manner, and that he could not regard such a mode of procedure as calculated to facilitate the amicable settlement which both parties undoubtedly desired.

Thus placed, through his own folly, at a hopeless disadvantage, Soule abandoned the case. He sent to Marcy his own absurd and unauthorized ultimatum, together with Calderon's dignified and statesmanlike reply, possibly in the vain hope that Marcy would back him up in the impossible attitude which he had assumed. Of course, Marcy did nothing of the sort. As a matter of fact, it was not necessary for Marcy to pay any attention whatever to Soule's report, since, before it reached Washington, the Spanish authorities in Cuba had restored the *Black Warrior* to her owners, with the amplest possible amends for their improper seizure of her, and the whole incident was thus happily ended.

The project of acquiring Cuba for the United States continued to be cherished by the American government. It must be supposed that the Secretary of State appreciated the immense value of Cuba, both in its resources and in its strategic position and so, for that reason, was desirous of acquiring the island. It must also be believed that he was to a degree moved by a desire to get rid of what he plainly saw would be a perennial cause of annoyance and even of danger. Since the beginning of the nineteenth century, Cuba had been a cause of anxiety to the United States, and since the beginning of insurrections in that island, and especially insurrections looking to the United States for sympathy and aid, there was a constantly increasing danger of unpleasant and possibly hostile complications with Spain. There is no indication, however, that Marcy ever had any other thought than that of the peaceful acquisition of the island through friendly negotiations. It was most unfortunate that because of the political conditions which prevailed during that administration, he was compelled to act through unfit and indeed unworthy agents.

At the beginning of 1854, Mr. Marcy directed the United States ministers to Spain, France and Great Britain to confer among themselves as to the best means, if indeed any were practicable, to persuade Spain to sell Cuba to the United States, and at the same time to avoid or to overcome objections which France and Great Britain might make to such a transaction. That was a perfectly legitimate proposal, and indeed, under the circumstances, was desirable and should have been productive of excellent results. Its fatal defect lay in the personality of the men who were called upon to put it into execution. The minister to Spain was Soule, of whom we have already heard enough to indicate his very conspicuous unfitness for the task assigned to him. The minister to France was James M. Mason, a

Virginian, and one of the most aggressive and extreme Southern advocates of the extension of slavery. The minister to Great Britain was James Buchanan, who was afterward President of the United States, a northern man with strong southern sympathies and in complete subservience to the slaveholding interests of the south. The result of a conference among these three was practically a foregone conclusion.

They came together at Ostend in the summer of 1854, and a little later concluded their deliberations at Aix-la-Chapelle, and the result of their conference was embodied in that extraordinary document known to history as the Ostend Manifesto.

That document, which was drawn up in October, 1854, and was signed by these three ministers and sent by them to Mr. Marcy, was written chiefly by Soule. It set forth the various reasons why, in the opinion of Soule and his colleagues, Cuba ought to belong to the United States. A variety of reasons was set forth, but chief among them was this, that such acquisition of Cuba was necessary for the security and perpetuity of the slave system in the United States. Then Soule went on to tell why Spain ought to be willing to sell the island, and why Britain and France ought to be willing for her to sell it to the United States. The price to be paid for Cuba was not stated. It ought not, however, Soule said, to exceed a certain maximum sum to be prescribed by the United States; and there are reasons for believing that the price which Soule had in mind was \$120,000,000. All this was bad enough. It was far removed from what Marcy had intended. But the worst was to come. With astounding effrontery and cynicism, the manifesto proceeded to say that if Spain should be so swayed by the voice of her own interest and actuated by a false sense of honor as to refuse to sell Cuba, then, by every law, human and divine, the United States would be justified in taking Cuba forcibly from her, on the ground that such seizure was necessary for the protection of the domestic peace of the United States. This Manifesto was sent by the three ministers to Marcy, with a memorandum written by Soule, suggesting that that would be a good time to start a war with Spain for the seizure of Cuba, because France and Great Britain were just then engaged in fighting Russia in the Crimea, and therefore would not be able to interfere with Spain's behalf.

Marcy never for a moment, of course, thought of acting upon these abominable recommendations. The overwhelming sentiment of this nation would have been against it. Even in the South, the majority of thoughtful

men held that Soule and his colleagues had gone too far, while throughout the North, the Manifesto was scathingly denounced as a proposal of international brigandage. Not only in Spain, but almost equally in France and Great Britain, American diplomacy and the honor of the American government were regarded as seriously compromised. In these circumstances Marcy, to whom the Manifesto must have been revolting, very adroitly declined to recognize its real purport, but insisted upon interpreting it in an entirely different way from that which its authors had intended. The result was that the note was practically pigeonholed.

Soule was so chagrined and enraged at this disposition of a favorite child of his mind that he resigned his office as Minister to Spain, to the unmistakable relief both of Marcy and of the Spanish government. Buchanan, another of the signers, became President of the United States a couple of years later, and in his second annual message, in December, 1858, sought to revive the Manifesto, referring to the possibility of its sometime being necessary for the United States to seize Cuba under the law of self-preservation. He also requested Congress to appropriate \$30,000,000 for the purchase of the island, and a bill to that effect was introduced, but it was never pressed to final passage. Again in 1859 he referred to the subject, being still apparently obsessed with the idea that the conquest of Cuba was necessary for the preservation of the United States, but on this occasion his reference to the subject was entirely ignored by Congress. Then came the Civil War in the United States, which, for a number of years, debarred that country from paying any attention to the affairs of its southern neighbor.

CHAPTER IX

THE years following the close of the Civil War in the United States were marked with momentous occurrences in various other countries, particularly in Cuba, and the two nations with which she had long been intimately connected, Mexico and Spain.

The beginning of the year 1866 in Peninsular Spain saw General Prim heading a revolutionary body of troops at Aranjuez and at Ocana. These operations caused great excitement, and feeling ran high throughout the kingdom, for they were generally regarded as indicative and provocative of a radical change of government. Martial law was, however, promptly proclaimed at Madrid, and thus countless sympathizers with the revolution were restrained from taking an active part in it. The army of the government, under General Zabala, hastened to the scene of the insurrection, and pursued the revolutionary troops with such vigor that the latter, including General Prim himself, were compelled to retreat across the Portuguese frontier near Barracas, since they were, in fact, only about six hundred strong and were not prepared to make a resolute stand. In the same month, January, 1866, other revolutionary bodies were dispersed in Catalonia and Valencia.

So confident was the royal government of its security, and of the completeness with which the incipient revolution had been quelled, that on March 17 it repealed the decree of martial law at the capital. It was, however, cherishing a fool's paradise. The spirit of revolution was at work, and was bound soon to reassert itself. Its next manifestation occurred in June, when two regiments of soldiers in Madrid itself mutinied and repudiated their officers, who had refused to join them in their action. These troops were well armed, having twenty-six cannon, and were soon reinforced by large numbers of volunteers from the populace, so that it was only by a supreme effort that the government troops were able to defeat and disperse them.

At the same time, a corresponding movement took place in the garrison at Gerona, where a considerable body of troops revolted and, when attacked by government forces, conducted a successful retreat across the French

frontier. Having crossed the boundary, they laid down their arms, but the larger proportion of them soon found their way back into Spain to join the impending revolution. Other outbreaks occurred at other points, all of which were suppressed with difficulty, but with great severity, many of the leaders being summarily shot as a deterrent example. But this action instead of being deterrent was provocative. The next revolutionary manifestation was the formation of a junta at Madrid, which issued a proclamation setting forth the complaints of the insurgents against the government, in part as follows:

"Savage courts have led hundreds of victims to sacrifice, and a woman has contemplated passively and even with complacency, the scaffold which has been erected.

"The Cortes have abjectly sold to the government the safety of the individual, the civil rights and the well-being of the commonwealth. The government has overthrown the press and rostrum, and has entrusted the administration of the provinces to rapacious mandarins and sanguinary generals; military tribunals have despoiled the rich and transported the poor to Fernando Po and to the Philippines.

"The laws of the Cortes have been replaced by decrees squandering the resources of the country by means of obscure and ruinous laws, trampling under foot right and virtue, violating homes, property and family; and during all this time, Isabella II, at Zuranz, and Madrid, meditating a plot against Italy, our sister, for the benefit of the Roman curia, participating meanwhile in the depredations of violence of the pachas in Cuba, who tolerating the fraudulent introduction of slaves, are outraging public sentiment both in the Old and in the New World, and causing an estrangement between Spain and the great and glorious Republic of the United States."

Thereafter, a reasonable degree of quiet prevailed throughout the Kingdom, which was merely a lull before the renewal of the storm. On New Year's day of 1867, the Junta at Madrid issued another proclamation, announcing to the people of Spain that another revolutionary movement was about to begin, and inviting them to join it, and share its success. To this there was not apparently a sufficient response to seem to warrant action, and it was not until the following August that anything more was heard of the revolution. The revolutionists, however, were merely

outwardly quiet. Propaganda and organization were being systematically carried on, and the way was being paved for a really effective revolt, which would have widespread and far-reaching results in purging Spain of a tyrannous rule and substituting in its place republican justice. When the time seemed propitious, in August, General Prim issued a third proclamation, calling the people to arms, the chief result of which was an increased degree of vigilance and severity on the part of the government. Many of the revolutionary leaders were apprehended and expelled from Spain on suspicion of sympathy and complicity with the revolution. Among this number were Generals Serrano, Cordova, Duke, Bedoya, and Zebula, and persons of no less high standing than the Duke and Duchess of Montpensier.

It is curious that all through history, movements like that which had gained such force and impetus in Spain have been met with the high hand of oppression. Instead of endeavoring to get at the root of the evil, to realize that since there was so persistent a dissatisfaction there must be real causes for grievance the removal of which would work toward a harmonious solution, it has seemed to be impossible for those born in the purple to understand the problems of the common people, and so when the latter have risen in revolt, cruelty and injustice, if not actual outrages, have marked the attempts to extinguish the trouble. The result has ever been the same. The story of the attempts to suppress the revolt in Spain differs not at all from the same story written on the pages of the history of other nations. The increased oppression on the part of the government only served to fan the smouldering fire into flame. The popular wrath and indignation against the queen and her underlings bade fair to burst into a huge conflagration.

In consequence, when the next overt act of insurrection occurred, at Cadiz, on September 17, there was a very general response throughout the Kingdom. General Prim was again at the head of the movement, supported by General Serrano and the other officers, to whom the sentence of banishment had not proved effective, since they had found their way back into Spain. Revolutionary Juntas were formed in almost all of the provinces, and in a number of the most important cities, and in the course of a few days the insurgents were in control of a considerable part of the Kingdom.

The City of Santander was seized for the revolution on September 21, but they were obliged to relinquish it to superior forces on September 24. However, the revolutionists were far from discouraged by this momentary

reverse, and four days later they rallied for their first important victory, which was followed by a general revolt of the troops in and about Madrid, and General Concha, the commander of the royal forces, was compelled to resign. The revolution was now in full swing and gaining impetus and strength every hour. General Serrano at the head of a revolutionary army entered Madrid in triumph, followed four days later by General Prim. Their reception exceeded their wildest expectations. The city was on fire with revolt. The people greeted them with the warmest fervor, with shouts of welcome and rejoicing. They were hailed as the saviors of the nation, as the embodiment of Spain's hope for the future, and hourly their forces were increased by the addition of volunteers from all walks of life.

It is evident that Queen Isabella had not found Madrid a comfortable abiding place. There is no doubt that she entertained fears for her personal safety long before it was actually in jeopardy. Some time previous to these happenings she had, on some pretext, removed the court from Madrid to San Sebastian, in the Pyrenees, near the French frontier, and when news of the capture of the Spanish capital reached her, she lost no time in making her escape across the frontier into France, where she was met and welcomed by Emperor Napoleon III, at Hendye. Queen Isabella had good reason to fear the vengeance of the Spanish mob, for she had long been unpopular, an object of widespread hatred. She therefore had no intention of returning to Spain while matters were in such a turbulent condition, and shortly after her arrival in France, she proceeded to Paris, where she decided to make her home.

The Juntas which had been established throughout the Kingdom of Spain were amalgamated by the formation of a National Junta, on October 8, at Madrid, and a ministry was organized with General Serrano as Prime Minister, General Prim as Minister of War, Admiral Topete as Minister of Marine, Señor Figueroa as Minister of Finance, Señor Lorensano as Minister of Foreign Affairs, Señor Ortiz as Minister of Justice, Señor Sagasta as Minister of the Interior, Señor Ayala as Minister for the Colonies and Señor Zorilla as Minister of Public Works.

The next day, the United States Minister at Madrid, Mr. Hill, notified General Serrano that his government has given official recognition to the new order of affairs in Spain, being the first in the world to take this action. Such was the state of affairs in Spain at the beginning of the great struggle in Cuba known as the Ten Years' War.

Conditions in Mexico likewise deserve passing attention. For a number of years that country had been in a greatly troubled state. Years of successive revolutions had been followed by the military intervention of France, and the creation, under the protection of the French army, of a pinchbeck "empire," with the Archduke Maximilian of Austria as Emperor. The Mexican people, under the leadership of one of their greatest statesmen, Benito Juarez, never gave their allegiance to this usurping government, but maintained a more or less open resistance to it, and it was sustained for a few years only by the presence of a considerable French army.

The United States of America, at this time, was engaged in its great Civil War, and was therefore unable to do more than to register a formal protest against French aggressions, which were recognized as a great violation of the Monroe Doctrine. But when, in the spring of 1865, the Civil War ended, the triumphant federal armies were moved toward the Mexican frontier, and the United States Government sent to the French Government what was practically an ultimatum, requiring it to withdraw its forces from Mexico. Napoleon III demurred, temporized, and at length offered to withdraw if the United States would recognize Maximilian as the lawful emperor of Mexico. This the United States, with great promptness, refused to do, and the French army was thereupon unconditionally withdrawn, and the capture and military execution of Maximilian soon followed, the final tragedy occurring on June 19, 1867. This left the United States with its prestige immeasurably enhanced and free to pay such attention as might be necessary to the affairs of Cuba, the only part of the western hemisphere in which European despotism was still maintained.

The policy of the United States Government, and the sentiment of the people of that country toward Cuba, had been materially modified by the Civil War and its results. There was, of course, no longer any thought of acquiring Cuba for the sake of expanding and fortifying the slave power, but on the contrary, American influence was now exerted, so far as it could properly be, toward prevailing upon the Spanish Government to abolish slavery in Cuba. The Cuban revolutionists were almost without exception in favor of such emancipation of the negroes, and that fact caused them to be regarded with increased favor in the United States, both officially and popularly. American influence was also exerted toward the persuasion of Spain to give Cuba a more liberal and beneficent government and to improve the commercial relations between that island and the United States,

for the benefit of both parties. There was some expectation in both Cuba and the United States—a very plausible belief—that the revolutionary movement in Spain, liberal and democratic in character, and aiming at the establishment of a republic in place of the Bourbon monarchy, would be accompanied by the grant of liberal institutions and democratic freedom to Cuba; but such was not the case.

During the Civil War, because of the suspension of the sugar industry in the southern part of the United States, there had been a vast and immensely profitable development of the sugar industry in Cuba, and this seemed to be dependent for its success upon the continuance of slave labor. These conditions strengthened the Spanish party in Cuba, which was equally devoted to the maintenance of slavery and to Spanish domination in the Island.

The Spanish party in Cuba, at this time, as we have seen, was known as the "Peninsulars," and it comprised a great majority of the office holders and wealthy planters and slave-holders. It was well organized throughout the Island for the assertion of political influence, and for the suppression of insurgent movements. Its central authority was in a wealthy club at Havana, called the "Casino Espagnol," and similar clubs on a more modest scale, existed in other cities and important towns throughout Cuba, and from these, and under their control, there arose a body known as the "Volunteers." This was ostensibly a military organization to whose battalions all white men in the Island were eligible, but as a matter of fact, membership in the Volunteers was substantially confined to conservatives, loyalists and Spanish sympathizers. The Volunteers, except in a few special cases, did not go into the field, but left the actual fighting with insurgents to be done by regular Spanish troops. They gave their own attention chiefly to the overawing of the inhabitants of the cities and towns, and to restraining them from joining the revolutions. They also acted as spies, discovering and reporting to the Spanish Government the doings of Cuban patriots. The leaders of the organization formed a "Council of Colonels," meeting at the Casino Espagnol, and forming a sort of *imperium in imperio*.

During the progress of the Ten Years' War, however, the Volunteers were organized and placed under the command of General Lersuno, and thereafter exerted a much more militant power than ever before. They were not under the direct orders of the Captain-General, but enjoyed an independent authority, and yet they were presently entrusted with the

garrisoning of forts and cities, so that the regular Spanish troops could go into the field. They exercised far more military, naval and civil authority than the Captain-General and other royal officials. They actually compelled the retirement of General Dulce from the Captain-Generalship because they regarded him as too kindly disposed toward the Cubans. They similarly drove Caballero de Rodas from office, and they gave Valmaseda and Ceballos, who followed, to understand that the success of their administration depended upon their compliance with the demands and policies of the Volunteers.

It was due to their opposition that the so-called Moret law, which provided for the gradual abolition of slavery in Cuba, remained a dead letter, and was not even published in the Island for several years after the outside world had supposed it to be in force. The Volunteers were also responsible for the numerous cases of violence against the patriot party, the most flagrant of which was the execution of eight Cuban students of the University of Havana.

There is no reason to suppose that there was any complicity or cooperation between the revolution in Spain and the outbreak of the Ten Years' War in Cuba. Nevertheless, the former practically gave the signal, for the result of the Spanish revolution was indeed regarded by Cuban patriots with much satisfaction and enthusiasm. Cries of "Hurrah for Prim!" "Hurrah for Serrano!" and "Hurrah for the Spanish Revolution!" were mingled with cries of "Viva Cuba Libre!" and it did not take long for the disappointed realization to dawn upon Cuba that liberalism in Spain did not necessarily imply the granting of freedom to Cuba, but that on the contrary the "Peninsular" revolutionists were scarcely less intent that the Bourbons had been upon retaining Cuba as an appanage, and especially as a source of revenue for Spain.

CHAPTER X

CUBAN independence was proclaimed on October 10, 1868, at the Yara plantation. That was the natal date and that was the natal place of the Republic of Cuba. The event was made known to the world in a Declaration of Independence, which was issued at Manzanillo, and which was as follows:

"In arming ourselves against the tyrannical Government of Spain we must, according to precedent in all civilized countries, proclaim before the world the cause that impels us to take this step, which though liable to entail considerable disturbances upon the present, will insure the happiness of the future.

"It is well known that Spain governs the Island of Cuba with an iron and blood-stained hand. The former holds the latter deprived of political, civil, and religious liberty. Hence, the unfortunate Cubans being illegally prosecuted and thrown into exile or executed by military commissions in times of peace. Hence, their being kept from public meetings, and forbidden to speak or write on affairs of state; hence, their remonstrances against the evils that afflict them being looked upon as the proceedings of rebels, from the fact that they are bound to keep silence and obey. Hence, the never-ending plague of hungry officials from Spain to devour the product of their industry and labor. Hence, their exclusion from public stations and want of opportunity to skill themselves in the art of government. Hence, the restrictions to which public instructions with them is subjected, in order to keep them so ignorant as not to be able to know and enforce their rights in any shape or form whatever. Hence, the navy and standing army, which are kept upon their country at an enormous expenditure from their own wealth to make them bend their knees and submit their necks to the iron yoke that disgraces them. Hence, the grinding taxation under which they labor, and which would make them all perish in misery but for the marvelous fertility of the soil.

"On the other hand, Cuba cannot prosper as she ought to, because white immigration that suits her best is artfully kept from her shores by the Spanish Government, and as Spain has many a time promised us Cubans to

respect our rights without having hitherto fulfilled her promise, as she continues to tax us heavily and by so doing is likely to destroy our wealth; as we are in danger of losing our property, our lives, and our honor under further Spanish domination; as we have reached a depth of degradation utterly revolting to manhood; as great nations have sprung from revolt against a similar disgrace, after exhausted pleadings for relief, as we despair of justice from Spain through reasoning and cannot longer live deprived of the rights which other people enjoy, we are constrained to appeal to arms and to assert our rights in the battle-field, cherishing the hope that our grievances will be a sufficient excuse for this last resort to redress them and to secure our future welfare.

"To the God of our conscience, and to all civilized nations, we submit the sincerity of our purpose. Vengeance does not mislead us, not is ambition our guide. We only want to be free and to see all men with us equally free, as the Creator intended all mankind to be. Our earnest belief is that all men are brethren. Hence our love of toleration, order and justice in every respect. We desire the gradual abolition of slavery, with indemnification; we admire universal suffrage, as it insures the sovereignty of the people; we demand a religious regard for the inalienable rights of men as the basis of freedom and nation greatness."

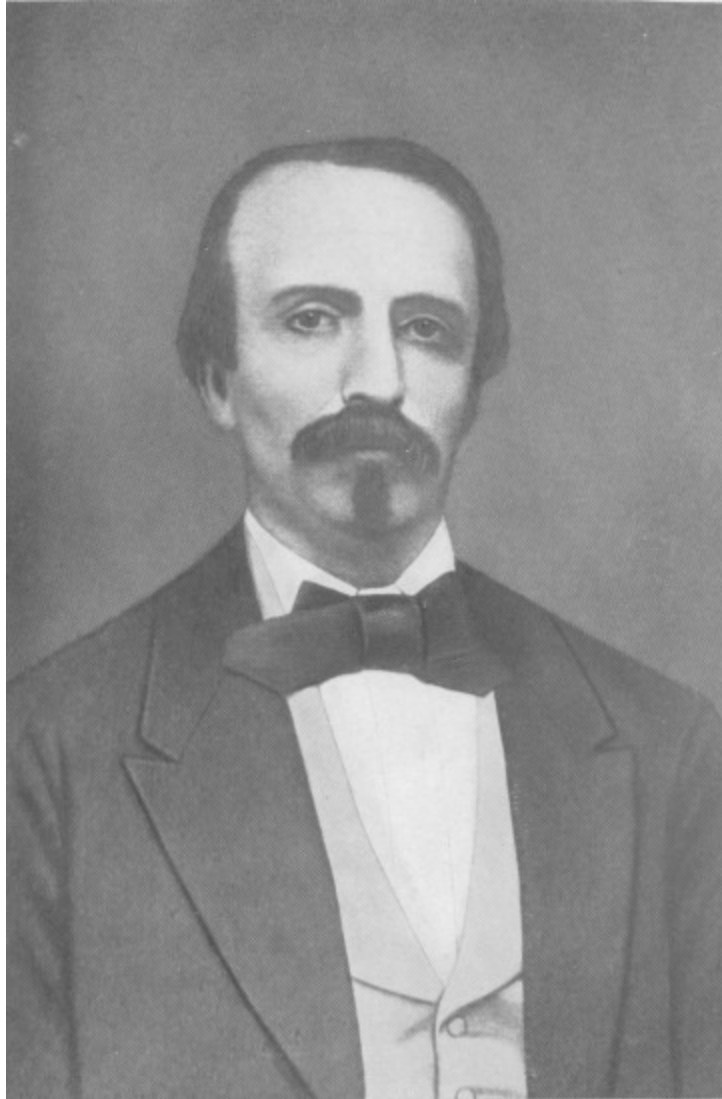
Following the Declaration of Independence, the provisional government of the Republic of Cuba was organized at Bayamo. The most prominent figure in the organization of the Cuban revolutionists and the first really constructive leader of the Cuban insurrection was Carlos Manuel Cespedes, a native of Bayamo. At this time he was in the prime of life, being forty nine years of age, a man of brilliant intellect and of fine culture, for he had been educated at the University of Havana, and had, in 1842, received his degree and license in law from the University of Barcelona, in Spain.

Cespedes's openly expressed zeal for the emancipation of the oppressed Cubans, and the earnest efforts which he had long exerted in their behalf, had won for him such widespread recognition as a patriot that he was, without a dissenting voice, chosen for the head of the provisional government. By nature and training he was admirably suited for the position, for from boyhood he had been not only enthusiastically devoted to the cause of Cuban independence, but he had more than once, under circumstances where his outspoken advocacy of his principles actually placed his life in jeopardy, proved himself a worthy champion of freedom,

not only for his fellow citizens, but for Spanish subjects wherever they were being trodden beneath the iron heel of Spanish oppression. His love of liberty was not a mere enthusiasm, something superficial and acquired, but it was inborn, a fundamental part of his character, firmly knit into the very fibre of his life and its activities.

While a student in Spain, he had joined the forces of General Prim, during the latter's first attempt to establish a republic in that country, and because of his complicity in that revolt, Cespedes had been banished from Spain. Returning to Cuba, in 1844, he settled at Bayamo, and took up the practice of law, where his skill as an advocate soon won him recognition as one of the foremost lawyers of the Island. But again his hatred of tyranny thrust him forth from the peaceful occupation of amassing a fortune in the pursuit of jurisprudence. He could not tranquilly pursue his daily course when he saw injustice and misrule rampant around him, and so, in 1852, he made a speech, fervidly denouncing Spain, and calling on high Heaven to aid the independence of Cuba, which was considered by the authorities to be so incendiary that he was arrested as a dangerous character, and subsequently suffered a five months' imprisonment in Morro Castle, at Havana.

Opportunity soon came to Cespedes to give actual proof that his principles were not abstract but concrete. The acid test was to be applied and he was not to be found wanting, for immediately upon the declaration by the Cuban republic of its principles of freedom and equal rights for all men, he voluntarily exemplified their operation, so far as lay in his individual power, by emancipating all the slaves on his own estate.



CARLOS MANUEL DE CESPEDES

The supreme chieftain of the Cuban patriots in the Ten Years' War was Carlos Manuel de Cespedes y Borges, who before becoming a soldier was eminent as an advocate, poet, and man of letters. He was born at Bayamo on April 18, 1819, and completed his education at the University of Barcelona, Spain. Then he settled in Madrid, became associated with General Prim, and was implicated in his first attempt at revolution. For that he was banished to France, and later he was imprisoned for his Liberal utterances. Returning to Cuba, he personally started the Ten Years' War, with the story of which as elsewhere related he was inseparably identified as President of the Cuban Republic. On February 27, 1874, he was betrayed to the Spaniards by a servant who thus sought to save his own life, and after desperate resistance was wounded, captured, and put to death.

The first decree of the provisional government was issued by General Cespedes on December 27. It was a proclamation of emancipation, as follows:

"The revolution of Cuba, while proclaiming this independence of the country, has proclaimed with it all the liberties, and could not well commit the great inconsistency, to restrict them to only one part of the population of the country. Free Cuba is incompatible with slave Cuba, and the abolition of the Spanish institutions must include, and by necessity and by reason of the greatest justice does include, the abolition of slavery as the most odious of all. Abolition of slavery has, therefore, been maintained among the principles proclaimed in the first manifesto issued by the revolution, and in the opinion of all Cubans, truly liberal, its entire realization must be the first of the acts for which the country employs its conquered rights. But as a general measure it can only be fully effected when the country in the full use of its conquered rights can, by means of universal suffrage, make the most suitable provision for carrying it through to real advantage, both for the old and the new citizens. The subject of the present measure is not, nor can it be, the abrogation of a right which those who are at present directing the operations of the revolution are far from believing themselves entitled to invade; thus participating the solution of so difficult a question. On the other hand, however, the provisional government could not in its turn oppose the use of a right which our slaveholders possess in virtue of our laws, and which many of them wish to exercise, namely, to emancipate their slaves at once. It also sees how desirable it is to employ at once in the service of the country the freedmen, and how necessary to make haste to prevent the evils which they and the country might receive from a failure to employ them immediately. The government, therefore, urges the adoption of provisional dispositions, which are to serve as a rule for the military chiefs in the several districts of this department, in order to solve the questions presented to them. Therefore, availing myself of the faculties with which I am invested, I have now resolved that the following articles be observed.

"I. Free are the slaves whom their masters at once present to the military chief for this purpose, the owners reserving, if they choose, a claim to the indemnification which the nation may decree.

"II. The freedom shall, for the present, be employed in the service of the country in such a manner as may be agreed upon.

"III. To this end a committee shall be appointed to find for them employment, in accordance with regulations to be issued.

"IV. In other cases, the slaves of loyal Cubans and of neutral Spaniards and foreigners shall continue to work, in accordance with the principle of respect for property proclaimed by the revolution.

"V. The slaves of those who have been convicted of being enemies of the country and openly hostile to the revolution, shall be confiscated with their other property and declared free without a right to indemnity, utilizing them in the service of the country.

"VI. The owners who shall place their slaves in the service of the revolution without freeing them for the present, shall preserve their right as long as the slaving question in general is not decided.

"VII. The slaves of the Palisades, who may present themselves to the Cuban authorities, shall at once be declared free, with a right either to live among us or to remain among the mountaineers.

"VIII. The isolated refugees who may be captured, or who may, without the consent of their masters, present themselves to the authorities or military chiefs, shall not be received without consulting their masters."

Now this first government, of which Cespedes was made the chief, was merely, after all, a temporary affair, organized to provide ways and means for creating a more permanent body. Accordingly, on October 30, 1868, less than a month after the Declaration of Independence, Cespedes issued a proclamation declaring that his election to office had been only to provide for the time being an acting head of the provisional government; that he believed that the organization should at once take on the character of permanency; that he had no thought of imposing his will upon Cuba; that he realized that he had not been elected to his place by the suffrage of the Cuban people, and that he had no assurance that, had they been given an opportunity to individually express themselves, he would have been their choice; and that, therefore, since it was practicable for all loyal Cubans to assemble in their respective communities and by their suffrage constitute a permanent government, he would gladly abide by their decision, and, if they desired, relinquish the power with which they had entrusted him.

In response to this patriotic utterance, a convention was called, on April 10, 1869, at Guaimaro. The leaders of this first representative body of the Cuban people were the following: Miguel Gutierrez, Eduardo Machado, Antonio Lorda, Tranquilino Valdez and Arcadio Garcia, representing Villa Clara; Honorato Castillo, representing Sancti Spiritus; José Maria Izaguirre,

representing Jugari; Antonio Alcada and Jesus Rodriguez, representing Holguin; and Salvador Cisneros, Francisco Sanchez, Ignacio Agramonte Loynaz, Miguel Betancourt Guerra and Antonio Zambrana, representing Camaguey.

At this convention, Cespedes resigned his position as provisional head of the government and commander-in-chief of the army, in order that some one might be regularly elected in his place, and in doing so he addressed his colleagues in the following memorable terms:

"Now that the House of Representatives, gathered from all parts of the Island, has been happily inaugurated in Guaimaro, it becomes from the moment of its organization the supreme and only authority for all Cubans, because it constitutes the depository of the people's will, sovereign of the present and controller of the future. All temporary power and authority ceases to have a rightful voice in Cuba from the very moment in which the wise democratic system, laying its solid foundations beneath the gigantic shadow of the tree of liberty, has come to endow us—after suffering the most iniquitous rule—with the most beautiful and magnificent of human institutions—a republican government.

"Unfeigned gratitude I owe to the destiny which afforded me the glory of being the first in Yara to raise the standard of independence, and the still greater though less merited satisfaction, to see crowded around me my fellow-citizens in demand of liberty, thus sustaining my weak arm and stimulating my poor efforts by their confidence. But another glory was reserved for me, far more grateful by my sentiments and democratic convictions—that of also being the first to render homage to the popular sovereignty.

"This duty fulfilled, having given an account to the fatherland of its most genuine representation of the work which with the assistance of its own heroic sons I had the good fortune to have commenced, it still behooves me, fellow-citizens, to fulfill another, not less imperious to my heart, of addressing my gratitude to you—to you, without whom my humble, isolated efforts would not have produced other fruit than that of adding one patriot more to the number of preceding martyrs for independence—to you, who, recognizing in me the principle rather than the man, came to stimulate me by your recognition of myself as chief of the provisional government and the liberating army.

"Fellow citizens of the Eastern Department, your efforts as initiators of the struggle against tyranny, your constancy, your sufferings, your heroic sacrifices of all descriptions, your privations, the combat without quarters which you have sustained and continue to sustain against an enemy far superior in armament and discipline, and who displays, for want of the valor which a good cause inspires, all the ferocity which is the attitude of tyranny, have been witnessed by myself, and so will remain eternally present to my heart. You are the vanguard of the soldiers of our liberties. I commend you to the admiration and to the gratitude of the Cubans. Continue your abnegation of self, your discipline, your valor, and your enthusiasm, which will entitle you to that gratitude and that admiration.

"Fellow citizens of the Western Department, if it has not been your good fortune to be the first in grasping arms, neither were you among the last in listening to the voice of the fatherland that cried for revolution. Your moral aid and assistance responded from the very outset to the call of your brethren of the Eastern and Central Departments. Many of you hastened to the scene of revolution to share our colors. At this moment, despite the activity displayed by the Spanish Government in your districts, where its resources and the number of its hosts render more difficult the current of the revolution, that same Government trembles before your determined attitude, from the Las Villas to Havana, and from Havana to the western boundary, and your first deeds of arms were the presage to you and the brave and worthy sons of the Eastern and Central Departments of new and decisive triumphs.

"Fellow citizens of all the Island: The blood of the patriots who have fallen during the first onset of the struggle has consecrated our aspirations with a glorious baptism. At this moment, when destiny has been pleased to close the mission of him who was your first leader, swear with him by that generous blood, that in order to render fruitful that great sacrifice you will shed your own, to the very last drop, in furtherance of the consummation of our independence, proclaimed in Yara. Swear with me to give up our lives a thousand times over in sustaining the republic proclaimed in Guaimaro.

"Fellow citizens, long live our independence. Long live the popular sovereignty! Long live the Cuban Republic! Patria and liberty!"

The convention before proceeding to the election of officers of the Republic, drafted and adopted the first Constitution of Free Cuba, as

follows:

"Article I. The legislative power shall be vested in a House of Representatives.

"Article II. To this body shall be delegated an equal representation from each of the four states into which the Island of Cuba shall be divided.

"Article III. These states are Oriente, Camaguey, Las Villas and Occidente.

"Article IV. No one shall be eligible as representatives of any of these states except a citizen of the Republic, who is upward of 20 years of age.

"Article V. No representative of any state shall hold any other official position during his representative term.

"Article VI. Whenever a vacancy occurs in the representation of any state, the executive thereof shall have power to fill such vacancy until the ensuing election.

"Article VII. The House of Representatives shall elect a President of the Republic, a General-in-Chief of its Armies, a President of the Congress and other executive officers. The General-in-Chief shall be subordinate to the Executive, and shall render him an account of the performance of his duties.

"Article VIII. The President of the Republic, the General-in-Chief and the Members of the House of Representatives are amenable to charges which may be made by any citizen to the House of Representatives, which shall proceed to examine into the charges preferred; and if in their judgment it be necessary the case of the accused shall be submitted to the Judiciary.

"Article IX. The House of Representatives shall have full power to dismiss from office any functionary whom they have convicted.

"Article X. The legislative acts and decisions of the House of Representatives, in order to be valid and binding, must have the sanction of the President of the Republic.

"Article XI. If the President fails to approve the acts and decisions of the House, he shall, without delay, return the same with his objections thereto, for the reconsideration of that body.

"Article XII. Within 10 days after their reception, the President shall return all bills, resolutions and enactments which may be sent to him by the House for his approval, with his sanction thereof, or with his objections thereto.

"Article XIII. Upon the passage of any Act, Bill or Resolution, after a reconsideration thereof, by the House, it shall be sanctioned by the President.

"Article XIV. The House of Representatives shall legislate upon Taxation, Public Loans, and Ratification of Treaties; and shall have power to declare and conclude War, to authorize the President to issue letters of marque, to raise troops and provide for their support, to organize and maintain a Navy, and to regulate reprisals as to the public enemy.

"Article XV. The House of Representatives shall remain in permanent session from the time of the ratification of this fundamental law by the People until the termination of the war with Spain.

"Article XVI. The Executive Power shall be vested in the President of the Republic.

"Article XVII. No one shall be eligible to the Presidency, who is not a native of the Republic, and over 30 years of age.

"Article XVIII. All treaties made by the President may be ratified by the House of Representatives.

"Article XIX. The President shall have power to appoint Ambassadors, Ministers-plenipotentiary, and Consuls of the Republic, to foreign countries.

"Article XX. The President shall treat with Ambassadors, and shall see that the laws are faithfully executed. He shall also issue commissions to all the functionaries of the Republic.

"Article XXI. The President shall propose the names of the members of his Cabinet to the House of Representatives for its approval.

"Article XXII. The Judiciary shall form an independent co-ordinate department of the Government, under the organization of a special law.

"Article XXIII. Voters are required to possess the same qualifications as to age and citizenship as the members of House of Representatives.

"Article XXIV. All the inhabitants of the Republic of Cuba are absolutely free.

"Article XXV. All the citizens are considered as soldiers of the Liberating Army.

"Article XXVI. The Republic shall not bestow dignities, titles, nor special privileges.

"Article XXVII. The citizens of the Republic shall not accept honors nor titles from foreign countries.

"Article XXVIII. The House of Representatives shall not abridge the Freedom of Religion, nor of the Press, nor of Public Meetings, nor of Education, nor of Petition, nor any inalienable Right of the People.

"Article XXIX. The Constitution can be amended only by the unanimous concurrence of the House of Representatives."

The next day the Convention proceeded to the election of officers of the House of Representatives. Salvador Cisneros was elected President; Ignacio Agramonte Loynaz and Antonio Zambrana were elected Secretaries, and Miguel Betancourt and Eduardo Machado, Vice-Secretaries.

MANUEL QUESADA

Manuel Quesada, for a time military head of the Ten Years' War, was born in Camaguey in 1830. He was banished for political reasons and went to Mexico, where he fought under Benito Juarez. In 1868 he joined the patriot army and became one of its leaders; in 1870 being its commander in chief. Failing to carry the war into Pinar del Rio, he went on a trip to Venezuela, and trying to return was pursued by a Spanish cruiser and took refuge in Santo Domingo. On his final return to Cuba he was deposed from his command for being too ambitious and autocratic, whereupon he went to the United States and thence to Venezuela, where he died in 1886.



MANUEL QUESADA

The seventh article of the Constitution was immediately put into practice, when the convention, constituting itself a House of Representatives, confirmed the confidence of the Cuban peoples in Cespedes, by appointing him President of the Republic of Cuba, while Manuel Quesada was made Commander-in-Chief of the Army. President Cespedes immediately assumed his office and issued this proclamation:

"To the People of Cuba:

"Compatriots: The establishment of a free government in Cuba, on the basis of democratic principles, was the most fervent wish of my heart. The effective realization of this wish was, therefore, enough to satisfy my aspirations and amply repay the services which, jointly with you, I may have been able to devote to the cause of Cuban independence. But the will of my compatriots has gone far beyond this, by investing me with the most honored of all duties, the supreme magistracy of the Republic.

"I am not blind to the great labors required in the exercise of the high functions which you have placed in my charge in these critical moments, notwithstanding the aid that may be derived from other powers of the state. I am not ignorant of the grave responsibility which I assume in accepting the Presidency of our new-born Republic. I know that my weak powers would be far from being equal to the demand if left to themselves alone. But this will not occur and that conviction fills me with faith in the future.

"In the act of beginning the struggle with the oppressors, Cuba has assumed the solemn duty to consummate her independence or perish in the attempt, and in giving herself a democratic government she obligates herself to become Republican. This double obligation, contracted in the

presence of free America, before the liberal world, and, what is more, before our own conscience, signifies our determination to be heroic and to be virtuous.

"Cubans! On your heroism I rely for the consummation of our independence, and on your virtue I count to consolidate the Republic. You may count on my abnegation of self.

"CARLOS DE CESPEDES.

"Guaimaro, April 11, 1869."

This was followed two days later by General Quesada's proclamation:

"Citizen Chiefs, Officers and Soldiers of the Liberating Army of Cuba: When I returned to my country to place my sword at your service, fulfilling the most sacred of duties, realizing the most intense aspiration of my life, the vote of the Camagueyans, to my surprise, honored me by conferring on me the command of their army. Notwithstanding my poor merits and capacity, I accepted the post because I expected to find and did find in the Camagueyans civic virtues well established, and this has rendered supportable the charge of the responsibility which I assumed.

"Now the legislative power of the Republic has filled me with a greater surprise, promoting me to the Command-in-Chief of the liberating army of Cuba. The want of confidence in my own resources naturally moves me anew upon stronger grounds, although it also strengthens the conviction that the patriotism of my brethren will supply the insufficiency of my capacity.

"Camagueyans! You have given me undoubted proofs of your virtues. You are models of subordination and enthusiasm. Preserve and extend your discipline!

"Soldiers of the East! Initiators of our sacred revolution! Veterans of Cuba! I salute you with sincere affection, counting on your gallant chiefs, in order that they may aid me in realizing the eminent work which we have undertaken, and I hope that union will strengthen our forces.

"Soldiers of the Villas! You have already struggled with the despot. I felicitate you for the efforts made and invite you to continue them. You are patriots. You will be victors.

"Soldiers of the West! I know your heroic exploits, and venerate them. I am well aware of the disadvantage of the situation in which you find yourselves, in contrast with our oppressors, and it is our purpose to remedy this. Accept the homage of my admiration and the succor of my arms.

"Citizen chiefs, officers, and soldiers of the Cuban Army! Union, discipline, and perseverance!

"The rapid increase which the glorious new Cuba has taken frightens our oppressors, who now are suffering the pangs of desperation, and carrying on a war of vengeance, not of principles. The tyrant Valmaseda rages with the incendiary's torch and the homicidal knife over the fields of Cuba. He has never done otherwise, but now he adds to his crime the still greater one of publishing it by a proclamation, which we can only describe by pronouncing it to be a proclamation worthy of the Spanish Government. Thereby our property is menaced by fire and pillage. This is nothing. It threatens us with death; and this is nothing. But even our mothers, wives, daughters, and sisters are menaced with resort to violence.

"Ferocity is the valor of cowards.

"I implore you, sons of Cuba, to recollect at all hours the proclamation of Valmaseda. That document will shorten the time necessary for the triumph of our cause. That document is an additional proof of the character of our enemies. Those beings appear deprived even of those gifts which Nature has conceded to the irrationals—the instinct of foresight and of warning. We have to struggle with tyrants, always such; the very same ones of the Inquisition, of the Conquest, and of Spanish dominion in America. In birth and in death they live and succeed; the Torquemadas, the Pizarros, the Boves, the Morillos, the Tacons, the Conchas, and the Valmasedas. We have to combat with the assassins of old women and of children, with the mutilators of the dead, with the idolaters of gold!

"Cubans! If you would save your honor and that of your families; if you would conquer forever your liberty, be soldiers. War leads you to peace and to happiness. Inertia precipitates you to misfortune and to dishonor. Viva Cuba! Viva the President of the Republic! Viva the Liberating Army! Patria and Liberty!

"MANUEL QUESADA."

The proclamation of Count Valmaseda, to which General Quesada referred, had been issued at Bayamo on April 4, and was as follows:

"Inhabitants of the Country—

"The forces which I expected have arrived. With them I will afford protection to the good and summarily punish all those who still rebel against the government of the metropolis.

"Know ye that I have pardoned those who have fought against us, armed; know ye that your wives, mothers and sisters have in me found the protection they admired and which you rejected; know, also, that many of the pardoned have turned against me. After all these excesses, after so much ingratitude and so much villainy, it is impossible for me to be the man I was heretofore. Deceptive neutrality is no longer possible. 'He that is not with me is against me,' and in order that my soldiers may know how to distinguish you, hearken to the orders given them:

"Every man from the age of 15 upward, found beyond his farm, will be shot, unless a justification for his absence be proven.

"Every hut that is found uninhabited will be burned by the troops.

"Every hamlet where a white cloth in the shape of a flag is not hoisted in token that its inhabitants desire peace, will be reduced to ashes.

"The women who are not found in their respective dwellings, or in those of their relatives, will return to the towns of Jiguani or Bayamo, where they will be duly provided for. Those who fail to do so will be taken by compulsion. These orders will be in force on and after the 14th inst.!

"COUNT VALMASEDA.

"Bayamo, April 4, 1869."

General Cespedes about this time sent to the Government of the United States, in his name and in that of the Provisional Government of Cuba, a request for recognition, as belligerents. His letter contained these references to the strength of the movement in Cuba:

"We now hold much more than fifty leagues of the interior of this Island in the Eastern Department, among which are the people (or communities) of Jiguani, Tunas, Baire, Yara, Barrancas, Datil, Cauto, Embarcadero, Guisa, and Horno, besides the cities of Bayamo and Holguin, in all numbering 107,853 inhabitants, who obey us, and have sworn to shed to the last drop of blood in our cause.

"In the mentioned city of Bayamo, we have established a provisional government, and formed our general quarters, where we hold more than three hundred of the enemy prisoners, taken from the Spanish Army, among whom are generals and governors of high rank. All this has been

accomplished in ten days, without other resources than those offered by the country we have passed through, without other losses than three or four killed and six or eight wounded."

However this impressed the Government at Washington, and notwithstanding the marked sympathy in the United States for the cause of the Republic, the desired recognition was not obtained.

The impression of the revolution and its leaders which was given to the people of the United States may be judged from what was written by an authoritative correspondent of the *New York Tribune*:

FRANCISCO V. AGUILERA

One of the organizers of the Ten Years' War, Francisco V. Aguilera was born at Bayamo in 1821, of a wealthy and distinguished family, and was finely educated in America and Europe. Although married to the daughter of the Spanish Governor of Santiago, General Kindelan, he was an ardent patriot, liberating his slaves and giving his great fortune to the cause of independence. He served in the Ten Years' War as Secretary of War and as Commander in Chief in Oriente; and succeeded Salvador Cisneros Betancourt as President of the Revolutionary government. He died in New York on February 22, 1877, and though his government had not been officially recognized, full honors as to a Chief of State were paid at his funeral.



FRANCISCO V. AGUILERA

"General Cespedes, the hero and chief of the revolt—is a man of good appearance, fifty years of age, and has traveled in the United States. His second in command, Arango, the Marquis of Santa Lucia, is a native of Puerto Principe, and at taking part in the insurrection emancipated his slaves. General Aguilera was a man of great wealth, and had once held under the Government the office of mayor over the town of Bayamo just burnt by the rebels. He too released his slaves. General Donato Marmol bears the repute of having genuine military talent, as he is said to have defeated his opponents in most of their encounters with him, and signally at Bairi, in the Eastern District. He is admired for the ready invention of a new weapon of defence in war, which is called the horguetilla, and is a kind of hook to resist bayonet charges. The hook, which can be made without much trouble, of wood, is held with the left hand to catch the bayonet, while with the right the rebel brings his rude

machete, a kind of sword, down upon his Spanish foe. General Quesada, the other mentionable Cuban leader, served with credit on the side of Juarez during the intervention in Mexico. The soldiers of the revolt are of the rawest kind. A good part of them have been recruited from the emancipated slaves of Cespedes, Arango, and Aguilera. Many of the weapons are of the poorest kind, but I have heard that a certain number of Enfields have been furnished them, and lately some hand grenades. It is told me that no help, or exceedingly little, has reached them from the North. Among some other things of their own device, they have been employing wooden cannon, good for one shot and no more."

The insurrection was eagerly supported by the "Juntas of the Laborers." These societies, formed at the suggestion of Rafael Merchan, issued a proclamation which enumerated the wrongs and insults endured by them under the Spanish rule of Cuba, and stated the principles for which they were willing to fight:

"The Laborers, animated by the love for their native land, aspire to the hope of seeing Cuba happy and prosperous by virtue of her own power, and demand the inviolability of individuals, their homes, their families, and the fruits of their labor, which they would have guaranteed by the liberty of conscience, of speech, of the press, and of peaceful meetings. In fact, they demand a government of the country for and by the country, free from an army of parasites and soldiers that only serves to consume it and oppress it. And, as nothing of that kind can be obtained from Spain, they intend to fight that power with all available means, and drive and uproot its domination from the face of Cuba. Respecting above all and before all the dignity of man, the association declares that it will not accept slavery as a forced inheritance of the past. However, instead of abolishing it as an arm by which to sink the Island into barbarity, as threatened by the government of Spain, they view abolition as a means of improving the moral and national condition of the working men, and thereby to place property and wealth in a more just and safe position.

"Sons of their times, baptised in the vivid stream of civilization, and, therefore above preoccupation of nationality, the laborers will respect the neutrality of Spaniards, but among Cubans will distinguish only friends and foes, those that are with them or against them. To the former they offer peace, fraternity, and concord; to the latter, brutality and war—war and brutality that will be more implacable to the traitors to Cuba, where they

first saw the day, who turn their arms against them, or offer any asylum or refuge to their tyrants. We, the laborers, do not ignore the value of nationality, but at the present moment consider it of secondary moment. Before nationality stands liberty, the indisputable condition of existence. We must be a people before becoming a nation. When the Cubans constitute a free people they will receive the nationality that becomes them. Now they have none."

The Captain-General replied to this in January, 1869, with a proclamation, full of promises which, however, were never fulfilled. It said:

"I will brave every danger, accept every responsibility, for your welfare. The revolution has swept away the Bourbon dynasty, tearing up by the roots a plant so poisonous that it polluted the air we breathe. To the citizen shall be returned his rights, to man his dignity. You will receive all the reforms which you require. Cubans and Spaniards are all brothers. From this day, Cuba will be considered a province of Spain. Freedom of the press, the right of meeting in public, and representation in the national Cortes, the three fundamental principles of true liberty, are granted you.

"Cubans and Spaniards! Speaking in the name of our mother, Spain, I adjure you to forget the past, hope for the future, and establish union and fraternity."

Cuba had declared herself to be an independent state, but that was merely the first step in establishing her independence, and a long and bitter struggle lay before her before she could hope to accomplish in fact that for which her loyal citizens had armed themselves and which they were determined to achieve.

The first regularly elected House of Representatives took their seats at Guaimaro, whereupon the members of the former convention resigned their seats to their successors. In the new House, Jorge Milanes was elected from the District of Manzanillo, Manuel Gomez Silva from Camaguey, Manuel Gomez Pena from Guantanamo, Tomas Estrada from Cobre, Pio Posada from Santiago de Cuba, Fernando Fornaris from Bayamo, and Pedro Aguero from Las Tunas. Later sessions of the House of Representatives were held at Cascorro and at Sibanico. These towns, held sacred by Cubans as the birthplaces of liberty, were stoutly defended during the revolution, and in spite of repeated efforts the Spaniards were never able to effect their

capture, although they used their most highly trained troops, and most efficient officers in their attacks.

Beginning with August 6, 1869, the Assembly began to organize the government along the most enlightened lines, and provided for the administration of justice by establishing a Judiciary Department with the following branches:

1. A Supreme Court.
2. Criminal Judges.
3. Civil Judges.
4. Prefects and sub-prefects.
5. Court Martial.

The Supreme Court was composed of a presiding officer, two judges and a judge-advocate. Each of the states of the Republic was divided into districts, and a civil and criminal judge as well as an attorney for the Commonwealth were appointed for each district.

Each state was to be ruled by a Civil Governor, and each district by a Lieutenant-Governor, while the districts were divided into prefects and sub-prefects, each with its appropriate ruler. The officers in question were in every case to be elected by popular suffrage.

A chronological enumeration of the laws enacted by the Congress during 1869 is not only pertinent, but it divulges their evident intention to administer the government of the island, should they obtain the power to do so, along the most humane and enlightened lines.

On May 11, 1869, an amnesty was granted to all political prisoners, who had not already been sentenced.

On June 4, much needed provisions for civil marriages, and regulations concerning the same, were enacted.

On June 7, the commerce of the Republic was declared free to all nations.

The enactment of June 15, while a customary proceeding, would have a touch of irony connected with it, if it were not almost pathetic, as revealing the sturdy belief of these officials of the young Republic in the ultimate triumph of their cause. It was an authorization of the issue of \$2,000,700 of legal tender paper money, to be redeemed by the Republic in coin, at par, when circumstances enabled them to do so—that is when they had conquered the enemy and established their Republic on a lasting basis. The



BERNABE DE VARONA

bills thus issued had already reached the officers of the Republic, having been engraved in New York, and sent to Cuba by the New York Junta.

On July 9, the army was definitely organized, and this organization remained in force until the capture and death of General Quesada. It was as follows:

Commander-in-Chief	General Manuel Quesada
Chief-of-Staff	General Thomas Jordan
Chief of Artillery	Major Beauvilliers
Brigadier-Major of Orders	Major Bernabe Varona
Sanitary Department	Adolfo Varona

<i>First Division</i>		<i>Army of Camaguey</i>
	Major General	Ignacio Agramonte
Commanding	1st Brigade	Colonel Miguel Bosse
"	2d Brigade	General Francisco Castillo
"	3d Brigade	Colonel Cornelio Porro
"	4th Brigade	Colonel Lope Recio
"	5th Brigade	Colonel Manuel Valdes Urra
"	6th Brigade	Colonel Manuel Agramonte
"	1st Battalion	Colonel Pedro Recio
"	2d Battalion	Colonel Jose Lino Cica
"	3d Battalion	Colonel Rafael Bobadilla
<i>Second Division</i>		<i>Army of Oriente</i>
	Major General	Francisco Aguilera
Commanding	1st Brigade	General Donate Marmol
"	2d Brigade	General Luis Marcano
"	3d Brigade	General Julio Peralta
<i>Third Division</i>		<i>Army of Las Villas</i>
Commanding	1st Brigade	General C. Acosta

"	2d Brigade	General Salome Hernandez
"	3d Brigade	General Adolfo Cabada

A law was enacted providing that every citizen of the Republic, between the ages of 18 and 50 years, must under compulsion take up arms for the cause of liberty.

BERNABE DE VARONA

Bernabe de Varona, a brilliant writer and devoted patriot, was born at Camaguey in 1845, a member of a distinguished family. He entered the Ten Years War with much zeal and displayed exceptional military skill. He went on various patriotic missions to New York, to France and to Mexico, and was instrumental in securing much aid for the patriot cause. His last expedition was on the ill-fated *Virginus*, on which he was captured and shot to death at Santiago de Cuba on November 4, 1873.

On August 7, the powers of the various officers of the Government, including the Secretaries of State, were described and fixed.

From the foregoing it will be seen that the officers of the new Republic had high aspirations for an orderly government, and for the just administration of wise laws for the benefit of the people. Unfortunately, in a large measure, the Republic of Cuba established at that time was a government only in name, and was not destined to take the reins in administering the affairs of the Island, except in a more or less theoretical way.

CHAPTER XI

A REVOLUTION usually involves fighting as well as the organization of a government. In the case of Cuba, this was especially inevitable. It was realized by the patriots in advance that the redemption of Cuba from the tyranny of Spain could only be accomplished by force of arms, and consequently plans to that effect had been carefully perfected in advance. It was highly creditable to the Cubans that they so promptly organized a dignified and worthy government, and adopted a constitution favorably comparable with that of any other republic in the world. It was no less creditable to their judgment and their earnestness that they had already prepared for extensive military operations, and that they at once entered upon these in a vigorous and systematic manner. Plans for the uprising had indeed been matured before the breaking out of the revolution in Spain, but the latter event undoubtedly hastened the execution of their designs.

At the outset, before complete organization was effected, the insurgents at Bayamo were under the leadership of Francisco V. Aguilera, Manuel A. Aguilera and Francisco M. Osorio; at Manzanillo the leader was Carlos Manuel Cespedes; at Holguin, Belisario Alvarez was in command; at Las Tunas, Vincente Garcia; at Jiguani, Donato Marmol; and at Santiago, Manuel Fernandez.

When Cespedes issued his proclamation on October 10, the insurgents had only 147 men in their ranks, armed with forty-five fowling pieces, four rifles, and a few pistols and machetes—not enough arms to provide one weapon apiece. But volunteers began to flock to their standards and in two days the army had increased to over twenty-six times its original strength, and numbered upwards of four thousand men, while at the end of the month it had more than doubled, and had grown to nine thousand seven hundred. By November 8, the revolutionary army contained twelve thousand men, and at the end of 1868, it had grown to twenty-six thousand.

But even this growth did not give them anything like the strength of the Spanish Army in Cuba. In October, 1868, Spain had in Cuba twelve regiments of infantry, one corps of engineers, one regiment of artillery, two regiments of cavalry, one section of civil guards, one regiment of armed

firemen, one regiment of prison guards, and five regiments of infantry and cavalry militia, amounting to the following:

Regular troops of all kinds, including officers	14,300
Civil guards	640
Prison guards	120
Armed firemen	1,000
Infantry and cavalry militia	3,400
Soldiers who had served their time but had been kept in service	300
	<u>19,760</u>

These troops were distributed to the proportion of three-fifths of them in the Western Department, and the remainder divided between the Central and Eastern Departments. They were amply armed and munitioned, although it must be admitted that not all of their armament was of the newest pattern. It was, however, in excellent condition and they had six thousand of the latest model Remington rifles.

At the end of the year, the Spanish troops had been augmented by large reinforcements from the mother country, so that Spain had in the field a thoroughly organized and abundantly equipped army of about 110,000 men, which, of course, was capable of being greatly increased. She also had in Cuban waters the following men of war, at the beginning of October, 1868:

2 Steam frigates	91 guns
2 2d class steamers	12 guns
5 3d class steamers	10 guns
5 screw steamers, schooner rigged	<u>15 guns</u>
	128 guns

Of course, she at once added to this navy, and it soon grew to formidable proportions, while the revolutionists had no navy at all, with which to repel Spanish attacks from the sea.

Despite the great preponderance of forces in its favor, the Spanish government did not at first depend upon military prowess for the suppression of the insurrection and the retention of Cuba as its colony. This was perhaps, in a measure, because of the revolution in Spain, which was keeping the Government well occupied with its internal affairs, and also because of the desire of some of the liberal leaders in Spain to avoid endless

strife and bloodshed. Therefore at first, pacific measures were contemplated. It had been thought that General Dulce, as Captain-General of the Island for his third term, would be able to effect a compromise with the Cubans, because of his kindly disposition, and the good feeling which prevailed between him and the Cubans. His good offices were greatly hampered and off-set by the arrogance of the Volunteers, who did not hold him in high regard, since they thought him much too gentle with the Cubans, and who were not in sympathy with his mediations. Perhaps the flame of revolution had now grown too hot to be quenched by soothing measures. At any rate, the hope of the Spanish Government proved delusive. On the one hand, the patriot leaders were outspoken in their unwillingness to accept Dulce's proposals of an amicable settlement, based on compromise; and on the other, the Volunteers frankly opposed making any concessions to the Islanders, and directed all their influence against every measure which Dulce offered as a solution. In this they had the ulterior motive of driving Dulce from office, so that there might be placed in his position a more arbitrary and ruthless man, one of their own kidney.

In reviewing the state of affairs in Cuba at this early stage of the Ten Years' War, and comparing the strength and composition of the contending forces, it should be borne in mind that the Cuban army in the field was a mere fragment of the potential strength of the Cuban people. There were probably 150,000 Cubans, able bodied and of military age, who were both willing and eager to enter the war, but who were restrained from so doing for fear of what would befall their families if they identified themselves openly with the patriot cause. If they left their homes to take the field, their wives and children would be at the mercy of Spanish troops or of the still more to be dreaded and pitiless Volunteers. If we add to this the not unnatural doubt of the possibility of succeeding in the revolt against the formidable power of Peninsular Spain—a doubt fostered and confirmed by the failure of the former attempts—we cannot blame the Cubans for not more generally participating in active operations. Their absention from so doing is to be charged not, certainly, to cowardice or to lack of patriotism, but to an excess of prudence.

In these circumstances, the numerical odds were at the beginning, and remained all through the war, tremendously against the Cubans. Besides this their army in a large measure, particularly at the beginning, consisted of men who had had no experience in warlike manoeuvres, and who lacked

military drilling, for while preparations for uprisings had been as constant as had been the uprisings themselves, naturally the revolutionists, when their revolt was in an incipient stage, did not wish to call attention to what they were planning by putting their sympathizers through military tactics. The Cuban Army also lacked a tremendous stabilizer of morale, in not being properly uniformed, but rather presenting a motley appearance on the field. In fact there were many times when they were so hard put that they were not only inadequately clothed, but suffered for lack of food. The fact that they were able so frequently to defeat the highly trained and well equipped Spanish forces, and to hold their ground as successfully, as they did year after year, is the highest possible tribute to their valor, their intelligence in military matters, and their patriotic devotion.

The earliest engagements between the opposing forces occurred on October 13, 1868, at three places, not widely separated; Yara, Bairi and Jiguani; in all of which the Cuban patriots were successful. The last of the three named was considered by the patriots to be an extremely important victory, and was accomplished by troops under the command of General Donato Marmol. Heartened by this good fortune, the patriots on October 15 laid siege to Bayamo, and three days later effected its capture; whereupon that place was made the temporary seat of the Cuban Government. These victories were all the more creditable and encouraging because, we must remember, while the Spanish Army numbered many thousands—scattered it is true in various parts of the Island—the Cuban Army was only one-fourth as large and poorly armed and equipped. At all times during the first engagements, the patriots were outnumbered, but they made up in courage what they lacked in numbers, and their enthusiasm and zeal for the cause for which they were fighting carried them safely against tremendous odds.

Late in October—on the 26th to be exact—the patriots attacked the Spanish troops at Las Tunas, and also at Villa del Cobre at the foot of Monte Alta Garcia, between Puerto Principe and Nuevitas, and at Moran. In all these engagements the Cubans were greatly hampered by the serious lack of arms and munitions, but if they were not entirely successful they were far from routed, they lost little ground, and maintained very complete control over those portions of the Central and Eastern Departments which were in sympathy with them.

By the early part of November, 1868, the Cubans had thoroughly beaten the troops under the command of the Spanish Colonel Demetrio Quiros, and

forced him to retreat, and were thus enabled to advance into the very suburbs of Santiago de Cuba, the ancient capital of the Island, and at this time the capital of the Eastern Department. They promptly cut the aqueduct which supplied that city with water, and thereby caused not only great discomfort but something resembling panic among the inhabitants. The patriots were naturally reluctant to resort to such measures, because of the suffering which it caused to their own friends and sympathizers; yet if the Spanish garrison in Santiago was to be brought to terms, any strategic advantage which the Cubans could acquire must be used to the utmost.

The third week in November found them in possession of the towns of El Caney and El Cobre; the latter famous as the site of the first copper mines opened in Cuba, and the former as the scene of one of the sharpest engagements of the United States war with Spain in 1898. The patriots kept control of these two places for several weeks, and then deeming it inexpedient to undertake any further operations against Santiago, which was not only garrisoned by the Spanish Army but also protected by the Spanish fleet, they withdrew their forces to the defense of Bayamo, which was now being seriously threatened by the troops of Count Valmaseda, reenforced by those under Colonel Lono, who had come thither from Manati, under Colonel Campillo from Manzanillo, Colonel Mana from Puerto Principe, and Colonel Quiro, who had hastened to Bayamo from Santiago. With all these Spanish troops, well armed and abundantly supplied with ammunition centering upon the place, President Cespedes realized that it would be impolitic to attempt to resist a siege. After consultation with his associates, the result of which was a unanimous decision, he set fire to the city and withdrew his troops. In consequence, when Valmaseda arrived a little later, he found nothing left of Bayamo but ruins.

This loss of their temporary capital did not perceptibly weaken the Cuban position; indeed the patriot cause steadily grew in strength and numbers. The entire jurisdiction of Holguin revolted against Spanish authority, on October 28, and the inhabitants, in large numbers, rushed to take up arms with the patriots. A week later Camaguey followed the example of Holguin. The Spanish government both at home and in Cuba was in the position of a man sitting on a couch under which had been stored a quantity of bombs, all timed to go off at irregular intervals, and from which position there was no escape. They did not know which way to jump. The high officials in both

countries lived in an uncertainty as to events in Cuba which must have been nerve racking. Indeed—to mix our metaphors—they never knew where the fever of revolutions was scheduled to break out next. If they succeeded in getting it under control in one place, and began to feel a bit secure against an epidemic, the next morning they found what to them seemed a new eruption, and one which they had not been able to anticipate. They conquered, or apparently subdued, the patriots in one portion of the Island, and immediately those in another burst forth into active opposition to what the Spanish government would have termed law and order, but which the insurgents called by the less pleasant terms of cruelty and unjust oppressions. And occasionally, as we have seen, there glimmered in some Spanish intelligence a faint doubt as to the efficacy of their usual methods, and then for a very short time the authorities would try temporizing. But the patriots had not suffered for generations from Spanish misrule without having learned to mistrust the wiles of their oppressors, and they viewed with more or less cynicism any surface indications of a less tyrannous rule.

With the revolts of Camaguey and Holguin, the Spanish authorities came to the conclusion that it was about time to try temporizing, and to endeavor in some way to pacify the patriots. It may be that they would have actually made concessions—we have it from one authority that they were willing at this time to grant almost anything but the one thing which was the single desire of the patriots. At any rate, on January 19, 1869, they made a formal proposal for a meeting between representatives of the belligerents for the discussion of the issues between them, and for a serious attempt to effect a compromise. President Cespedes felt that the time for compromise had passed, long years before. The die had been cast. The revolution had one aim, complete freedom, and that was above all things the one concession which the Spaniards would not make. But he was too clever not to realize that after all something might be gained by compliance, if no more than a chance to feel out the mettle and present designs of the Spaniards. It was possible that if he sent a clever enough envoy he might learn much that would be to his advantage in future negotiations. He was under no obligation to consent to or even to consider seriously any terms which the Spaniards might offer, so that he had nothing to lose by such a proceeding, and it was barely possible that he might gain valuable information.

So he assented to the proposal, and sent his representative, Augustin Arango, to Puerto Principe, under safe conduct issued by the Spanish

Government at Manzanillo. It is probable that the safe conduct would have been respected by the Spanish authorities and Spanish troops. But unfortunately, not only for the innocent envoy, and for the patriots, but also for any hope that the Spaniards may have entertained—if indeed their offer had been made in good faith, and there is always a measure of doubt, in the face of their usual trickery—of an amicable understanding, Arango fell into the hands of the Volunteers, who, in quite characteristic manner, contemptuously disregarded the credentials of their own government, and cruelly and brutally murdered General Cespedes's messenger, immediately upon his entrance into Puerto Principe.

It is not difficult to picture the rage and disgust of the patriots at this new example of Spanish perfidy, which so clearly demonstrated the futility of attempting any negotiations of any kind whatever with an enemy capable of such lack of honor. The death of Arango, therefore, put an end to the farce of Spanish pretended repentance. And this circumstance did not pass without the news being spread all over the island. Patriots who had been timidly balancing themselves in outward neutrality, were so aroused with indignation that they began boldly to plunge into the maelstrom of civil war. On February 9, 1869, the entire district of Las Tunas revolted and cast its lot with the insurgents. Each new act of injustice emanating from the Spaniards was like removing the supports of a dam behind which had been restrained the waters of patriotism. The Spaniards had killed one Cuban patriot in cold blood; the cause of revolutions had gained thousands, each fired with enthusiasm.

Thus far General Quesada had been waging an almost exclusively irregular or guerrilla warfare. This was because of the smallness of his army, the lack of arms and equipment, and the unfamiliarity of his men with military tactics. Indeed, such methods of warfare were in a large measure continued throughout the entire Ten Years' War. But by the time of which we now write he was able on some occasions and at some places to array his troops in orderly fashion and to conduct his campaign in much the same manner as the Spaniards themselves. Thus, he was able to carry on regular siege operations against Colonel Mena, and his garrison of three thousand Spaniards, at Puerto Principe. Colonel Prieto with several thousand Cubans busied himself with cutting the railroad lines which the Spanish authorities had constructed for strategic purposes, and destroying communications between Villa Clara and Cienfuegos. A strong Spanish force was sent

against him, and a serious engagement occurred at San Cristobal, where the patriots were entirely successful. The Spanish troops retreated to Guanajay, a short distance from Havana, closely pursued by the patriots, and when forced to give battle, the Spaniards were once more put to rout, with heavy losses.

Havana was now practically in a state of siege, with a patriot army in possession of Guanajay, and small bands constantly harassing the Spanish troops at different points in the vicinity of the city. The Spanish Captain-General, Dulce, was still nursing the idea that some sort of an agreement might be reached, and at least a truce declared, and he therefore refused to officially declare the besieged condition of the city, and endeavored to placate the patriots by leniency toward the sympathizers in the city, and a conciliatory attitude toward the revolutionists. However, his efforts had little effect on the Cubans. Their forces pressed forward against Santiago de Cuba, and disaster for the Spanish garrison at that city was only averted by the timely arrival of Count Valmaseda with reinforcements. Las Tunas was still in the hands of the revolutionists, who were divided into small parties and were conducting a guerrilla warfare throughout practically the entire Island, attacking whenever it seemed to be to their advantage, and dispersing when the forces sent against them were sufficiently large to give the odds to the Government. Trinidad was practically segregated from the outside world so far as communications by land were concerned. The patriots had stopped the mail service, and had cut the telegraph wires. The city was in a turmoil of fear and apprehension, sending requests for aid whenever they could get word through, which was not frequently, since the patriots took a cynical delight in having so far turned the tables on their oppressors, and in detaining and making prisoners the couriers who tried to reach the Spanish lines with news of Trinidad's predicament.

The patriots did not confine their efforts to any part of the Island, although the major part of them were east of Havana, and only that small stretch of territory embracing the province of Pinar del Rio was comparatively free from trouble. The insurgents were insufficiently provisioned, and so they resorted to pillage. This was particularly true of the bands in the vicinity of Nuevitas, where attacks were constantly being made on the plantations, and the farmers lived in a state of alarm, never knowing when a patriot band might descend upon them demanding food for the present and for the future, and proceeding to take it by force, if necessary. Frequently those

who were not in favor of the cause of liberty extended a frightened hospitality, rather than to excite the wrath of their hungry visitors, and resorted to treachery to carry the news of the marauders to some nearby Spanish camp, only to have the rescuing forces chagrined to find, when they arrived, that the birds were not "in the hand," but had been fed, and had fled with their booty. Nuevitas was well garrisoned, and therefore the patriots confined their operations to a region sufficiently remote from the outskirts of the town, so that reprisals would be slow and difficult.

The Cubans were strongly entrenched at San Miguel, where, on February 7, they were attacked by the Spaniards. When other means failed, the Spanish forces tried to "smoke out" the insurgents by burning the city, but while this dislodged them from the city itself, it failed to drive them from the vicinity, where they took up an advantageous position and held it against assault.

Puerto Principe was surrounded; the aqueduct was cut, and food was scarce and growing scarcer. The inhabitants clamored for succor, when starvation seemed imminent. Their cries for aid became too insistent to be disregarded, and therefore a body of troops was dispatched from Santiago de Cuba toward Jiguani, whither the main body of the Spanish troops under Count Valmaseda, had retired. The patriots were apprised of this manoeuvre, and the Spanish troops were constantly harassed by bands of Cubans, and it was only after several severe engagements, and considerable losses, that they succeeded in joining Valmaseda at Jiguani.

In the sort of warfare which they were now waging, the advantages were all with the revolutionists. They were thoroughly acquainted with the country, and knew well how to take advantage of its natural defenses, while the Spanish forces, especially those imported from Spain for the purpose of putting down the rebellion, lacked such knowledge, and in strategy were always at a disadvantage. The Cuban leaders were not only exceedingly clever in their manoeuvres, but they seemed to have a sense of humor, and to take a grim delight in fooling the Spanish commanders, and luring them on a fool's errand. The patriots, whenever the tide of battle went against them, retreated to fastnesses in the interior, well known to them, and uncharted by the enemy, from whence they would sally forth, when opportunity presented, harass the Spaniards, and again retire to their lair, whither the enemy feared to follow them, lest they might fall into a trap.

The Cubans had a particularly annoying practice of spreading reports that a large revolutionary force had assembled in a certain place, and enticing the Spaniards to that location, when the latter would only discover, to their chagrin, that the report had been "grossly exaggerated," and that in reality there was only a handful of men instead of the large number which they expected; and to this would be added the further annoyance of having the little body of Cubans melt as if by magic in retreat to some position unknown to the Spanish or practically impenetrable by them, with their lack of information as to its potentialities, and their fear that it might prove their undoing. If this were not sufficiently annoying, the Cubans had a habit of sending out anonymous and misleading information, to the effect that an attack on the Cubans at a particular point would have felicitous results for the Spaniards, since it was believed that that position was inadequately defended, and upon acting on this information, the Spaniards would be baffled by discovering that the supposed forces, if indeed there had been any previously present, had long since departed, leaving the place deserted. Again and again the Spaniards were thus decoyed and beguiled, and yet they continued to act on the misleading advices, because failure to do so might lose them a real victory, should one message out of the many really prove reliable.

Thus were the patriots learning to match Spanish cunning with a new, peculiar and ironic brand of their own, and were turning the tables on the tormentors who had for so many years mistreated them and laughed at their protests. It will be recalled that Bayamo had been burned by the revolutionists, when it seemed apparent that their capital city was about to fall in to the hands of the Spaniards, or at least, when it seemed the part of prudence to surrender it. In spite of the fact that this meant that the inhabitants would be rendered homeless, so strong was the patriotic feeling in that city, that the destruction was done with the consent of the populace. A thousand of these people now fell into the hands of the Spaniards, and on February 14 were taken to Manzanillo. The next day long expected reinforcements arrived from Spain. They were small in number, it is true, only a thousand strong, but conditions in Spain made it difficult for her to spare large numbers of troops, and this was most fortunate for the cause of freedom, for thus Spain was unable to send to Cuba a sufficient number of drilled soldiers to offset the advantage which the little Cuban army had in its acquaintance with the geography of the Island, and the physical

possibilities which it afforded for scattered and sporadic attacks in unexpected quarters.

Captain-General Dulce, alarmed at the conditions which existed, and at the failure of the Spanish army to subdue the revolution, and undoubtedly spurred on by the Volunteers, who had no patience with his conciliatory methods, changed his policy, and issued a proclamation, thoroughly muzzling the press, to avoid the spreading of the news of the extent of the revolution and the success of the revolutionists, and thus endeavored to stem the influx of recruits into the Cuban Army. He also established a military court martial, which planned to deal summarily with the leaders of the revolution should any fall into their hands. Next he proclaimed the expiration of the amnesty previously granted, while he—true to type—softened this decree, probably as a bit of insidious strategy, by offering to pardon all insurgents who would surrender themselves, excluding the leaders, and those who had been convicted—unrepresented at the trials, of course—of the crimes of murder, arson and robbery. The underlying thought of this proclamation probably was that the rank and file of the insurgents might surrender and deliver their leaders into his hands for punishment. This was accompanied by a demand upon the citizens of Havana for the sum of \$25,000,000 to support the government, and to aid it in carrying on its campaign against the revolutionists.

He only too well knew that the sympathy of the people of the United States, if not the secret sympathy of the government at Washington, was with the Cubans, and not only Dulce himself but indeed all the leaders of the Spanish cause lived in constant fear of private aid to the insurgents from the United States, if not of possible governmental intervention in their behalf. They well knew also that the Americans who had made their homes on the Island, and who were deeply interested in its commercial salvation, were all sympathizers in the cause of the revolution, and felt that only through freedom from Spanish rule and a resumption of peace could they hope to retrieve the fortunes which they had invested, and now apparently sunk, in Cuban business ventures. That these Americans, despite the censorship, were in communication with their friends in their own country Dulce did not doubt, and that they would urge the sending of relief to Cuba he felt certain. He therefore applied to the United States Consul at Havana for the names of all American residents of Cuba, that he might keep them under surveillance, check up their movements, and act, if necessary, to

prevent them from either personally, or through their influence in the United States, lending any material aid to the revolutionists.

In spite of the Captain-General's precautions, his fears were realized. Aid did reach the revolutionists from the United States, in the shape of guns and ammunition, accompanied by American sympathizers, who in some fashion ran the gauntlet of the Spanish navy in Cuban waters. The Cuban Army advanced against La Guanaja, wrested it from the Spaniards, and proceeded to fortify it with American guns, manned by American gunners. The town was believed by both of the belligerents to be impervious to attack from the land, and the Spanish commanders therefore dispatched a naval force to conquer it from the sea. The bombardment which ensued dashed the hopes of the revolutionists, so far as the effectiveness of their fortifications were concerned, as against a naval attack. The Spanish shells wrought great damage, and when they had reduced the defenses, a landing was made and the town was retaken by assault. The Cubans were therefore forced to beat a hurried retreat to the surrounding country, and the Spaniards were left in complete control of the city. Now they had a decided advantage, for from this vantage-point they were able to send aid to Puerto Principe, and, on February 23, two battalions were hurried thither. Meanwhile, General Lesca, who had been stationed at La Guanaja, set out to attack the Cuban Army at Colonia de Santo Domingo and in this expedition he was reinforced by the troops under General Puello. The Spanish army in this encounter greatly outnumbered the patriots but the latter fought with the courage of desperation; a wholesale slaughter ensued in which both sides suffered enormous losses; and when, worn out, the Cubans withdrew, the result might well be termed a draw, for neither side could justly claim victory.

During the month of February, the revolutionists harassed the Spaniards in the vicinity of Santa Cruz, but not with their usual success, the odds being largely in favor of the latter. On February 25, a band of revolutionists surprised the town of La Lujas, situated only a short distance from Cienfuegos. Before opposition could be mustered, they took possession of the town, and with it the uniforms of the city guards, and all the arms, ammunition and horses which they could find, and they also burned the police archives, thus destroying any records at that place which might later be used against individual revolutionists, in the event of an ultimate Spanish victory.

But, with it all, neither army was making any particular progress toward a decisive victory. The balance of advantage swung first one way and then the other. The Spanish found their well drilled troops unable to match themselves with any degree of effectiveness against the resourcefulness of the revolutionists, and their methods of warfare. The attempts at mediation had failed; indeed had been thwarted by the treacherous action within their own body—by the murder which was staged by the Volunteers' faction. On the other hand, as yet Cuba had been able to secure but little aid from the one country on the sympathy of the citizens of which she might count. The United States had far from come up to expectations in the assistance she had thus far unofficially rendered. Perhaps this was because the authorities in that country had no desire to embroil themselves with Spain, and kept a close watch on the movements of suspected Cuban partisans. The Cubans were able to make life exceedingly uncomfortable for the Spanish forces, and for Spaniard sympathizers throughout the country, but with their present numbers and equipment they had little hope of gaining a decision of the hostilities in their favor. The best they could do was to keep the country in a state of uproar, gaining what little advantage they could, and meanwhile the inhabitants were facing starvation, the destruction of their holdings, the burning of their buildings, and the devastation of a fruitful country. The constant operations of marauders, who took advantage of the Cuban method of warfare, to pillage and steal and lay in ruin various portions of the country, as well as the fear of attack from the guerrillas, were driving the farmers and their families to the protection of the cities, and thus farms were standing idle and uncultivated, and there was bound to be an even greater food shortage. The Government was being aided by the church, and the neutrals, despairing of any change in conditions for the better, were, whenever the opportunity presented itself, emigrating from the Island to regions less tumultuous, where living conditions were not so uncertain and dangerous.

The Government was finding conditions intolerable, and decided to make a strenuous effort to dislodge the revolutionists from their inland strongholds and thus to compel them to abandon their badgering methods, and to come forth into the open and give battle, well knowing that, if this could be accomplished, the odds would all be in favor of the Spaniards. Therefore, a special company of Volunteers was assembled, with fresh reinforcements direct from Spain, and they were sent into the fastnesses of

the interior, in a strong endeavor to drive out the Cubans. Simultaneously General Letona conducted a vigorous campaign in relief of Cienfuegos, and General Puello organized small parties which were sent out on marauding expeditions. But the principal result of these efforts was to throw the Island into a still greater state of excitement, and to encourage robbers and bandits, who, taking advantage of the consequent uproar, seized the favorable opportunity for pillage. Thus their devastation was added to the troubles of the already much tried farmers in Cuba. The country around Holguin and Gibara was in a state beyond description, and the life of every citizen, no matter what his sympathies, was in constant danger.

Then a very serious battle took place between the forces under General Lesca, and an army of four thousand Cubans. The Spaniards were advancing from La Guanaja to the succor of Puerto Principe, when the two forces met. The Cubans were well entrenched on the Sierra de Cubitas. They were principally infantry, and they had the Spanish at a disadvantage. The engagement might have ended in an utter defeat for that portion of the Government Army, had it not been that they were well supplied with artillery, which did effective work against the Cubans, and therefore the Spaniards were able to escape, though with heavy losses.

Early in the next month, March, 1869, the Cubans obtained—from what source is not disclosed, but it may be that their American sympathizers were responsible—large accessions of artillery, with a goodly supply of ammunition, which a small body of not over a hundred men, under Cisneros, were able to convey to Mayari, where General Quesada was stationed with seven thousand Cubans. When we consider that heretofore the revolutionists had been much more blessed with enthusiasm and belief in the ultimate triumph of their just cause than they had with the material means for accomplishing that end, it is not difficult to picture with what new hope and confidence this much needed assistance was received. Now more than ever they began to feel the certainty of final success, and to be imbued with a steadfast purpose to fight to the last ditch for the cause of freedom.

CHAPTER XII

AT the time of the beginning of the Cuban insurrection the United States was undergoing one of its quadrennial political campaigns, and March 4, 1869, saw General Ulysses S. Grant inducted to the Presidency—the man who had led the nation to victory in the Civil War and had thus maintained the union of the United States of America; a soldier of the highest character, and one whose sympathies were keenly enlisted in behalf of the Cuban revolution. When this news reached the Cuban leaders they at once addressed to him an appeal for recognition, which ran as follows:

"To his Excellency, the President of the United States:

"Sir:

"The people of Cuba, by their Grand Supreme Civil Junta, and through their General-in-Chief, Señor Cespedes, desire to submit to your Excellency, the following among other reasons, why your Excellency, as President of the United States, should accord to them the belligerent rights and a recognition of their independence.

"Because from the hearts of nineteen-twentieths of the inhabitants of the island go up prayers for the success of the armies of the republic; and from the sole and only want of arms and ammunition these patient people are kept under the tyrannical yoke of Spain.

"Because the republic has armies numbering over 70,000 men, actually in the field and doing duty. These men are organized and governed on the principles of civilized warfare. The prisoners whom they take—and so far they have taken three times as many as their enemies have taken from them—are treated in every respect as the prisoners of war are used and treated by the most civilized nations of the earth. In the hope of recognition by the United States, they have never yet in a single instance retaliated death for death, even in cases of the most provoking nature.

"Because the Spanish authorities have almost invariably brutally murdered the soldiers of the armies of the republic who have surrendered to them, and have recently issued an official order requiring their military forces hereafter instantly to kill and murder any prisoner of the republic who surrenders. This is due, the order cheerfully tells us, to save trouble and vexation to the Spanish civil authorities. This is an outrage the civilized nations of the earth ought not to allow.

"Because the United States is the nearest civilized nation to Cuba, whose political institutions strike a responsive chord in the hearts of all Cubans. The commercial and financial interests of the two peoples being largely identical and reciprocal in their natures, Cuba earnestly appeals for the unquestionable right of recognition.

"Because the arms and authority of the Republic of Cuba now extend over two-thirds of the entire geographical area of the island, embracing a very great majority of the population in every part of the island.

"Because she has a navy in course of construction which will excel in point of numbers and efficiency that heretofore maintained by the Spanish authorities in these waters.

"Because these facts plainly show to the world that this is not a movement of a few discontents, but the grand and sublime uprising of a people thirsty for liberty and determined with this last

effort to secure to themselves and their posterity those unquestioned rights—liberty of conscience and freedom of the individual.

"Finally, because she is following but in the footsteps of Spain herself in endeavoring to banish tyrannical rulers, and in their stead place rulers of her own choice, the people of Cuba having a tenfold more absolute and potent right than Spain had, because Cuba's rulers are sent without her voice or consent by a foreign country, accompanied by and with swarms of officials to fill the various offices created only for their individual comfort, drawing their maintenance and support from the hard earnings of the natives of the soil.

"Allow us to add, with the greatest diffidence and sensitiveness, that the difference between the rebellion in the United States and the present revolution in Cuba is simply that in the former a small minority rebelled against laws which they had a voice in making, and the privilege of repealing; while in the case of Cuba, we are resisting a foreign power in crushing us to the earth, as they have done for centuries, with no appeal but that of arms open to us, and appointing without knowledge, voice, advice or consent, tyrannical citizens of their own country to rule us and eat our substance.

"Patria y Libertad!

"Approved by the Supreme Junta and ordered approved

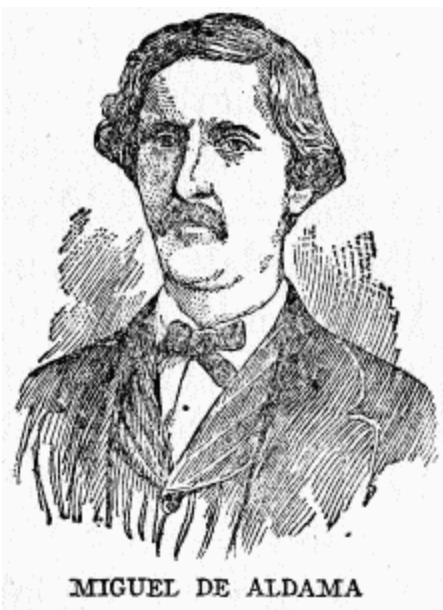
By SEÑOR GENERAL CESPEDES,

Commander in Chief Republican Forces in Cuba.

Headquarters in the Field, March 1, 1869."

President Grant was strongly inclined to grant this petition, and in this he was upheld by his most trusted friend and advisor, General Rawlins. In consequence, he prepared on August 19, 1869, a proclamation by which he recognized the insurgents as belligerents, the result of which would have been to legalize the shipment of arms to them. Unfortunately for the Cuban cause, though doubtless fortunately for the United States, there was at the head of the State Department of the United States a man of cooler judgment than General Grant, and one whose emotions of pity were not so easily moved. This was the Secretary of State, Hamilton Fish. Before Grant's proclamation could become effective, it was necessary for the Secretary of State to sign, seal and publish it, and this Mr. Fish refused to do. He felt that to do so would constitute a grave error in diplomacy, and one which might have far-reaching detrimental effects for the United States. It was his judgment that the President had been betrayed by his sympathies, and he felt it incumbent upon himself, as chief of the Department of State, to restrain him from making a bad mistake. There was to be taken into consideration the fact that the United States, in the war so recently fought for the maintenance of the Union, had made vigorous protests against the recognition of the Confederacy by foreign powers, and Secretary Fish felt that the proclamation in favor of the Cuban revolutionary government would stultify the course of the United States government in that matter.

Indeed, in sound judgment, it was impossible to deny that the Confederates of the South were more justly entitled to recognition, under all the circumstances of both cases, than were the Cuban revolutionists. Fish felt that the condition in Cuba, at that time, at any rate, did not merit the official recognition of the United States government, and he was not backward in conveying his conviction to General Grant. Then he simply pigeon-holed the proclamation and let it die a natural death in musty obscurity. Upon second thought, General Grant saw the soundness of Fish's conclusions, and not only did not register a protest, but took occasion some months later to thank Fish for his intervention, and the suppression of the proclamation.



MIGUEL DE ALDAMA

A man of letters and of great wealth and social leadership, Miguel de Aldama was a native of Havana and one of the foremost citizens of that capital when the Ten Years' War began. He at once placed his fortune and himself at the disposal of his country, and was appointed by President Cespedes to be Agent of the Cuban Republic in New York. To that place he was reappointed by President Cisneros Betancourt. He served in that capacity throughout the war, to the great advantage of the patriot cause.

Meanwhile, reports of the cruelties of Spanish soldiers began to penetrate the ears of American citizens. It was reported, and pretty well authenticated, that disgusting atrocities were the order of the day, when the Spanish troops found in their path anyone, male or female, who was not in a position to resist them. There were stories of the raping of little children before the eyes of their mothers, and of mothers in the presence of their children, of the crucifixion, and hanging by the thumbs of old men, and even of able bodied persons, who happened to fall defenseless into the hands of the Spaniards. Tales of barbarity to prisoners, even to the extent of roasting them alive, fired the rage of justice-loving American citizens, and again touched the kind heart of their President. To these reports were added others, less revolting, but touching the commercial sense of the nation. American property in Cuba was being destroyed, and American citizens were being molested and restrained from the peaceful pursuit of their business. American commerce was impeded and losses were suffered. It

was recalled that Spain had been prompt to recognize the Confederacy as a belligerent power, and it seemed but the irony of justice, and a fair sort of retaliation, that now the United States should give recognition to those who were rebelling against Spain's misrule. But Fish was deaf to all pleas in behalf of the Cubans, and resolutely blocked all attempts to secure recognition for them. He argued and pleaded with the President with such eloquence that presently he seemed to have him convinced that the cause of freedom in Cuba was not yet worthy of the recognition of the United States. In consequence, in his annual message, in December, 1869, President Grant, less than four months after his unpublished proclamation of recognition, declared that "the contest has at no time assumed the conditions which amount to a war in the sense of international war, or which would show the existence of a political organization of the insurgents sufficient to justify a recognition of belligerency." He added that "the principle is to be maintained, however, that this nation is its own judge when to accord the rights of belligerency either to a people struggling to free themselves from a government they believed to be oppressive, or to independent nations at war with each other."

It is needless to say that this position was a great disappointment to the Cubans, and seemed to them utterly at variance with what they might have expected from a nation so lately torn by Civil War, and which had shown such keen individual sympathies with the cause of the freedom of Cuba. However, from that time on, the United States, officially, at least, showed the greatest patience—a patience which seemed almost unbelievably enduring—toward the hardships which the Spanish authorities put upon innocent Americans, and was indefatigably zealous in its efforts to prevent violations of neutrality on the part of sympathetic United States citizens. That there was some bitterness in the hearts of the Cuban leaders, who felt they had a right to expect the support of their sister republic, and a country which had against such odds won her own independence, it is easy to believe, and there were many who felt that this was a righteous indignation.

But during the months in which the Secretary of State and the somewhat unwilling President of the United States were shaping this policy, the war in Cuba was continuously waged. On March 7, 1869, a few days after the Cubans addressed their petition to the United States government, the Spanish attacked a strong Cuban position at Macaca, and were successful in ousting the revolutionists. This disheartening occurrence was followed by

defeats for the Cubans, first at Mayari, where Spanish forces under General Valcosta were victorious over a small army of which General Cespedes was in command—General Cespedes, however, effecting a withdrawal with safety to his own person and a part of his supporters—and again at Jiguani, where it was the Cubans who made the attack upon a Spanish force under General Valmaseda, only to meet defeat at the hands of the Spaniards, and to be forced to flee in disorder to their mountain fastnesses.

Meanwhile reinforcements came from Spain; this time as before, not a large number, being only about twelve hundred men, but enough materially to aid the governmental army, and to strengthen its morale. The Captain-General also endeavored to win the hearts of the timid by issuing a proclamation which declared important concessions in tax regulations. A fifty per cent reduction was made in the direct taxation on plantations, on cattle and on country real estate, as well as in those taxes only recently levied on merchants and tradesmen. As a crowning concession the taxes due for the last quarter of the year 1868-1869 were nullified. But it was apparently impossible for Spain to make concessions without accompanying them with demands of some sort to offset her seeming generosity. Therefore the Captain-General took occasion to levy some new duties: On muscovado sugar, if shipped under the flag of Spain, a tax of 16¢ a hundred weight, while shipment under a foreign flag called for an additional 4¢ duty; on boxed sugar shipped under the Spanish flag, a tax of 75¢ a box, while if under a foreign flag, 12¢ additional; on every hogshead of sugar shipped under the flag of Spain a tax of \$1, and if under a foreign flag, 75¢ additional; a tax on molasses of 50¢ a hogshead, and on rum of \$1 for an equal quantity.

It will be recalled that the Cuban patriots had by their proclamation of December 27, 1868, granted freedom to all slaves on the island. They now began a campaign to enforce this decree by removing, from all plantations of which their armies were able to take possession, the slaves for service in the Cuban army, and to make their liberation doubly sure, burning the buildings, and laying waste to the crops. In the districts around Sagua and Remedios there were nine thousand insurgents engaged in this work. This action it would be hard to excuse, if there were not taken into consideration the fact that the Cubans had endured such grievous wrongs at the hands of the Spaniards that they would have been much less than human if they had not had some desire to retaliate; and, after all, the retaliation which spoke

most forcefully to the Spaniard was that which attacked his worldly goods and his pocketbook.

But to offset these actions, the Spanish at the same time proved themselves victorious in several engagements. On March 18, at Alvarez, they defeated the Cuban forces; at about the same time, at Guaracabuya, they won another victory, with Cuban losses numbering one hundred and thirty-six killed outright; and two thousand Cubans, under Generals Morales and Villamil, were routed by the Spaniards at Potrerillo. In this last affair the patriots suffered severe losses; three hundred wounded, two hundred and five killed, and twenty-one taken prisoners, together with many horses killed or captured. They were also obliged to retreat in such haste that they had to abandon a considerable quantity of ammunition, which was seized by the enemy. It is only necessary to add that the Spanish lost but one officer, one private and one of their number taken prisoner, to demonstrate the disheartening nature of the encounter. But the Cubans were, as has been stated, drafting large quantities of slaves into their army, and this victory for the Spaniards was a signal proof that the slaves were not good material for soldiers. Besides this, the patriots who took part in this engagement suffered severely a lack of proper equipment.

The tide seemed to be turning against the Cubans, and in the days that followed they were to face still further losses. The quality of the recruits which were being added to the patriot army did not increase its valor, skill or morale. They lacked guns, and those which they had were of antiquated pattern; there was a woeful scarcity of larger arms and ammunition, and the troops were weary and poorly fed. Against that portion of the Cuban army stationed in the Villa Clara district the Spanish now began to concentrate a large army, pouring troops into that district until they were ten thousand strong. The Cubans were outnumbered, and lacked the weapons of warfare, they had been outmanoeuvred, and suffered tremendous losses, and yet another crushing defeat lay before them, for on March 20, two thousand Cubans who were, as they fondly believed, strongly entrenched at Placitas, were put to flight by a small body of Spanish troops, highly skilled and well armed it is true, but numbering only three hundred regulars and a small company of the much feared Volunteers.

Emboldened by these successes, the Captain-General again shifted his position, and issued an order, to be made the excuse for an outrage against American shipping, which was severely to tax the friendliness of

international relations. The Spanish government was ever haunted by the bugbear of American intervention, and doubtless the decree in question was issued as a preventive against such action, for the Spanish well knew that should such intervention once take place their cause would be irrevocably lost, and with it their dominion over Cuba. The decree provided for the confiscation on the high seas of any and all vessels carrying either men, arms or ammunition or all three, or indeed anything which might be construed as intended for material aid to the revolutionists, and further provided that "all persons captured on such vessels without regard to their number will be immediately executed." Viewed in the calm light of history this decree would seem bound, if enforced, to be almost suicidal to the Spanish interests, being in opposition to law and justice, and in express violation of existing treaty obligations between Spain and the United States, and thus bound to bring a storm of protest from the United States government.

As if this were not enough, Dulce followed this action by another decree, promulgated on April 1, which prohibited the transfer of property, except by the direct consent of the government, and this prohibition included the sale of produce of all sorts, stocks, shares in mercantile projects, and real estate, together with many minor provisions; while by a third decree, which shortly followed, he ordered the confiscation of the estates of American citizens who were suspected of sympathy or complicity with the revolutionists. Naturally, the United States government made a strong protest against such summary action, rightly declaring it to be in violation of the provisions of the treaty of 1795.

The Cuban troops now began a more or less concentrated attack on Trinidad, and to relieve the pressure at this point, the Spanish sent a large force toward Puerto Principe, hoping to weaken the Cuban army at the former place, because of the necessity of withdrawing men to combat the Spanish army at the latter. The Spanish government also sought to offset the damage and destruction done by the insurgents to property of loyalists by issuing a decree proclaiming their intention to confiscate the property of all individuals who were absent from home without a governmental excuse—which would of course include all landowners who were fighting in the Cuban army—and providing for a detail of men to protect against the revolutionists every estate thus taken.

On April 17 battle was again joined by the Cubans under Colonel Francisco Rubalcava and a Spanish force under the combined leadership of Generals Letona, Escalante and Lesca. The fighting which ensued taxed the Cuban resources to the utmost. All day long the battle raged, and when both sides were worn out with combat, the result was not decisive for either army, while one hundred and eighty Spanish troops and two hundred Cubans lay dead under the stars.

For nearly two weeks thereafter there was a period of quiet and recuperation on the part of the Cubans, with the exception of a number of minor skirmishes, but on May 3 the belligerents again met in battle at Las Minas, when twelve hundred Spaniards, under the command of General Lesca, and a large Cuban force under General Quesada, fought in the most violent of hand to hand conflicts. Frightful butchery ensued, for this time victory again returned to the Cuban standards, and the Spanish were forced to retreat in disorder, leaving behind them one hundred and sixty killed and three hundred wounded, while the Cuban losses were two hundred killed and an equal number wounded.

To add to the rejoicing over this victory, small as it was, a few days previous the Cubans had had a practical demonstration of the sympathy of United States citizens for their cause, and of the ability of those citizens to evade the drastic provisions of the government against any display of that feeling. On May 1 there arrived at Mayari a body of three hundred Americans, under the leadership of General Thomas Jordan, a tried veteran of the Civil War, in which he had been an officer in the Confederate Army. He was an experienced soldier, who had had a fine military training and had been graduated from West Point. This in itself might have been quite enough to put new heart into the Cuban leaders, but General Jordan had brought with him not only reinforcements but arms, ammunition, clothing, medical supplies and food. A detailed list of this material included four thousand long range rifles, three hundred new pattern Remington rifles, five hundred revolvers, twelve pieces of artillery of various sizes including twelve, twenty-four and thirty-two pound cannon, and a large supply of ammunition for these arms. And the relief did not stop here, for there were a thousand pairs of shoes, and clothing for one thousand persons, two printing-presses, medical supplies, and quantities of rice, tinned biscuits, salt meat, flour and salt. This meant food and arms for at least six thousand men, and there is no wonder that there seemed to be occasion for the

wildest rejoicing on the part of those who were so manfully and against such great odds engaged in upholding the cause of freedom in Cuba. Now the patriots might oppose the Spanish with at least six thousand well equipped men, and they had also acquired in the person of General Jordan an officer whose aid in drilling raw recruits could not be overestimated.

The Cubans did not get their booty to headquarters without some opposition from the Spaniards. That was hardly to be hoped, since their every movement was reported to the government by Spanish spies, and it would have been impossible for an expedition like the one in question to land without detection. But they were able to resist all attempts to wrest their supplies from them.

Around Trinidad and Cienfuegos fighting was constant. Each day saw its skirmishes, and there were some violent engagements, all of which left matters pretty much as they had been so far as any victory of a decisive character for either side was concerned. The Cubans were, however, able to disperse a body of Spanish troops which were advancing toward Las Tunas in the hope of relieving the citizens of that place, which was also in a state of siege. The Spaniards were bearing a quantity of provisions for the city, and in their flight these were abandoned and fell into the hands of the Cubans.

When matters were succeeding in a manner more or less favorable to the Spanish cause, the Volunteers were quiet and inclined to discontinue temporarily their opposition to Dulce, but when things took a turn for the worse he was always made the scapegoat. Hence the Volunteers were renewing their attacks on his policies, although for the time being he had been suffering one of his periodic reversions to severity. This time, the Volunteers were successful in obtaining the recall of Dulce as Captain-General. They simply drove him out by mob force, on June 4, and put into his place one Señor Espinar. This appointment was an arbitrary act, which the Spanish government refused to confirm, and therefore Espinar's political life was cut short almost at its inception, and General Caballero de Rodas became Captain-General of the island. Now Rodas should have been a man entirely to the liking of the Volunteers. He had won for himself a reputation for cruelty toward the republican insurgents in Spain while he was stationed at Cadiz, which had caused him to be called "the butcher of Cadiz." He evidently felt it incumbent to live up to his title, for now the Spanish troops were incited to unspeakable cruelties.

Promptly on taking office, Rodas began his career with the decree of July 7, 1869, which he fondly hoped would prevent further aid from reaching the revolutionists from the United States or from any other country. The proclamation was as follows:

"The custody and guardianship of the coasts of this island, of the keys adjacent, and the waters appertaining to the territory, being of the greatest importance, in order to suppress the insurgent bands that have hitherto maintained themselves by outside assistance, and determined as I am to give a vigorous impulse to the pursuit of them, and with a view of settling the doubts entertained by our own cruisers as to the proper interpretation of the decree promulgated by this superior political government under dates of November 9, 1868, and February 18 and 26 and March 24 last, I have decided to amplify and unite the aforesaid orders and substitute for them the following, which, by virtue of the authority vested in me by the nation, I decree:

"Article I.—All parts situated between Cayo Bahia de Cadiz and Point Maysi on the north side, and from Point Maysi to Cienfuegos on the south, with the exception of Sagua La Grande, Caibarien, Nuevitas, Gibara, Baracoa, Guantanamo, Santiago de Cuba, Manzanillo, Santa Cruz, Zaza, Trinidad and Cienfuegos, where there are custom houses, will continue closed to the import and export trade, both by foreign and coasting vessels. Those who may attempt the entry of any closed ports, or to open communications with their coasts, will be pursued, and, on being captured, are to be tried as violators of the law.

"Article II.—Vessels carrying gunpowder, arms and warlike stores, will likewise be judged in accordance with the law.

"Article III.—The transportation of individuals in the service of the insurrection is by far more serious than that of contraband of war, and will be deemed an act of decided hostility, and the vessel and crew regarded as enemies to the state.

"Article IV.—Should the individuals referred to in the foregoing article come armed, this will be regarded, *de facto*, as proof of their intentions, and they will be regarded as pirates, as will also be the case with the crew of the vessel.

"Article V.—In accordance with the law, vessels captured under an unknown flag, whether armed or unarmed, will also be regarded as pirates.

"Article VI.—In free seas adjacent to those of this island, the cruisers will limit themselves to their treatment of denounced vessels, or those who render themselves suspicious, to the rights given in the treaties between Spain and the United States in 1795, Great Britain in 1835, and with other nations subsequently; and if, in the exercise of these rights, they should encounter any vessels recognized as enemies of the integrity of the territory, they will carry them into port for legal investigation and judgment accordingly.

"CABALLERO DE RODAS."

Of course this action was incited and backed by the Volunteers, and met with their heartiest approval, but if either they or their mouthpiece, Rodas, had any real idea that such a decree would act as a deterrent against aid being sent to the Cubans, they misjudged the temper of the friends of the revolution in America. It simply made them aware of the necessity of increased secrecy and caution, but did not one whit curtail their enterprises.

To reinforce his action, Rodas promptly issued another decree against the insurgents in the following contemptuous terms:

"The insurrection, in its impotency, being reduced to detached bands, perverted to the watchword of desolation and daily perpetrating crimes that have no precedent in civilized countries, personal security and the rights of justice, the foremost guarantees of person and property, imperiously demand that said insurrection be hastened to its end, and without consideration toward those who have placed themselves beyond the pale of the law. The culprit will not be deprived of the guarantee of just impartiality in the evidence of his crime, but without delay admissible in normal periods, which would procrastinate or paralyze the verdict of the law and its inexorable fulfilment.

"As the guardians of the national integrity, the protection of the upright and pacific citizen, fulfilling the duties of my office, and in virtue of the authority conceded to me by the Government of the nation, I hereby decree:

"Article I.—The decrees promulgated by this superior political government under date of the 12th and 13th of February last shall be carried out with vigor.

"Article II.—The crimes of premeditated incendiarism, assassination and robbery, by armed force and contraband, shall be tried by a council of war.

"Article III.—The courts of justice will continue in the exercise of their attributes, without prejudice, however, of having submitted to me such cases as special circumstances may require.

"CABALLERO DE RODAS."

Thus, in high-sounding phrases and treacherous hypocrisy, did the "butcher of Cadiz" proclaim himself the guardian of persons and property. If his pronouncements had not had too grim a significance, they might have filled the Cuban patriots with the spirit of ironical laughter, such a divergence was there between his character and his past record, and the new rôle which he now announced himself as about to play.

Naturally this action did not pass unnoticed by the United States government. On July 16, the Secretary of State, Hamilton Fish, informed the Spanish minister at Washington that Rodas's decree of July 7 interfered with the commerce of the United States in a manner which could only be tolerated in times of war; that the United States would maintain her right to carry contraband in times of peace, and would permit no interference with her vessels on the high seas, except in time of war; that if Spain was in a state of war with Cuba it was incumbent on her to proclaim the fact; and further adding that the United States would regard any attempt to enforce Rodas's decree as a recognition by Spain of the existence of a state of war in Cuba, and would govern itself accordingly. Spain was in no position and had no desire to declare Cuba in a state of war. Such action would wrest from her certain advantages which in her present ambiguous position she was prepared to enjoy to the utmost. She at once recognized that Rodas's action was entirely too arbitrary, and might be productive of a most embarrassing situation, and therefore acting under instructions from the Spanish government, he at once receded from his arrogant position and his decree was materially modified.

American commerce with Cuba had been exceedingly profitable to those engaged in it, and, under the disturbed condition of affairs in the island, not only did it suffer, but the commercial interests of American residents in Cuba were badly jeopardized. General Grant still nursed his secret good will toward the cause of the revolutionists, although the advice of his Secretary of State had put a temporary restraint on it. It may be that this new indignity which Spain had sought to impose not only on the insurgents but also on American interests spurred him to action. However, that may be,

when Daniel E. Sickles was appointed United States Minister to Spain, on June 29th, 1869, he was instructed at once on his arrival in Madrid to offer to the Spanish government the good offices of the United States in an effort to bring about an understanding and adjustment between the revolutionists and the governmental party and to effect a cessation of the hostilities which were rapidly ruining both the Creoles and the Spanish landowners alike. Sickles received the most careful instructions to proceed in a conciliatory fashion, and in no manner to imply any recognition by the United States of the belligerency of Cuba. To guide him in his work, terms were drafted as a basis for the negotiations and they embodied the following points:

1. The acknowledgment by Spain of the independence of Cuba.
2. Cuba to pay Spain an indemnity under conditions to be thereafter agreed upon. In case such sum could not immediately be paid in full, the unpaid portion to be secured by the pledge of export and import duties, in a manner to be agreed upon.
3. The abolition of slavery in the island of Cuba.
4. The declaration of an armistice pending negotiations for a final settlement.

And, furthermore, Sickles was empowered, if necessary, to suggest that the United States would guarantee the payment by Cuba of the indemnity.

Sickles took up the negotiations with the Spanish government at Madrid in accordance with his instructions, and after much consideration the Spanish government agreed to accept the good offices of the United States government, provided it was not required to treat with the revolutionists on a basis of equality—that would be too galling to the sensitive Spanish dignity—but that it would be allowed to take the position of making concessions to a rebellious people, such concessions of course to be couched in legal terms, and carried out in accordance with constitutional forms and with all due solemnity. Above all, the result of the negotiations was not to be regarded as a treaty between armed powers on an equal footing. In support of her position, Spain made the following demands, as constituting the basis of settlement to which she would agree:

1. The revolutionists to lay down their arms and return to their homes.
2. Whereupon, Spain would grant a full and complete amnesty.
3. The question of the independence of Cuba to be submitted to vote by their own vote whether they desired independence or not.

4. Provided a majority vote was cast for independence Spain would grant it, the Cortes consenting, upon the payment of a satisfactory sum by Cuba, or the partial payment and guarantee by the United States of the remainder.

When Sickles submitted the result of his efforts to the government of his own country, that government, well knowing that the Cubans would never consent to the first two stipulations laid down by Spain, promptly rejected them. Sickles again took up the matter with the Spanish government, but they stood firm, and since there seemed no hope of an agreement on any terms which would be acceptable to the revolutionists, the matter was finally dropped.

Meanwhile Spain had been sending considerable reinforcements to Cuba, and commenced an active campaign against the force under the command of the American General Jordan. These were probably the best equipped and best trained troops which the Cuban army had at its command, and they were well fitted to administer a rebuff to the Spaniards, which they did. The attacks of the Spaniards were all unsuccessful, and the Cubans were elated by the certainty that in bravery and resources they were more than a match for the Spanish army, and that, when they were properly equipped they seemed to have the advantage. In these different battles—none of them of very large scope—the Spanish lost four hundred killed, wounded and taken prisoners. Meanwhile the Cubans attacked the Spanish forces near Baja, a small town on the bay in the vicinity of Nuevitas, and defeated three hundred marines under General Puello, killing eighty of the enemy.

But the rainy season was approaching and soon caused a halt in hostilities, while both armies were strengthening their positions looking forward to the time when weather would permit a resumption of the warfare. If the Spanish were obtaining reinforcements, the Cubans also were, in spite of the Spanish blockade and the decrees of the Captain-General, as well as the activities of the United States officials, constantly receiving aid from the United States. This mainly took the form of small expeditions from the southern states. However, at the close of July there arrived a company of two hundred and seventy-five recruits from the states of Ohio, Indiana and Kentucky, bringing with them large stores of food, clothing, arms and ammunitions. So it appeared that faith in the righteousness of the Cuban cause was not confined to what were known as the southern states.

These men were placed under the direct command of General Quesada, and thus reinforced he decided to make an effort to subdue and capture the besieged Las Tunas. He set out to go thither with twelve hundred men. All night long the fight raged on the outskirts of the town, and just as the morning was breaking the Cubans made a triumphal entry. By two o'clock the next afternoon the town was completely under their control. When news of this victory reached the Spanish headquarters, a large force was immediately dispatched to dislodge the Cubans, and spies reporting to General Quesada that the Spanish troops sent against him not only largely outnumbered his own, but also were bringing large quantities of heavy artillery with them, he decided that to hold the town would not be of sufficient importance—if indeed he could do so against such odds—to risk an engagement. He, therefore, again retired. He had been welcomed as a deliverer by the inhabitants of Las Tunas, for they had suffered gross indignities under Spanish occupation, and now many of them enlisted in the Cuban army, and accompanied General Quesada on his retreat.

It may have been that the attempted intervention of the United States government at Madrid led the Spanish government to believe that the time had again arrived to temporize; at any rate, several concessions were made in an attempt to pacify the insurgents, but without any perceptible effect.

Not every attempt to bring aid from the United States to Cuba was productive of results, and during the summer there had been a number of efforts which were abortive, or which failed of execution. But just as hope of a successful relief expedition was dying in the hearts of the Cubans, a party of six hundred men with a quantity of rifles and a large amount of ammunition arrived from that stronghold of Cuban sympathizers, New Orleans. Meanwhile General Jordan communicated a request for aid to his compatriots who composed the Cuban Junta in the City of New York. He reported that the Cuban army was composed of twenty six thousand eight hundred men, besides whom there were at least forty thousand freed slaves, who were armed merely with machetes. He requested that seventy five thousand stands of arms be in some manner dispatched to the Cubans, and expressed the opinion that if this could be accomplished, in ninety days the war would be determined in favor of the patriots.

Small bodies of Cubans were still carrying on guerrilla warfare wherever it seemed most effective, and the plantations belonging to Spanish sympathizers were suffering in consequence. The idea of this action was not

wanton destruction. The Cubans argued that it was from such sources as the rich Spanish planters that Spain, by taxation, obtained revenues which were enabling her to continue the war, and thus their own country was being used to supply funds for her own destruction; and therefore when they destroyed Spanish holdings, they were not only wreaking vengeance on their tormentors, but they were also reducing the resources which made the prosecution of the war possible. To offset these actions, the Spanish commanders were countenancing the most scandalous conditions, and allowing most wholesale torture and butchery of such luckless patriots as fell into their hands, in which they could have had no motive except to terrorize the Cubans, and to enjoy that peculiar pleasure which they seemed to take in cruelty and murder. However, in the month of November alone, the patriots were able to burn the buildings on and destroy the productiveness of over a hundred and fifty sugar plantations, which the Spanish government had confiscated under the order which Dulce had promulgated. These were plantations which belonged to soldiers in the Cuban army, and which had been seized by the Spaniards in the absence of their owners, and the revenues of which had been flowing into the Spanish treasury.

This work of destruction had the approval of General Cespedes, for he felt that it was necessary to cut off every possible source of revenue for Spain from the island, and so, in December, he issued a proclamation calling on all loyal patriots to see that it was made impossible for Spain to collect revenue from sugar and tobacco plantations on the island, when by any action of patriots this could be avoided.

The revolutionists had been encouraged, not only by their friends in the United States, but also by the sympathetic expressions of former Spanish colonies in South America, who were now enjoying their own freedom. As early as May 15, 1869, the President of the Republic of Peru expressed to General Cespedes his good wishes, in a letter couched in the following terms:

"The President of Peru sympathizes deeply with the noble cause of which your Excellency constitutes himself the worthy champion, and he will do his utmost to mark the interest that island, so worthy of taking its place with the civilized nations of the world, inspires him with. The Peruvian Government recognizes as belligerents the party which is fighting for the independence of Cuba, and will strive its utmost to secure their recognition

as such by other nations; and likewise that the war should be properly regulated in conformity with international usages and laws."

This action on the part of Peru was followed by recognition of the revolutionists on the part of other South American states of Spanish origin. Action was taken on this subject in Colombia, in June, 1870, when a bill was introduced into the House of Representatives proposing that all the Spanish-American republics form a combination for the active promotion of aid to Cuba, material and political, in her struggle for independence. This bill was reported out of Committee, with the following comments:

"1. The cause for which Cuban patriots fight is the same for which Colombia fought incessantly from 1810 to 1824.

"2. The interests of self-preservation, and our duty as a civilized and Christian nation, justify in the most complete manner Colombian intervention.

"3. The aggressions of monarchical Europe against the liberty and independence of America always have had and will have for a base Spanish dominion in Cuba.

"4. The policy of the United States cannot serve as a guide to Colombia on this occasion.

"5. The resources we may need for this war are not beyond our means.

"6. The time has arrived when Colombia should assume in the politics of South America the position to which she is called by her topographical situation, her historical traditions, her population, and her political conquests."

In spite of this favorable report, and the fact that the bill passed the House, the Senate rejected it.

Thus the struggle went on, the patriots fighting almost with the courage of desperation, gaining a little here, and losing there, but always holding before them the justice of their cause, and resolutely refusing to admit the possibility of failure.

CHAPTER XIII

WITH the opening of the year 1870, the revolutionists had in the field forty thousand well disciplined, and for the time being at least well armed troops, who were under the command of efficient officers, and a competent military organization. The movements of the troops were, so far as possible, directed according to a concerted plan, and their distribution through the island was governed in the same manner.

Spain had also increased her regular army, and her navy had been greatly augmented, for she now had in Cuban waters, in addition to the men-of-war which had at the beginning of the war been stationed there, the following:

2 iron-clad vessels	48 guns
2 1st class wooden steamers	85 guns
6 2nd class wooden steamers	69 guns
1 3rd class wooden steamer	2 guns
4 steam schooners	11 guns
6 gunboats	6 guns
13 armed merchantmen	41 guns
2 sailing gunboats	2 guns
1 transport	4 guns
1 schoolship	6 guns

About the middle of April, 1870, an occurrence happened of which the Spanish made great capital, spreading the tidings throughout the world. Connected with it is one of the illustrious names in Cuban history—a name which has been borne by some of the most famous Cuban patriots. However, it has been said that there is no family which has not its black sheep.

Augustin Arango gave his life for his country, when he was murdered by the Spaniards, while on the way to the conference at Puerto Principe, under safe conduct from the Spanish leaders. Two other members of the Arango family were prominent in the support of the revolution. It remained for Napoleon Arango to disgrace his family. He had taken an active part in the revolution upon its inception, but had not been accorded a high place in the

revolutionary government, or the rank which his ambition craved in the army, because his loyalty had been suspected. Angry and disgruntled, he made an attempt to betray his friends to the Spanish troops. His action was, however, discovered in time, and he was arrested, tried, found guilty and sentenced to death. The high standing of the Arango family, and the fact that his brother had given his life for the cause of liberty, were urged as reasons for commuting his sentence, and he was finally taken from confinement, and driven outside the Cuban lines, with orders never to return under penalty of having the death sentence executed. He quickly made his way to the Spanish army.

All this happened in 1869, and for almost a year Arango had been living under Spanish protection. Suddenly, in April, 1870, the Spanish authorities caused the report to be circulated that Arango had surrendered himself to them, bringing with him a large force of Cubans, who had declared their allegiance to Spain, and the Spanish Government in Cuba cited this as an indication of the weakness of the patriots, and as an augury of their approaching dissolution and of the ultimate triumph of Spain. As a matter of fact, Arango had always been a trouble maker and a potential traitor; he had been characterized by one Cuban officer as a "poor, despised, worthless creature," and it is needless to say that the whole story was false from beginning to end. However, Arango issued a grandiloquent statement, in which he explained his supposed action, and urged the Cuban revolutionists to lay down their arms and follow his example. His open letter to Cuban patriots is to be recalled as one of the curiosities of treason. It ran as follows:

"Cubans!"

"When Carlos Manuel de Cespedes thought of raising the cry of Independence and expected the other cities of the Island to second him, he received as a reply, from the jurisdiction of Holguin and Puerto Principe, *that they would not support him*; and the Cinco Villas and other towns maintained an attitude of expectancy. Notwithstanding this, Cespedes said that he had no need of the *reminder* and that he *would pronounce* on the 14th of October as he did in fact but somewhat in advance of that date. Having so many reasons, as I have, to know the country as well as the character and tendencies of its inhabitants; and also what Spain would do and what was to be *expected of the people* on the Island; knowing moreover the policy of the United States and the effects as well as the consequences

that must follow a revolution especially when it was an *extemporaneous outburst*; and being convinced besides that owing to the heterogeneous nature of our population and to the little *enlightenment* of the masses, *nothing but extermination* could be expected for Cuba, I took part in framing the reply given to Cespedes by Puerto Principe, stating that *since he took pains to carry out so wicked an idea, he should not be seconded by us*; and *we made him responsible* before posterity for the evils which he was about to bring on Cuba.

"Cespedes and his inexperienced fellow-believers proclaimed Independence at Yara without any supply of arms or munitions of war, without provisions, clothing, etc., etc., with which to support their movement. Ignorant of what revolution is, they bunched forth just like children who heedlessly play with a wild beast, in entire ignorance of its nature. The first movement of enthusiasm on the part of the people, and of surprise on the part of the Government gave them the victory at Bayamo; and they at once thought that the Independence of Cuba was already secured. This was a fatal error, a sad illusion, which blunted the common sense and gave *loose rein to their passions*. It was the fatal error of those men who had not sufficient strength of will to be able to wait. Ah! how fatal it is not to know when to wait!

"The Camagueyans were aroused at the enthusiastic shout for liberty, and they wished to help their brethren of Bayamo, driven on by a sentiment of fraternity and by their yet stronger love of liberty;—that noble aspiration which God has imbued in the hearts of all men. I shared not in these desires, although I did really in their sentiments, but I was restrained by experience and by my knowledge of the situation. Anxious to be of service to my country, I offered to go to Bayamo as a representative from Puerto Principe, which I did.

"From my first steps into the Eastern Department, I was *convinced of the error* into which the people had fallen, and the *impossibility* of keeping up so unequal a contest. Moreover after studying the revolution and sounding the feelings of the people, I discovered that they *did not desire* the movement but had been dragged into it; without noticing in the beginning, owing to their blind precipitation, that they were not prepared to receive a successful issue.

"In some private circles I spoke of the propriety of *changing* the cry for Independence into an acceptance of the *Cadiz programme*;—an idea which was *well received* and seemed so to change the course of affairs, that I saw a great risk, being threatened by the few who persisted in their original intention. I spoke to Cespedes and made known to him the untimeliness of the revolution; that if he really desired the welfare of Cuba, this latter consisted in withdrawing from a war that must be ruinous and unsuccessful in the end; that the liberties offered in the Cadiz programme *were perhaps even more than would suit Cuba*, etc., etc. Cespedes, *convinced* by my reasoning *agreed to my proposals*; and if he then failed to follow my advice it was, to use his own words, because he feared that he would not be obeyed by those who had already proclaimed for Independence. They did not understand the true policy that should be followed in the guidance of returns. They began badly and will end worse.

"On my return to Puerto Principe I found the country in insurrection, *dragged on* by two or three men who were led wrong by their ill-digested ideas of liberty or by their own *private interest*, and whose only wish was *revolution in whatever way it could be brought about*. I grieved at this mistake, but without losing heart, and always firm in advancing the prosperity of Cuba, I called a meeting which was held at Clavellinas. There I made known the result of my observations during my trip to Bayamo; and after some discussions, the force of my arguments *prevailed*. With *one* exception all agreed that we should *adhere to the Cadiz programme*. I was afterwards appointed General-in-Chief with *especial charge* (thus it was set forth in the record) *that I should have an interview with General Valmaseda for the purpose noted above*.

"In a conversation with that gentleman he manifested the *best of intentions* in favor of a pacification, but stated that he was not empowered by his government to make any concession. He offered nevertheless to grant *effectual ones*, so soon as he could obtain the power. He called my attention to this; that whatever the liberties which should be granted to Cuba, the rights of the Cubans would have to be regarded as attacked if they did not *send representatives* to have a hand in everything that might be done in regard to this country.

"I knew too well the *reasons* of General Valmaseda, but fearing that my fellow countrymen might not seize the force of his reasoning, we agreed upon a truce for four days which I requested in order to call another

meeting more numerous and one which should decide the matter. This meeting *took place* at *Las Minas*; and there as well as at *Clavellinas*, the majority was *not for a continuation of the war* but for *accepting the Cadiz programme*. Had a vote been taken, it is certain that this choice *would have carried*; but I refrained from calling a vote in order to be consistent with the *Caunao* district which had made known through its delegate, Don Carlos L. Mola, Junior, that it wished to have no voting; because in case thereof they would be bound to its result; and that district was only in favor of *accepting* whatever the government *chose to grant them*.

"An *immense majority* was in favor of the *programme*, and, nevertheless, the war was kept up because those bent upon it spared no means nor suggestion to entice away those in favor of the *Cadiz programme*. That is to say that, taking advantage of family ties, of friendships, and of an ill comprehended association, etc., etc., they dragged along with them the *unwary* and the *inexperienced*, who were *reluctant* enough and who now know their error, as I never wished to force upon anyone (not even on my own brothers) my own ideas, nor to make use of any other means than persuasion, in accordance with reason. I confined myself to simply resigning the rank that had been conferred on me and withdrew to my plantation. From that time forward, I busied myself merely with enlightening the people, showing them the mistakes into which they were led by those who were interested in the continuance of the war.

"I have not sought to impose my notions upon anyone, but I do not any the more accept those of others when my reason and my conscience reject them. And I believe there is no right, nor law, nor reason to support those who willingly, or through force, wish to force upon others their own ideas however good or holy these may be.

"Those who are at the head of the Cuban government and guide the revolution believe their triumph possible; they think their ideas are correct and their way a good one. Very well; but not believing as they do, I move aside from that government, whose *pressure and arbitrariness* are such, that it will not even admit neutrality in others. I will not wage war against you; I will not take up arms against you except in personal defence; but I separate from men who wish to *impose* their own notions on others *through force*. You are free to think and act as you like, and I reserve to myself the same right and act in accordance therewith.

"But there is more. In the position where, unfortunately and much against my will, events have placed me, I occupy a place as a public man, as a politician in Cuban politics; and I should not remain inactive while I behold the destruction of Cuba and look out merely for my personal safety under the protection of the Spanish government. No, Gentlemen, I would then be a bad patriot, and I love my country before liberty or rather I do not understand the former principle as divorced from the latter. Both are intimately bound together; and in order that the first be worthy, honorable and beneficial to humanity it cannot be separated from the second.

"I am a Cuban, the same as yourselves, and I have consequently the same right to busy myself with the welfare of my country. Let everyone have his method; you pretend that you obey the popular will; that you are at the head of government, because the will of the people and popular choice; that you act in uniformity with ideas and sentiments of the Cubans; and finally that you are provoking the welfare and prosperity of Cuba. *I shall prove entirely the contrary.*

"The favorable reception with which my ideas were met at Bayamo, the meeting at Clavellinas, that at Las Minas, and the desire—almost unanimous—to accept the *concessions* offered by General Dulce, prove sufficiently that the country wanted peace, nevertheless you maintain war. Hence, popular suffrage in the country is but a chimera.

"Let us see how the actual government was formed. On the one side, Carlos Manuel de Cespedes who, *for himself* and in *his own name set himself up* as the *dictator* of Cuba, *appointed* a certain number of deputies for the cast, at the famous meeting in Guaimaro. That is a fine representation of popular will and an admirable republic, when the deputies are not elected by the people! On the other hand, the assembly at Puerto Principe was *illegally constituted* and *entirely unauthorized*; and, finally, some deputies from the Cinco Villas—the only ones which perhaps held a legitimate representation—met together and formed the actual government, which they should have called the *Venetian* rather than a *Cuban Republic*. They formed the government by *sharing with each other the offices*, and they propose thus to shape the destiny of Cuba. A *handful of men* thus representing over a million souls, who *have had no share* in their nomination, does not assuredly constitute popular election.

"The Cubans want the liberty of assemblage, freedom of speech, respect of property, personal security, the liberty to leave the territory of the Republic,—which is a right secured in all nations of the world to every individual, they want, in fine, to be governed as the majority choose, and not according to the will of a few. But *nothing of all this is done*. Whoever puts forth ideas *contrary* to those of the government or any of its *functionaries*, is *threatened* with four shots, *property is a prey to the first comer*, who, with arms in hand can take *possession* of what suits him; the *lives* of men are *sported* with, just as children sport with flies; and in fine whoever attempts to abandon the government, even without intruding to wage war on it, is persecuted to death. Hence the conduct of said government is not in conformity with the ideas and sentiments of the country.

"If to all this be added the *arsons* and the complete *destruction* of Cuban wealth, the *demolition of towns* and—what must follow in the end, can there be one sensible man who will maintain that all this constitutes the prosperity and well-being of Cuba? Assuredly not.

"You employ *force, deceit, terror* to *drag the masses* on and carry out whatever you judge beneficial for the cause of Cuba; I use only reason, truth and the irrepressible logic of facts and of experience, not the material argument of arms.



DOMINGO GOICOURIA

"Well, then, knowing as I do that the country *does not want war*, and that it continues therein under the *pressure* of the Cuban government in the one hand and on the others out of fear of the punishment which the Spanish government might inflict, knowing as I do that nothing is to be expected from the United States as it was attempted to make the people believe; knowing that since the beginning of the Insurrection, 40,000 men have come from Spain, and that many more will come—a fact generally unknown in this country; aware, as I am, that over 100,000 men are under arms; that the coasts are well watched, and that the New York Junta lacks resources to send material aid to the Insurrection; aware moreover that the *Cuba*, the *Lillian*, the

expedition of Goicouria and others are lost resources; that the Insurrection is almost stifled in the East and in the Cinco Villas; that in the Vuelta-Abajo far from there being any secessionists, it is the country people themselves who pursue the insurgents, as has taken place in Guines; knowing as I do that the families to be met with in the fields are anxious to return to the towns; and aware of the importance attached to my conduct, both in the Island and abroad, I have made a new sacrifice for my country. I have come forward with my family to prove by my example that I do not believe in the triumph of the Insurrection, nor do I fear the Spanish government; which animated as it is with the best of wishes is ready to draw a veil over the past, provided the country can be pacified and many tears, much blood and loss of property be spared.

DOMINGO GOICOURIA

General Domingo Goicouria, one of the pioneers of Cuban independence was born in 1804, and was an active participant in the Lopez expeditions and other uprisings. He was one of the leaders in the beginning of the Ten Years' War, but was captured by the Spaniards, at Cayo Guajaba, and was put to death at Havana on May 14, 1870.

"It is a sacrifice indeed, Gentlemen, for I expose my name to the evil-tongued and make it the butt of false interpretations.

"I believe firmly that the happiness of Cuba and the welfare of humanity consists in the pacification of this beautiful country, and maintain this in the presence of the whole universe with my hand on my conscience and head erect as becomes a man of honor.

"There is no man who is infallible, and perhaps my opinions and determination may be wrong; but I can at least affirm that I am acting in good faith, having for sole object in view the welfare of my country and of humanity and making total abstraction of my own personality, as well as of my own interests.

"I am not a time server but a man of fixed principles; I am convinced of my opinions and feel the energy of my convictions. I now maintain what I have maintained since the beginning of the revolution, even previous thereto. My actual conduct is not therefore an apostasy but the energetic continuance in my opinions and principles. These I do not mean to impose on any one; merely make them known, inviting all to examine them in every detail, and I am sure that they will follow my example. But if blind to reason and unmindful of the events which for a year and a half have supported my predictions, they persist in a struggle which I believe

hopeless, let them keep on, but without *extending the horrors of war to families*. Let the women and children whom *government* wishes to *foster* and *daily supports* with rations of bread, rice, butter, etc., come to the city; and let you keep on, if unfortunately you refuse to listen to the voice of reason and patriotism, in that senseless contest, which you must later repent having ever begun.

"Reflect a moment; examine thoroughly, and not merely the appearances of the situation, and you will see that the existing strife is an unqualifiable mistake, and its continuation an unparalleled blindness.... What has become of the intelligence of Cubans? Where are the energy and the influence of men of intelligence and character?

" ...Cubans! You have seen that I have always been a protector to the people; that I have tried to enlighten them, that they might have a participation in everything and know what they were doing, so as to follow their own ideas and not be carried off by others; but what has been the result? I was treacherously and illegally arrested, at the request of those who wish to rule the masses; I was sentenced to death, and over twenty times they have tried to put an end to my life.... Natural sense shows clearly that when an attempt is made to annihilate him who speaks the *truth*, who *enlightens* and never *deceives*; who instead of speculating on his fellow countrymen and growing rich on the revolution makes use of his own means to succor the masses (let all Yaguajey speak); who never makes use of any pressure to enforce his ideas, who allows himself to be ruined from the neglect of his own interests, in order to give himself up solely to the welfare of his country; does it not show clearly, I say, that the attempt is made only because his adversaries have different pretensions and a different line of conduct from his? Now what is this difference? It consists in *violence*, *deceit*, the use of *force*, *spoliation* of the neighbor for *his own benefit*; it is despotism, based on the ignorance in which the people are kept. I have sought to have the country governed as it is its wish to be governed, in accordance with universal suffrage; your government, *on the contrary*, pretend to rule it as they see fit. They state that they want liberty for the people whilst the most *cruel despotism* weighs upon you....

"The people are told that from the United States will come reinforcement and resources; that there are elements to spare for the continuation of the war; that the Spanish soldier carries a cartridge-box and wears shoes of rawhide and is short of provisions; that there are *no troops* nor will *any*

come from Spain; that the *taxes are ruining* the country, etc., etc. Well, I ... tell you all this is *illusion, deceit*, and a fatal chimera.

"The government of the United States does not busy itself nor can it with the Cuban Insurrection. Look at Article 16 of the Treaty of 1797 and you will learn that they cannot favor the Cubans in the least efficacious way without failing in national dignity and exposing themselves to a coalition against themselves. That government is too polished and financially shrewd to compromise itself in a war that would entail serious mischief upon its commerce; and moreover there are other motives that would be too lengthy to detail....

"I have just read a manifesto of Manuel Quesada, published in New York under date of the 8th inst., in which he sets astray entirely the opinion that should be formed of the state of insurrection. I shall tear off the bandage. He states that the Cuban army numbers 61,000; that there are here five powder factories; that firearms are manufactured here as well as swords and bayonets; that there are thirteen public schools and thirteen churches; that three thousand shoes are made every week and four thousand hides tanned every month; that the soldier receives for daily ration, beef, sugar, coffee, vegetables and rice at his discretion, tobacco, etc.; that there are many sugar mills grinding for the state; that several warehouses are filled with tobacco, sugar, hides, etc., to the value of many millions of dollars, that the territory which is occupied by the Cubans in insurrection is in a cultivated and producing condition, such as has never before been witnessed, even during years of the greatest abundance; that thousands of percussion caps are daily made; that he (Quesada) left here under commission of importance after having temporarily put Jordan in command under instructions, as well as the other leaders, etc., etc., to an endless length. I address you, fellow countrymen, who are there on the ground of this insurrection, whence I have lately come. You all, as well as myself, know that all these things are *false, entirely false*.

"Quesada states that he has gone to seek means and bring arms, with which to end the insurrection, but for what *does he need them if he has 61,000 men?* Is it possible that it should not occur to the inhabitants of New York to ask him *what need he has of more means when he has so many thousand men? When he has over 20,000 arms and can make more as well as powder and caps?* Why has not *that soldier of fourteen years' campaigning* taken possession with that army of *one single town* at least

wherein to *locate the government* of the republic? Why has he not *captured one single port* through which to get aid, export the productions of the country to the value of millions, and thus acquire a right to recognition as belligerents? *Where are schools? Where are those churches?* Have those at Guaimaro and Sibarncu, which *were burned* by that renowned general been perchance rebuilt? Why are the soldiers *unshod* or wearing *strips of raw hide* if there are three thousand shoes made weekly and four thousand hides tanned per month? *Where is the abundance* for the soldier? *Where has he got coffee, rice, tobacco, etc.?* *Where are those sugaring mills* in regular running order?... Then as to the commission of Manuel Quesada and his separation from command, do you know as well as I do that he was *ignominiously deposed by the Chamber*, and that *during his stay* in Cuba, from his first arrival his conduct has been *blameworthy under all aspects*?

"Well, then, Cubans, this is the plan followed from the beginning of the revolution. They are deceiving you and our brethren in New York as well as the whole world. For these reasons I say that the edifice is raised on insecure and imaginary foundations. For these reasons have I always tried to undeceive the country and let them see clearly, so as to prevent Cuba from sinking into the abyss wherein she is intended to be cast. Withal I have not been understood. There has been no lack of someone who, out of exaltation and under pressure of some sad aberration has qualified my conduct as treasonable. Ah! Whoever stated that knows not even the meaning of his words! When did I ever recognize this government? Never; but rather have I always been in opposition thereto. For as I wish my country's welfare I could not second an *illegal, arbitrary, despotic* government that is *annihilating* our land.

"They recognize their error, but they have not loyalty enough to confess it, they are aware that they are neither statesmen nor lovers of liberty, nor patriots and their consciences sting them; they know that I have always seen farther than they could, and more clearly, that all my predictions have been fulfilled; that I have been alone in maintaining energetically my principles; bearing up against all kinds of privation and danger; and they do not forgive me for these advantages over them; they know that my past and my present career have been free from all stain; and they do not forgive me for that.

"Well, if to have thus behaved, to have made entire abstraction of self and my interests, to look after the welfare of Cuba, to have done harm to no one, but much good; far from having taken life, to have saved the lives of

many, without distinction of nationality; to have respected always the property of others, and never have let my hand touch the incendiary torch, to forward pacification, when I know that the country needs it; and that by it alone can tears, blood, and destruction be prevented;—if to have done all this constitute treason, ah! then I am a traitor; yes, Gentlemen, I am one and feel proud of it.

"Your government claims to favor liberty for the country; why then does it not consent to *freedom of one's principles*? Why does it not *admit of neutrality*? Why does it force people to take up arms without *distinction of persons*? Why has it always been opposed to *speaking out in public*? Why did it oppose the *country's acceptance*, when so close, of *General Dulce's concessions*? Why does it *persecute to death* whoever tries to separate himself from said government without having any intention of waging war against it? Why? I will tell you. Because then there would *remain in the camp of the insurrection only a dozen men; the only ones interested in the continuance of this war* between brethren; this war of desolation and extermination.

"I agree that there was reason for the Cuban people to complain and be resentful against the government that ruled them; but all this has changed, not only with regard to the institution but as to the manner of being as well. I am myself an example of what I state. I presented myself to the Captain-General who received me in such a way as to prove by his manner alone, his good wishes; even if these were not confirmed by the conduct which he followed in the Villas and wherever he has been able to make the impress of his own feelings felt. In his proclamation he offers a pardon to all who will present themselves; but as every medal has its reverse, so whoever fails to do so must suffer the cold and inexorable rigor of the law.

"Fellow-countrymen, my brethren, let us throw a veil over the past. Let us look to the future of our families and to the prosperity of our nation.

"You know well how many persecutions, privations and even vexations I have suffered. I forget it all and forgive from my heart all who have sought my death and wanted my blood. I forgive all who, directly or indirectly have offended me, of whatever nation or condition they may be. I sacrifice all, all, on the altar of my country, and for the welfare of humanity. Why do you not follow my example?

"Brethren! let there be no more tears, no more blood, no more ruins! Return to your presidios and let a fraternal embrace unite forever both Spaniards and Cubans and let us all together make of this beautiful Island—the Pearl of the Antilles—the Pearl also of the world. Cubans, I await you, and the undeserved consideration shown to me by the first authority of Cuba which fortunately is held by Señor Don Antonio Caballero de Rodas I offer to use in your behalf. For myself I seek only the satisfaction of having always forwarded the welfare of Cuba.

"NAPOLEON ARANGO.

"March 28th, 1870."

The italics are Arango's and his alone also the extraordinary sentiments expressed in this remarkable document.

In this same year, the question of slavery came up for attention. While the United States government had abandoned its attempt to mediate between Spain and Cuba it had, of course, by its own action during the Civil War, definitely arrayed itself against slavery wherever it existed, and it now, through its Minister to Spain, Daniel E. Sickles, entered into negotiations with the Spanish government, looking to the actual freeing of the slaves in Cuba.

Of course news of these happenings did not fail to penetrate Cuba and to reach the ears of the Captain-General. Indeed he seemed to have a premonition of them, even before the United States government had definitely taken up the matter with Spain. He was nothing if not an opportunist, and he, therefore, on his own account, on February 24, 1870, issued a decree which had the effect of freeing two thousand colored prisoners of war, and which read as follows:

"Superior Political Government of the Province of Cuba:

"Decree:

"By virtue of the faculties with which I am invested, and in keeping with the royal decree of the 27th of October, 1865, I think fit to extend by decree of the 21st of September, ultimo, declaring exemption from dependency on the government the expeditions entitled Puerto Escondido, Cabanas 10, Cabanas 85, Cabanas San Diego de Minez and Trinidad.

"In consequence thereof the employers who have in their service emancipated slaves of the referred-to expeditions, will present them in the Secretary's office of this superior government within the period of one month, in order that, after the usual formalities, they may receive their letters of exemption.

"At the same time, the governors and lieutenant-governors will publish this direction in the periodicals of their respective jurisdictions, so that it may come to the notice of the holders of

these emancipados and they cannot allege ignorance of it.

"CABALLERO DE RODAS.

"Havana, February 24, 1870."

Rodas was crafty, and he now thought of a device which under the guise of mercy would hamper the Cuban army. On May 26th he promulgated a second decree freeing all slaves who had acted or would act as guides to the Spanish army, or render any like valuable service to the government, an effort, of course, to induce the former servants of patriots to betray their masters and the Cuban army into the hands of the Spaniards. To disguise the baldness of this attempt at corruption, he also included a provision, freeing all slaves belonging to the insurgents or who had escaped to foreign countries. This provision was for all practical purposes meaningless and without any value, because the Cubans themselves who were fighting for freedom from Spain had already emancipated their slaves.

Meanwhile negotiations between Sickles and the Spanish government resulted in the promulgation of a decree, which was known as the Moret law, acquiring its name from the Spanish Minister of Colonies, whose signature was one of many signed to the document, and who is reported to have had a hand in its composition. It bore date, July 4, 1870, and was promulgated by the Captain-General nearly two months later, as follows:

"Superior Political Government of the Province of Cuba:

"His Excellency the Regent of the kingdom communicates to me, under date of July 4th ultimo, the following law, which has been promulgated or sanctioned by the Congressional Cortes:

"Don Francisco Serrano of Dominguez, Regent of the kingdom, by the will of the sovereign Cortes, to all to whom these presents shall come, greeting:

"Know ye that the Congressional Cortes of the Spanish nation does hereby decree and sanction the following:

"Article 1. All children of slave mothers, born after the publication of this law, are declared free.

"Article 2. All slaves born between the 18th of September, 1868, and the time of the publication of this law, are acquired by the state by the payment to the owners of the sum of twenty five dollars.

"Article 3. All slaves who have served under the Spanish flag or who have in any way aided the troops during the present insurrection in Cuba are declared free. All those are equally recognized as free as shall have been so declared by the superior government of Cuba, by virtue of its jurisdiction. The state shall pay their value to their masters, if the latter have remained faithful to the Spanish cause; if belonging to insurgents, they shall receive no indemnity.

"Article 4. Slaves, who, at the time of the publication of this law, shall have attained the age of sixty years are declared free, without any indemnification to their owners. The same benefit shall be enjoyed by those who shall hereafter reach this age.

"Article 5. All slaves belonging to the state, either as emancipated, or who for any other cause are at present under the control of the state, shall at once enter upon the full exercise of their civil rights.

"Article 6. Those persons freed by this law who are mentioned in articles 1 and 2, shall remain under the control of the owners of the mother, after the payment of the indemnity prescribed in Article 2.

"Article 7. The control referred to in the foregoing article imposes upon the person exercising it the obligation to maintain his wards, to clothe them, care for them in sickness, giving them primary instruction, and the education necessary to carry on an art or trade. The person exercising the aforesaid control acquired all the rights of a guardian, and may, moreover, enjoy the benefit of the labor of the freedman, without making any compensation, until said freedman has reached the age of eighteen years.

"Article 8. When the freedman has reached the age of eighteen years, he shall receive half the wages of a freedman. Of these wages, one half shall be paid to him at once, and the other half shall be reserved in order to form a capital for him, in the manner to be determined by subsequent regulations.

"Article 9. On attaining the age of twenty-two years, the freedman shall acquire the full control of his civil rights and his capital shall be paid to him.

"Article 10. The control will also be annulled: first, by the marriage of the freedman, when the same is entered into by females over fourteen years and males over eighteen years old; second, by a proved bad treatment on the part of the guardian or his noncompliance with his duty, as stipulated in Article 7; third, should the guardian prostitute or favor the prostitution of the freedwoman.

"Article 11. The above mentioned control is transmissible by all means known in law, and is also resignable when just motives exist. Legitimate or illegitimate parents who are free shall be permitted to assume the control of their children by the payment to the guardian of the same of any expense he may have incurred for account of the freedman. Subsequent regulations will settle the basis of this indemnification.

"Article 12. The Superior civil government shall form, in the space of one month from the publication of this law, lists of the slaves comprised in articles 3 and 5.

"Article 13. The freed persons mentioned in the foregoing article remain under the control of the state. This control is confined to protecting them, defending them and furnishing them the means of gaining a livelihood, without limiting their liberty in the slightest degree. Those who prefer to return to Africa shall be conveyed thither.

"Article 14. The slaves referred to in article 4 may remain with their owners, who shall thus acquire control over them. When they shall have preferred to continue with their former masters it shall be optional with the latter to give them compensation or not, but, in all cases, as well as in that of the freed persons being unable to maintain themselves by reason of physical disability, it shall be the duty of the said former masters to feed them, clothe them, and care for them in sickness. This duty shall be a concomitant of the right to employ them in labors suitable to their condition. Should the freedman object to the compliance with his obligation to labor, or should he create disturbances at the house of his guardian, the authorities will decide the questions arising therefrom, after having first heard the freedman.

"Article 15. If the freedman of his own free will shall leave the control of his former master, the latter shall no longer be under the obligations mentioned in the foregoing article.

"Article 16. The Government shall provide the means necessary for the indemnifications made necessary by the present law, by means of a tax upon those who shall remain in slavery, ranging from eleven to sixty years of age.

"Article 17. Any act of cruelty, duly justified as having been indicted by the tribunals of justice, will bring with it as a consequence the freedom of the slave suffering such excess of chastisement.

"Article 18. Any concealment impeding the application of the benefits of this law shall be punished according to title 13 of the penal code.

"Article 19. All those shall be considered free who do not appear enrolled in the census drawn up in the Island of Porto Rico the 31st of December, 1869, and in that which will have been drawn up in the Island of Cuba on the 31st of December of the present year, 1870.

"Article 20. The Government shall make a special regulation for the execution of this law.

"Article 21. The Government will report to the Cortes when the Cuban deputies shall have been admitted, a bill for the compensated emancipation of those who remain in slavery after the establishment of this law. Meantime this emancipation is carried into effect; the penalty of the whip, authorized by chapter 13 of the regulations for Porto Rico and Cuba, shall be abolished; neither can there be sold separately from their mothers children younger than fourteen years, nor slaves who are united in matrimony.

"By a resolution of the Congressional Cortes the foregoing is reported to the Regent of the Kingdom for its promulgation as a law.

"MANUEL RUIZ ZORILLA, President.

"MANUEL DE LIANOS Y PERSI, Deputy Secretary.

"JULIAN SANCHEZ RUANO, Deputy Secretary.

"FRANCISCO XAVIER CARRATALA, Deputy Secretary.

"MARIANO RUIZ, Deputy Secretary.

"Palace of the Cortes, June 23, 1870.

"Therefore I order all tribunals, justices, officers, governors and other authorities of whatsoever class or position, to obey the same and cause it to be obeyed, complied with and executed in all its parts.

"FRANCISCO SERRANO, Minister of Ultramar.

"SIGISMONDO MORET Y PRENDERGAST.

"San Ildefonso, July 4, 1870.

"And, having opportunely omitted the publication of the same for the want of the regulation referred to in Article 20, and having received the sense in which said document is to be drawn up, I have ordered the exact compliance of said law, in virtue of which it is inserted in the Official Gazette for future guidance.

"CABALLERO DE RODAS."

"Havana, Sept. 28, 1870."

If these decrees were intended to fill the insurgents with gratitude, and to have the effect of halting the revolution, they fell far short of their mark. In the first place, the Spanish Government had too often tricked her Cuban subjects, and they had little cause to have faith in either her good will or her good intentions, and much more cause to believe that her action was intended as a sop to the Government at Washington, an attempt to "pull the wool over the eyes" of American sympathizers, and even a very cursory glance at the provisions of the Moret law would convince even a layman

with no knowledge of jurisprudence that there was small chance of their ever being enforced.

It is true that this law provided for the freedom of all slaves born after a certain date, but it left them in the care of their mothers, and under the control of their former masters, condemned to serve without pay and virtually free only in name. It also proclaimed the freedom of slaves who had reached the age of sixty years and who very likely had endured years of such hard treatment that they were infirm and in no condition to support themselves. If they were reluctant to start life alone and either by timidity or by coercion remained with their masters, the latter were at liberty to pay them or not, and when a Spanish planter had the option of obtaining labor free rather than paying for it, there was not much room for doubt as to what course he would pursue. The whipping post was abolished, but the Cubans were too busy with other matters to patrol the country in search of violations of this regulation, and the masters were pretty safe to conduct themselves as they chose. This law, which contained such fair words that it met with the approval of the American minister, was almost ludicrous in its paradoxical terms, and instead of impressing the patriots with the softened hearts of their tyrannical masters, it must have filled the intelligent ones with mirth.

Besides this, since upon the declaration of the independence of Cuba the revolutionary government had declared the freedom of all men on the Island, Spain's action so long afterward was like opera bouffe, or rather a grimly amusing anti-climax. As a matter of fact the Moret law remained a dead letter, unenforced, overlooked, violated, almost forgotten, and the subject of slavery again fell into the background, while the war took the front of the stage.

Spain was having constantly to reinforce her army, and she was unable to do this in sufficient numbers to make up deficits properly. The climate of Cuba was very hard on the new recruits who had not become accustomed to it, and Spain lost almost as many by disease as she did in battle. She renewed her cruelties against the unprotected Cuban planters, and not only burned and pillaged, but subjected all captives to the most revolting and sickening cruelties, gouging out eyes, cutting out tongues, crucifying and hanging men by their hands. Probably the atrocities practiced by the Spaniards in this war were never equalled, unless we recall the barbarities which they practiced later in 1895, until the Huns of Prussia invaded

Belgium and France in the great war of 1914-18, and showed what inefficient novices in deviltry the Spanish had been when compared with the disciples of "Kultur."

The year 1871 opened brightly for the patriots. That seasoned warrior General Jordan led a company to victory, at Najassa, against a force of Spaniards under General Puello. The Spanish losses were especially gratifying, if that term may be employed, since they included thirty-six officers.

Meanwhile Rodas, in spite of his methods, which must have been most gratifying to them, fell into disfavor with the Volunteers, and they exerted their power against him, finally effecting his resignation and the elevation of Count Valmaseda in his place, in a temporary capacity, until another Captain-General could be sent from Spain.

NICOLAS AZCARATE

Nicolas Azcarate was the founder of the New Lyceum of Havana which for years was the centre of the intellectual life of that city, and his home was the resort of the literary and artistic world. Papers read at his receptions by eminent men were published in two volumes under the title of "Literary Nights." He was born in 1826 and died in 1894, leaving a literary influence which is still gratefully perceptible.



JUAN CLEMENTE ZENEA

Spain once more made overtures to the United States Government, asking it to use its offices in eliciting from the



NICOLAS AZCARATE

revolutionary government some statement of terms which would be satisfactory to them as a basis of peace. Since former efforts to bring the belligerents together had been so productive of failure, Washington demurred from officially undertaking the matter; whereupon Don Nicolas Azcarate went to Washington from Spain with authorization to offer to the insurgents an amnesty, and disarmament of the Volunteers, provided the Cubans laid down their arms. They were further to be granted the immediate and unconditional emancipation of slaves, irrespective of age and condition of servitude. All confiscations made by either side were to be annulled, and the property thus seized was to be restored to the original owners. Religious freedom, free speech, and free assembly, were to be granted the Cubans, while Cuba was to have representation in the Spanish Cortes, and to be governed by colonial autonomy, similar to that which Great Britain maintained in her American provinces. Last of all, and by no means least, all officials who were offensive to the Cubans were to be removed from office. Of course, these instructions were confidential, because of the offense which they would have given the powerful Volunteers. The United States, however, did not undertake to transmit the

proposed terms to the insurgents, and finally Azcarate undertook to do so on his own initiative. He had little faith in the fate which his proposal might meet, should it be transmitted through Spanish sources in Cuba and its terms be divulged to the Volunteers. He doubted whether it would ever reach President Cespedes. He therefore decided to transmit it by special messenger, for this purpose choosing Juan Clemente Zenea, a man in whose discretion and resourcefulness he had the greatest faith. To make the journey safe for his envoy, he obtained from the Spanish minister at Washington a safe conduct for Zenea, ordering the military and naval authorities of Cuba, as well as the Volunteers, to afford safe passage to Don Juan Clemente Zenea "into and out of any port on the Island of Cuba." Zenea reached President Cespedes without accident and laid the proposition before him, which was promptly refused. The Volunteers, meanwhile, had learned of Zenea's coming, and of the nature of his errand. Even the greatest of secrecy could not have kept the knowledge from them, for their spies were everywhere active, not only in the Island, but in the United States and at the Spanish court as well. When Zenea left the Cuban lines, he was immediately seized by the Volunteers and imprisoned at Havana, under heavy guard. The news of this occurrence reached Spain and immediately the Duke de la Torre, then President of King Amadeus's Council of Ministers, protested to the authorities at Havana, and insisted that Zenea be released and be given safe conduct from the Island. But the will of the Volunteers was more powerful in Cuba than were the wishes of those high in authority in Spain, or than the common tenets of decency, right and justice. Zenea was not released and he was not given safe conduct. After many months' imprisonment under the most revolting conditions, he was condemned to death without trial, and on August 15 was taken out and shot in the back.

JUAN CLEMENTE ZENEA

Poet, patriot and martyr, Juan Clemente Zenea was born at Bayamo in 1831, and in boyhood settled in Havana. He was a teacher in La Luz's school, El Salvador, and wrote some exquisite poems. But politics and Cuban independence claimed his chief attention. From his seventeenth year he was incessantly engaged in revolutionary conspiracies, in Havana and in New Orleans and New York. In 1868, he went to New York where he was an active member of the Junta. In 1870, he was sent on a mission to President Cespedes, which he accomplished but soon afterward was captured by the Spaniards, imprisoned in Cabanas, and then shot.

This action would hardly have been conducive to good feeling between the opposing leaders, even had the Cubans had faith in Spanish promises. In

too hard a school had they learned that it was useless to expect the Spanish authorities on the Island to keep their word to the Cubans, either in the small matter of a safe conduct for an innocent messenger, or the larger one of proposed concessions to an oppressed people. The Cuban government was not to be thus easily lured from their attempts to secure the one thing which was to them paramount, the real object for which they had made so many sacrifices, the absolute independence of the Island. Moreover, even were the promise made under the guarantee of the United States Government, the Cubans could not be convinced of the good faith of Spain, or that when once they had abandoned their struggle, laid down their arms, and given Spain the advantage, she would act otherwise than she had during her entire occupation of the Island. They felt sure that if her advances were graciously met, she would, when she again had the balance of power, simply impose upon the Island new indignities, and cover her treachery with fair words and vague promises whenever the United States might enter a protest.

Spain expressed indignation at the shortsighted policy of the Cuban leaders, and then gave demonstration of how she intended to punish Cuba. She renewed her persecution of individual Cubans, and her cruelty toward Cuban sympathizers who while nursing their cordial feelings for the revolution had not yet taken up arms against Spain. It was only necessary that such persons should be suspected, and that suspicion might be of the slightest variety. They were immediately seized and thrown into dungeons and tortured to extract their confessions; the right of trial was at this time almost entirely dispensed with, and victims of Spanish wrath were put to death without an opportunity to defend themselves, and executed in ways which are usually associated with the most barbarous savageness. So glaring did these outrages become that General Cespedes undertook to write a letter to the Spanish Government at Madrid concerning them, although why, knowing the character of his opponents as he did, he should have entertained the idea that this mild intervention on his part would have the slightest effect, or should have imagined that Spain was not cognizant of the actions of her legionaries in Cuba, and that such actions were performed without her fullest sanction, is not revealed. Cespedes certainly displayed a childlike faith in the ultimate spark of good in depraved human nature, when he took up his pen for such a communication. But be that as it may, he addressed the following epistle to the "Supreme Government of Spain."

"The respect inspired by the laws of nations, which, under the influence of modern civilization has, as far as possible, deprived war of its savage character, imposes on us the obligation of addressing the Spanish Government an energetic remonstrance, in consequence of several offensive acts, which could not be known without causing offense to the civilized world. From the time when the standard of Independence was raised in Cuba, unworthy motives have been attributed to our contest. We shall not explain the justice of the Cuban Revolution, for such an explanation would be unpleasant to that Government, and besides it is not now necessary; but we may say, in general, a colony is justified in severing the knot which binds it to the mother-country, if it possesses sufficient elements to live independently.

"Colonial life is restricting, it can never entirely satisfy the aspirations of an intelligent people, and, therefore, it cannot be justly imposed upon them when they are in a position to maintain their political existence.

"A vicious rule, which was dissipated in Spain by the popular rising of September, made worse, we might say intolerable, the colonial existence of the Cubans.

"The Cubans have decided to conquer with the sword, as they can obtain in no other manner the exercise of their most important rights. Weighty motives prevent their government from being more explicit in so delicate a matter, but it is certain that only taking into consideration the results of the war, no other relations are now possible between Cuba and Spain, than those of a friendly spirit based on the condition of perfect independence.

"In addition to what we have already stated, a political party armed from commencement of the struggle, under the denomination of Spanish Volunteers, and known by their intolerance and retrograding tendencies, have converted a question of ideas into a question of petty personal interest; wresting the authority from those delegates of that government, and imposing their caprices like laws; giving an indecorous character to official manifestations relating to the revolution; and in entire forgetfulness of the rights of man, have perpetrated incredible crimes, which cast a blot on the history of Spain in America.

"To relate all in detail would be very painful to us, and to the government whom we are addressing.

"It is sufficient to say that the troops charged with preserving the Spanish dominion occupy themselves, in preference, in persecuting the families who reside in the territories of the Republic, by depriving them of all they possess, burning their habitations, and have even gone several times so far as to make use of their arms against women, children and old people. At the very moment whilst we are writing this remonstrance, an awful example has occurred.

"On the 6th of January of the present year, a Spanish column, commanded by Colonel Acosta y Alvear, while marching from Camaguey to Ciego de Avila, assassinated in its march these citizens of Juana, Mora de Mola and Mercedes Mora de Mola; the children, Adrina Mola, aged twelve, Agnela Mola, aged eight, and Mercedes Mola, aged two years. The horror which is produced by crimes of such enormity, above all in the minds of those who are far from the theatre of the events, is such as to make them appear hardly credible, if we did not take into consideration the demoralization of an army accustomed to pillage and violence, which generally has no limits.

"Such excesses doubtless are not with the consent of the Supreme Government of a nation, in which the spirit of modern times has made very eloquent manifestations.

"If Spain will not grant to us the happy establishment of their acquired liberties, recognizing the right of the Cubans to the separation, we hope she will at least be disposed to guarantee the observation of human principles in the prosecution of the struggle; and as some chiefs of the liberating forces have on several occasions demanded in vain from the opposing chiefs a proper method of conducting the war, we now ask the Supreme Government of the Spanish nation to enter into arrangements to protect the lives of the prisoners, and secure the inviolability of the individuals who, on account of their sex, age and other personal considerations may be exempt from liabilities protesting that we shall not be responsible, if such Spanish chiefs will not regard what we now offer, for the terrible consequences which will certainly follow this barbarous system of warfare.

"We give publicity to the present dispatch, that it may come to the knowledge of foreign governments.

"Headquarters of the Government.

"CARLOS MANUEL DE CESPEDES.
President of the Cuban Republic.

"January 24, 1871."

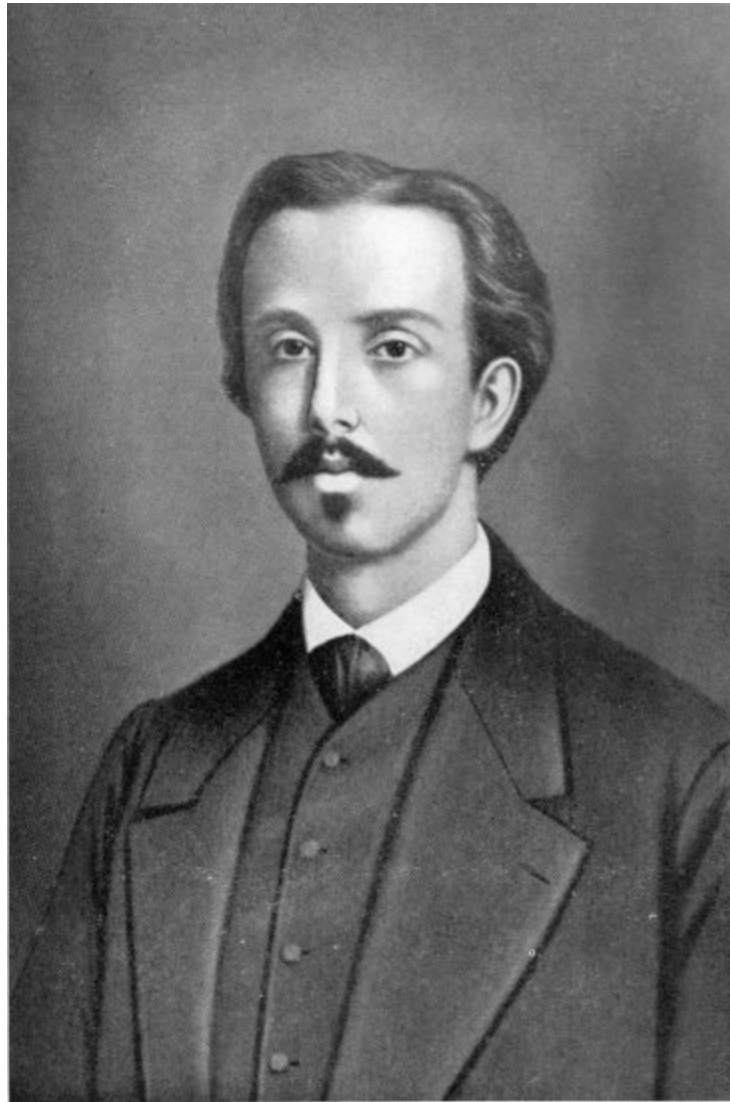
The foregoing did have the effect of acquainting the world with Spanish atrocities, but its influence in restraining the further perpetration of outrages, or in producing any official action by Spain looking toward that desirable end, was absolutely nil.

It possibly did impress the United States Government, confirmed as it was by constant complaints from citizens of the United States, resident in Cuba. At any rate, the United States issued a rebuke to Spain for the indignities inflicted on American citizens in Cuba, and backed up this communication with an order to her navy to stand by and protect the lives and property of Americans in Cuba, and to maintain the dignity of the flag of the United States.

The Cuban forces were at this time suffering from grave disorder. Attacks by the enemy were not so menacing to the success of the struggle as internal disruptions and dissention among the leaders of the Republican army. They grew so serious that an actual break occurred, and on January 19, General Cornelio Porro proved disloyal to the cause of freedom, and in company with some other supposed patriots, entered Puerto Principe and surrendered to the Spanish Government, while at the end of the month, Eduardo Machado, the Secretary of the Cuban House of Representatives, wrote to the Captain-General, Count Valmaseda, stating that the Cuban House of Representatives had dissolved and beseeching clemency for the former members of that body. He added that Señor Miguel G. Gutierrez was a fugitive, wandering about with his little son.

It naturally was a severe blow to loyal patriots to find such treachery within their own ranks, although they may have comforted themselves with the truism that such has always been the case in rebellions against a powerful ruler. The weak, the fearful, and the selfish have abandoned the cause, when its fate seemed wavering. They may also have justly argued that, if these men were traitors, loyal supporters of the cause of freedom were well rid of them; that the strength of an organization is like that of the proverbial chain, and that it becomes shorter but immeasurably stronger by the removal of the weak links. Whether they were sustained by any such comforting philosophy or not, the defection of Porro and Machado did not for a moment cause the loyal Cuban leaders to falter from their purpose to secure freedom for Cuba. To strengthen the courage of loyal Cubans, President Cespedes and Ignacio Agramonte issued proclamations in which they expressed the greatest faith in the Cuban cause, and its ultimate

victory, and urged all loyal hearts to maintain their support of the battle for liberty.



IGNACIO AGRAMONTE

One of the foremost heroes of the Ten Years' War was Ignacio Agramonte y Loinaz, a member of one of the most distinguished families in Cuban history. He was born in Camaguey in 1841, was educated for the bar, and became an eminent advocate, writer and orator, with intense devotion to the cause of Cuban independence. Immediately upon the outbreak of the revolution at Yara in 1868 he took the field and showed himself a born leader of men. He was made Secretary of the Revolutionary government, signed the Emancipation act and the Cuban Constitution, and then returned to active work in the field. As Major General he participated in many battles, including the capture of a part of Camaguey on July 20, 1869. President Cespedes made him Chief of the Department of Camaguey, and for a time he succeeded Quesada as commander in chief of the Revolutionary Army. He fell in the battle of Jimaguayu on July 1, 1873.

CHAPTER XIV

WHILE these things were occurring in the "Ever Faithful Isle," there were doings of epochal significance in Peninsular Spain. Queen Isabella had, as we have seen, for some time been an exile, and on June 25, 1870, the Serrano republican government forced her to sign a final manifesto of abdication. The government itself, however, was far from strong, and was unable to stand against strong opposition in the Cortes. It was shortly overthrown by a vote of that body, and a monarchical form of government was re-established. The crown was formally offered to and accepted by Amadeus, son of King Victor Emmanuel II of Italy, on December 4, 1870. When this news reached Cuba, the Spanish troops on the island took formal oath of allegiance to the new king of Spain.

The reestablishment of a monarchy was, of course, exceedingly pleasing to the Volunteers, for they had no sympathy with a republic, and the freedom which it was supposed to entail, although in the case of the republic in Spain, few changes or concessions had been extended to its Cuban subjects. The Volunteers promptly took oath to support the monarchy, and denounced the republican constitution. They embraced this as a favorable opportunity to further an end of their own. They had long suspected the Bishop of Havana of being in sympathy with the revolution. He was at this time absent in attendance at the Vatican Council at Rome, and the Volunteers were able so to manipulate matters that, upon his return on April 13, 1871, he was refused permission to land.

Believing that the new government would give even more cordial support to their machinations than had the previous one, the Volunteers now began a system of persecutions against Cuban patriots. The Volunteer corps, in 1872, numbered eighty thousand members, and in 1870 and 1871 they could not have fallen far below that number. They were so powerful that the Captain-General must either conform to their wishes or sooner or later give way to a successor whom they selected. Now there was published in Havana a paper, called *La Voz de Cuba*, which was really the "*Voice of the Volunteers*," for its editor, Gonzalo Castanon, was a Colonel of that organization. It busied itself, among other things, with attacks on the

patriots, and took occasion to voice some derogatory remarks concerning Cuban women. Naturally the Cuban husbands, sons, fathers and lovers were hot with indignation against such calumny. Castanon paid the just penalty of his scurrilous lack of chivalry, for he was challenged by an outraged Cuban and in the duel which followed he received a mortal wound. He was buried in a tomb in the Espada Cemetery. Some time afterward, a party of young students—hardly more than boys—from the University of Havana, visited the cemetery, and it was reported to the authorities that one of them had been heard, while standing near the tomb of Castanon, to make remarks derogatory to the dead Colonel. This information was given by a Spanish soldier, who claimed to have overheard the conversation, and when it was repeated to a Spanish judge, the accusation was added that the boy's companions had defaced the glass which closed the Castanon tomb. The Volunteers immediately pounced upon the happening, as a delightful opportunity to chastise and punish the members of wealthy families in Havana who were suspected of aiding and abetting the revolution. The power of the Captain-General was invoked, and forty-three students were arrested and brought to trial. They were ably defended by a Spanish officer, Señor Capdevilla, and he made such a good case for their innocence that they were acquitted. The Volunteers, however, were not satisfied. Injustice had in some manner miscarried, how they could not conceive, and justice had triumphed. Such things would not do in dealing with Cubans. They made a vigorous appeal to the Captain-General, and obtained from him an order for assembling a second court martial, and this time they saw to it that their own body was well represented in that body. The boys were again apprehended, and the trial which ensued was a tragic farce, in which they were given not the slightest chance for justice. Eight of them were condemned to death, and the others to imprisonment at hard labor. Consternation reigned among the best families of Cuba. One distracted father offered a ransom of a million dollars for the life of his son, but without avail. On November 27, 1871, the condemned criminals, whose worst offence, if indeed there was any offense at all, was the utterance of an indignant remark about a ruffian who had attacked those dearest to all loyal, chivalrous and patriotic hearts, the women of Cuba, were led out and shot in the presence of fifteen thousand Spanish Volunteers, all under arms. In after years when the wrong was beyond repair, justice was done to the memory of these martyred youths, for not only did the Spanish Cortes, with

admirable fairness, investigate the matter and pronounce in favor of the innocence of the students, but also the son of Castanon came to Cuba from Spain with the object of removing thither his father's remains, investigated the condition of the tomb, and made a sworn statement before a notary that it had never been disturbed.

The murder of the students of course created intense feeling in Cuba; Havana was in a turmoil, and the sentiment engendered by this and similar outrages committed or incited by the Volunteers swelled the list of those who were in sympathy with a speedy release for Cuba from Spanish rule. The scene of the tragedy has since been marked by the Cuban government with a tablet which bears this inscription:

"On the 27th of November, 1871, there were sacrificed in front of this place, by the Spanish Volunteers of Havana, the eight young Cuban students of the First Year of Medicine:

Alonzo Alvarez de la Campa,	Jose de Marcos Medina,
Carlos Augusto de Latorre,	Eladio Gonzales Toledo,
Pascual Rodriquez Perez,	Anacleto Bermudez,
Angel Laborde,	Carlos Verdugo.

To their eternal memory, this tablet is dedicated, the 27th of November, 1899."

While these events were taking place, and in spite of the troubles which had beset them within their own ranks, the Cuban leaders maintained a force of fifty thousand men in the field, and gained an important victory in the vicinity of Mayari. This was more than offset by an occurrence which struck brutally at the very foundation of the Cuban army. In July, 1871, the Spanish defeated at Guantanamo a force of two hundred men, under General Quesada, but this was trivial compared with the catastrophe which it involved. General Quesada was taken prisoner, as was General Figueredo, and in August these two loyal patriots who had so ably supported the revolution, and the former of whom had been the brains of the army, were executed by the Spaniards. The deepest gloom filled the hearts of the Cuban leaders, and their discouragement is the only explanation which can be offered of what followed, when a force of Cubans, who had been operating in the central part of the island, under General Agramonte, deserted, and approaching the Spanish authorities, agreed to lay down their arms, provided their lives would be spared. The Spaniards accepted their offer,

and promptly gave out a statement that the Cuban army was disrupted and that all that remained was a few slaves under General Agramonte. They were to learn, however, that the Cubans still had some fighting spirit left in them. Although the defection of so large a body of his command left only thirty-five men under Agramonte, he speedily recruited a new company, and was able to harass the Spanish for two years longer, until he was killed in battle.

The death of General Quesada left the post of Commander-in-Chief of the Cuban army vacant, and General Modeste Diaz was elected to that office. An official report made by the Cubans at this time shows the composition of the army to have been:

Army Corps of Oriente.

Commander-in-Chief, General Modeste Diaz

Division of Santiago de Cuba; Major-General Commanding, Maximo Gomez

<i>Regiments</i>	<i>Commander</i>	<i>Localities</i>	<i>No. of Men</i>
1 and 2	Col. Jesus Perez	Cobre	600
3	Lt. Col. Prado	Baracoa	450
4	Lt. Col. Guillermo Moncada	Baracoa	550
5	Lt. Col. Pacheco	Guantanamo	450
6	Brig. Calixto Garcia	Jiguani	600
Total			2,650

Division of Holguin—General Commanding, Jose Inclan

<i>Regiments</i>	<i>Commander</i>	<i>Localities</i>	<i>No. of Men</i>
1	Co. Fco. Herrero	West	300
2	Gen. Inclan	East	500
Total			800

Division of Bayamo—General Commanding, Luis Figueredo

<i>Regiments</i>	<i>Commander</i>	<i>Localities</i>	<i>No. of Men</i>
1	Maj. Gen. N. Garrido	Manzanillo	550
2	Gen. Luis Figueredo	Bayamo	450
Total			1,000

Grand Total Army Corps of Oriente 4,300

Army Corps of Camaguey

Commander-in-Chief, General Vicente Garcia

Division of Las Tunas—General Commanding, Vicente Garcia

<i>Regiments</i>	<i>Commander</i>	<i>Localities</i>	<i>No. of Men</i>
1	General Vincente Garcia	Santa Rita	650
2	Brig. Francisco Vega	Arenas	400
Total			1,050

Division of Camaguey—General Commanding, Ignacio Agramonte

<i>Regiments</i>	<i>Commander</i>	<i>Localities</i>	<i>No. of Men</i>
1	Lt. Col. La Rosa	Guaican Amar	300
2	Col. Agramonte Porro	Guaican Amar	400
3	Lt. Col. Espinosa	Guaican Amar	250
4	Lt. Col. Manuel Suarez	Guaimaro	300
5	Lt. Col. Antonio Rodriguez	Cubitas	200
Total			1,450
Grand Total Army Corps of Camaguey			2,600

Army Corps of Las Villas

Commander-in-Chief, Major-General Matso Casanova

	<i>No. of Men</i>
Division of Trinidad, General Commanding, Brig. Juan Villegas	700
Division of Sancti Spiritus, General Com'ding, Brig. Jose Villamie	800
Division of Villa Clara, General Commanding, Brig. Carlos Ruloff	600
Division of Cienfuegos, General Commanding, Brig. Juan Villegas	700
Division of Remedios, General Commanding, Brig. Salome Hernandez	600
Grand Army Total of Las Villas	3,400
Grand Total	10,300

In June, 1871, three regiments under General Maximo Gomez—that able soldier and patriot who was to figure so largely in the final struggle against Spain in 1895—were instructed to take up their position and endeavor to hold the line between Santiago de Cuba and Guantanamo, and they accordingly entrenched themselves in the Loma de la Gallista, but they were almost immediately attacked by the Spanish. The battle was hotly contested for four hours and ended in a victory for the Cubans. The Spanish losses included arms and ammunition which were eagerly appropriated by the conquerors. A few days later, a Spanish force renewed the attack, advancing fifteen hundred strong against the men under Gomez, and again they went down to defeat, their total losses in the two battles amounting to one hundred killed, and a large number wounded. In addition to this, the Cubans took fifteen Spaniards prisoners. What must have been still more gratifying was an encounter which a small band of Cubans had about this time with a company of Volunteers, in which twenty-five of the latter were made prisoners.

On July 3, Lieutenant Colonel Francisco Guevara with a company of Cubans was encamped at La Cabana del Estribo, when they were attacked by a force of three hundred Spaniards. He promptly ordered the camp abandoned, covering his retreat by a weak fire on the enemy. The Cubans were unable to make a more vigorous resistance, because they were

inadequately supplied with ammunition, even though, with plenty of supplies, their position at La Cabana del Estribo might have been considered an advantageous one. But with the odds so greatly against them, the Cubans killed five Spaniards, and wounded forty others, among whom was Pedro Popa, one of those who had turned traitor to the cause of the revolution. But the Spaniards took vengeance on two practically defenseless persons. On their retreat, with their wounded, they met Major Baldoguin and two companions, who were on their way to see Lieutenant-Colonel Guevara, and captured Major Baldoguin. They took him to Bayamo, and in spite of the fact that he was severely wounded, they executed him at once upon arrival at that city.

A few days later, the same force which had attacked Lieutenant-Colonel Guevara at Estribo, were reported to be again advancing against him. He sent a company of infantry to meet them, and an engagement ensued which lasted for over an hour. The Spaniards retreated to Los Toros, leaving behind them fifty-three killed and wounded. On this occasion Guevara's son was wounded, and one private was killed.

A few days previous, on the evening of July 4, a small Cuban force attacked the Spanish camp at the village of Veguita, and harassed the enemy during the entire night, and the next day a company from the same division of the Cuban army had an engagement with a hundred and fifty Spanish cavalry, and put them to flight. The Cubans pursued them, and forced them to take a stand, when a fight took place which lasted an hour. The Cubans did not suffer a single casualty, while several of the Spaniards were killed, and they were obliged to retreat.

On July 25, Major Dominguez with a small force, attacked the sugar plantation of Las Ovas, and sacked it almost in the presence of the Spaniards, who were encamped only about half a mile distant, on the Esperanza estate. Having accomplished this feat, Major Dominguez's soldiers raided a nearby estate, which was owned by Tomas Ramirez, another of those who had turned traitor. All the buildings on this plantation were set on fire, and razed to the ground, as were also those on the estate of Antonio Lastes. Curiously enough, although the Spaniards in much larger numbers, were near at hand, and must have been cognizant of these happenings, they made no attempt to interfere.

A few days later, Major Noguera, with a small band, attacked forty of the enemy on a road leading to Bayamo, and put them to rout, capturing a considerable stock of supplies. This same band of patriots a little later encountered a company of fifty Spaniards, who were driving a herd of cattle toward El Huinilladero. They opened fire, and dispersed the Spaniards, wounding an officer, and taking possession of the cattle, together with a supply of cartridges, horses with their equipment, blankets and provisions.

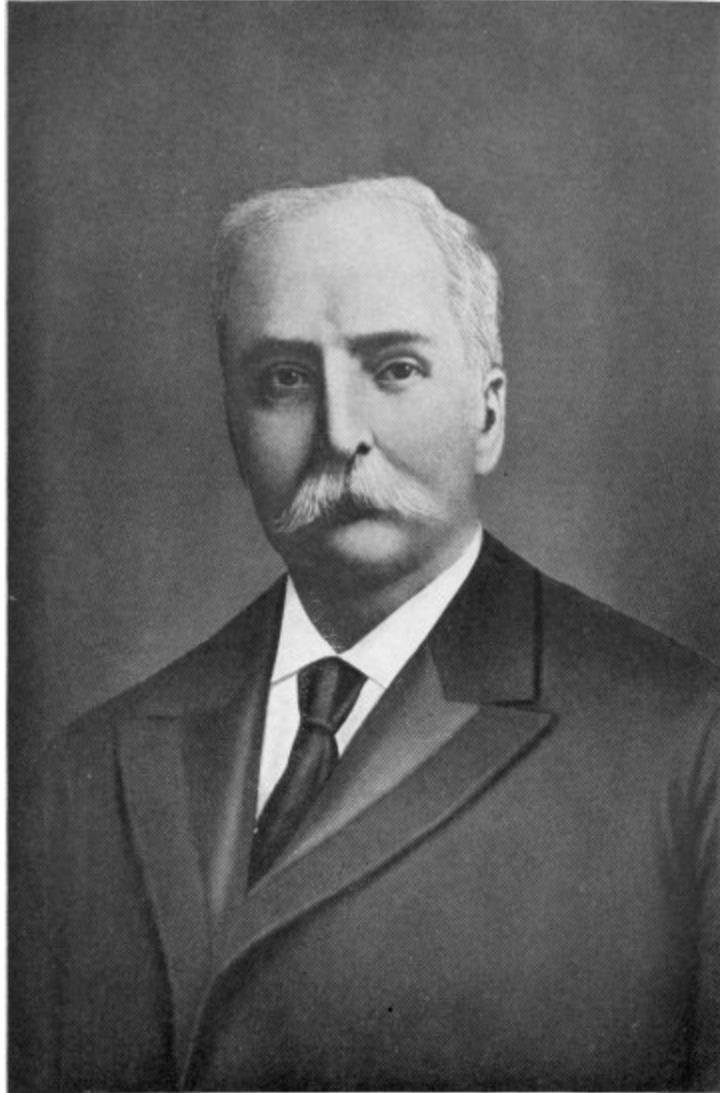
On July 30, several companies from the division of Bayamo and Manzanillo attacked a force of a hundred Spaniards who were strongly entrenched near La Caridad. After a fight which lasted not over half an hour, the Spanish were dislodged from their trenches, and fled into a nearby wood. The Cubans followed, forcing the Spaniards into the open, and, after a brief engagement, put them to rout. One Spaniard was captured, and he gave information that the Spanish forces had lost seventeen men killed, and that in their flight they had thrown away their rifles, which were afterward recovered by the Cubans, who also took possession of a large amount of supplies of all kinds.

The estate of La Indiana had been fortified by the Spaniards, and on August 4, General Gomez led an attack against it. The Spanish put up a strong resistance, but the Cubans were able to take the buildings, and capture thirty-five Spaniards. The entire district of Guantanamo was at this time practically controlled by the insurgents. They destroyed fourteen coffee plantations, and did other damage to the property of Spanish sympathizers. On August 8, the Spaniards made an attack at El Macio, but it was unsuccessful. For the next week there was one engagement after another, with victory first with the Spaniards and then with the Cubans, but the results were not of moment to either of the belligerents. The Cubans were not able to marshal a sufficiently large or well equipped force to venture a decisive battle, and so kept up an annoying guerrilla warfare. Late in the month they advanced to the outskirts of Santiago, destroying all plantations which lay along the line of march, and defeated the Volunteers in an unimportant engagement. Perhaps the most serious defeat that they inflicted on the Spanish at this time was the destruction of the fortified camp at Miguel, in the district of Sagua de Tanamo. Earlier in the month they had attacked and taken a fortified camp in the neighborhood of Santa Isabel. All the buildings were burned to the ground, twenty-six Volunteers were killed, and a large quantity of stores was taken. There followed other

engagements in which the odds and the victory were with the Spaniards, and the Cuban patriots were put to rout with heavy losses. But for the most part in guerrilla warfare the Cubans had the advantage and made the most of it.

Late in August, a force under Major Villanueva and Captain Rios surprised some Spanish soldiers at breakfast near Malangas. The Spaniards largely outnumbered the Cubans, but the attack was so sudden that they fled, leaving their rice and salted beef behind them. In this engagement eight Spaniards were killed.

On the first day of September, news reached Major Noguera that the enemy were convoying a stock of supplies in the neighborhood where he was stationed. He divided his men and concealed them at different points along the road over which the Spaniards must pass. Six Volunteers and one regular soldier were killed, and the enemy abandoned to the Cubans a number of carts, filled with food stuffs, carbines, machetes, and other supplies.



CALIXTO GARCIA

One of the most gallant figures in the patriot ranks in the Ten Years' War and the War of Independence was that of Calixto Garcia e Iñiguez. Born at Bayamo on August 4, 1839, he was in the prime of young manhood when he took the field under General Marmol in 1868. Soon as a brigadier general he was the right-hand man of Maximo Gomez, and was made by him commander in chief in Oriente when Gomez himself marched westward. After six years of almost incessant and victorious fighting, he was surprised and surrounded at San Antonio de Baja, when, rather than be captured, he placed the muzzle of a pistol in his mouth and fired. The bullet pierced the roof of his mouth and came out at the centre of his forehead. The Spaniards then took him to a military hospital and, respecting his valor, nursed him back to health. After the Treaty of Zanjón he was released, whereupon he took the lead in the Little War. He was in Spain in 1895 and could not get into the War of Independence until March, 1896, but thereafter he was one of its chief warriors. After the close of the war he was sent to Washington on a diplomatic mission, and died there on December 11, 1898.

September 18 was to be a memorable day in the year's fighting, for on that date General Calixto Garcia with three regiments advanced against Jiguani, where a large force of Spaniards were garrisoned. The latter defended the town for two hours, but in the end the Cubans were victorious, and gained control of the major portion of the town and its fortifications. Many houses were burned, and two hundred Spaniards lay dead in the streets. General Garcia then retreated, carrying with him a large quantity of captured supplies, since he did not have a large enough force to complete the occupation of Jiguani. He was pursued by the Spaniards who had been reinforced, but the patriots made good their escape with only slight losses.

Throughout the entire months of August and September the eastern part of the island was in a constant state of uproar and confusion. Attack and counter-attack followed in succession, and yet neither side was any nearer a significant victory or a decision.

On October 23, the Spaniards gained a victory over the Cubans at El Toro, and in November the insurgents turned the tables by defeating the Spanish forces under Captain Ferral y Mongs. So the war continued, the whole country witnessing the destruction of plantations, the burning of buildings, the pillaging of villages, and loss of life as well as of property. In the end it was the land of Cuba that suffered, for from a once prosperous country it bade fair to be transformed into waste lands.

Meanwhile the Cuban forces were slowly degenerating. The Spaniards were well fed, well clothed and well equipped, while the Cuban forces were poorly armed, often hungry, and in torn and ragged garments. The resources of Spain reinforced her army, but the patriots had to rely on chance help that came to them from their American sympathizers. Nothing in their existence was certain, and as the war was prolonged without their gaining a victory which seemed to bring the end nearer, the weaker spirits began to despair and there was dissension and an undercurrent of revolt among the common soldiers. In vain the leaders tried to put heart into their forces, and desertions became alarmingly common. The reductions in numbers compelled the Cuban leaders more and more to resort to guerrilla warfare. This involved deplorable destruction of property, valuable holdings of both loyalists and patriots were rendered valueless, and naturally the morale of both armies suffered from a spirit of lawlessness. By the end of 1871, two thirds of the farms and coffee and sugar plantations in the district of

Trinidad were destroyed or abandoned, and the entire central portion of the island had suffered grievously.

Valmaseda on December 27, 1871, issued a proclamation to the effect that after the first of the year every prisoner would be shot, and every patriot who delivered himself up would suffer life imprisonment. This applied to both negroes and white men; while all white women captured would be banished, and all negro women would be returned to their owners, and condemned to wear chains for a period of four years. However, prior to that date, only if four days distant, the leaders or any of the soldiers would lay down their arms and announce their allegiance to Spain, they would be received with kindness and clemency. This might have had more effect than it did but for the fact that the Cubans were distrustful of promises of clemency, and feared that if they escaped the vengeance of the government, they would later suffer at the hands of the Volunteers.

CHAPTER XV

AT the beginning of 1872 the storm center of the insurrection moved eastward to Puerto Principe, Santiago and Guantanamo. Engagements in the vicinity of these places had been frequent, and now they were almost daily consisting chiefly of little skirmishes between small forces of men.

It was estimated that by this time Spain had sent to the island in the neighborhood of sixty thousand trained soldiers, but they had come few at a time, and on no occasion in larger numbers than two or three thousand. Evidently the Spanish Government had at no time properly estimated the strength, if not in numbers, at least in valor and determination of the insurgents, and had never realized that only by investing the island with overwhelming superiority could they hope to put down the rebellion. However, during all this time Spain had been struggling against disturbances at home of no mean dimensions, and early in the year 1872 she was to endure another revolution, and the abdication of Amadeus, followed once more by a republican form of government. Records compiled by both sides prove that the war continued during the year 1872 with the same persistence, unchanged in character, and apparently no nearer a decision. The Spanish government, both at home and abroad, seems to have suffered at this time from great apprehension that the United States government would officially recognize the Cubans as belligerents, in which event their position would be materially strengthened. In February Spain sent more troops to Cuba, at the request of Captain-General Valmaseda, who accompanied his appeal by a statement—for publication, and to impress the United States—that the war would be over by April or May.

March found the struggle continuing, and on March 5, General Cespedes himself, with a large body of Cuban troops, succeeded in taking Sagua de Tanamo by storm. In this same month aid came from the United States, for the steamer *Edgar Stewart* arrived with arms, ammunition and supplies for the Cuban army.

Small engagements took place all during April, and in May the Cuban leaders issued a statement to the effect that if Valmaseda was expecting that the war would soon be ended, he was not taking into consideration the

strong resistance which the Cubans were still able to offer, and which they intended to continue until Spain granted them independence. Truly the war might end at once, but Spain would end it not by force of arms but by acceding to the frequently expressed desire of Cuba for complete separation from her rule, by withdrawing the offensive government, and by transporting her troops back to their native land.

Early in June the Cubans defeated the Spaniards near Las Tunas, and on the 9th of that month, after heavy fighting, took Sama. The Cuban losses in these engagements were heavy in comparison with the number of men involved, but they were able to comfort themselves with the knowledge that the Spanish killed and wounded totaled a much greater number, for while the Cubans had only fifty killed and less than a hundred wounded, the Spanish left dying on the battle field more than four times as many as the Cubans, and their wounded amounted to three hundred and fifty. But the Spanish navy was able to capture an expedition bearing relief to the Cubans, and to defeat a band of patriots at Holguin, so that it would seem that the honors for the month were about equal.

In July, General Garcia attacked Spanish troops under the Governor of the Province, Colonel Huertas, and a very hot fight resulted, in which the victory fell to the Cubans; and when Spanish reinforcements arrived, they too were routed and put to flight. But this was offset by the fact that General Inclan, one of the bravest and most loyal of the Cuban commanders, as well as an expert tactician, fell into the hands of the enemy, and was summarily executed at Puerto Principe.

Count Valmaseda, Captain-General, now ran foul of the displeasure of the Volunteers, and suffered a downfall in consequence. On July 15 he was recalled, and General Ceballos served in his place until the arrival of his successor, Don Joachim Jovellar.

It now seemed time again for the Spaniards to assert themselves against defenseless sympathizers with the revolution. Spies were busily at work in Guira, Jiguani and Holguin, and presently they purported to discover grave disloyalty among the members of some of the well known Cuban families. This was the signal and the excuse for a wholesale slaughter of innocent unoffending people, who, whatever their feelings, had taken no active part in the uprising. As a means of reprisals the Cubans made an attack on Guira, but it was not entirely successful.

The people of the United States were now following the insurrection with much interest, particularly in those portions of that country in which there were large numbers of sympathizers, and they were no longer willing to ignore well authenticated reports of Spanish cruelty. A State Convention of the Republican party was held at Jacksonville, Florida, where there were many who were friendly to the Cuban patriots, and adopted a resolution, denouncing the action of the Spanish authorities in Cuba as cruel and inhuman, and calling upon Congress to pass the necessary legislation to make it possible for the United States government to extend such aid to the Cubans as "becomes a great and free republic, whose people so ardently sympathize with the struggles and hopes of the oppressed of all nations." However, the Government at Washington did not look with favor upon this suggestion, and ignored it, and it had little effect in stemming the tide of Spanish oppression in Cuba.

The close of the year 1872 registered a splendid victory for the patriots, when on December 20 they stormed and took Holguin, and captured large quantities of supplies of all kinds.

Public documents compiled by the Spanish in August, 1872, estimated the losses of the patriots up to that time as "thirteen thousand six hundred insurgents—and a large number taken prisoner" while "sixty-nine thousand six hundred and forty were in submission to the government; our thousand eight hundred and forty-nine firearms, three thousand two hundred and forty-nine swords and bayonets, and nine thousand nine hundred and twenty-one horses were captured."

When, in 1873, Spain once more became a republic, the Cuban patriots had high hopes that their independence would be recognized, but these were soon dashed to the ground, when the Spanish government sent an appeal to the Cubans to lay down their arms, and to entrust their fortunes to the doubtful mercies of the new rulers of Spain, with the idea that Spain needed the co-operation of her colonies to bring about the permanence of the new government, which it was represented would result in a fair and equitable Spanish rule in Cuba. These overtures were promptly rejected, and the patriots made preparations to continue their struggle, adhering with tenacity to their one goal, complete independence. The Spanish government then appealed to the Volunteers, but that was such an aristocratic organization that it had no sympathy with democracy, and no desire to ally itself too

closely with a republican form of government; wherefore for once it refused to aid in coercing the patriots.

New Year's day, 1873, was doubly a gala occasion, because on that date another relief expedition arrived from the United States, which brought much needed supplies. The Cubans continued to harass the Spaniards, and on the occasion of one successful engagement captured a number of horses which were turned over to General Agramonte for his cavalry regiment. This was one of the best organized regiments in the army, and had done good work against the enemy, but it was soon to lose its leader, for in May, 1873, General Agramonte was killed while charging the enemy at Jimaguaya, and his command was taken over by Major-General Maximo Gomez.

Meantime another change was made in the head of the Spanish insular government, and Don Candido Pieltain succeeded to the office of Captain-General.

But there was serious trouble among the leaders of the Republic of Cuba. No man in as high a position as that which General Cespedes occupied could escape exciting jealousy. The Cubans were actuated by high ideals and motives, but they were only human. Rumors derogatory to the administration of General Cespedes began to be circulated, and on October 27, 1873, the House of Representatives, assembled at Vijagual, preferred charges against him of having in the administration of his duties exceeded the powers which the Republic had conferred upon him. He was tried and found guilty, and removed from office. By this action, a great injustice was done to a man whose sole thought was the good of his country, and who had given his best endeavors in its service. His removal was a hard blow to the cause of the Republic, because it gave the enemy notice of dissension among the patriots, placed the republican government in a bad light in the eyes of the rest of the world, and lost to the Cuban cause a loyal and efficient leader. General Cespedes accepted without complaint the will of the Assembly, and took leave of his office, after delivering a very eloquent and convincing address, protesting his innocence of any thought of wrong. He was now in a delicate position, for he was not in good standing with those with whom he had cast his lot, and a price had been set on his head by the Spaniards. He took refuge with a friend, and remained virtually in hiding, until on February 27, 1874, he was betrayed by a negro who had been captured by the Spaniards and who sought their clemency by

delivering Cespedes to them. He was taken prisoner and speedily executed by the garrote.



SALVADOR CISNEROS BETAN-
COURT

SALVADOR CISNEROS BETANCOURT

The Marquis of Santa Lucia, patriot and statesman, was born in Camaguey on February 10, 1828, and from boyhood was an ardent advocate of Cuban independence. In early life he joined the Liberator Society of Camaguey, and because of his activities was arrested and confined for a time in Morro Castle. He was one of the leaders of the Ten Years' War from its beginning, participated in the making of the Constitution, and succeeded Cespedes as President of the Revolutionary government. Old as he was, he eagerly joined in the War of Independence and took part in several battles. He was a member of the Constitutional Assembly of 1895, and was elected President of the Republic in Arms, which office he held until October 10, 1898. Then he retired to private life, and died on February 28, 1914.

The office of President was filled temporarily by Don Salvador Cisneros, Marquis de Santa Lucia, the Chairman of the House, in the absence of the Vice-President of the Republic, who was temporarily out of the country. Cespedes had been the only one of the Cuban leaders who had really made a study of civil government, and who was thus qualified for the position of President. While Cisneros was a man of fine education, and great intelligence, he was neither a leader of men nor a wise administrator, and the downfall of Cespedes marked the beginning of the end of the long struggle, and foreshadowed the final defeat of the Cubans.

But now came an incident which for a time bade fair to bring the United States into the quarrel. There was a small side-wheel steamer called the *Virginus* which had for a long time been active in running the Spanish blockade of the Cuban coast and in conveying reinforcements and contraband supplies to the insurgents. She was under the command of Captain Fry, an American citizen, and a veteran of the Civil War, in which he had served on the side of the Confederates. The vessel was manned by American and British seamen, and flew the American flag. In October, 1873, at Port au Prince, Captain Fry took on board his vessel five hundred Remington rifles, six hundred sabres, four hundred revolvers, and other

arms and ammunition intended for the Cuban army. The steamer was well known to the Spanish navy, which had long been seeking to capture her.

The end came on October 31. The *Virginus* was hastening toward Cuba with her questionable cargo when off the south coast she was sighted by a Spanish cruiser, the *Tornado*, which had by curious coincidence, been built by the same builders as had the *Virginus*. Her captain recognized the *Virginus* and gave chase. Captain Fry, who had been vainly trying to effect a landing with his supplies and his men, some of whom were going to Cuba to fight with the patriots, gave up the endeavor and endeavored to escape to British waters at Jamaica; but the *Tornado* soon overhauled the *Virginus* and took her with her passengers and crew, numbering one hundred and seventy. When capture seemed inevitable, an attempt was made to dump the cargo overboard, but the *Tornado* captured the *Virginus* before this could be accomplished. The vessel was taken to Santiago de Cuba, where four of the passengers were at once recognized by the authorities as officers in the revolutionary army, and were speedily sentenced to death. The official Spanish report of the execution was as follows:

"Santiago de Cuba, Nov. 4, 1873.

"To His Excellency, the Captain-General:

"At six o'clock this morning, we shot in this city, for being traitors to their country, and for being insurgent chiefs, the following persons, styling themselves 'patriot generals': Bernabe Varona, alias Barnbeta, General of Division; Pedro Cespedes, Commanding General of Cienfuegos; General Jesus Del Sol; and Brigadier-General Washington Ryan. The executions took place in the presence of the entire corps of Volunteers, the force of regular infantry, and the sailors from the fleet. An immense concourse of people also witnessed the act. The best of order prevailed. The prisoners met their death with composure."

There followed a summary court martial of the remainder of the company; conducted according to the ruthless Spanish fashion, and under the domination of the implacable Volunteers. The result was that Captain Fry and forty-eight of the crew and passengers, including a number of Americans and Englishmen, were sentenced to death. The sentence was promptly executed, despite the earnest and urgent official protests of the American and British consuls of Havana and their demands for at least a decent delay of proceedings to enable them to consult their governments and to have interviews with the condemned men. In fact, the American consul was prevented from doing anything more than to protest by being made a virtual prisoner in his own house, under a strong guard of Spanish

soldiers; under the pretence that in the excited state of public feeling it would be unsafe for him to go upon the street.

The tragedy began on the afternoon of November 7, at 4 o'clock. The scene was the chief public square of Santiago. It was ordered that the victims should be shot in groups of four; all the others being compelled to witness the fate of their fellows. As on the former occasion, a great company of the Volunteers attended the butchery, together with a multitude of the populace. In the first group of four was Captain Fry himself. He refused to have his eyes bandaged, or to turn his back to his slayers, and with his latest breath spoke words of comfort and cheer to his comrades. The other victims of that day's slaughter were James Flood, mate; J. C. Harris, John N. Boza, B. P. Chamberlain, William Rose, Ignacio Dueñas, Antonio Deloyo, Jose Manuel Ferran, Ramon La Wamendi, Eusebio Gariza, Edward Day, Francisco S. Trujillo, Jack Williamson, Porfirio Corbison, Pedro Alfaro, Thomas Gregg, Frank Good, Paul Plumer, Barney Hewals, Samuel Card, John Brown, Alfred Hosell, W. F. Price, George Thomas, Ezekiel Durham, Thomas W. Williams, Simeon Brown, Leopold Larose, A. Arcey, John Stewart, Henry Bond, George Thomson, James Samuel, Henry Frank, and James Read—35 men beside the Captain. More than two-thirds of them were obviously, judging from their names, Americans or Englishmen. It is probable, however, that many of these names, as also those of the passengers, were assumed, in order to conceal the identity of their bearers in just such an emergency as this.

The next day, November 8, the massacre was continued, the victims of that day being Arturo Mola, Francisco Mola, Louis Sanchez (who was in fact Herminio Quesada, an active revolutionist), Jose Bortel, Augustin Varona, Salvador Pinedo, Enrique Castellanos, Joseph Otero, Francisco Rivera (otherwise Augustin Santa Rosa, an active patriot), Oscar Varona, Justus Consuegra, and William S. Valls—12 in all; making with the 35 and the Captain of the day before, and the four of November 4, the total of 52. But even this wholesale slaughter did not appease the blood-lust of the Volunteers, or of General Burriel, the Spanish commander at Santiago. Ninety-three more of the passengers of the *Virginius* were held in prison under sentence of death, which there was every reason to fear would be executed.

But a militant Providence intervened. The British government learned of what had been done, and of what was threatened. In consequence, as

quickly as engines under forced draught could drive her thither, the British cruiser *Niobe* sped to Santiago harbor. She entered the inner harbor, rounded broadside to the city, and double-shotted her guns. Then her captain, the intrepid Sir Lambton Lorraine, went ashore and demanded of General Burriel that there should be no more murders. That worthy protested that it was no affair of Sir Lambton's, since there were no British subjects among the men. This latter statement was false, though Sir Lambton did not know it, and may have thought it true. But Sir Lambton knew his business. He curtly replied that the nationality of the prisoners did not enter into his consideration of the affair; he was there to stop the butchery, and the butchery must stop. The Spanish general retorted hotly that he was not yet under British rule, and that until he was he would take his orders from the Captain-General of Cuba. To that Sir Lambton replied that as for him, he took his orders from the Queen of England, at whose command the *Niobe* lay in the harbor with her guns double-shotted and trained on the city, the biggest of them, indeed, aimed at the governor's palace; and he gave warning that the slaying of another prisoner would be the irrevocable signal for every gun to be put into action. It was enough. There were no more shootings; and presently all the prisoners were released.



A SANTIAGO SUNSET

Cuba is world-famed for its land-locked harbors, described as bottle-shaped, or purse-shaped, with a narrow but deep entrance leading to a spacious inland lagoon, secure from storms and affording room for vast fleets to ride at anchor. One of the largest and finest of these is at the old capital, Santiago; so large that a scene upon its waters appears like one on the open Caribbean. It was from this harbor that Admiral Cervera's fleet emerged to be destroyed in the great sea fight which broke the power of Spain in Cuba.

Following is a list of the captured passengers on the *Virginus*, who were bound to Cuba for the purpose of serving in the revolution. It does not include those who were bound for the island on legitimate personal business, but does include those already mentioned as having been put to death:

Pedro Cespedes	Manuel Padron
Arturo Mola	Alexandro Cruz Estrada
Jose Diaz	Felix Fernandez
Francisco de Porras	Juan Soto
Juan Merrero	Manuel Perez
Jose Medeo	Jose Otero
Raimundo Pardo	Jose Antonio Ramon
Francisco Gonzales	Radom Barrios
Jose Palaez	Ignacio Valdes

Leonardo Alvarez	Jose Santesteban
Julio Arango	Felix Morejon
Jose Hernandez	Francisco Pacheco
Nicholas Ramirez	Evaristo Sungunegri
Ignacio Quentin Baltran	Ramon Gonzalez
Perfecto Bello	Antonio Chacon
Benito Glodes	Francisco Rivero
Louis Sanchez	Sireno Otero
Nicholas Reriz	Carlos Pachero
Juan Alvarado	Antonio Padilla
Jose Boitel	Enrico Canals
Ricardo Calvo	Indalecio Trujillo
Augustin Varona	Domingo Diaz
Silverio Salas	Carlos Gonzalez
Domingo Salazar	Oscar Varona
Justus Consuegra	Alfredo Lopez
Jose Ignacio Lamar	Andres Villa
Andres Acosta	Francisco Castillo
Benjamin Olazara	Salvador Penedo
Enrique Castellanos	Rafael Pacheco
Alejandro Calvo	Camito Guerra
Jesus de Sol	Camilo Sanz
Leon Bernal	Emilio Garcia
Rafael Cabrera	Amador Rosello
Ignacio W. Tapia	Manuel A. Silverio
Santiago Rivera	Antonio Gomez
Andres Echeverria	Luiz Martinez
Jose Maren	Pedro Sariol
Pedro Saez	Miguel Saya
Severo Mendive	Patricio Martinez
Enrique Ayala	Manuel Saumel
Domingo Rodrigue	Luis Rebollo
Arturo Rivero	Carlos Manin
William S. Valls	Ramon R. D. Armas

Manuel Menenses	Joseph A. Smith
General Ryan	Philip Abecaler
William Curtis	Samuel Hall
S. Gray	Sidney Robertson
George Winter	William Marshall
Evan Pento	George Burke
Ricardo Trujillo	Gil Montero
Leopoldo Rizo	

These occurrences, when known, aroused tremendous excitement and wrath in the United States, and there was much talk of war. But the government, under the wise counsel of Hamilton Fish, Secretary of State, kept its head and resorted to diplomacy before force. The Spanish government, too, kept its head. It realized that its officers in Cuba had acted outrageously, and that their deeds must be disavowed. So it agreed, on December 8, to surrender the *Virginus* on December 16, to release all surviving passengers and sailors and deliver them safely to an American warship at Santiago, and to punish all Spanish officials who had acted illegally. There remained the supposed outrage to the American flag, which the *Virginus* was flying when she was fired upon and seized. The Spanish government agreed to make amends by saluting the American flag at Santiago on Christmas Day, provided it could be proved that the *Virginus* had a right to carry it. But as a matter of fact the vessel had no such right. The Attorney-General of the United States gave, before the day set for the salute, the opinion that the vessel was the property of General Quesada and other Cubans, and therefore had no right to sail under the American flag. The final settlement of the affair occurred in February, 1875, when the Spanish government paid an indemnity of \$80,000 to the United States, and a smaller sum to Great Britain, for their citizens who had been slaughtered. The *Virginus* was lost at sea while being returned to the United States.

Meanwhile the patriots had not ceased fighting, and on November 9 they met the Spaniards in a battle in which a large force was engaged on both sides. They were equally matched, each belligerent having about three thousand men in the field. The Cubans were victorious, and they lost only a hundred men killed and double that number wounded, while the Spanish losses were four times as many killed, and six hundred wounded.

Stories of Spanish cruelty to prisoners and to peaceful citizens continued to be heard, and the Cubans were not content to allow these to remain unsubstantiated. In 1873, Cuban sympathizers compiled a statement which they called "The Book of Blood." In some manner they gained access to Spanish records, and used not their own personal knowledge but the official reports of the Spaniards themselves as a basis for their accusations. The acts complained of were not confined to one year, but covered the administrations as Captain-General of Lersundi, Dulce, Rodas, Ceballos, Pieltain and Jovellar. There was almost no comment; simply a plain statement of facts. The book commences with the names of three thousand nine hundred and twenty-seven persons, exclusive of men killed in battle, who had been brutally murdered by the Spaniards. The dates and places of execution are given, so that there can be no mistake as to the accuracy of the data. Following this is a list of four thousand six hundred and seventy-two prisoners, captured by the Spaniards, who had simply dropped out of sight, and whose fate had never been determined. Next there is a record of one hundred and ninety-one men who had been garrotted. There are the names of eighty-four men who had been court-martialled in accordance with the decree of February 12, 1869, and under orders from the Captain-General; then the names of five men condemned for life to hard labor in the chain gang of the penal colony of Ceuta; the names of five others who had been given the same sentence for a period of ten years, twenty sentenced for eight years, and one for six years. After this is a list of men condemned to the chain gang, place unknown, five for ten years, two for eight years, seventeen for six years, three for four years, and one hundred and fifty-eight from two to eight years. Then comes a list of two hundred and fifty men from all walks of life, including superintendents of plantations, attorneys at law, brokers, bankers, one architect, clergymen, carpenters, druggists, engineers, farmers, masons, military officers, notaries, Post Office clerks, railroad clerks, one British Consul, three dentists, several police officers, surveyors, pilots, students, shoemakers, silversmiths, physicians, an artist, seventeen property holders, seven teachers, five tobacco manufacturers, a tailor, fifteen sailors, musicians, boatmen, sugar makers, journeymen, and even one schoolboy, who had been transported on May 21, 1869, to the island of Fernando Po, off the coast of Africa. They were reported to have been badly treated; so badly in fact that forty-seven died on the voyage or

immediately on landing. Besides this there is a report of forty-four men transported to the penal colonies of Africa.

A defense is made against the charge that the Cubans had during the war been no more merciful than the Spaniards. It was claimed that during the first years of the war, when a number of officers had been captured by the patriots, they were not executed, but were placed under parole not to attempt to escape. They broke their parole, and in return for the merciful conduct of their former captors they became the most violent and brutal of all the Spanish officials in their persecution of the Cubans. On the other hand, when men of Spanish birth approached the patriots expressing sympathy for their cause, and a desire to fight for independence, their services were accepted and in every instance they proved to be spies, who furnished the Spanish leaders with valuable information and delivered their Cuban comrades into the hands of the enemy. It was alleged that up to August, 1869, the Cuban leaders adhered to their policy of fair and decent treatment of their captives, and when they learned of the brutal conduct of the Spaniards, General Quesada addressed a message to General Lesca, and endeavored to effect a mutual agreement on the subject. The reply received declared that the Spaniards saw no reason to depart from their custom in the matter of this and left the Cubans no alternative but to resort to similar measures. General Quesada therefore ordered the execution of sixty-seven persons who had voluntarily taken up arms under the Cuban banner, and who had later been apprehended in a conspiracy to betray the patriots. It is stated that the report of the affairs erroneously added an extra numeral to the figures, which caused the number to be stated as six hundred and seventy.

In proof of the truth of the statements contained in the "Book of Blood," an account from the Spanish journal "Diario de la Marina," under date of March 24, 1870, is cited:

"All the officers, sergeants and corporals who were in the hands of the enemy have been shot. In connection with many Cubans they had planned a counter-revolution, and had concerted the delivery of all rebel chieftains to General Puello. Two days before the one appointed by this gallant general to commence his march, he sent a messenger to Captain Troyano with the news of his advance. The bearer of the news was arrested, however, and searched, the letter was found, and on the following day, the messenger, our

officers, and the Cubans compromised in the counter-revolution, were shot, thus sealing with their lives their devotion to their beloved mother country."

This seems to be an ample corroboration of the fact that the men in question were shot as traitors and not as prisoners of war. Another Spanish officer, Don Domingo Graino, a Captain of the Volunteers, under date of September 23, 1869, writes:

"More than three hundred spies and conspirators are shot monthly in this jurisdiction. Myself alone with my band have already disposed of nine."

We have also this testimony from Jesus Rivacoba, an officer of the Volunteers:

"We captured seventeen, thirteen of whom were shot outright; on dying they shouted, 'Hurrah for Free Cuba!' A mulatto said, 'Hurrah for Cespedes!' On the following day we killed a Cuban officer, and another man. Among the thirteen that we shot the first day were found three sons and their father; the father witnessed the execution of his sons without even changing color, and when his turn came he said he died for the independence of his country. On coming back we brought along with us three carts filled with women and children, the families of those we had shot; and they asked us to shoot them, because they would rather die than live among Spaniards."

Still another officer of the Volunteers, Pedro Fardon, writes:

"Not a single Cuban will remain in this island, because we shoot all those we find in the fields, on the farms, and in every hovel.

"We do not leave a creature alive when we pass, be it man or animal. If we find cows we kill them; if horses, ditto; if hogs, ditto; men, women and children, ditto; as to the houses, we burn them; so everyone receives his due—the men in balls, the animals in bayonet-thrusts. The island will remain a desert."

At the end of the year, the forces under General Maximo Gomez were victorious over those under the Spanish General Bascones, in the district of Camaguey, while the fortified town of Manzanillo was on November 11 taken by storm and occupied by troops under General Garcia. The Cubans lost forty-nine killed and eighty wounded, while the Spaniards lost two hundred killed and one hundred and thirty wounded. On December 2, the battle of Palo Seco occurred. Seven hundred patriots under General Gomez were arrayed against a thousand Spaniards. A lively fight took place, and the Spaniards were put to flight in such disorder that they abandoned their

wounded, their arms and their impediments. They lost several officers and two hundred common soldiers, while the Cubans captured seventeen officers, one of them being a Lieutenant-Colonel. The Cuban casualties were small in comparison, being ninety killed and one hundred and six wounded. Among the stores left behind by the fleeing Spaniards were twelve revolvers, sixteen thousand five hundred cartridges, two hundred and fifty Remington rifles, eighty horses, and thirty mules, their packs containing ammunition, clothing and a small amount of money.

CHAPTER XVI

AT the beginning of the year 1874 a *coup d'etat* placed Serrano again at the head of the government in Spain, but in Cuba there was no change. The struggle was still continued. The first battle of the year was on a larger scale than the majority of those which had preceded it. At Naranjo, on January 4, two thousand Cubans under General Gomez were victorious over four thousand Spaniards, and the Cuban losses were slight in comparison with those of the enemy. Again, at Corralillo, on January 8, the Cubans scored a triumph, and on the next day a third victory was achieved at Los Melones by the forces of General Garcia.

Don Joachim Jovellar, the Captain-General, declared the island to be in a state of siege, and in a bold but hardly successful attempt to swell the Spanish forces proclaimed a conscription of all men from twenty to forty years old, and exacted the payment of a thousand dollars in gold in lieu of compliance with this decree. He antagonized the Volunteers, who considered themselves of much finer quality than the Spanish common soldiers, by demanding that one-tenth of their number be allotted to and placed under the command of the regular army. The Volunteers resisted this order, and made an attempt to secure Jovellar's removal from office, but were unsuccessful, and he continued to take the most extraordinary measures, stating that he would summarily put down the rebellion; and yet the fighting steadily continued.

General Portillo was considered one of the most able of the Spanish officers, and it was expected that he would be able to inflict great losses on the insurgents, hence the Spanish leaders were greatly chagrined when he went down in defeat at the hands of General Gomez, who then proceeded to administer a like chastisement to the forces under General Arminan, who had taken up his position at Guasimas, and who was forced to make his escape to Puerto Principe, abandoning his command, all of whom were killed, wounded or taken prisoner. In all the history of the war no such victory had ever before been won. The battle had raged for three days and nights, and at its inception General Arminan had been at the head of an army of three thousand men. When the Spaniards had heard how Arminan

was faring, they had sent General Bascones to the rescue, but he never got through to aid Arminan, for he was routed by the Cubans while on his way.

Jovellar was a little less confident, after these occurrences, that it would be a simple matter to put down the rebellion. He seems to have lacked the quality of resolute perseverance, and when matters were against him he resigned his office, and again Don José de la Concha returned to take charge of Spanish affairs in Cuba. Now Concha had been *persona non grata* with the Volunteers and he was not received by them with great enthusiasm. He began at once upon assuming office to take the force out of the decrees promulgated by Jovellar, by greatly modifying their terms, and promising freedom to all blacks who would serve in the army for a period of five years.

In April, 1874, Hamilton Fish, Secretary of State, made public announcement in Washington that during the five years of the war the Spanish losses had totaled more than eighty thousand men and officers, a large number of these casualties being due to sickness caused by unsanitary conditions, while Spain had spent over one hundred million dollars in her ineffective efforts to put down the revolution. He further stated that it did not appear that she was likely to accomplish this speedily, since the revolutionary government seemed quite as powerful and as active as in the beginning.

The history of the year 1875 was one of unimportant engagements, small skirmishes and guerrilla warfare, no important battle being fought until the year had about reached its close, when Gomez suffered a severe defeat at Puerto Principe, which is believed to have been the turning of the tide against the Cubans. Meanwhile the United States began to display a strong interest in Cuban affairs.

On November 5, 1875, a letter was sent by the State Department to Caleb Cushing, then United States minister to Madrid, containing the following information, intended, of course, as admonition to the Spanish government:

"In the absence of any prospect of a termination of the war, or of any change in the manner in which it has been conducted on either side, the President feels that the time is at hand when it may be the duty of other governments to intervene, solely with a view of bringing to an end a disastrous and destructive conflict, and of restoring peace in the island of Cuba. No government is more deeply interested in the order and peaceful

administration of this island than is the United States, and none has suffered as the United States from the condition which has obtained there during the past six or seven years. He will, therefore, feel it his duty at an early day to submit the subject in this light, and accompanied by an expression of the views above presented, for the consideration of Congress."

For some strange reason, Mr. Fish seemed to have lost his usual cool wisdom; for he went perilously near to ignoring the Monroe Doctrine, so sacred to all the traditions of American diplomacy, when he directed that a copy of this letter be forwarded to General Robert C. Schenck, the United States Minister at London, directing him to ask for the support of Great Britain in his position.

Following this action of his Secretary of State, President Grant, in his message to Congress in December, 1875, said: "The past year has furnished no evidence of an approaching termination of the ruinous conflict which has been raging for seven years in the neighboring island of Cuba. While conscious that the insurrection has shown a strength and endurance which made it at least doubtful whether it be in the power of Spain to subdue it, it seems unquestionable that no such civil organization exists which may be recognized as an independent government capable of performing its international obligations and entitled to be treated as one of the powers of the earth."

The Spanish government was very wrathful when these facts became known to it and at once sent a note to Great Britain claiming that the United States had no reason to bewail the Cuban situation, for on account of it her commerce had increased; that Spanish had had under the most jealous and watchful care, as regards the safety of their person and property, all American citizens who were engaged in business ventures on the island, and that most of them were making huge fortunes. A complaint was made that the United States gave refuge to Cuban outlaws, and it was alleged that all past claims of the United States growing out of the Cuban difficulty had been or were about to be settled.

However, Great Britain refused to have anything to do with an attempt, in conjunction with the United States, to end the Cuban war, stating that it was doubtful whether Spain would accept any terms that could be offered, and that if she refused, Great Britain did not feel willing to bring pressure to bear.

Spain, in a note dated February 3, 1876, intimated that the reason why a settlement of the insurrection in Cuba had not been effected was because the insurgents would not come out into the open and fight, but preferred to wage a guerrilla warfare from mountain fastnesses; that could they be lured into the open, Spain had a sufficient force in the field promptly to defeat them. It was further intimated that the Creoles were tiring of the insurrection and that it was now being supported mainly by negroes, mulattoes, Chinese laborers, adventurers, and deserters from the Spanish army. Finally the assertion was made that when Spain was finally victorious, as it was assumed that she would be, she would at once abolish slavery, and put into effect the most liberal of administrative reforms.

In strange contradictions of these pretensions, Spain presently looked to the United States Government to mediate in the affairs of Cuba, and early in the year 1876 asked that it attempt to bring about an understanding with the insurgents. Hamilton Fish, who was still Secretary of State, replied, stating plainly the points which the United States considered essential for the establishment of peace, law and order in distressed Cuba:

"1—The mutual and reciprocal observance of treaty obligations, and a full, friendly and liberal understanding and interpretation of all doubtful treaty provisions, wherever doubt or question may exist.

"2—Peace, order, and good government in Cuba which involves prompt and effective measures to restore peace, and the establishment of a government suited to the spirit and necessities of the age, liberal in its provisions, wherein justice can be meted out to all alike, according to defined and well-established provisions.

"3—Gradual but effectual emancipation of slaves.

"4—Improvement of commercial facilities and the removal of the obstructions now existing in the way of trade and commerce."

The Spanish government replied on April 16, making a specific answer to each point made by the United States:

"1—The government of his majesty is in entire conformity as regards complying for its part with all the stipulations of the existing treaties, and giving to them a perfect, friendly and liberal interpretation in all that which may be the subject of doubt or question.

"2—The government of the king likewise proposes, because it believes it necessary, to change in a liberal sense the régime hitherto followed in the

island of Cuba, not only in its administration but also in its political part.

"3—Not merely gradual and genuine, but rapid emancipation of the slaves, because the government of his majesty recognizes and unreservedly proclaims that slavery neither can nor ought to be maintained in any of its dominions, by reason of its being an anti-Christian institution and opposed to present civilization.

"4—The government of the king finds itself in complete accord not only as to increasing but as to extending to the furthest possible limit all commercial facilities, and causing the disappearance of all the obstacles which today exist, and which hinder the rapid and free course of commercial negotiations."

The United States made no further attempts at intervention, and for the time being the matter was dropped.

During the year which followed, 1877, more and more the Cuban methods of warfare merited the description which Spain had given of them. It became a war of extermination, rather than battle for independence. Cespedes, Quesada, Agramonte, and many other of the original leaders had died in battle, or had been captured and murdered by the enemy. Foreigners, who knew nothing of early ideals, and indeed little of early struggles, had largely replaced the great Cuban patriots, and their idea was not so much separation from Spain and conquest of the enemy as plunder. Property was no longer respected, the once prosperous island was fast becoming desolate, and on every hand deserted and ruined plantations were covered with weeds, where once had been wide cultivated fields. The insurgents were a motley array of men, of many races, and of varied color, yellow Chinese, and all shades of mulattoes, with only a small proportion of Creoles. The bands were now composed principally of marauders, who destroyed everything that they could not steal. Their victory no longer meant a triumph for democracy, and the establishment of a liberal government where there was now an oppressive one, but rather it would be a menace to civilization, hostile to all ideals of law and order.

The constitution of Spain's army at this period is reported to have been two hundred and seventy-three superior officers; three thousand and fifty-four subalterns; sixty-eight thousand one hundred and fifteen privates, with an equipment of eight thousand four hundred and seventy-eight horses; four hundred and sixty-two mules; forty-two field guns, and plenty of small

arms and ammunition. The men were properly clothed, and well fed. Notwithstanding the confusion of the Carlist uprising, Spain had been able to send over, during the first year of King Alfonso's reign, twenty-four thousand, four hundred and forty-five soldiers, while her naval force included forty-five vessels, equipped with one hundred and thirty-two guns, and manned by two thousand four hundred and twenty-six men. Besides this, over ten thousand men were on the high seas to reinforce the Spanish army. The disorganized, ragged, weary, badly fed Cuban forces, with the lawless element which now unhappily predominated among them had small chance of victory against such overwhelming odds. Nothing but the natural topography of the country, so favorable to guerrilla warfare, and the knowledge which the natives had of its mountain strongholds, had enabled the Cuban army to prolong thus far the war. The only thing which had saved the island from entire economic destruction was the fact that the belligerents had not invaded the western provinces, and their inhabitants had been free to plant and reap and conduct their lives in an orderly fashion.

The expenses of the war had made heavy inroads on the Spanish treasury, and in August of this year, the Spanish capitalists had contributed nearly twenty-five thousand pesetas toward the expenses of the army in Cuba. As the season advanced, troop ships arrived at regular intervals. In October, General Martinez Campos—one of the ablest soldiers and statesmen in Spain—was appointed Captain-General of Cuba and commander of the army, and he sailed from Spain to take over his command, accompanied by fourteen thousand men. Determined that the revolution should once for all be terminated, and not content with the sum which Spain's bankers had placed at her disposal, the Spanish Cortes passed a bill providing for a foreign loan, which would be devoted to the suppression of the insurrection.

The beginning of the year 1877 thus saw the cause of liberty in a precarious condition. The Cuban army had been so greatly weakened that in the encounters which took place the Spaniards were constantly victorious, and they were soon able to regain the major portion of the territory which had previously been occupied by the revolutionists. The time seemed favorable for a settlement of the difficulties in a manner which, while offering a few concessions to the Cubans, might still be greatly to the advantage of Spain. To the Captain-General this seemed the proper occasion for some nice diplomacy, for coaxing with fair words instead of coercing with violence. He therefore on May 5 issued a proclamation which

he felt would be effective in inducing the revolutionists to abandon the struggle and to return to the doubtful protection of allegiance to Spanish rule. His proclamation read as follows:

"Article I—From the date of this decree, all orders of banishment decreed gubernatively by this Government for political motives are hereby rescinded, and all proceedings now under way regarding the same are hereby overruled.

"Article II—The embargoes imposed gubernatively on insurgents who have presented or may present themselves for pardon before the termination of the war shall also be raised. There will, however, be excepted from the favor of disembargo the property of backsliding insurgents and that of the leaders of the insurrection, in respect to which this General Government will adopt the measure it deems most convenient, according to the special circumstances of each case.

"Article III—The property, embargoed gubernatively, of the disloyal ('infidentes') who have since died, shall also be released from embargo, and delivered unto their lawful heirs, if these remain faithful to the Spanish nation.

"Article IV—The property referred to in the two preceding articles once returned, its owners or holders shall not sell, assign, transfer or burden it in any manner until two years after the official publication of the complete pacification of the island.

"Article V—The proceeds of property before its return shall be considered as applied toward the expenses of the war, unless otherwise provided for, and its owners without any right to make reclamation of any nature whatsoever.

"Article VI—None of those whose property has been released from embargo shall either have the right to make reclamation for any loss or injury that may have been suffered by the property or object returned them.

"Article VII—To assist as far as possible in the return of said property, this Government will authorize the Governors and Lieutenant-Governors of the island to effect the same in each case, to those comprised in this decree, whose property is situated within their respective jurisdictions, with the due precautions which shall be communicated to them from the office of the Secretary of the General Government.

"Article VIII—The judicial proceedings actually under way against *infidentes* shall be forwarded until overruled, or judged, as may result in law.

"Article IX—Concerning the property adjudged to the State, by sentence of competent tribunals, his Majesty's Government will decide in due time whatever it may deem most convenient.

"Article X—The requisite orders shall be issued through the office of the Secretary of this General Government, that the foregoing articles shall be duly complied with by whom it may concern."

Seven months later, on November 3, he promulgated a second decree providing "that all estates ruined during the war, and in the way of reconstruction, shall be free from contributions for five years, from the date of the decree. Every new state and all new property acquired in cities or villages of the central and oriental departments will have the same privilege. All industries and commerce in said departments newly established will be exempt for three years from contributions. All female cattle, either Spanish or foreign, imported into Cuba with the exclusive object of raising stock, will be duty free for two years."

The first decree had the desired effect. A number of the Cuban leaders surrendered in October, 1877. It is true that when some of these men attempted to return to the Cuban lines and persuade the other officers to join them in submission to Spanish authority, they were tried by court-martial and sentenced. But the tide had turned, and was now steadily flowing favorably for the Spaniards. The war was over. Cuban independence had once more been postponed.

Negotiations were entered into at Zanjón, in which General Maximo Gomez represented the Cubans, and Captain-General Campos the Spanish government. On February 15, 1878, the so-called Treaty of Zanjón was signed; its terms being in brief as follows:

"Article I—The political, organic and administrative laws enjoyed by Porto Rico shall be established in Cuba.

"Art. II—Free pardon for all political offenses committed from 1868 to date, and freedom for those who are under indictment or are serving sentences within or without the island. Amnesty to all deserters from the Spanish army, regardless of nationality, this clause being extended to

include all those who have taken part directly or indirectly in the revolutionary movement.

"Art. III—Freedom for the Asiatic coolies and for the slaves who may be in the insurgent ranks.

"Art. IV—No individual who by virtue of this capitulation shall submit to and remain under the authority of the Spanish government shall be compelled to render any military service before peace be established over the whole territory.

"Art. V—Every individual who by virtue of this capitulation may wish to depart from the island shall be permitted to do so, and the Spanish government shall provide him with the means therefor, without passing through any town or settlement, if he so desire.

"Art. VI—The capitulation of each force shall take place in uninhabited spots, where beforehand the arms and ammunition of war shall be deposited.

"Art. VII—In order to further the acceptance, by the insurgents of the other departments of these articles of capitulation, the commander-in-chief of the Spanish army shall furnish them free transportation, by land and sea, over all the lines within his control of the Central Department.

"Art. VIII—This pact with the Committee of the Central Department shall be deemed to have been made with all the departments of the island which may accept the conditions."

In addition to this, there were reported to have been secret agreements, which provided for "a civil governor with duties distinct from those of a military governor; a provincial parliament in each of the three departments; popular elections for municipal officers; the inclusion of the war debt in the public estimates of the island; the dissolution of the Volunteer Corps of Havana, and the organization of a new militia to be composed alike of Cubans and Spaniards; a representation of the island in the Cortes; a recognition of the military rank of the insurgent chiefs and officers, and those accredited with foreign commissions, their rank 'to be effective only in the list of the Spanish army in Cuba,' and the complete abolition of slavery in five years, with indemnity."

Both parties disregarded the terms of the treaty. Doubtless the Cubans would have played with entire fairness, had it not been for the fact that the Spaniards at once demonstrated that they did not intend to keep their

promises. General Garcia retained the title of "President of the Republic," and the House of Representatives continued, until 1869, to meet somewhere in the wilderness. General Campos made a bid for popular favor, and went on record as advocating a peace which would be lasting. The Spaniards had good cause not to desire resumption of warfare, and the Cubans were too worn out to start any serious trouble. Campos wrote a report to the Spanish government, couched in florid language and breathing benevolence:

"I do not wish to make a momentary peace. I desire that this peace be the beginning of a bond of common interests between Spain and her Cuban provinces, and that this bond be drawn continually closer by the identity of aspirations and the good faith of both.

"Let not the Cubans be considered as pariahs or minors, but put on an equality with other Spaniards in everything not inconsistent with their present condition.

"It was on the other hand impossible, according to my judgment and conscience, not to grant the first condition; not to do it was to postpone indefinitely the fulfilment of a promise made in our present constitution. It was not possible that this island, richer, more populous, and more advanced morally and materially than her sister, Porto Rico, should remain without the advantages and liberties long ago planted in the latter with good results; and the spirit of the age, and the decision of the country gradually to assimilate the colonies to the Peninsula, made it necessary to grant the promised reforms, which would have been already established, and surely more amply, if the abnormal state of things had not concentrated all the attention of government on the extirpation of the evil which was devouring this rich province.

"I did not make the last constitution; I had no part in the discussion of it. It is now the law, and as such I respect it, and as such endeavor to apply it. But there was in it something conditional, which I think a danger, a motive of distrust, and I have wished that it might disappear. Nothing assures me that the present ministry will continue in power, and I do not know whether that which replaces it would believe the fit moment to have arrived for fulfilling the precept of the constitution.

"I desire the peace of Spain, and this will not be firm while there is war or disturbance in the richest jewel of her crown. Perhaps the insurgents would have accepted promises less liberal and more vague than those set forth in

this condition; but even had this been done it would have been but a brief postponement, because those liberties are destined to come for the reasons already given, with the difference that Spain now shows herself generous and magnanimous, satisfying just aspirations which she might deny, and a little later, probably very soon, would have been obliged to grant them, compelled by the force of ideas and of the age.

"Moreover, she has promised over and over again to enter on the path of assimilation, and if the promises were more vague, even though the fulfillment of this promise were begun, these people would have the right to doubt our good faith and to show a distrust unfortunately warranted by the failings of human nature itself.

"The not adding another one hundred thousand to the one hundred thousand families that mourn their sons slain in this pitiless war, and the cry of peace that will resound in the hearts of the eighty thousand mothers who have sons in Cuba who are liable to conscription, would be a full equivalent for the payment of a debt of justice."

February 21, 1878, saw the Cuban insurrection officially at an end. The Cubans laid down their arms and surrendered to the Spanish forces. On March 1, telegrams announcing this fact were received by the Cortes in Spain with the greatest rejoicing. On the next day a royal decree was published at Havana announcing that Cuba was to be accorded the same treatment which had been granted to Porto Rico; and many concessions were nominally made to the former insurgents. Cuba was to be allowed to have her own municipal government and city councils, and was to be granted representation in the Cortes, while a second decree was promulgated at Puerto Principe declaring the freedom of all slaves who had been born since the enactment of the measure of February 10, 1869, on the condition that within a month they presented themselves to the authorities for the proper legal procedure. Spain had so frequently gone on record, particularly in her efforts to enlist the sympathy of the United States Government, that she would, immediately on a determination of the war in her favor, declare the abolition of slavery, that she could not now very well give the lie to her assurances. The proclamation at Puerto Principe, however, contained the extremely unjust provision that all patriots who had taken part in the revolution would not receive compensation for the financial loss suffered in the freeing of their slaves, but that the loyal Spaniards would be indemnified. It is not difficult to picture how this

provision must have impressed those patriots who had sacrificed everything in an effort to free themselves from that very rule which was now imposing such an unfair enactment upon them.

Official Spanish reports give the following table of their losses yearly during the Ten Years' War:

<i>Year</i>	<i>Force in Field</i>	<i>Deaths</i>
1869	35,570	5,504
1870	47,242	9,395
1871	55,357	6,574
1872	58,708	7,780
1873	52,500	5,902
1874	62,578	5,923
1875	63,212	6,361
1876	78,099	8,482
1877	90,245	17,677
1878	81,700	7,500
Total		81,098

CHAPTER XVII

THE Spanish government had granted concessions to the Cubans, or what on their face seemed to be concessions, but in actual administration, the government remained practically the same. The power remained vested in a military government, at the head of which was the Captain-General, whose name was subsequently changed to Governor-General, but whose nature and functions remained in the last analysis very little different from what they had been before the revolution. The struggle had, however, given the Cubans less fear of their tyrant. They had demonstrated that they were able for ten years to keep up an armed resistance against their oppressors, and one which had occasioned Spain a great loss of life, and of property, and had caused her rulers to have many unpleasant hours, struggling with vexing problems. Those who had accomplished this would never again be quite the same. They could never again be ground beneath the heels of Spanish tyrants in the same unresisting if not uncomplaining fashion, which had been the regular order of things before the revolution. Had a Lopez come to Cuba, he would have found a far different people from those who failed to rally to aid him when in 1851 he made his fruitless efforts to free the island.

During 1878 two political parties were organized in Cuba, and another was essayed, the proposed constitution of the latter forming the basis for the platform of the Autonomistas, then the most radical of all Cuban political organizations.

The Liberal Party belied its name, for its platform was a most conservative one. It followed closely the lines of the agreement with Spain, as laid down in the Treaty of Zanjón, and the negotiations in connection therewith, and it sought mainly to obtain the enforcement of the promises which Spain made at that time, and in which, from long experience, most Cubans had little faith—nor was this lack of faith unwarranted. The party was really an organized movement to enforce the provisions of the treaty. Its platform provided for the right to assemble and to discuss political questions, the right of freedom in religious worship, the removal of the restrictions which had been placed on the press, and the right of petition. It also provided for

the protection of the homes and property of loyal Cubans, and for the right of correspondence without censorship or interference from the Spanish authorities. It stood for improvements in the criminal law, which would make it impossible for the crimes which had been so prevalent to be committed further against the persons and property of those who were in sympathy with the liberation of Cuba. It also sought to obtain the admission of Creoles to office on the island on the same basis as Spanish born citizens, and above all a complete separation of the military and civil functions of the government. It will be recalled that one of the promises said to have been made by Spain was that there should be a civil governor. By these means it hoped to abolish the discrimination against the Creoles in the government of their own country. Changes in taxation also had their part in the platform, with an idea of obtaining a decrease of the high export duties.

An analysis of the platform of the Union Constitutionalists shows surprisingly little difference from that of the Liberals. It also provided for the right of petition, asked for an improvement in the methods of administration of the laws—that is the abatement of the perversion of those laws by unscrupulous Spanish officials, so that they might be used as a club for protesting Creoles. The platform of the Union Constitutionalists further stood for the enactment of special laws for Cuba, which would be peculiarly suited to her needs, including protection for the various industries and activities, the planters and the tobacco raisers, and the removal of excessive export duties. It also sought a commercial treaty with the United States, and the abolition of slavery in accordance with the Moret law, with modifications which seemed proper in the light of conditions in Cuba.

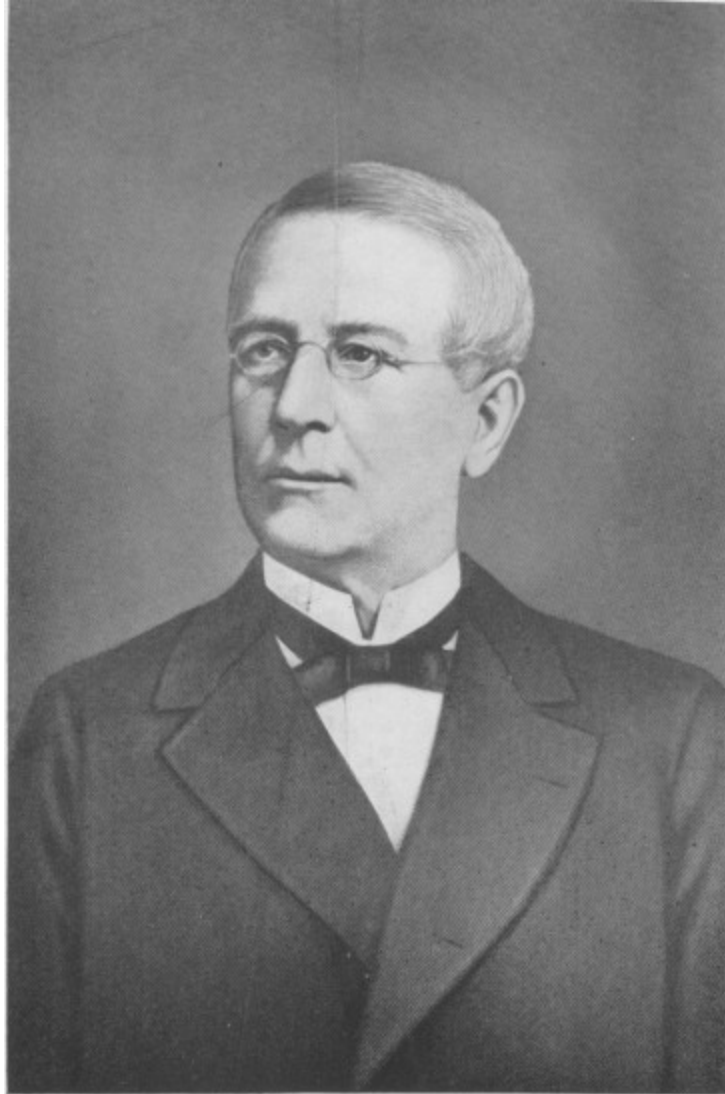
A third platform was formulated, but it was never completely adopted, and the party which drafted it died at birth, without a name. It took the bull by the horns, and flaunted its conviction in the face of Spain. It is a matter of conjecture whether if the leaders of this movement had prolonged the life of the potential party, it would have long survived active Spanish opposition. This platform provided for free trade, free banks, free shipping, free labor, none but municipal taxes, the prompt and complete abolition of slavery, the formation of a provincial militia and universal suffrage. Its terms must have been a severe shock to the Spaniards.

No fewer than thirty representatives in the Spanish Cortes were allotted to Cuba; but such representation was a farce, for pains were taken by those who held the balance of power to see that so small a number of Creoles

were sent as representatives, and that the Spaniards so greatly outnumbered them, that the Cuban vote counted for nothing, and Spain still held complete power. This was the more regrettable and exasperating, since the Cubans so far as they were permitted to do so sent men of the highest type to the Cortes. Among them, preeminently, was Dr. Rafael Montoro, one of the ablest scholars and statesmen in Cuban history, who was destined subsequently to play a great part in the administration of the free and independent Republic of Cuba.

It is self-evident that such conditions and the failure of Spain to live up to her promises would be provocative of much dissatisfaction, and it followed as a matter of course that those who had learned to rebel now took that means of expressing their dissatisfaction. In fact the war had never ceased, for soon after the signing of the treaty, as soon as Spain had shown her hand, Calixto Garcia assembled a small band of rebels, and continued to harass the Spanish in guerrilla warfare, taking up his position in mountain fastnesses which were inaccessible except to those who held the key to their labyrinthine paths, and biding his time in the most annoying fashion possible until he felt matters were ripe for another widespread armed rebellion.

In August, 1879, in the districts of Holguin and Santiago there was a serious renewal of hostilities. The rebels, so termed by the Spanish, consisted mainly of freed blacks, and were under the leadership of three mulattoes, Maceo, Brombet and Guilleamon. This movement thoroughly frightened the authorities, and two thousand Spanish troops were promptly sent to repress it. The insurgents were reinforced by large numbers of runaway slaves—those who had demanded their liberty and had had their request denied. The insurgents took advantage of the disturbed condition of the country and sought to turn the general situation to their advantage. They hid in the mountains, in dense woods, and in wild places, and descended wherever and whenever they could pillage and burn without intervention from Spanish troops. So thoroughly did the Spanish authorities dread a renewal of hostilities that the Captain-General declared the province of Santiago to be in a state of siege. Meanwhile the insurgents drew up a constitution for themselves, and continued their activities for over six months, terrorizing the people, destroying property and taking prisoners for ransom.



JOSÉ SILVERIO JORRIN

José Silverio Jorrin y Bramosio, a distinguished advocate, man of letters and publicist, was born in Havana on June 20, 1816, and was one of the pupils of José de la Luz at his famous school. After travelling in the United States and Europe he became one of the leaders of the Cuban bar and filled several judicial and other public offices. He was at one time a Senator in the Spanish Cortes, from Camaguey. His chief interest was in the advancement of the educational and economic welfare of the island, and on subjects relating thereto he wrote a number of important works. He wrote a Biography of Christopher Columbus and other historical works, and had much repute as an orator. For some years he was a leader of the Autonomist party, but later identified himself actively with the cause of independence. He lived to see independence assured if not actually yet achieved, dying in New York in 1897.

Meantime General Garcia conducted a campaign in the neighborhood of Santiago, which further complicated matters for the government. He had planned a general uprising for December 15, with the expectation that his

small band would be largely reinforced by the arrival of filibustering expeditions from the United States, with men and arms and ammunitions. But he was disappointed, and the government retaliated by making wholesale arrests of all persons, particularly blacks, who were under the slightest suspicion of sympathy with the rebellion. Three hundred and fifty blacks were arrested in Santiago alone. The rebels in spite of their small numbers had been able to do so much damage to property in this vicinity, that the government voted a hundred thousand dollars for the relief of Santiago, and half that amount for the same purpose in Puerto Principe.

The general feeling of unrest, uncertainty and suspicion among the Creoles was enhanced by the action of the government at Madrid in publishing a manifesto, on April 6, 1880, demanding that the Cuban government be assimilated with that of Spain, and promising in return enactments which would greatly increase the material prosperity of the colony. If Spain did not keep her promises with Cuba in a position to protest, it was a foregone conclusion that the action contemplated by the manifesto would not be productive of leniency in the government of the island, and it is not difficult to imagine with what wrath and consternation the knowledge that such a plan could ever be formulated filled the hearts of those who had struggled so long and so valiantly and at so great personal sacrifice for the freedom of Cuba. The result was a renewal of sporadic rebellions, and a seething turmoil of anger and resentment on the part of the Creoles.

In April, 1881, an attempt was made by the Spanish government by concessions to allay the storm which it had raised, and on April 7, the constitution of 1876 was again proclaimed. This granted to the Cubans full rights of citizenship, and the rights of free speech, free press and assembly, and representation. This was promptly modified on the very day of its enactment by the promulgation of the order of January 7, 1879, which had the effect of muzzling the press which had only a few hours before been freed. The other rights granted were of course existent only in name, and thus Spain continued her old program of stupid treachery.

In 1882 an event occurred which for a time seemed likely to draw England into the controversy. Three Cuban patriots, Maceo, Rodriguez, and a third whose name is not of record, escaped from custody while they were being transferred from one penal colony in Spain to another. They hastened to gain English territory, and fled to Gibraltar. One of the rights sacred to the

English government was the right of asylum. This the Spanish government proceeded to ignore. The Spanish consul notified the English authorities that the fugitives must be returned to Spain, and suggested as a method which would be productive of the least trouble that at a time and place agreed upon they be sent across the border, whereupon the Spanish authorities could apprehend them without difficulty and the controversy would be happily ended. Through some misapprehension on the part of the British officials, this was done. But the end was not yet. The British government, when it learned of the occurrence, promptly demanded the return of the men to British soil, under the right of asylum. The Spanish government exhausted all its arguments in vain. Great Britain stood firm, but when Spain had surrendered two of the fugitives, the matter was finally dropped and the fate of the third one was left to the mercies of Spain.

The history of Cuba was from this time on, until rebellion finally flamed into the war in which, with the aid of the United States, she gained her independence, one of petty persecutions, and retaliation by continuous uprisings, small in character but indicative of the smouldering fire. These were frequently aided by filibustering expeditions sent by the Cuban Junta in New York.

In 1885 a revolt took place in the provinces of Santa Clara and Santiago, always the hotbed of rebellion. The rebellion was quickly suppressed, but its leaders, and a large number of other Cubans, who were merely under suspicion of complicity, were executed without trial. One of the leaders, General Vidal, was banished from Cuba, but, when he was about to leave for Jamaica, under an arrangement made with the Spanish authorities, he was brutally murdered by hired assassins.

Meanwhile the administration of justice in Cuba would have been almost ludicrous if it had not been tragic. The Spaniards openly practiced the most egregious frauds at the polls, and by all the chicanery known to corrupt politics kept the Creoles from the participation in the government which Spain had so glibly promised them. One of the interesting methods to prevent the voting of the poor in Cuba was the prohibition under a law passed on December 12, 1892, of bona fide citizens from exercising the right of suffrage unless they paid the sum of five dollars in taxes. This law applied to black and white alike, and was prohibitive so far as the greater number of the former were concerned.

Meanwhile those Cubans who desired better things for their children than the nightmare in which they themselves lived were eager for education for their families, but for the most part education was a privilege which belonged only to the wealthy. It was not until 1883 that there existed schools of learning similar to high schools. It was not Spain's game to educate the masses, for if an autocracy is to survive, too much learning is a dangerous thing to be allowed to spread among the common people.

In 1887 the Spanish authorities decided, justly, that the treasury of Spain was being deprived of revenues by the evasion of taxes, and that this was being done by the connivance of the custom house officials. The Governor-General therefore ordered the seizure of the custom house by Spanish troops, and the wharfs and warehouses were placed under heavy guard. After an investigation had been started a number of merchants whose business was importing confessed that they had been doing business in a way which deprived the government of certain revenues and asked permission to change their entries. They were granted three days to do this. The result was an enormous increase in revenue from the custom house. The Governor-General proceeded from that time forth to keep a strict watch on custom house matters, with the result that evasions of the law were the exception.

By 1887 the country was in such condition that it was unsafe for any man to proceed unguarded for a mile or two into the country. Neither the person of any well-to-do planter, nor his property was safe. Outlaw bands overran the highways, and took cover in woods and hills, from whence they pounced on travelers, robbed and beat them, and took them captive for ransom. The brigands were so daring and their depredations assumed such proportions that martial law was declared in over a hundred towns and villages. Incendiarism was rife, not only were planters robbed and murdered, but their possessions were pillaged, their fields were laid waste and their buildings were burned. Sanitary conditions on the island were so bad that in the months of December, 1887, and of January and February, 1880, two thousand cases of smallpox were reported. This, of course, covered only a small portion of the cases actually existent, and those who did not fall victim to smallpox were in danger of yellow fever. Even Nature seemed to have entered into a conspiracy against the unhappy island, for in 1887 there was an earthquake, and the following year a violent cyclone,

which went the whole length of the island, but did its principal damage in the province of Santa Clara. Not less than a thousand lives were lost.

For a time, indeed, there was a measure of relief. That was when under the McKinley tariff of 1890, Cuban products, particularly sugar, gained freer access to American markets. While this system lasted, there was an accession of material prosperity in Cuba. But upon its repeal, due to a change of politics in the United States government, prosperity in Cuba waned, while discontent, dissatisfaction and disaffection waxed apace, and undismayed and resolute patriots began preparing for another general insurrection.

During the period between the Ten Years' War and the final War of Independence there was a succession of Governors-General, varying chiefly in the degree of their unacceptability to the Cuban people and of the ineptitude with which they maladministered the affairs of the island and thus contributed to the ultimate and inevitable catastrophe. Martinez Campos served, with the best of intentions, until the late summer of 1883. Then on September 28 he was succeeded by Ignacio Maria del Castillo. His administration endured for three years, and was replaced in 1886 by that of General Emilio Calleja y Isasi, who gave place the next year to Saba Marin. Another change occurred on March 13, 1889, when Manuel de Salamanca y Negrete took office. He served for less than a year, being succeeded on February 7, 1890, by General J. Chinchilla. To the latter must be accorded the distinction of having the shortest term of all, for on June 10 following his place was taken by General Polavieja. He served for two years and was succeeded on May 31, 1892, by General A. R. Arias, who in turn, on August 10, 1894, was replaced by General Emilio Calleja, who thus entered upon his second term, in which he was to suffer the penalty of the misdeeds of a long line of predecessors, and was to begin reaping the whirlwind harvest of the evil wind which for four centuries Spain had been sowing with a perverse and ruthless hand.

CHAPTER XVIII

"NEW occasions," sang a great American poet of freedom and of progress, "new occasions teach new duties"; and splendidly was the truth exemplified in Cuba in the era of which we have been writing in this volume. There befell the island at the beginning of the Nineteenth Century a new occasion, the greatest thus far in all its history since the landfall of Columbus. It was perhaps only partially realized at first, and it took many years for the complete realization to dawn upon the universal popular mind. But even before the realization came, the Cuban people, not yet cognizant of the tremendous force which was working within them, began to rise to meet the new occasion, the new opportunity which was opening before them, with a triumphant spiritual puissance which has not often been rivalled in the annals of the nations.

FELIPE POEY

One of Cuba's greatest natural scientists, Felipe Poey, was born in Havana on May 26, 1799, and was educated at the San Carlos Seminary and in France. He became a lawyer in Madrid, but in 1822 left that city because of political conditions and returned to Cuba to devote himself to ichthyology and entomology. He published a monumental work on "Cuban Ichthyology," and others on "Cuban Lepidopteres," "Cuban Mineralogy," the "Geography of Cuba," and the "Natural History of Cuba." He was for many years professor of zoology at the University of Havana and Dean of the Faculty of Sciences. He died in 1891.



FELIPE POEY

Writing of that very period, in his essay on Jean Paul Richter, and referring to the British domination of the sea which Nelson had achieved, to the mastery of the lands of Europe which Napoleon had won, and to the intellectual primacy which Germany—though beaten to the dust in war—was then enjoying, Carlyle observed that "Providence has given to the French the empire of the land, to the English that of the sea, to the Germans that of—the air!" It was a fine conception, as true then as it would be untrue to-day.

In a significant sense the same shrewd observation is apt to the situation of Cuba a hundred years ago. Spain held control of the material interests of the island, on sea and on land, but she could not restrain the Cubans from self-control, which meant immeasurable progress, in the air—that is, in the intellectual life. It was thus intellectually, in the only way as yet within their power, that the people of the island met the new and transcendent occasion.

It was, as we have seen, a period of revolution and of counter-revolution, a time of flux, throughout the greater part of the world. The mighty liberal impulse of the French Revolution, following in the wake of the American revolution, was by no means annihilated by the infatuated imperialism of Napoleon or by the reactionary movement which prevailed for a time after his fall. It was felt, and it prevailed, in North and Central and South America, from the Golden Gate to the Strait of Magellan; and in the islands of the Caribbean and the Gulf. In Cuba, as we have seen, there seemed to be at first no response, for reasons which also we have hitherto considered. But all unconsciously the Cuban people received and felt the impulse, and answered it.

Periods of revolution are usually periods of intellectual activity, and such was the case in Cuba. While there was in the first quarter of the century little thought of a revolt against Spain, or of independence, the revolutionary spirit which was in the air inspired the minds of Cubans, not only with activity but also, largely, with thoughts and aspirations of freedom. There was indeed in particular a striking likeness between Cuba and the Thirteen Colonies in North America just before the Revolution in that country. It will be recalled that down to a few months, perhaps even weeks, before the Declaration of Independence in 1776, very few American leaders contemplated independence. The war which they had begun at Lexington and Concord and Bunker Hill was not a war of secession, but a civil war intended merely to secure for British subjects in the colonies the same rights and privileges that British subjects in the British Isles enjoyed. But a little later it was seen that this would not suffice, and that complete separation and independence must be achieved. Precisely so did some of the foremost Cuban minds at the time of which we are writing, and indeed in much later years, incline toward reforms and autonomous freedom under the Spanish crown.

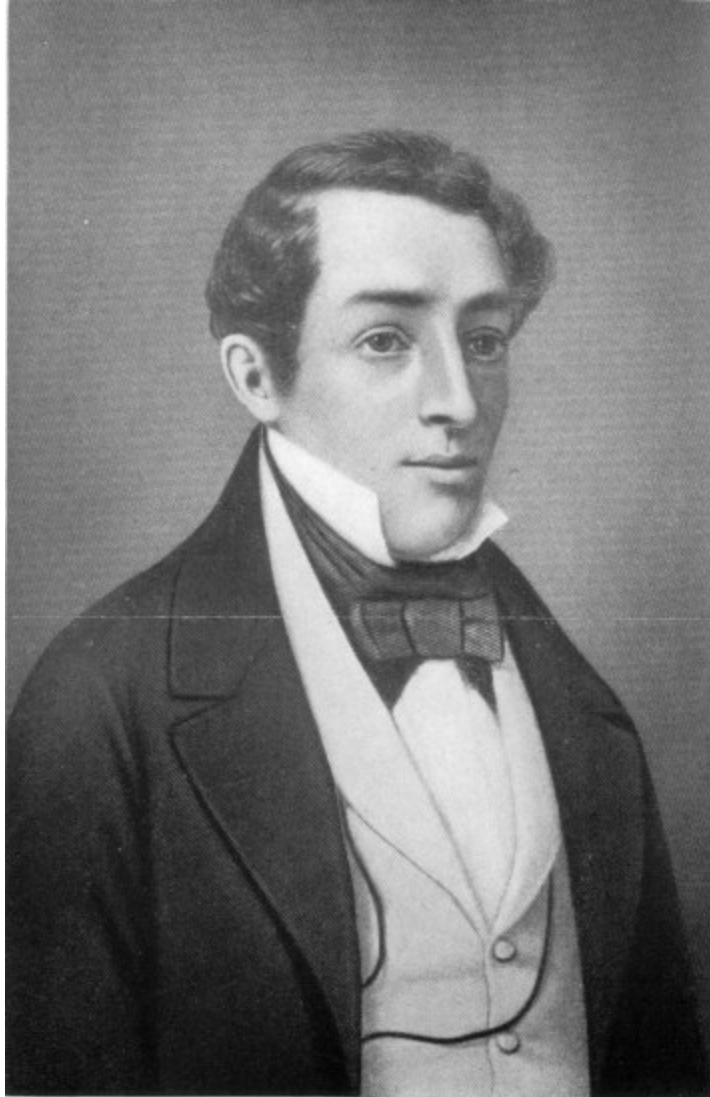
ANTONIO BACHILLER

Patriot, economist and man of letters, Antonio Bachiller y Morales was born in Havana on June 7, 1812, and was educated for the bar. He wrote several volumes of poems and plays, but gave his best attention to valuable treatises on Cuban history, industry, agriculture, economics, administration, and law. He was one of the foremost authorities and writers on Cuban and Antillean archaeology. He was professor of philosophy in the University of Havana, held various public offices, and was a patriotic orator of great power. He died on January 10, 1889.



ANTONIO BACHILLER

These men saw with exultation the enkindling of a spirit of liberty in the Iberian Peninsula. They saw the revolt of Spain against Joseph Bonaparte. They saw the Spanish people dictate to their Bourbon king that Constitution of 1812 which had it been triumphantly enforced would have marked an epoch in the history of the rights of man. They sympathized with and exulted in these things, and hoped for their extension in Cuba. It was only when they sadly realized that these things, even if gained for Spain, were not for Cuba, and that Liberal Spain was as illiberal toward Cuba as ever despotic Spain had been, that they turned from autonomy to independence. Then the intellectual activities which had been directed to the achievements of the Peninsula, were turned to the interests of the island.



JOSÉ MARÍA HEREDIA

The bearer of one of the greatest names in the literature of Cuba and of Spain, José María Heredia, was born at Santiago de Cuba on December 31, 1803, and died at Toluca, Mexico, on May 7, 1839. Because of his early identification with the cause of Cuban freedom in the "Soles y Rayos de Bolívar" he was compelled to flee to the United States, whence he presently went to Mexico and there spent the remainder of his life, holding places of high rank and importance. He was at once advocate, soldier, traveller, linguist, diplomat, journalist, magistrate, historian, poet. His "Ode to Niagara" has made him illustrious in American literature. His general writings have given him conspicuous rank among the world's great lyric poets of the Nineteenth Century.

The most striking exemplar of the pro-Spanish attitude of which we have been speaking, as well as perhaps the greatest of all Cuban poets, was José Maria Heredia; of whom the world too often thinks as a Spanish rather than as a Cuban genius. He was born in Cuba in 1803, the son of parents who had fled from Santo Domingo to escape the fury of the revolution of

Toussaint l'Ouverture. His father had formerly been a Chief Justice of the Venezuelan court at Caracas, under the Spanish government, and was loyal to Spain, though he detested and protested against her tyrannies and corruption and imbued his son with a passionate love of liberty. The younger Heredia established himself in the city of Matanzas, as a successful lawyer. But already he had written many poems, chiefly of freedom. They were in praise of Spain, and of the Spanish aspirations for liberty which were manifested in the Constitution of 1812. Indeed, never did Heredia commit himself against Spain, harshly as he was treated by her. But the poems which he had written in glorification of the Peninsular struggles for liberty against Napoleon and against the Bourbons were recognized by his countrymen to be equally applicable to the Cuban struggle against Spain, which was already impending, and they were consequently taken up throughout the island in that sense and for that purpose. This circumstance, though unintended by him, subjected him to grave suspicion; and he was presently charged with complicity in an insurrectionary movement in 1823, and was banished from Cuba for life. After a brief visit to the United States he went to Mexico, became a government official, married, and spent the rest of his life there, with the exception of a few weeks in 1836, when the Spanish authorities permitted him to revisit Cuba, though their espionage made his visit anything but pleasant. He died in 1839.

Heredia, who has been called the Byron of Spanish literature, and who is claimed by Spain as one of the glories of her letters, is known in Cuba largely by his patriotic poems, and his poems on nature. In the United States, where because of his exile from Cuba his poems were first printed, he is chiefly known by three great compositions, two of which were translated into English by William Cullen Bryant. These are his "Ode to Niagara," Which ranks among the greatest poems ever written by any poet on that theme; his "Ode to the Hurricane"; and a sonnet addressed to his wife. It is with his political and patriotic poems, however, that we are now most concerned, and of them it may be said that seldom have the aspirations of a people for freedom been expressed with more passionate eloquence. His first important poem, "The Star of Cuba," written while he was yet in his teens, expressed a readiness to die, if need be, for Cuba, leaving his head upon the scaffold as a token of the brutality of Spain. Years afterward, in exile, he apostrophized Cuba as the "land of light and beauty," and then thus prophesied:

My Cuba! Thou shalt one day rise
From 'neath the despot's hand,
Free as the air beneath thy skies
Or waves which kiss thy strand.
In vain the traitor's noxious plots,
The tyrant's wrath is vain;
Since roll the surges of the sea
Between thy shores and Spain!



FELIX VARELA

FELIX VARELA

One of Cuba's greatest philosophers and churchmen, Felix Varela, was born in Havana on November 20, 1788, was educated at San Carlos, and became a priest and teacher. After several years of service at San Carlos as Professor of Philosophy, in 1823 he was compelled to flee to New York as a political exile. In that city he spent the rest of his life, editing several periodicals, translating many works, and writing much on religious and philosophical subjects. He became rector of the Church of the Transfiguration, and in 1845 was chosen Vicar-General of New York. A few years later he went to Florida on account of his health, and died at St. Augustine in 1853.

Though Heredia took little active part in the physical revolt of Cuba against Spain, his poems exerted during his lifetime a potent influence in aid of revolution, and that influence steadily increased until, nearly three score years after his death, his prophecy of Cuban freedom was splendidly fulfilled. He was the first great voice of Cuban freedom, the first great pioneer in that extraordinary intellectual development which made Cuban history memorable in the Nineteenth Century. Truly did the Spanish critic Menendez say of him that if his political activity did not equal that of other conspirators against Spain, and though he took no part in armed struggles, his intellectual influence was constant and supremely effective, since he surpassed in talents all his countrymen.

But men might fall a little short—if indeed they did so—of Heredia's singular genius, and yet be noteworthy figures in the intellectual world. Well comparable with Heredia in influence, though exerted far differently, was the brilliant Professor of Latin, philosophy and science in the University of Havana, Felix Varela y Morales. It used to be said, and not without reason, that it was he who first taught the Cuban people to think as Cubans. He was sent to Spain as a Cuban Deputy to that historic Cortes which met at Cadiz in 1823 and was dispersed by Ferdinand VII because of its Liberalism. Varela was among its most conspicuous members, and was among those whose arrest was ordered by the reactionary Bourbons. He fortunately found asylum under the British flag at Gibraltar, whence he made his way to the United States. There, at Philadelphia, he published during the remainder of his life, a weekly journal, *El Habanero*, which had a large though chiefly surreptitious circulation in Cuba, and which exerted an inestimable influence for the encouragement of patriotic endeavors. He died in Florida in 1853, and his remains rested there for nearly half a century, when, after the achievement of Cuban independence, they were transferred to his native land.



JOSÉ AGUSTIN CABALLERO

JOSÉ AGUSTIN CABALLERO

One of the greatest ecclesiastics of Cuba, Father José Agustín Caballero, uncle and preceptor of José de la Luz, was born in Havana in February, 1771, and for many years was Director of the San Carlos Seminary. He was a leading member of the Patriotic Society, wrote much for the press, was the author of a number of educational and historical works, and preached a memorable sermon over the remains of Columbus when they were placed in the Cathedral at Havana. He died in 1835.

A name which we are not inclined to rank below any other in intellectual significance and influence in Nineteenth Century Cuba is that of the illustrious José de la Luz y Caballero, who was born in 1800 and died in 1862, too soon to see the beginning of that Ten Years' War to which his teachings had powerfully contributed. "The Father of the Cuban Revolution" the Spaniards called him, and more perhaps than any other man

did he deserve that honorable distinction. It was as an educator of youth that this great man's great work was done. In the world-shaking revolution year of 1848, after O'Donnell has drowned the Cuban slave revolts in blood, and when Narciso Lopez was just preparing for his descents upon the island, Luz y Caballero opened in Cuba a high school for boys. It was not a political school; certainly not seditious, unless truth and virtue were seditious. Hundreds of Cuban patriots, including many of the leaders in the Ten Years' War and the War of Independence, have testified that it was his teaching that made them the aggressive, resolute, militant patriots that they were. Yet they have all been equally insistent that "Don Pepe" as they called him was never a political propagandist. He never incited them to revolt, never prejudiced them against Spain. Yet, said his Spanish critics and enemies, he prepared his pupils to conspire and to be garrotted!

Both accounts of his teaching were true, and together they formed the severest possible indictment of the Spanish régime. The burden of his teaching was manhood. He and his assistants gave much attention to the ordinary academic studies, in science and the humanities. But constantly he impressed upon them the duty of being manly. That meant that they were to be true, pure, resolute against injustice, respecting themselves and respecting others as themselves, and ready if need should be to sacrifice themselves for the sake of duty. It was the highest and best form of practical ethical teaching. He might, it is true, have added at the end of each of his weekly discourses to his boys the words of Patrick Henry, "If this be treason, make the most of it." The Spaniards did regard it as treason, and it did certainly incite and foment insurrection against Spain. But so much the worse for Spain, if such teaching was incompatible with her rule in Cuba.

DOMINGO DEL MONTE

One of the greatest patrons of Cuban letters, Domingo del Monte, was born in Venezuela on August 4, 1804, was brought to Cuba in 1810, and was educated at the University of Havana. He travelled much in America and Europe, and then settled in Havana, where he was secretary of the Royal Economic Society. He edited a dictionary of Cuban provincialisms, and published a volume of "American Rhymes." He made his house the rendezvous of Cuban men of letters and gave to many of them invaluable encouragement and aid; and was also active in promoting public education throughout the island. He died at Madrid, Spain, in 1853.

An important literary influence was exerted in Cuba, beginning in the latter part of the Eighteenth century, and reaching its height in the first third of the Nineteenth, by the society called "Friends of Peace," of which Domingo del Monte was the leading spirit. It was this organization which

gave Varela his professorship in the University of Havana. It was it that gave a prize for the best poem on the birth of the princess who was to become Isabella II of Spain; a prize which was won by a lad of sixteen. This was Jose Antonio Echeverria, who afterward edited a literary journal called *El Plantel*, and still later became one of the leaders of the strife for independence. Another protégé of Del Monte's—for he was a wealthy patron of letters, at Havana—was Ramon Velez y Herrera, who was born in 1808 and died in 1886. He devoted his attention chiefly to depicting in poetry the life, manners and customs of the common people of Cuba, and particularly of the peasantry. Still another was José Jacinto Milanés, who was born in 1814 and died in 1863. He was preeminently the poet of "local color" in nature. No other has quite so richly and so perfectly embodied Cuban landscapes in verse. But both these poets also wrote in behalf of Cuban freedom.



DOMINGO DEL MONTE



JOSÉ JACINTO MILANES

Domingo del Monte himself wrote some poetry, but much more in prose, and he had the distinction of being practically the founder of political tract and pamphlet writing, an art which was largely practised with powerful results. He wrote in 1836 a notable criticism of the despotic administration of Tacon, and an analysis of the condition in which Cuba found herself under such government. This opened the way for a veritable flood of political tracts.

JOSÉ JACINTO MILANES

Born in Matanzas on August 16, 1814, and because of poverty chiefly self-educated, José Jacinto Milanés became a noted linguist and graceful poet. Most of his writings were translated into German, and some into English and French, and he gained international repute

as a man of letters. Mental derangement and failing physical health afflicted him in 1843, and he died in 1863.

Conspicuous among them were the writings of José Antonio Saco, who was born in 1797 and died in 1879. He was both a rival and a friend of Varela, and was the latter's successor in his professorship when Varela went to Cadiz and then fled to America. After Varela's arrival in the United States, Saco formed a literary and patriotic partnership with him, and together they edited the *Cuban Review*, a literary and critical journal of high rank, which commanded international attention. The American historian and literary critic, George Ticknor, said of it that perusal of it greatly impressed him with the amount of literary talent that existed in Cuba. The *Review*, he declared, far surpassed anything of the kind in any other of the Spanish or former Spanish colonies, and indeed "a review of such spirit, variety and power has never been attempted even in Madrid." Of course, Saco was exiled by Tacon, the immediate cause of offense being a pamphlet exposing and denouncing some of the more flagrant evils of the slave trade. The result was, however, that in exile Saco wrote one of the most elaborate and exhaustive histories of slavery in existence in any language, beside continuing his occasional political tracts. Nor did his influence end with his death and the laying down of his pen, for portions of his writings figured conspicuously and effectively in the literary propaganda which formed the prelude to the War of Independence.

Gabriel de la Concepcion Valdes was another of the protégés of Del Monte. He was born in 1809 and died in 1844. His father was a mulatto barber and his mother was a Spanish dancer, and he himself was permitted to remain illiterate in boyhood. While working as a maker of tortoise shell combs he was taught to read, and soon developed a passion for books. From reading he proceeded to the writing of poetry, adopting the pen name of "Placido" from the name of Placido Puentes, a druggist of Havana who encouraged his literary efforts to the extent of giving him pen and ink and paper, and a desk in his shop at which to sit and write whenever he felt inclined. Valdes was a voluminous writer, above most of his contemporaries, and while much that he wrote was mediocre, many of his poems were of high merit, and some of them deserve to rank among the best in Cuban literature; indeed, they would be noteworthy in the literature of any land. Especially meritorious are his poems about the slave trade and his apostrophes to Liberty. Because of these he was accused of complicity

in an attempted negro uprising. He was hurried through a farcical trial, in which no real proof of his guilt was presented. Indeed, there is good reason for believing that he was entirely innocent. But he was found guilty, and was put to death; repeating aloud, as he walked to the place of execution, one of his poems on liberty.



JOSÉ MANUEL MESTRE

JOSÉ MANUEL MESTRE

Advocate, philosopher, journalist and revolutionist, José Manuel Mestre was born in Havana in 1832. He was a professor of both law and philosophy in the University until he resigned because of governmental injustice to a colleague. For a time he taught on La Luz's school of El Salvador, and as a lawyer he defended Abad Torres who was charged with trying to murder the Archbishop of Santiago. During the Ten Years' War he was in New York, a member of the Cuban Junta, a diplomatic agent at Washington, and one of the editors of "El Nuevo Mundo." After the Treaty of Zanjón he returned to Cuba, and died in Havana in 1886.

Three more writers of note and of real merit must be mentioned as members of the company gathered about him by Domingo del Monte. These were Anselmo

Suarez y Romero, who lived from 1818 to 1878, and who as a delineator of Cuban life and customs in fiction and essays ranks among the best Cuban writers of prose; Cirillo Villaverde, who lived from 1812 to 1894, and who also depicted in romances the life and manners of his countrymen, dealing much, moreover, with African slavery; and Ramon de Palma y Romy, who dates from 1812 to 1860, who assisted Echeverría in the editing of "El Plantel," and who was an accomplished writer of verse and of dramas, and who is said to have been the first native Cuban dramatist to have a play of his produced upon the stage. The work of his thus honored was "La Prueba o la Vuelta del Cruzado," in 1837. Palma also wrote some strongly patriotic poems, which excited the suspicion and enmity of the Spanish authorities, and in consequence in 1852 he was arrested and imprisoned for a time on charge of complicity in the revolutionary movements of that time. We may reckon him to have been the last of the earlier school of Cuban writers, who had been more or less unconsciously inspired by the revolutionary era of the beginning of the century. Next came a new school, of the writers of the final and triumphant revolution.

We may indeed regard José Antonio Saco, to whom we have already referred, as one of the writers and intellectual leaders of the final revolution. In his earlier years he was an advocate of reforms in the Spanish administration of the island which would make continued union acceptable. In 1848 he had written a strong pamphlet against incorporation of Cuba in the United States, largely on the ground that thus Cuban nationality and the individuality of the Cuban people would be extinguished. Three years later he wrote again on "The Cuban Situation and Its Remedy," in which he pointed out the necessity of Spain's granting fully the just demands of the Cuban people, the alternative being separation and independence; and he indicated pretty clearly that he regarded the latter course as all but inevitable.

Thereafter for some years there was comparatively little political literature put forth in Cuba, but other departments of letters greatly flourished. A noteworthy volume of poems by four authors was published in 1853 under the title of "Cuatro Laudes." One of the authors was Dr. Ramon Zambrana, a physician and scientist of high attainments, whose poems were chiefly metaphysical, speculative and imaginative. He was married to Dona Luisa Perez, perhaps the foremost of the women poets of Cuba; to whom he was attracted by the reading of her poems. Many critics rate her verses more highly than his, and they were certainly more popular.

LUISA PEREZ DE ZAMBRANA



LUISA PEREZ DE ZAMBRANA

One of Cuba's greatest poets, Luisa Perez, was born near El Cobre in 1837, and was married in 1858 to Dr. Ramon Zambrana, an eminent man of letters of Havana. She wrote much in youth, and published a volume of poems in 1856. In addition to her poems she wrote "Angelica and Estrella" and other novels, and translated much from the French and Italian. When Gertrudis Avellanda returned to Cuba, Luisa Perez was chosen to place upon her brow a golden laurel wreath.

The second of the four authors was José Gonzalo Roldan, whose best work was in poems of tender sentiment. The third, Rafael Maria de Mendive, devoted himself almost exclusively to poems of melancholy or at least pensive sentiment. He was a passionate admirer and to some extent a disciple if not

an imitator of Byron and Moore, many of whose poems he translated into Spanish with much success. Beside his poetical work however, he cooperated with Quintiliano Garcia in founding and conducting *The Havana Review*, a meritorious fortnightly literary journal. His career in Cuba was cut short early in the Ten Years' War by banishment for treason. He was at that time the head of a boys' school, in Havana, and was suspected by the authorities of inculcating in his pupils forbidden ideas of freedom and democracy. One night in January, 1869, when there was much popular indignation against the Spanish government on account of a very drastic proclamation which had been issued against the insurgent patriots, a number of Cuban women marched to a theatre in Havana, wearing dresses of red, blue and white adorned with stars, obviously representing the colors of the revolutionary Cuban flag. Some of Mendive's boys were present, and they applauded and cheered the women so vigorously that a riot arose, in which the notorious Volunteers caused some bloodshed. For this Mendive was held responsible, and he was arrested and exiled to Spain for a term of four years. The influence of the American poet Longfellow and other literary men, however, procured his release, on condition that he would not reenter Cuba. He accordingly went to New York and there lived until the general amnesty after the Ten Years' War permitted his return to Cuba. While in New York he wrote much in behalf of the insurrection, and he cheerfully sent his son as a member of the ill-fated *Virginus* expedition; writing a touching poem on that occasion:

“’Tis well that thou hast done,
Most noble and most right,
To answer honor's call, my son,
For Fatherland to fight.”

The fourth of the four poets of "Cuatro Laudes" was Felipe Lopez de Brinas, who drew his best themes from nature, and who addressed his best poems to his wife.

One of the most popular poets in the period just preceding and during the Ten Years' War was José Fornaris, who in his "Cantos de Siboney" related many legends of the Cuban aborigines, some of them actual traditions but most of them invented by himself. A contemporary who essayed similar themes with almost equal success was Juan Cristobal Napoles Fajardo. Another, Miguel Teurbe de Tolon, devoted himself to legends and ballads

not of the aborigines but of the Cuban people of European ancestry. Tolon was an intense patriot, and for that cause suffered exile. For some years he lived in New York, where he was efficiently active as the secretary of the Cuban Revolutionary Junta in that city.



JOAQUIN LORENZO LUACES

But perhaps above all others the poet—we might say, the Tyrtaeus—of the revolution was Joaquin Lorenzo Luaces, though he did not live to see the beginning of the war which he did so much to provoke. Luaces, who was born in 1826 and died in 1867, was a devoted Greek scholar, and took Greek poetry for his model. For that reason many have thought that his writings were somewhat academic and artificial. There is however in his poems an exquisite finish surpassed by no other Cuban writer, while many of them reach a height of inspiration which few others have equalled. There was in them, moreover, an irresistible call to Cuban patriotism, which had vast effect

in rousing the nation for the Ten Years' War. One of his most stirring lyrics was on the Greek War of Independence, entitled "The Fall of Missolonghi":

To arms, ye Greeks! Missolonghi falls!
And Ibrahim conquers her soldiers brave.
But the Moslem finds within those walls
Corpses of Greeks, but never one slave!

JOAQUIN LORENZO LUACES

Lyric, dramatic and patriotic poet, Joaquin Lorenzo Luaces was born in Havana in 1826, and was educated at the University of that city. His themes as a poet were largely those of the great events of the day, or of history, such as the Fall of Missolonghi, the Death of Lincoln, and the Laying of the Atlantic Cable. Many of his poems were patriotic appeals disguised in classic forms. He died in 1867.

This passionate call to patriots to do battle to the death against tyrants was addressed to the Greeks, thousands of miles away, and the tyrants against whom it raged were Moslem Turks, hated by all true Spaniards; wherefore the Spanish censor permitted it to be published freely in Cuba. But every Cuban patriot read in it "Cubans" for "Greeks" and "Spaniards" for "Moslems." Luaces was the author of a number of meritorious dramas.

We have spoken of Doña Louisa Perez as probably the foremost of Cuba's women poets. Her chief rival for that distinction was Doña Gertrudis Gomez de Avellanda, a woman of real genius. But she, although born in Camaguey, was for practically all her life so identified with Spain that she is commonly regarded as a Spaniard rather than a Cuban. Born in 1814, she went to Spain with her mother in 1836, and there remained until 1860. By that time she had gained world-wide reputation as a poet and dramatist, and also as a writer of prose fiction, and on her return to Cuba she was publicly greeted as though she were a queen or an empress. A few months later she hastened back to Spain and there spent the remainder of her life. Only a few of her writings were on Cuban themes, but they indicated that she retained in her voluntary exile a deep love for and sympathy with her native land.

The successor of Domingo Del Monte as a patron of Cuban letters was Nicolas Azcarate, a very wealthy lawyer of Havana, himself a writer and orator of great power, and an ardent patriot, though generally inclined toward reforms and autonomy rather than independence. He was the leader of that "Committee of Information" which went to Spain in 1865 to lay before the Spanish Minister for the Colonies, Canovas del Castillo, the grievances and the demands of Cuba; a mission which was quite fruitless, for it was quickly followed by the outbreak of the Ten Years' War. Azcarate also founded and conducted at his own cost a newspaper at Havana, *La Voz del Siglo*, to advocate reforms and autonomy. But he lost popularity with the Cubans, who were by this time almost unanimous for independence, while he could not command the favor of the Spaniards; and in consequence he lost his influence, his fortune and his place in society, and ended his life in obscurity and poverty.



GERTRUDIS GOMEZ DE AVELLANEDA

Although most of her life was spent abroad, the name of Gertrudis Gomez de Avellaneda y Arteaga must always be enrolled among the glories of Cuban literature and Cuban womanhood. She was born in Camaguey on March 23, 1814, and almost literally "lisped in numbers," since she wrote an elegy on the death of her father at the age of six, and two years later wrote a fairy tale, "The Hundred-Headed Giant." In 1836 she bade farewell to Cuba in a memorable sonnet, and went to France, and thence to Spain. There she wrote poems and dramas which placed her in the foremost rank of the world's literary artists; her poetical drama of "Baltasar" in 1853 being one of the greatest triumphs of that generation. In 1860 she revisited Cuba and was publicly crowned in the Tacon Theatre before a great assemblage of the foremost men and women of the nation. She returned to Spain a few years later and died at Seville on February 2, 1873.

Prominent among the poets of the Revolution was Juan Clemente Zenea, who was a martyr as well as a poet. He was born at Bayamo in 1832, his mother being the sister of the poet Fornaris already mentioned. He was one

of the pupils of José de la Luz y Caballero, and before leaving school began to write patriotic poems and other articles. At the age of twenty he had to flee from Cuba to escape arrest and prosecution for his complicity in some revolutionary publications; whereupon he went to New York and there continued his revolutionary writings. So extreme were some of these that in December, 1853, a court martial at Havana condemned him to death. Under the amnesty of 1855 he returned to Cuba and became a teacher of modern languages and a writer for the press, and a few years later published a volume of charming poems. After ten years he left Cuba for New York and then for Mexico, and upon the outbreak of the Ten Years' War he joined the Cuban Junta in New York and became editor of its organ, *La Revolucion*. In 1870 the Spanish Minister at Washington, wishing to negotiate secretly with Cespedes, the leader of the Cuban revolutionists, gave Zenea a safe conduct to pass through the Spanish lines and convey a message to Cespedes. This errand was undertaken against the advice of his friends. It was accomplished in safety, however, until when, on his return trip, he was just about to pass beyond the limits of Spanish jurisdiction. Then he was seized by order of the Volunteers and imprisoned. The Spanish government at Madrid telegraphed orders to the Captain-General to honor the safe conduct and to release him at once. But that officer, the notorious Count Valmaseda, ignored these orders, kept Zenea in prison until there was a change of Ministry at Madrid, and then, on August 25, 1871, put him to death. The Spanish government disavowed this monstrous crime, and paid Zenea's widow an indemnity of \$25,000, though it failed to punish Valmaseda according to his deserts.

Another pupil of Luz y Caballero, and a close friend of Zenea, was Enrique Piñeyro, a journalist, historian, essayist and lecturer, who, born in 1839, had the good fortune to survive until 1911 and thus to see the work of Cuban independence triumphantly completed. José Morales Lemus, born in 1808, established in Havana in 1863 the paper *El Siglo*, a powerful advocate of reforms and autonomy. He went with Saco and Azcarate on the Committee of Information to Madrid, and on his return from that bootless errand he went to Washington as the first Cuban Minister. He was the envoy of the Provisional Government of the Cubans in the Ten Years' War, and as such, though the Cuban Republic did not receive official recognition, he participated in formulating the plan of Cuban settlement which General Daniel E. Sickles, as a special American envoy, carried to Madrid to

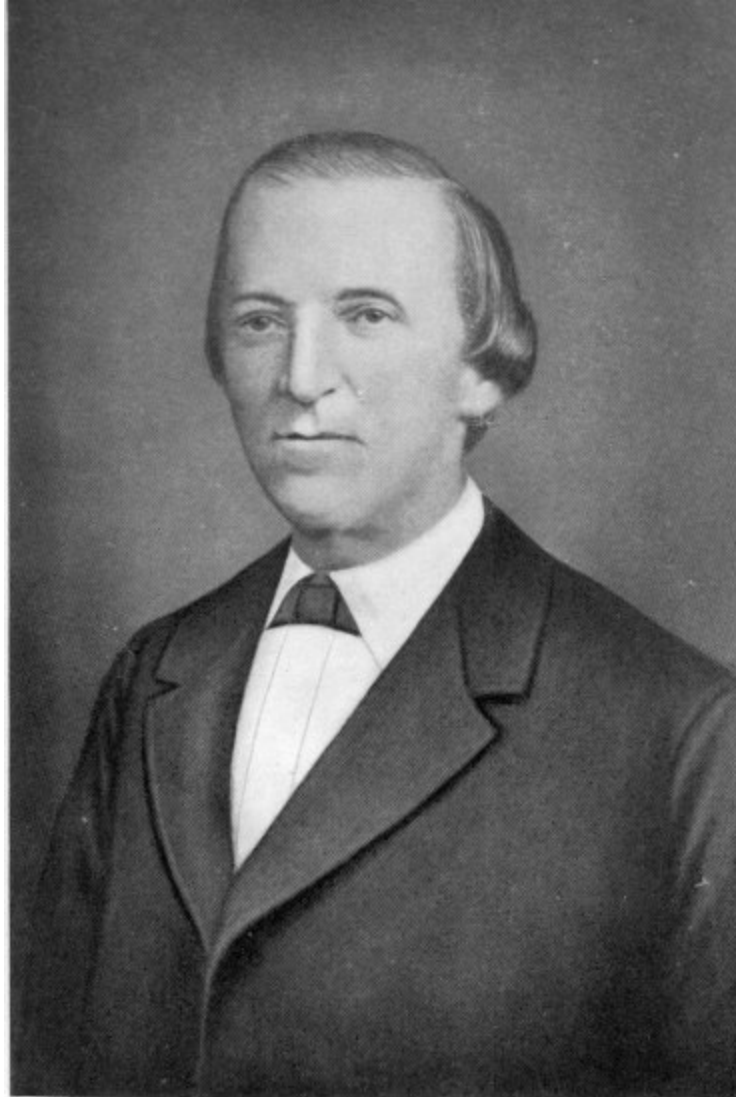


propose to the Spanish government. This plan provided that Spain should grant Cuban independence in return for a large indemnity to be paid by Cuba under the guarantee of the United States. It was not certain that the Cuban people would have approved that plan. Indeed, it is probable that they would not have done so. The Spanish government would not listen to it, however, and it was abandoned. A little later, in June, 1870, Lemus died.

ENRIQUE PIÑEYRO

The son of a University professor of literature and history, Enrique Piñeyro was born in Havana in 1839 and was educated at La Luz's school of El Salvador. He became a successful journalist, writer and teacher,

and when the Ten Years' War began he went to New York and there edited "La Revolucion" and "El Nuevo Mundo," and wrote several notable histories and biographies. After the war he returned to Cuba for a short time, then went to Paris and remained there until his death in 1910.



JOSÉ MORALES LEMUS

A veteran of the Lopez insurrection and of the Ten Years' War was José Morales Lemus, who was born at Gibara on May 2, 1808, and became a successful advocate. Convinced of the wrong of slavery, he liberated his own slaves, who however insisted upon voluntarily remaining in his service. He participated in the Lopez invasion in 1851 and in the Pinto conspiracy in 1855, on which account he was exiled to the United States. In 1866 he returned to Cuba and became President of the Junta of Information. At the outbreak of the Ten Years' War he went to New York to become head of the Cuban Junta there, in consequence of which all his property in Cuba was confiscated. At Washington he strove earnestly though in vain to secure the recognition of Cuban belligerence. His efficient patriotic labors were continued in New York to the day of his death, which occurred on June 23, 1870.

One more Cuban writer demands attention, prior to the War of Independence; though there were indeed many others of merit whose names might well be recalled if a bibliography of the island were to be compiled.

Rafael Merchan was born in 1844, and was thus a mere youth when the Ten Years' War began to be planned; yet we must reckon him to have been perhaps the foremost patriotic journalist of that struggle. It was he who suggested the name "Laborers" which was at first commonly applied to the Cuban revolutionists. It will be recalled that in Cuba affairs were directed by a "Labor Committee," that in the United States societies of "Cuban Laborers" were formed in many cities, and that periodicals called *El Laborante* were published. Proscribed and sentenced to death by the Spanish authorities, he found asylum in New York, and there edited the Cuban revolutionary journal, *La Revolucion*. Thence a few years later he went to Bogota, Colombia, to engage in business and also to continue his literary career. It was his good fortune to be able to resume his patriotic writings in 1890, when the War of Independence began to loom upon the horizon, and to write in 1895 and later several pamphlets in support of that struggle, some of which had much influence in both America and Great Britain. He lived to see the Cuban Republic securely established, and to go abroad as its Minister to France and Spain in 1902. His service was brief, however, because of ill health, which soon brought him home to die.

It would be pleasant, and not lacking in profit, to dwell at greater length upon these and other intellectual leaders of the Cuban people. What we have said is, however, sufficient to show how greatly and how masterfully the intellectual side of Cuban life was developed during the century of political stress and fitful military strife which served as the stormy prelude to Cuba's achievement of her independent rank among the nations of the world. It was a development admirably comparable with any ever recorded of any other people, and one which splendidly vindicated the claim of the Cuban people to worth as a sovereign nation. Moreover, it was an unmistakable earnest of approaching independence. While for a century Cuba was purely a Spanish colony, her intellectual life was embryotic and inert. During the two centuries while she was more or less an object of international contention, she showed little activity. But in her fourth century, the era of revolution and of aspirations for independence, she showed the stuff that was in her sons and daughters. Her soldiers were valiant in battle. Her statesmen were wise in council. Her scholars and literati commanded distinguished attention in the most brilliant intellectual era of human history, and demonstrated that the Cuba that was about to be

would be in the culture of the higher life a worthy member of the community of nations.

THE END OF VOLUME THREE

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The following typographical errors were corrected by the etext transcriber:

whereupon Castanada=>whereupon Castenada

General Caballere de Rodas=>General Caballero de Rodas

He had taken an active part in the revolution upon its inception=>He had taken an active part in
the resolution upon its inception

wtih which to support their movement=>with which to support their movement

deserted and, approaching the Spanish=>deserted, and approaching the Spanish
their governments and to have interviews=>their governments and to have interviews

Talon was an intense patriot=>Tolon was an intense patriot

quantiy of provisions=>quantity of provisions

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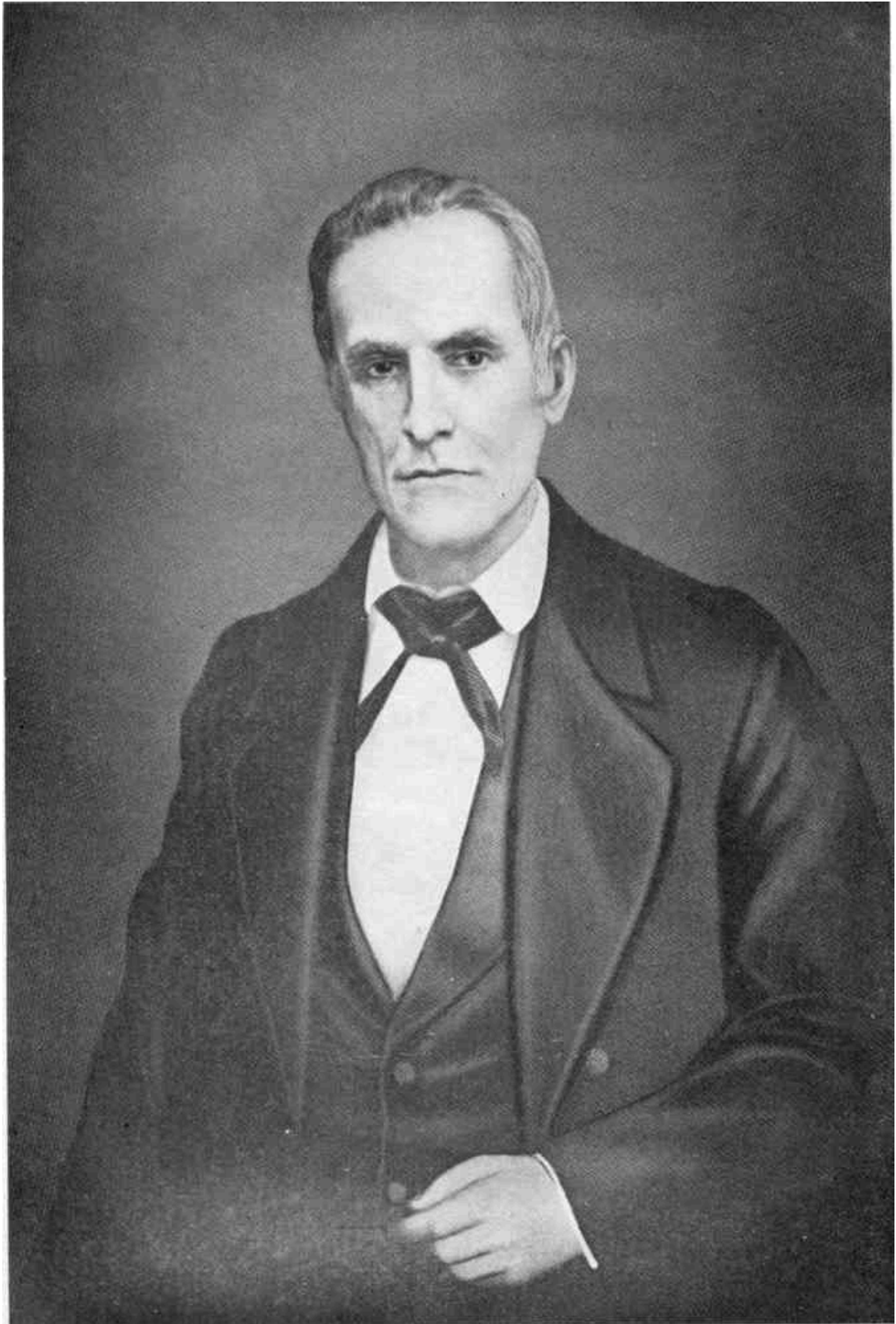
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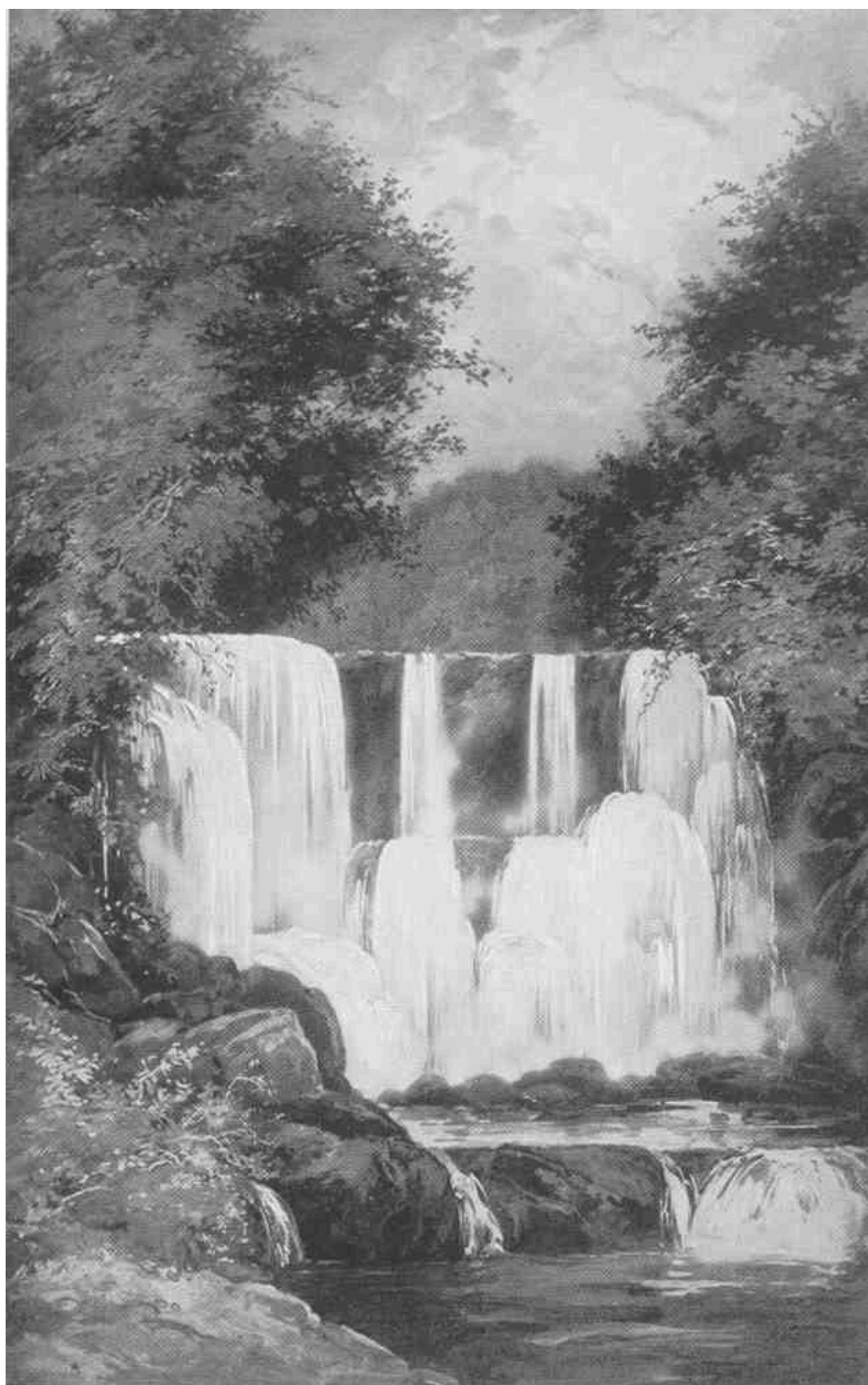
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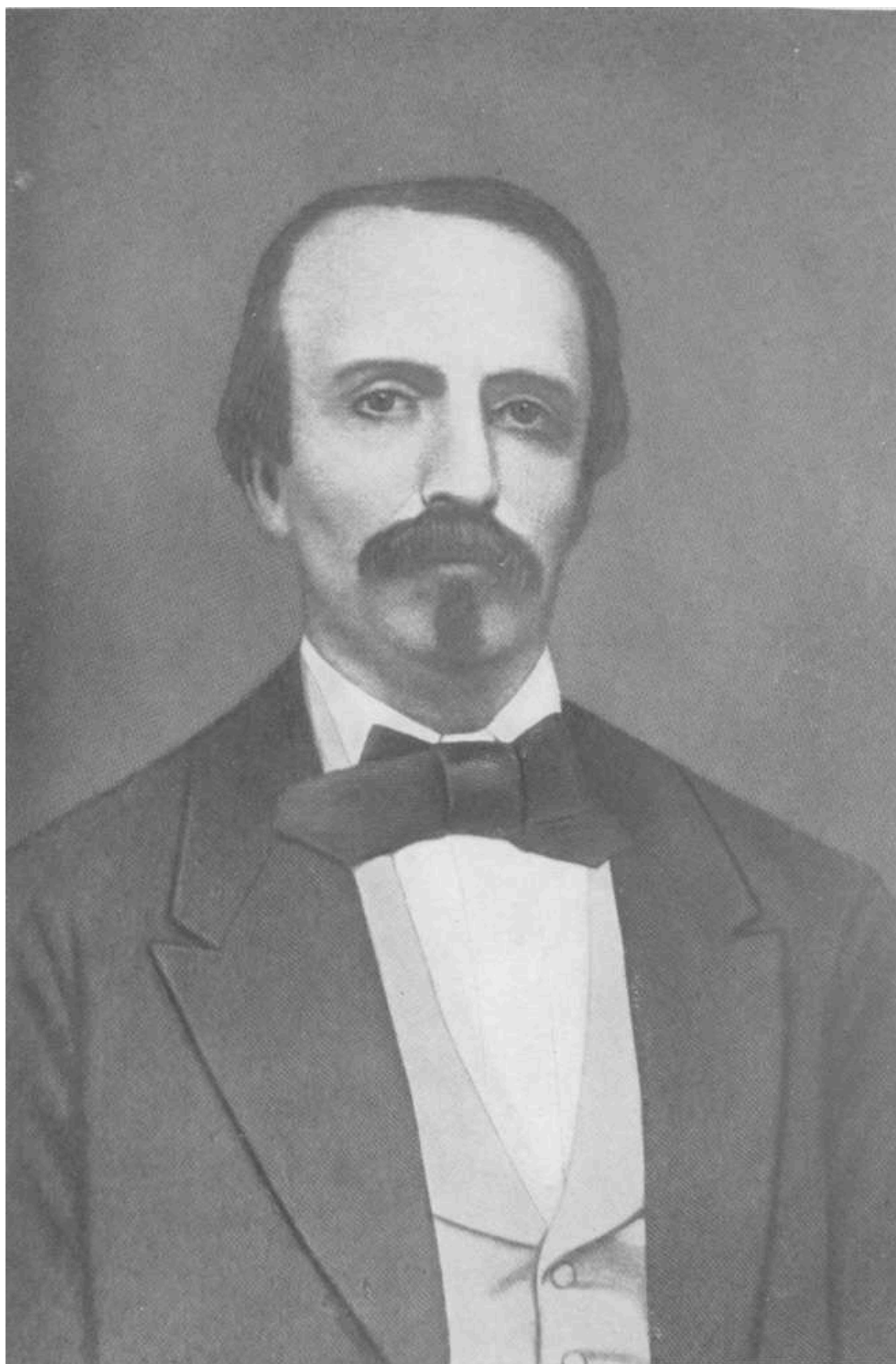


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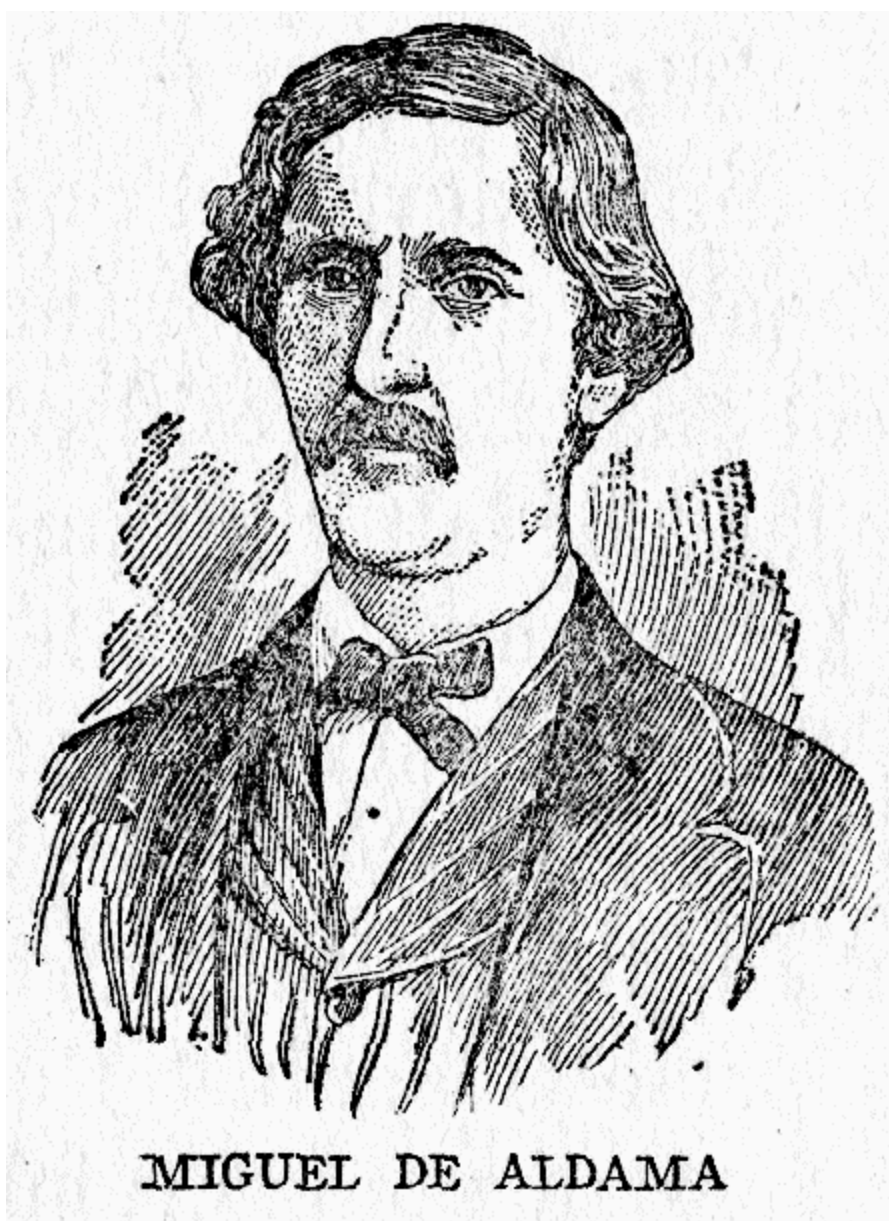
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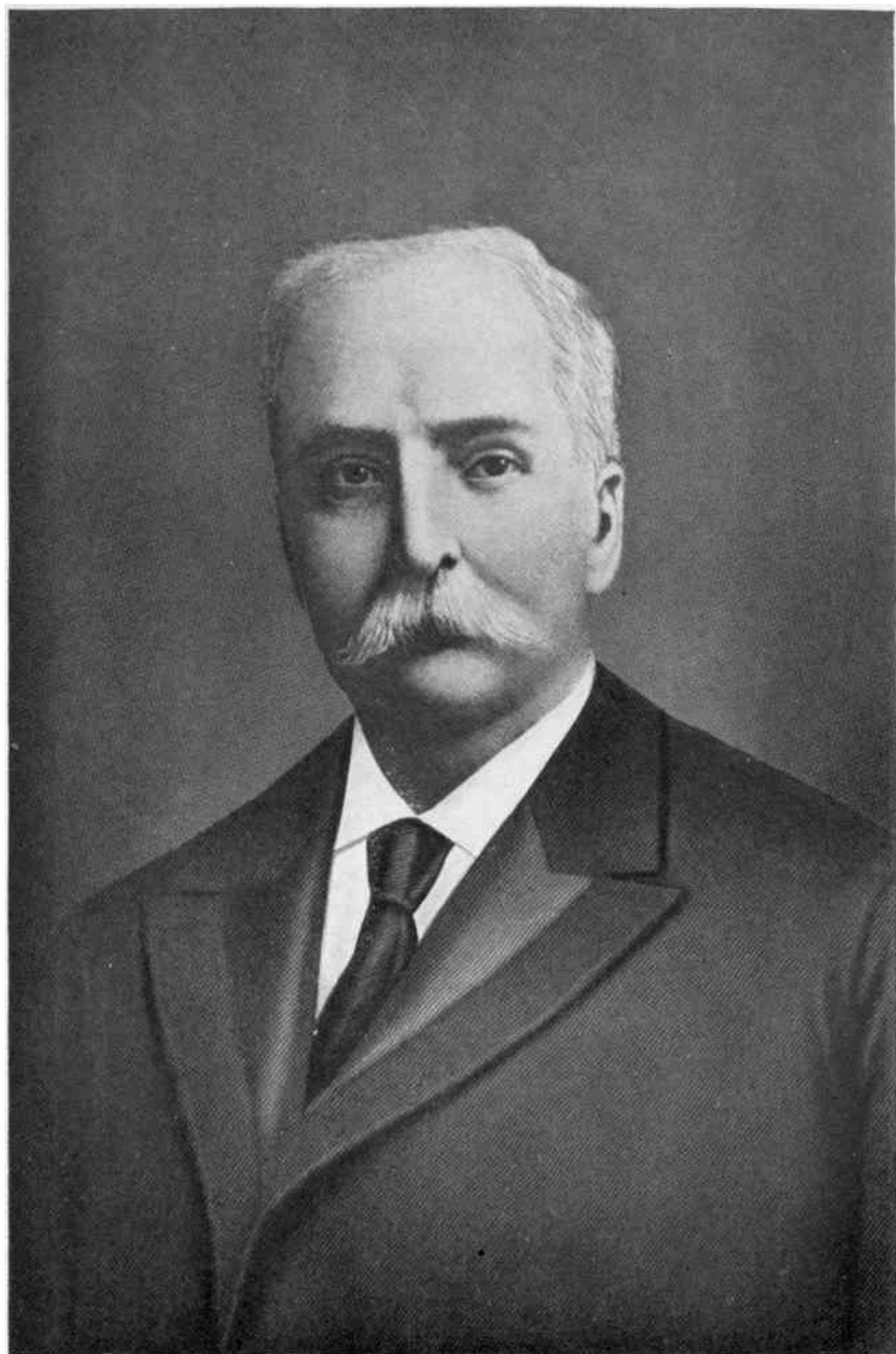


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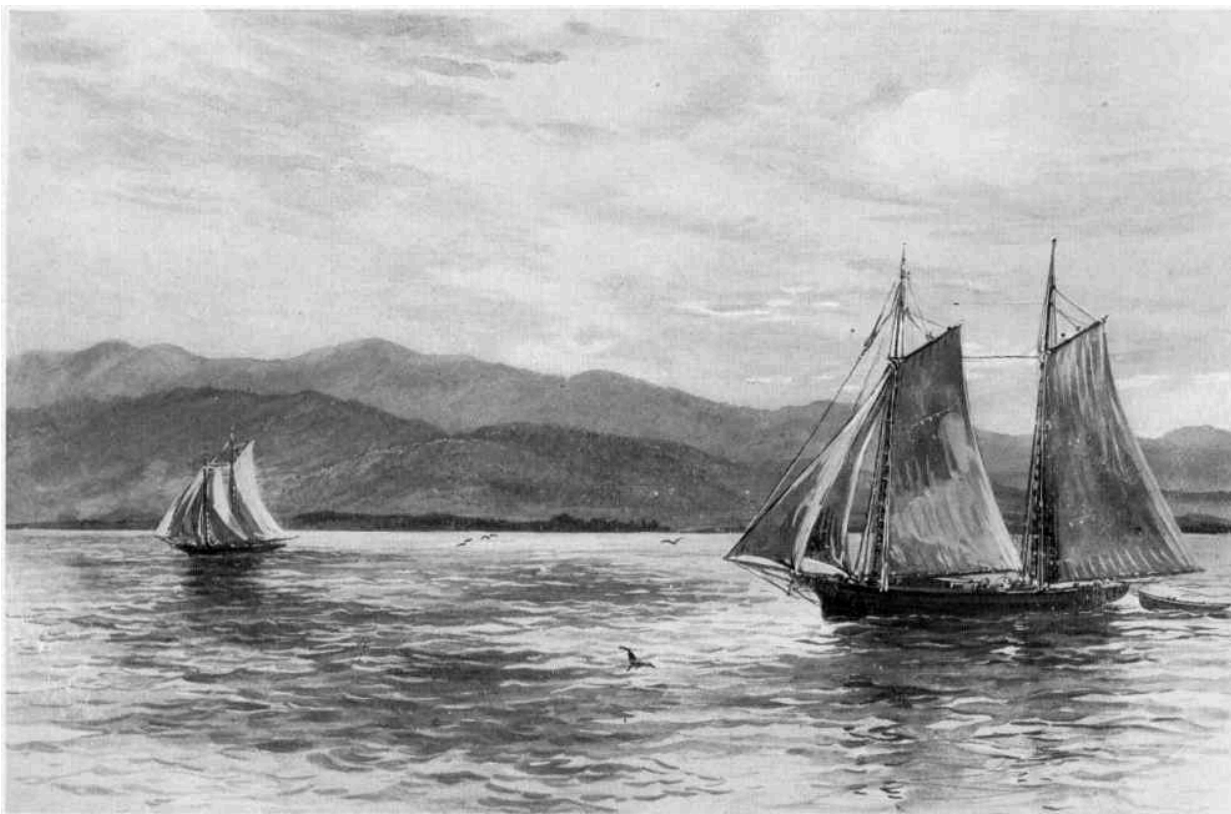


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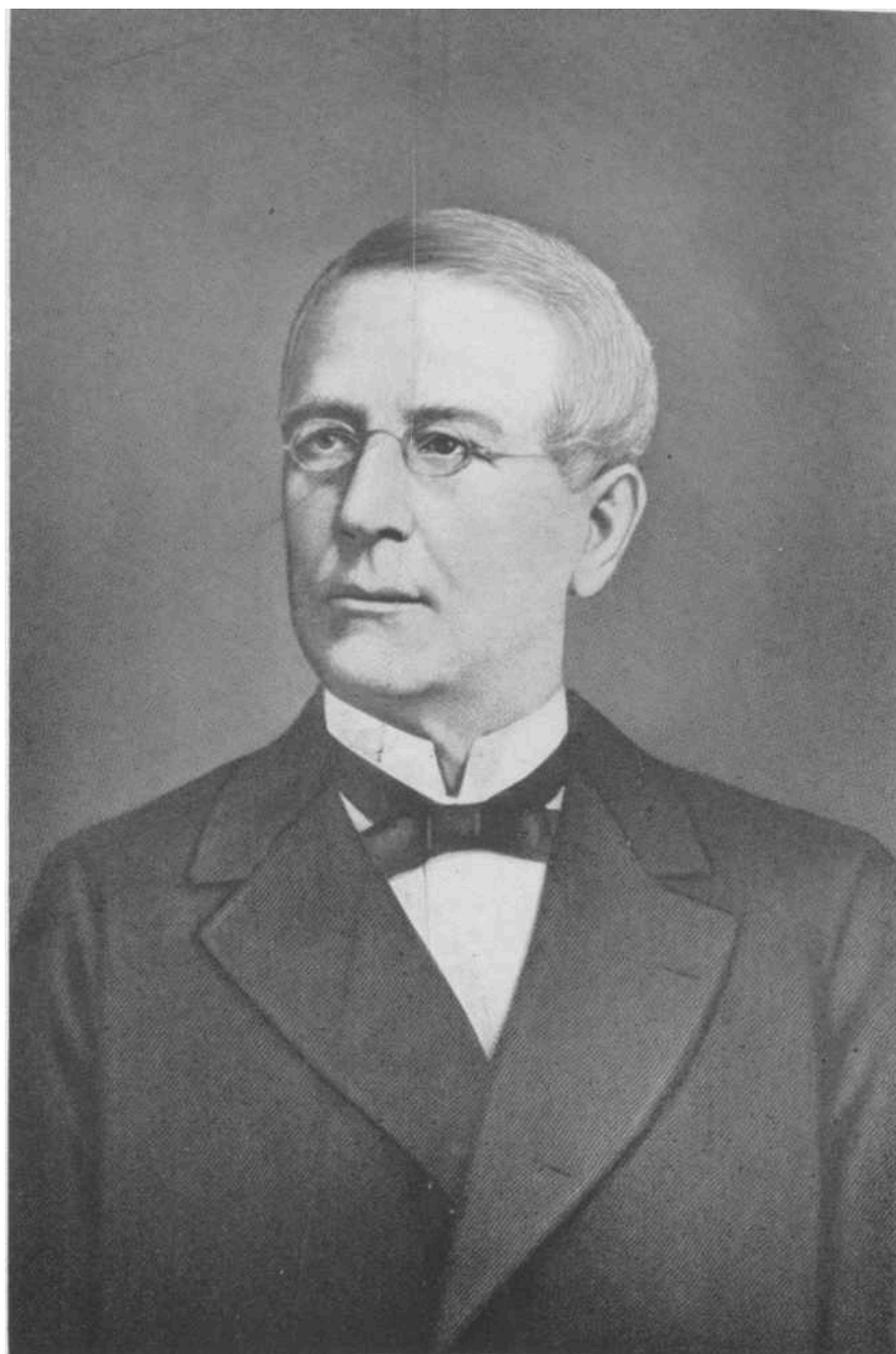


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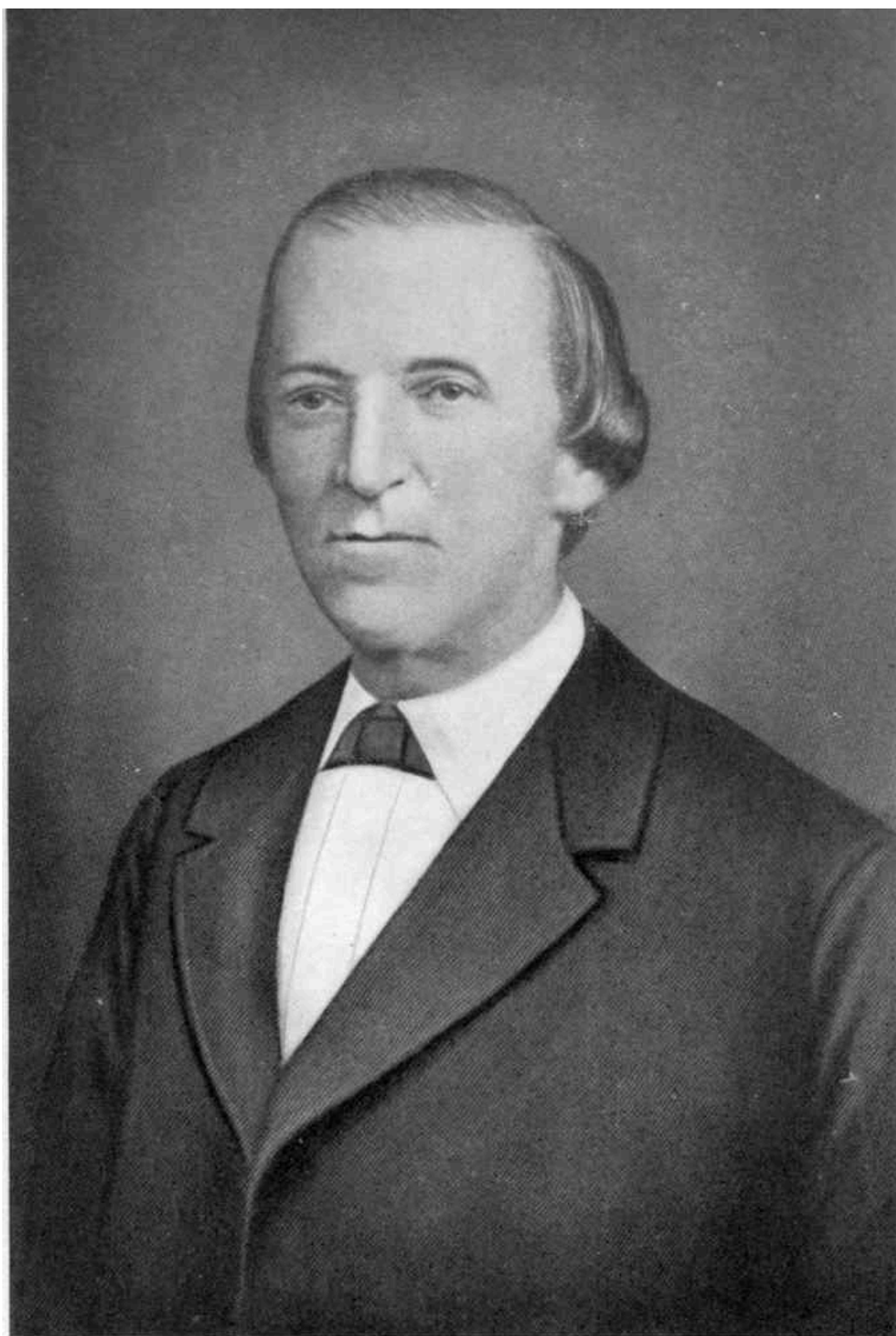


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